Defining Islamic Comparative Theology

Comparative Theology, Islam, and Society

Edited by
Idris Nassery, Zishan Ghaffar, Naciye Kamcili-Yildiz
and Muna Tatari

Volume 1

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Preface

This volume, *Defining Islamic Comparative Theology*, gathers contributions first presented at the conference held at Paderborn University in December 2022 under the same title. Conceived as a space for reflection, the meeting sought to explore what it might mean to speak of comparative theology from within the framework of Islamic thought. It brought together scholars from diverse academic and confessional backgrounds, united by the conviction that theological reasoning today must respond to the reality of religious plurality—not merely by describing it, but by engaging it as a source of insight and transformation.

Over the past decades, comparative theology has evolved into a vibrant field dedicated to the encounter between faiths and the mutual learning such encounters make possible. Yet its parameters have largely been shaped by Christian traditions and the institutional settings in which the discipline first emerged. The establishment of Islamic theology within German universities, together with new models of interreligious academic exchange, now offers an opportunity to reconsider how comparative theological inquiry might be grounded in Islamic sources, methods, and questions. This volume represents an initial step toward articulating a distinctly Islamic approach to comparative theology.

The contributions assembled in this volume pursue this task from a range of theological and disciplinary perspectives. They examine the systematic foundations of comparison, the resources of Qurʾānic interpretation and jurisprudence, and the implications for education and gender studies, as well as the broader ethical and epistemic dimensions of comparative reasoning. Together, they contribute to the emergence of a field distinguished by intellectual rigor, methodological self-awareness, and an openness to dialogue across traditions.

The project that gave rise to this volume rests on the conviction that comparative theology is not a matter of adapting external models, but of expanding one's own horizon through encounter. Its aim is to rediscover the depth of one's own tradition precisely by entering into conversation with others. Such engagement does not weaken or dilute confessional identity; rather, it enables that identity to become more reflective, more articulate, and more generous.

We extend our profound gratitude to all contributors for their thoughtful engagement and steadfast commitment, and to the institutions whose support made this project possible. We are particularly indebted to Dr. Torsten Wollina, whose timely and generous assistance contributed decisively to the realization of this volume. We also thank Dr. Stephan Kokew, who undertook all formal corrections in the book. Finally, we extend our appreciation to the team at De Gruyter Brill for their confidence in this endeavor and for publishing it as the inaugural

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volume of the series *Comparative Theology, Islam, and Society*, which we have the honor to edit.

It is our hope that this book will serve as an invitation to engage theologically across traditions, encouraging readers to see comparison not as a departure from one's pursuit of truth, but as a means of deepening it.

Paderborn, 2025
Idris Nassery and Zishan Ghaffar

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Idris Nassery, Zishan Ghaffar

Introduction: Defining Islamic Comparative Theology

Islamic Comparative Theology is an emerging field at the intersection of theology, religious studies, and interreligious engagement. Over the past three decades, the term "Comparative Theology" has been shaped primarily by Christian voices, most notably Francis X. Clooney, Catherine Cornille, and others, who developed a methodologically self-reflective yet confessionally grounded approach. At its core lies a practice of *faith seeking understanding* through dense textual engagement and hermeneutical openness to learning from other traditions. Islamic theology has, until now, seldom appeared in this discourse as an active voice. Where it did, it was often as an object of comparison rather than as a subject contributing its own sources, methods, and categories.

This volume seeks to redress that imbalance. It gathers contributions that articulate the contours of Islamic Comparative Theology from within the Islamic tradition and in active dialogue with Jewish and Christian interlocutors. The ambition is twofold. First, it seeks to retrieve the intellectual resources of Islamic theology—Kalām, Qurʾānic exegesis, *uṣūl al-fiqh*, and *adab al-ikhtilāf*—as reservoirs for comparative work. Second, it aims to position Islamic theology within international academic discourse not as a passive counterpart but as an active agent shaping theological exchange.

The urgency of this project stems not only from intellectual developments but also from its societal context. In Europe, and particularly in Germany, Islamic theology is being cultivated within state universities, where it must demonstrate its academic credibility while speaking to plural publics. Questions of truth, normativity, and religious practice are therefore not confined to the inner circle of the Muslim community but are negotiated in dialogue with other traditions and disciplines. Islamic Comparative Theology is thus not a derivative of Christian models but a necessary evolution, translating the hermeneutics of learning across traditions into the logic of Islamic normativity. Accordingly, this volume positions itself programmatically. It moves beyond descriptive religious studies by engaging normative claims with methodological humility and cultivating a culture of fallibility. It differs from interreligious dialogue in that its primary aim is not mutual understanding but theological insight. It resonates with theology of religions while resisting abstraction into typologies of exclusivism, inclusivism, or pluralism. Instead, it begins with concrete texts, practices, and arguments, and lets comparative analysis generate new insight.

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The contributions map this emerging field from diverse perspectives. Some offer systematic and conceptual accounts of what an Islamic Comparative Theology might entail. Others draw on empirical and pedagogical contexts, asking how comparative theological learning can be implemented in schools and universities. Still others highlight the role of gender and embodiment, thereby expanding the methodological horizon. Finally, several Christian theologians respond critically and constructively to Muslim proposals, showing how difference and mutual correction can become sources of theological creativity. The common thread running through these contributions is the conviction that Islamic theology defines itself most clearly when tested against the interpretive grammars of other traditions. Comparison here is not mere juxtaposition but an internal theological exercise. By taking the speech of the other with utmost seriousness, Muslim theologians sharpen their own categories, cultivate a disciplined practice of error, and gain new depth for articulating normative truth.

Genealogies and Intellectual Memories

Comparative theology, as articulated in recent decades, is often described as a new discipline. Yet its impulses resonate with older intellectual patterns within Islamic thought. The Islamic sciences have always been shaped by encounters with religious others and by an internal discipline of disagreement. To recognize these genealogies is to see that Islamic Comparative Theology is not an imported novelty but the retrieval of a latent potential in classical traditions.

Within *kalām*, systematic engagement with Jews, Christians, Zoroastrians, and philosophers created discursive arenas in which the logic of revelation was tested against rival truth-claims. Argument in *kalām* presupposed such rivalry and was honed in confrontation with it. This recalls Hugh Nicholson's argument that comparative theology must reckon with rivalry and the asymmetries of power structuring interreligious reasoning.[1]

Uṣūl al-fiqh provides a second genealogy. Debates over *ijtihād*, consensus, and analogy reflect a deep awareness of methodological pluralism. The discussion of whether every muǧtahid may be considered correct (*kull muǧtahid muṣīb*) anticipates a form of epistemic fallibilism long before modern philosophy articulated similar concerns. Robert Neville's claim that every theology offers only masks of God, partial expressions of the divine, mirrors this recognition of plurality and limitation.[2]

1 Nicholson 2011, 4, 95.
2 Neville 1991, 1–5.

Qur'ānic exegesis (*tafsīr*) forms a third genealogy. Exegetical traditions were never purely monologic but consistently addressed the presence of Jews, Christians, and others within the Qur'ān itself. Interpretation of verses concerning previous revelations or shared figures such as Abraham and Mary required exegetes to situate Islam within a wider web of divine communication. Francis Clooney's vision of comparative theology as "deep learning across religious borders" finds an analogue here.[3]

Finally, the literature on *adab al-ikhtilāf*—the etiquette of disagreement—illustrates that theological and legal plurality was not merely tolerated but normatively structured. Catherine Cornille has argued that humility, trust, and commitment are indispensable virtues of comparative theology.[4] *Adab al-ikhtilāf* may be seen as an early cultivation of precisely such virtues: it framed disagreement as discipline rather than as failure, thereby sustaining an ethos of humility before difference.

Taken together, these genealogies show that Islamic Comparative Theology is not a rupture with the past but a continuation of its deepest impulses. They also demonstrate how Islamic traditions can enrich comparative theology more broadly: with a strong sense of methodological discipline, a jurisprudential model of structured pluralism, and a hermeneutics that integrates divine unity with human diversity.

Boundaries and Relations

Islamic Comparative Theology stands in close proximity to neighboring fields, yet it cannot be collapsed into them. Clarity about these boundaries is essential to mark both its potential and its distinctive contribution.

In relation to the study of religions, comparative theology shares a commitment to philological accuracy, historical contextualization, and methodological transparency. Yet it diverges precisely at the point where religious studies suspends questions of truth. Comparative theology does not merely describe religious phenomena but asks normatively how the encounter with the other shapes the truth-claims of one's own tradition. Francis Clooney already emphasized that comparative theology is confessional theology in a comparative mode, not a variant of religious studies.[5] Paul Hedges has added that ignoring this difference risks reduc-

3 Clooney 2010, 5.
4 Cornille 2019, 175.
5 Clooney 2010, 45.

ing comparative theology to just another descriptive framework, thereby emptying it of its constructive power.[6]

Compared to interreligious dialogue, comparative theology shares an ethos of respect and hospitality. Yet its primary aim is not consensus or reconciliation but theological learning. Catherine Cornille distinguishes here between dialogue for understanding and dialogue for truth.[7] Comparative theology belongs to the second category: it seeks to test and refine truth-claims in the presence of the other. This does not preclude mutual understanding, but it does insist that understanding without theological accountability remains incomplete.

A further distinction is needed vis-à-vis theology of religions. Theology of religions addresses the status of other faiths in abstract models such as exclusivism, inclusivism, or pluralism. Comparative theology, by contrast, resists premature systematization. It begins with concrete texts, practices, and arguments, and only from there moves toward broader systematic insights. Robert Neville has warned that premature abstraction can obscure the richness of lived traditions, replacing them with philosophical masks rather than actual voices.[8] Clooney's insistence on *learning by (inter)religious reading* exemplifies the corrective: only dense, contextualized engagement prevents the other from being turned into a mere category.[9]

For Islamic Comparative Theology, these boundaries are even more significant. As a field developing within public universities in Europe, it must demonstrate academic credibility in conversation with religious studies, while also safeguarding its normative theological integrity. It must participate in interreligious dialogue, while insisting on the right to articulate distinct truth-claims. And it must engage the debates of theology of religions, while offering an alternative that grounds the status of the other not in typological schemes but in the hermeneutics of scripture, law, and theology.

Methodological Commitments

If Islamic Comparative Theology is to emerge as a distinct academic practice, it requires a set of methodological commitments. These commitments are not rigid prescriptions but orienting virtues and disciplines shaping the comparative endeavor.

6 Hedges 2017, 3.
7 Cornille 2019, 50.
8 Neville 1991, 12–13.
9 Clooney 2010, 57–68. Cornille 2017, 21.

First, hermeneutical hospitality. Francis Clooney defines comparative theology as "faith seeking understanding which is rooted in a particular faith tradition but which, from that foundation, ventures into learning from one or more other faith traditions"[10]. This act of deep learning across religious borders requires not only philological competence but also the willingness to suspend premature judgment, letting the other tradition articulate its own theological grammar.[11]

Second, textual and contextual density. Pim Valkenberg emphasizes that comparative theology is strongest when anchored in the sources and life-worlds of particular traditions rather than relying on abstract notions of religion.[12] Clooney, too, insists that the comparative theologian must engage not simply major texts but also the methods and traditions of interpretation of those texts.[13]

Third, positionality and reflexivity. Catherine Cornille identifies humility as an indispensable virtue, for without humility, the comparative theologian might be tempted to consider his or her own religious views superior.[14] Nicholson sharpens this by arguing that comparative theology must acknowledge the asymmetrical relations of power and rivalry inherent in interreligious encounters.[15] Reflexivity is thus not optional but necessary to avoid hidden hegemonies.

Fourth, fallibility and disciplined error. Robert Neville insists that truth is important because there is something behind the masks of God. So far as our finite theology goes, what is behind is only more masks.[16] Comparative theology accepts that its insights are always partial and revisable. Here Islamic traditions of *ijtihād* and *adab al-ikhtilāf* resonate strongly, since they institutionalized disagreement and recognized the possibility of multiple, valid outcomes.

Fifth, critical and constructive engagement. Paul Hedges highlights the necessity of integrating postcolonial and feminist perspectives, noting that comparative theology must be self-critical in order to avoid reproducing hegemonic structures of power.[17] This broadens the scope beyond textual comparison to include voices historically marginalized within traditions.

Taken together, these methodological commitments define Islamic Comparative Theology as hospitable yet rigorous, text-centered yet critically reflexive, fallible yet normatively serious. They chart a middle path between apologetic closure

10 Clooney 2010, 10.
11 Clooney 2010, 61.
12 Valkenberg 2022, 6, 8.
13 Clooney 2010, 60–63.
14 Cornille 2019, 43, 58.
15 Nicholson 2011, 95.
16 Neville 1991, 168.
17 Hedges 2017, 5.

and relativistic dissolution, enabling theology to learn in the presence of the other without abandoning its responsibility for truth.

Topography of the Volume

The contributions in this volume can be grouped into three broad clusters, which together delineate the emerging contours of Islamic Comparative Theology.

The first cluster engages systematic and conceptual questions. Klaus von Stosch surveys the diverse contributions of Muslim scholars to comparative theology and demonstrates how they already exemplify the forms of learning described by Catherine Cornille. Abdul Rahman Mustafa examines the epistemological challenges that comparative theology poses for Islamic thought. Ufuk Topkara proposes a correlative model that moves beyond a fixation on truth-claims, while Aaron Langenfeld responds by emphasizing the indispensability of truth in comparative endeavors. Zishan Ghaffar analyzes the extent to which Qurʾānic covenant theology can serve as a basis for the practice of comparative theology, followed by Pim Valkenberg's constructive response. Vahid Mehr explores a Qurʾān-based hermeneutic of non-supersessionism, to which Marianne Moyaert offers a critical rejoinder. Hakkı Arslan compares Jewish and Islamic genres of jurisprudence to highlight structural parallels in normativity. Ahmad and al-Sayyad reflect on knowing God as a shared locus of epistemology and devotion. Idris Nassery reexamines classical debates on whether a non-Muslim may perform *ijtihād* and argues that interreligious learning can broaden the methodological horizons of *uṣūl al-fiqh* while preserving its normative integrity.

A second cluster turns to pedagogical and empirical perspectives. Fahimah Ulfat investigates how comparative theology can be operationalized in school and university contexts, drawing on empirical studies of interreligious learning. Johannes Woppowa responds by probing the theological conditions under which such empirical findings can be normatively appropriated. Naciye Kamcili-Yildiz explores the role of comparative theology in Islamic religious education in Germany, while Monika Tautz offers a rejoinder that raises curricular and confessional questions. These contributions show that Islamic Comparative Theology is not only a theoretical construct but also a pedagogical practice shaping interreligious education.

A third cluster brings gender and embodiment into focus. El Omari interrogates interpretive horizons of Islamic theology in relation to women's agency. Mirsadri deepens this analysis with a study of female agency in the Qurʾān. Jerusha Rhodes develops a methodological proposal for integrating gender into Islamic Comparative Theology as both content and method. These essays ensure that com-

parative theology remains attentive not only to conceptual frameworks but also to embodied difference and marginalized voices.

Taken together, these clusters show that Islamic Comparative Theology is a field under construction. Systematic explorations provide conceptual frameworks, pedagogical studies demonstrate practical implementation, and gender-focused essays expand methodological horizons. Their interplay underscores that Islamic Comparative Theology is dialogical, normatively engaged, and socially relevant.

Concluding Reflections and Public Relevance

This volume positions Islamic Comparative Theology as an academic field that is at once constructive, self-critical, and publicly relevant. By retrieving Islamic intellectual genealogies and engaging contemporary comparative practices, the essays gathered here move beyond a narrow understanding of comparative theology as an exclusively Christian project. They show that Islamic theology not only participates in but also reshapes the discipline by contributing its own categories, methods, and concerns to the table. The significance of this undertaking is not confined to the academy. Comparative theology addresses questions that matter for religious communities and plural societies alike. In contexts such as Germany, where Islamic theology is being institutionalized within public universities, the comparative approach provides a model of how theological reasoning can remain confessionally rooted while engaging wider publics. It equips theology with a language capable of articulating truth-claims in the presence of others, cultivating intellectual humility, and fostering a disciplined culture of disagreement.

The contributions in this volume also highlight that comparative theology is not an abstract exercise but one that carries concrete pedagogical, social, and political implications. In classrooms, it can transform interreligious learning from tolerance-oriented encounters into genuinely theological reflection. In public debate, it can counteract polarizing narratives by demonstrating how religious traditions can learn from one another without dissolving their identities. In academic discourse, it offers a methodological alternative to both relativistic pluralism and rigid exclusivism.

The essays thus converge on a shared conviction: Islamic Comparative Theology is not a marginal enterprise but an essential mode of theological reasoning for our time. It sharpens the self-understanding of Islamic theology, generates new resources for interreligious engagement, and contributes to the resilience of religiously plural societies. This volume is therefore not merely descriptive but programmatic. It seeks to open a field of research, to mark its boundaries and

possibilities, and to invite others into the ongoing work of comparative theological reflection.

Bibliography

Clooney, Francis X. (2010), *Comparative Theology: Deep Learning across Religious Borders*, Oxford: Wiley-Blackwell.

Cornille, Catherine (2017), "The Problem of Choice in Comparative Theology", in: Francis X. Clooney / Klaus von Stosch, eds., *How to Do Comparative Theology*, New York: Fordham University Press, 19–36.

Cornille, Catherine (2019), *Meaning and Method in Comparative Theology*, Oxford: Wiley-Blackwell.

Hedges, Paul (2017), *Comparative Theology. A Critical and Methodological Perspective* (Brill Research Perspectives in Theology), Leiden: Brill.

Nicholson, Hugh (2011), *Comparative Theology and the Problem of Religious Rivalry*, Oxford: Oxford University Press.

Neville, Robert C. (1991), *Behind the Masks of God: An Essay toward Comparative Theology*, Albany: SUNY Press.

Valkenberg, Pim (2022), "Introduction", in: Pim Valkenberg, et al., eds., *A Companion to Comparative Theology* (Brill's Companions to Modern Theology 2), Leiden: Brill, 1–27.

Klaus von Stosch

Chapter 1
The Emerging Field of Islamic Comparative Theology

Introduction

Comparative theology, as developed by people such as Francis X. Clooney, James L. Fredericks and Catherine Cornille,[1] is still a relatively young discipline and in its first two decades it was mainly promoted by Catholic theologians. This has led to the question of whether comparative theology can also be practiced by non-Catholics.[2] While there were also important Protestant voices in comparative theology from the beginning—such as Keith Ward,[3] Robert C. Neville[4] or Michelle Voss Roberts[5]—the question of whether there can also be non-Christian comparative theologies persists to this day. Because of its alleged supersessionist agenda, Islam in particular is suspected of not being able to develop its own Islamic comparative theology and, in any case, of not being able to comprehend all forms of learning in comparative theology.[6] This chapter therefore aims to show how diverse comparative theology is being practiced by Muslims today and how promisingly this emerging field is developing.

I will refrain from tracing a prehistory of Islamic comparative theology. For such an endeavor, reference should be made not only to the intensive mutual learning processes in high scholasticism, which David Burrell, for example, has analyzed in detail,[7] but also to the appropriation of Christian theology in the early Abbasid era, which Najib Awad, for example, is working on.[8] There is also much to be said about examples such as the transfer of theology in al-Andalus or even in early modern South Asia,[9]—again, one could trace the extent to which Muslims learned from other religions, cultures and their theologies and drew inspiration from them

1 Cf. Clooney 2010; Fredericks 1999; Cornille 2020.
2 Cf. Stosch 2014, 59–67.
3 Cf. for example Ward 1994.
4 Cf. Neville 2008.
5 Cf. Voss Roberts 2017.
6 Cf. the forms of learning as they were developed by Cornille 2020, 115–147. We will go through this list at the end of this chapter.
7 Cf. Burrell 2011.
8 Cf. Awad (in process).
9 Cf. Nair 2024, 442–448.

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in order to develop their own thinking. It is obvious that a comparative theology *avant la lettre* could be reconstructed for the Islamic tradition in the same way as for the Christian side. However, I am not concerned here with the development of a different history of Islam[10] or with theological-historical considerations on the genesis of comparative theology, but solely with an overview of contributions by Muslims to recent comparative theology.

In doing so, I will proceed in such a way that I will first present concepts of Muslims within the field of theology of religions that explicitly and affirmatively refer to comparative theology (1.). I will then look at examples of deep learning across religious borders by Muslims in an exegetical (2.) and systematic context (3.), in order to finally organize the examples presented with the help of Catherine Cornille's forms of learning (4.). In my review of Muslim contributions to comparative theology, I concentrate on English- and German-language texts, because only here there has been an obvious reception of the methodology of comparative theology and in this way it can be shown more clearly that it is indeed comparative theology that is consciously and virtuously practiced by Muslims. To this end, I have tried to make as many heterogeneous voices as possible heard, but I do not claim to have a complete overview of the field. However, I hope to show that all forms of learning and fields of comparative theological thinking are already being practiced by Muslim theologians.

Comparative Theology in the Context of Theology of Religions

Most contributions by Muslims to the theology of religions refer to the classical models of this discipline and repeat the Christian debates on whether one should approach other religions in an exclusivist, inclusivist or pluralist manner. The traditional supersessionist and exclusivist approaches which are developed by scholars such as Sayyid Qutb, Yasir Qadhi and Tim Winter[11] are challenged by pluralistic approaches in the tradition of John Hick,[12] the Sufi-based pluralist ideas of, for example, Reza Shak-Kazemi,[13] and inclusivist attempts in the tradition of al Ghazali, Ibn Taimiyya and Ibn Arabi.[14] Within this field there are at least four

10 Cf. Bauer 2011.
11 Cf. Dag 2017, 92–103.
12 Cf. Atay 2014; Askari 1991.
13 Cf. Dag 2017, 110–115.
14 Cf. Khalil 2012.

Muslim theologians who argue explicitly for an Islamic comparative theology and who try to show how this approach can enrich the field of theology of religions. I will deal with them in the chronological order of their main books.

a) Exploring and appreciating Lateral Particularities (Jerusha Tanner Rhodes)
In her dissertation from 2014 Jerusha Tanner Rhodes shows that the Qur'an does not only know hierarchical differences between religions, but she introduces the idea of lateral differences.[15] For the Qur'an, lateral differences are signs of God which provoke reflection and can lead "to recognition and glorification of God"[16]. They are not something negative, but they invite believers for engagement and exploration. "God is encouraging interaction across the boundaries of lateral difference."[17] Tanner Rhodes even suggests that "a reflective and engaged encounter with the lateral Other reveals something about God."[18] Hence lateral differences can be productive for your own theology and religion. They are nothing that has to be deleted, but something which might be included in your own world view and can enrich it.

In the end, everybody has to commit to a concrete lateral particularity. The different lateral particularities are mediated through different messengers and "the obedience to a messenger is connected to lateral religious particularities"[19]. Hence, we cannot pick and choose what we want, but we have to follow a certain path. However, the commitment for a certain particularity does not imply any supersessionist agenda towards other lateral particularities.

The ruling principle which allows us to decide whether lateral differences can be appreciated is *taqwā*—piety and devotion to God, even fear of God. In the end her interpretation of the Qur'an suggests that there is the same message of *taqwā* as the core message of all true religions. It has to be cultivated by them and gives them worth. "Descriptions of lateral difference are quickly followed by exhortations to manifest *taqwā* or explicit statement that divine assessment will be based only on *taqwā* rather than on any of these lateral forms of difference."[20] Thus, it is more important to be a pious, committed person who is devoted to God than to choose Islam, Christianity, or Judaism, and *taqwā* might be "fully manifest without follow-

15 Cf. Tanner Rhodes 2014, 139–171.
16 Tanner Rhodes 2014, 243 with reference to Q 30:20–22.
17 Tanner Rhodes 2014, 243
18 Tanner Rhodes 2014, 243
19 Tanner Rhodes 2014, 250.
20 Tanner Rhodes 2014, 243.

ing (without obedience to) the lateral particularities revealed in the revelation to Muḥammad."[21]

In this concept the Qur'an or any other form of revelation is not necessary for salvation or truth because every human has already a general orientation towards God which is called *fitra* in the Qur'an and which is sustained through God's signs/*ayā*t. Revelation is nothing more than "a reiteration, a reminder, a guide, and a warning. It does not bring something new but highlights and reasserts the same message of *taqwā.*"[22] This idea is widespread within Islam but gets an anti-supersessionist tone in Tanner Rhode's theology.

What relates her theology of religions to comparative theology is her openness to learn from other religions and to learn especially from their differences and particularities. For example she applies the idea of corruption (*taḥrif*) not to the Bible, but to the Muslim interpretation of the Qur'an (and the Christian interpretation of the Bible).[23] Therefore, Muslims can deepen their own theology and their own understanding of their normative scriptures through dialogue and interreligious engagement.[24] This insight can be used to give a Muslim grounding of comparative theology, but it can also be used for a pluralist or inclusivist theology of religions. Hence Esra Dag is right when she criticizes that the actual comparative work is still lacking in her dissertation.[25]

In order to properly appreciate her work within the field of theology of religions, it is therefore important to include her second book in the analysis, even if it does not represent a meta-reflection on the positioning of Islamic theology. It is a wonderful example of practice within comparative theology which makes concrete what she explored as possibility in the dissertation. Following Clooney and Fredericks, she understands comparative theology as a theological practice that derives constructive impulses for its own theological thinking from the theologies of other religions.[26] From her doctoral supervisor, Daniel Madigan, she learns a high sensitivity to the question of which form of comparison is purposeful in view of the conversation between the two religions. She gives many case studies on how to develop Islamic feminist theology in conversation with Christian feminist theologies. For

21 Tanner Rhodes 2014, 250; cf. Tanner Rhodes 2017, 43: "central Qur'ānic concepts, including *īmān* (belief), *kufr* (disbelief), *islām* (submission), *shirk* (association) . . . fall within the semantic field of *taqwā*, rather than *umma.*"

22 Tanner Rhodes 2014, 246.

23 Cf. Tanner Rhodes 2014, 252; Dag 2017, 141.

24 Cf. Tanner Rhodes 2014, 252: "The Other (who can never be wholly other; KvS) is the means by which God sustains God's challenge to humanity."

25 Cf. Dag 2017, 142.

26 Cf. Tanner Rhodes 2018, 22–36.

example she explains how Mary can be seen as a role-model for Muhammad, and she includes Marcella Althaus-Reid's idea of Mary as "Queer of Heaven" in order to understand the Qur'anic Mary as bridgebuilder.[27] Such constructive appropriations of Christian feminist theology are already a wonderful example for deep learnings within the field of systematic theology that we want to explore in part 3 of this chapter. Within our first explorations of the concept of comparative theology within the metatheoretical constructions of an Islamic theology of religions, we should turn to other examples.

b) Islamic comparative theology as open theology (Esra Akay Dag)
Esra Dag's dissertation is not only a great overview on current Muslim approaches to the field of theology of religions. It also uses a lot of the sharp distinctions and creative assumptions of her supervisor Gavin D'Costa which leads me to the impression that Dag also goes in the direction of a kind of open access exclusivism. What is important for my chapter in this book is how clearly she encourages Muslims to engage in the field of comparative theology. She feels the "need for more solid claims which are firmly supported by study and engagement with particular religions" within Islamic theology. "From this point of view, for Islamic theology of religions the tools of comparative theology would be useful as it requires a deep engagement with other tradition/s other than their own."[28] And it is true that it is easy for Muslims to say that all religions have truth and value and that Islam does not supersede other religions because they can derive all this just from reading the Qur'an. The decisive question is whether they think that they are in need to learn also from other means of God's communication. Can the Bible help to understand the Qur'an, can the doctrine of Trinity inform the Muslim idea of tawhid? Muslims always like to appreciate what they know already from their own tradition. But do they want to learn something from another tradition that they did not know from their own? And can even contradictions to the own tradition be the starting point of learning experiences?

Many Islamic theologies of religions do not respond to these questions; they remain vague and do not really engage the particularities of other religions. The strength of Dag's book is that she sees this problem and tries to argue for deep learnings across religious borders also for Muslims. Unfortunately, she does not showcase anywhere how to do this kind of learning. She simply argues "that Islamic theology of religions needs to engage at a deeper level with non-Islamic' religions' teachings and texts to offer a comprehensible theology which will do justice to the similarities and differences of diverse religions." And she is clear about the

27 Cf. Tanner Rhodes 2018, 43–82.
28 Dag 2017, 113.

fact that this has to be done "by utilizing comparative theology"[29]; "it is the duty of Muslims to engage with non-Islamic traditions themselves to achieve a better understanding."[30] Hence she agrees with the central idea of comparative theology not to theorize only about other religions, but to engage with them concretely—or in her own words: "theorizing other religions should take place after inter-religious engagement, not before."[31] If we want to do justice to the diversities and particularities within the field of religions, this dialogical and comparative engagement that is performed within comparative theology is what is needed in the field of theology of religions, she argues.[32]

In contrast to inclusivist or pluralist approaches, but in harmony with open access exclusivism and with comparative theology, she invites Muslims to develop an open theology in the sense that Keith Ward defines it and to be "open to the differences of other religions and the possibility of changing or revising its positions about the religious other on the basis of such engagement."[33] Of course, this kind of openness can be developed within many hermeneutical frameworks. Dag could also use other theologians to explore such an open theology. But she understands well that comparative theology is not about finding similarities everywhere, but about learning from differences and this learning is what fascinates her: "Muslims and Christians, despite having differences, can still learn from each other."[34] Of course, this insight does not explain in more detail how to ground this learning within Islamic theology and Dag can learn here from theologians like Tanner Rhodes. But what she says much clearer than others is the fact that Muslims can be committed to the truth of their own religion and to all normative claims that constitute their identities without believing that this identity needs to supersede other religions. "From the Islamic position, Muslims believe that what is given them is true, but this does not necessarily lead to a dismissal of the true elements in other religions."[35] Hence there might be not only hidden similarities between religions that wait for exploration, but also disagreements and differences that can challenge and enrich us. As long as we understand, that we do not possess the Truth and that we are always in need of greater learnings, we can argue for openness in interreligious dialogue and comparative theology can be performed as open theology.

29 Both quotations Dag 2017, 150.
30 Dag 2017, 159.
31 Dag 2017, 182.
32 Cf. Dag 2017, 174.
33 Dag 2017, 161.
34 Dag 2017, 174.
35 Dag 2017, 158.

c) Islamic Comparative Theology and Witness (Muhammad Gamal Abdelnour)
The engagement with the Catholic theology of religions by Muhammad Gamal Abdelnour does not discuss in detail the theory and hermeneutics of comparative theology. But, in some sense, it performs consciously comparative theology by describing theories and models of theology of religions, especially in the inclusive tradition of Karl Rahner. Abdelnour does not only compare Catholic developments with Aš'arite theology, but he wants to explore possibilities of developing Islamic theology of religions in a more inclusive and dialogical way by discussing recent Catholic developments. His explicit reflections on comparative theology in the book can be questioned, especially when he says that he does not "subscribe to the binary division between insider and outsider, . . . between comparative theology and comparative religion"[36]. At least in the German academic context of theologies, theology is not simply understood as some insider reflection of religion, but as the attempt to bring insider and outsider perspectives together and to make a rational synthesis out of them. Without that endeavor it would be difficult to understand why theology would be a discipline within public universities.[37] Hence some of the meta-reflections on comparative theology still need sophistication. His methodological focus on schools, not individuals also leads to some over-generalizations and probably his learning across religious borders would have become more powerful if he had focused on less material.[38] It is very ambitious, maybe too ambitious, that he intends to look at theological schools within Islam and Christianity because these schools cover so many heterogenous positions that they are less coherent than he seems to think—at least within Catholic theology.

For example it is not true that Catholics "never separated soteriology from epistemology, i.e. grace and reward come only through Jesus Christ"[39]—as we can see when we take into consideration Catholic theologians like Peter Knauer, Gerhard Gäde and Armin Kreiner.[40] Despite such oversimplifications, Abdelnour makes some helpful observations such as the insight that Catholicism and Aš'arism have always used both concepts of epistemic exclusivity and inclusivity and that they

36 Abdelnour 2021, 10.

37 Cf. Stosch 2016c, 3–26.

38 Methodologically he decides to focus on schools, not individuals, because this "will reveal the real impact of original and influential theologians" (Abdelnour 2021, 13). A good example for a Muslim theologian who follows the same main idea but concentrates on one thinker of each tradition is Beidaghy 2019. He is also helpful to keep in mind that there are different possibilities of developing an inclusive way of dealing with other religions within Islam—both in Sunni and in Shiite tradition. Cf. also Fürlinger/ Kusur 2019.

39 Abdelnour 2021, 156.

40 Cf. Knauer 1994, 153–173; Gäde 1998.

have to find a way to bring them together.[41] Moreover, both schools seem to agree with the theological idea that the last decision on salvation[42] is left to God.[43] And from a Muslim perspective he argues that "Muslims' primary message to Christians lies more with the concept of witness (*shahāda*) than the concept of *daʿwah* (missionary)."[44] All these insights are very helpful for Muslim-Christian relations. However, I wonder whether this institutional take on theological questions really represents accurately the diverse debates and schools that we have both in Catholicism and within Aš'arite thinking.

d) Comparative Theology and Abrahamic Ecumenism (Vahid Mahdavi Mehr)
The first book that deals specifically and exclusively with the question of whether an Islamic comparative theology is possible and how it should be conceived is the dissertation by the Iranian theologian Vahid Mahdavi Mehr.[45] Its originality lies in the fact that it draws on the hermeneutics of the Christian theology of Israel and attempts to appropriate it from a Qur'anic perspective. Contrary to the thesis usually put forward in research that the Qur'an attempts to supersede Judaism and Christianity, Mahdavi Mehr takes the view that the Qur'an seeks a theological conversation on an equal footing and, in doing so, traces the positions of other religions to be integrated as fairly as possible.

According to Mahdavi Mehr, the fundamental error of even well-meaning Western literature on the Qur'anic discussion of the Torah lies in the fact that it is based on a modern or Christian understanding of the Torah, i.e. it assumes that the written canonical text is meant when the Torah is discussed in the Qur'an. However, Mahdavi Mehr quite rightly draws attention to the fact that the Qur'an obviously adopts the rabbinic understanding of Torah, which also sees the oral Torah and thus the rabbinic discourses themselves as part of the authoritative revelation.[46] Like the rabbis, the Qur'an also inscribes itself in a living tradition of revelation and its adoption of ideas from the Torah is not a sign of a lack of creativity, but a sign of its theological connection to rabbinic and halakhic thought. In the Qur'anic theological conception, the agreement between the Talmud and the Qur'an is not

41 Cf. Abdelnour 2021, 156.
42 Abdelnour argues that salvation is also a central question for Muslims (Abdelnour 2021, 14). This very helpful claim is disputed though, especially within the discussions of postliberal theology and within Christian exclusivists. Hence it would be important to argue for it more straightforwardly.
43 Cf. Abdelnour 2021, 157: "Consequently, Al–Azhar issued a manifesto, declaring that Muslims are not *in the position to* declare non–Muslims as *kuffār* or otherwise i.e. this is left to God."
44 Abdelnour 2021, 162.
45 Cf. Mahdavi Mehr 2023.
46 Cf. Mahdavi Mehr 2023, 21–27.

a sign of a mere adoption of given traditions, but of a shared participation in the same divine inspiration.

In certain ways, according to Mahdavi Mehr, authors such as Sidney Griffith concede that the Qur'anic proclamation is in dialogue with the biblical tradition. However, this can easily give the impression that the Qur'anic proclamation wants to surpass the traditions that preceded it through this dialogue. It is precisely this interpretation that Mahdavi Mehr wants to prove wrong and therefore also defends himself against the claim that the Qur'an engages polemically with Jewish and Christian sources.[47]

In the first main part of his work, the author deals with the Qur'anic understanding of the relationship to Judaism.[48] His basic idea is that the Qur'anic proclamation is based on the recognition of Judaism and does not withdraw anything from God's covenant with Israel. The thesis often put forward in research that the Qur'an polemically turns against parts of the Torah and intends to correct them is considered by the author to be a frontal attack on the Qur'anic claim to revelation. In a detailed analysis of the second sura, he disputes Gabriel Said Reynolds' and Joseph Witztum's claim that the Qur'an makes use of the anti-Jewish polemics of Syriac theology and instead sees the sura as a confirmation of Jewish covenant thinking and God's unconditional promise to Israel. He uses many details to show the extent to which the Qur'anic argumentation is interwoven with rabbinic thought and can be understood from it.

With regard to the Qur'anic treatment of the story of the golden calf, for example, the author makes it clear that here, in line with rabbinic tradition, God's willingness to forgive is taken into consideration (Q 2:51–54) and at the same time inner-Jewish criticism is articulated (Q 20:83–98). Although the Sabbath commandment is not extended to the Qur'anic community, its application to Israel is confirmed (Q 2:65). Unlike the apologetics of the Church Fathers, who generally consider Jewish law to be outdated, the Qur'an continues to think in halakhic terms, but without identifying the Qur'anic community with Israel. In this way, Israel remains respected and recognized in its particularity and diversity. The Qur'an thus confirms the privileged position of the chosen people, but at the same time makes clear the great responsibility that this special position entails.

Mahdavi Mehr takes a detailed look at the accusation of scriptural falsification and shows that, from a Quranic perspective, it does not apply to Judaism and Christianity as a whole and that no fundamental opposition between biblical and Quranic thought can be assumed. The main Quranic criticism of its Abrahamic

47 Cf. Mahdavi Mehr 2023, 10.
48 Cf. Mahdavi Mehr 2023, 19–54.

sister religion lies in its exclusivist understanding of salvation, not in its central claims to revelation.

According to Mahdavi Mehr, the Qur'an does not conceive the Islamic community as surpassing Judaism, but as a middle way between Judaism and Christianity. The Isma'ili tradition is used to justify this middle position between Jews and pagans and also to legitimize the specifically Qur'anic facilitation of Jewish law. This facilitation also consists of a weakened form of the covenant, which once again emphasizes the special responsibility of the Jewish people. The Koran therefore does not want to relativize the election of Israel at any point. It merely rejects a salvation-exclusivist interpretation of this election.

In a further chapter, the author shows, also with regard to Christianity, how its central theological theses are not rejected, but balanced with Jewish claims—with the aim of adequately articulating the claims of validity of both religions.[49] It would go too far to assess Mahdavi Mehr's statements in detail. They require further elaboration in many places. Nonetheless, with many insightful observations, they show a common vision that could really be the Qur'anic vision and that consists of Judaism, Christianity and Islam living together as equals.

In the third chapter, Mahdavi Mehr draws conclusions for the epistemological question of the possibility of a Qur'an-inspired comparative theology.[50] Against the widespread supersessionist understanding of the figure of Abraham the author shows that the Qur'an unfolds a vision of Abrahamic plurality, which he rightly characterizes as an ecumenical endeavor. As an Ishmaelite community, the Qur'an wants to see its followers in mutual recognition with Jews and Christians by acknowledging both the Jewish election and the Messiahship of Jesus and yet seeking a halakhically acceptable way of recognizing the Qur'anic community itself as descendants of Abraham.

His distinction between a spiritually and a politically motivated comparative theology is particularly creative. According to his observations, a politically motivated comparative theology is based on the concrete commitment against supersessionist tendencies in one's own theology and is dedicated to the religions closely associated with it. He would like to contribute to this and considers it to be the great challenge of our time. Spiritual comparative theology, on the other hand, tends to focus more on wisdom-based insights in confrontation with Eastern religions. It also has its rights, but—in his perspective—it is not sufficient with regard to the responsibility of the Abrahamic religions.

49 Cf. Mahdavi Mehr 2023, 55–80.
50 Cf. Mahdavi Mehr 2023, 81–96.

While Christian comparative theology has so far almost always argued against supersessionism only with regard to Judaism, the author points out that the vision of Abrahamic plurality in the Qur'an can lead to Islam also being included in the program of political comparative theology. In this approach, Islamic comparative theology is not simply open theology as in Esra Dag's work but sees itself under the claim of active recognition of its older Abrahamic sibling religions and the mediation of their rival claims.

Deep Engagement with the Biblical Tradition within Islamic Comparative Theology

We have concentrated so far on the level of meta-theoretical discussions that try to develop comparative theology within the concepts of theologies of religion. Let us now turn to case studies that simply do comparative theology in the sense of deep engagement with another religious tradition. I will first look at Muslim engagements with the Biblical tradition and then with Christian Systematic theology.

As regards deep engagements with the Biblical tradition, it is important to see that Muslim thinkers have engaged with the Bible during the whole history of Islam. However, the agenda of these commitments is often apologetic or it simply reduces the Bible to a hermeneutical tool for a better understanding of the Qur'an because the Qur'an obviously refers often to the Bible.[51] Hence it makes sense to look at historical studies that help us to see how the Biblical tradition has been discussed by certain Muslim authors.[52] And it is also highly stimulating to see articles and books that bring together Biblical and Qur'anic materials.[53] I am nonetheless reluctant to designate these endeavors as comparative theology because I do not

51 Such an instrumentalization is at stake when it is stated that Muslims have realized through the centuries "that they cannot understand this narrative (of Job; KvS) without reading the Bible" (Barga/ Alsulaimi 2022, 263).

52 Cf. Demiri 2013.

53 Younus Mirza, for example, looks at similarities and differences between the presentations of Biblical Figures in the Qur'an and in the Bible with a special emphasis placed on how they appear in the Islamic text which is a first important step towards comparative theology, but still not the deep learning that comparative theology wants to push forward (cf. Kaltner/ Mirza 2018). Even chapter 8 of the *Companion to Comparative Theology* just gathers some exegetical facts on the Bible and Qur'an including some of the commentary tradition concerning the book of Job; the comparison shows similarities and differences, but it is hard to see where mutual enrichments happen (cf. Barga/ Alsulaimi 2022).

see how they use genuine insights from another religious tradition to develop their own theology.

Let me at least mention three theological and exegetical approaches within contemporary Muslim thinking that go a step further. Shabbir Akhtar's commentary of *Paul's Letter to the Galatians* might be an example of how comparative theology can be done through the tradition of commentaries. Indeed, this way of doing comparative theology is quite prominent and there is a whole book series dedicated to it.[54] Akhtar calls his commentary *tafsīr*—just as Ibn Rushd talks of this kind of exegesis when commenting on Aristotle.[55] Hence he wants to be part of the tradition of religious commentaries when commenting on the text of another religious tradition. In order to make understandable what he is doing, Akhtar distinguishes between different methods for a Muslim reading the Bible.[56] The first method understands the Bible as a later corruption of a divinely revealed original.[57] The second method is agnostic and brackets ultimate truth claims.[58] The third method "*postpones* judgment long enough to treat the rival seriously".[59] In both latter cases comparative theology becomes possible. Through bracketing ultimate truth claims or through the postponement of last judgments it becomes possible to seek insights beyond one's own tradition. Of course, Akhtar is right that "No sincerely written commentary can be wholly hostile."[60] And it is moving to read how he understands the letter to Galatians as the "Magna Charta of Christian liberty".[61] However, it is surprising that his verse by verse analysis works without quoting from Christian commentaries.

My second example for contemporary Muslim exegetical engagements with the Bible is Munim Sirry's book on scriptural polemics in the Qur'an. Sirry intends to show "the dynamics of continuity and change within the exegetical tradition" that develop because of the critical engagement of Muslim reformers "with both the 'classical sources' and the modern contexts."[62] The way these reformers learned from Christian and Western tradition leads them to contest the theology of exclusivist salvation (chapter 3) and the theory of falsification of Jewish and Christian Scriptures (chapter 4)—which are major obstacles for Muslim-Christian encoun-

54 Cf. the book series on Christian Commentaries on Non–Christian Sacred Texts with Peeters.
55 Cf. Akhtar 2018, 2.
56 Cf. Akhtar's article in Crowther et al. 2017, 273–284.
57 Cf. Crowther et al., 274–275.
58 Cf. Crowther et al., 275.
59 Crowther et al., 277.
60 Akhtar 2018, 11.
61 Akhtar 2018, 12.
62 Sirry 2014, 6.

ters. However, Sirry is not so creative in the context of Christology (chapter 5) and more potential would exist when looking at the main subjects of disagreement between both religions.[63]

A third example that I would like to mention is a book edited by Daniel J. Crowther, Shirin Shafaie, Ida Glaser and Shabbir Akhtar on the Reading of the Bible in Islamic Context. The Muslim contributions within this volume try to reconstruct the Biblical ideas in their original environment and they make some good comparisons with the Qur'an. In her text on the Biblical and Qur'anic Joseph, Shirin Shafaie for example shows "how subtle narrative differences in the Bible and in the Qur'an have led to major differences in the conceptualization of central theological categories in the biblical and Qur'anic traditions (revelation and prophethood)."[64] She programmatically tries "to read the other's scripture in its own terms".[65] There are also contributions that show how the Bible helps to challenge Qur'anic concepts. The readings of David for example do not only trace back the different Sunni and Shiite readings of David but also show how the Bible challenges the doctrine of infallibility (*ʿiṣma*) of the prophets.[66] However, we do not learn from the book how to reshape Islamic *kalām* in light of such challenges.

If we look at the specific way Islamic Comparative theology has been developed so far at Paderborn University, it can be said that people like Zishan Ghaffar and Muna Tatari do not only use classical and Western exegetical skills, but also focus the intertextual context of the Qur'an within late antiquity.[67] They both use Christian and Jewish intertexts from Late Antiquity for their exegetical work with the Qur'an. Especially Ghaffar has developed the expertise to look at Syriac sources and to explore how they interact with the Qur'an.[68] Both not only show philologically and historically how these interactions happen, but they also try to learn explicitly from Christianity and Judaism in their own exegesis and theology. Tatari for example reflects at some length how she can use all forms of learning of comparative theology within her exegetical and systematic work.[69]

63 Cf. as example of how to challenge traditional reifications in the field of Christology Khorchide/ Stosch 2019.

64 Cf. Shafaie 2017, 45–61, here 59.

65 Shafaie 2017, 45–61.

66 Cf. Makhlabi/ Ciccarelli 2017, 62–76.

67 Cf. Ghaffar 2018; Ghaffar 2020; Tatari/ Stosch 2021.

68 Cf. as recent example Ghaffar 2021, 313–358.

69 Cf. Tatari/ Stosch 2021, 298–311.

Deep Engagement with Christian Thinking within Islamic Comparative Theology

The deep engagement with Christian systematic theologians leads sometimes to a sort of borrowing on the Muslim side which can be seen as appropriation and as a respected way of doing comparative theology. Muna Tatari for example reflects how the South African theologian Farid Esack borrows from Christian liberation theology, especially from Gustavo Gutiérrez.[70] At the same time Esack develops his own comparative theology as a collaborative theology[71] which also widens the horizon of classical liberation theology in the Christian context. Another good example of borrowing as creative Islamic comparative theology is the Iranian theologian Naeme Pourmohammadi who uses the Christian theologies of salvation in order to rethink Shiite practice on Ashura.[72] The most prominent example for such borrowings in Germany today is Mouhanad Khorchide's theology of mercy that borrows crucial ideas from contemporary Christian theology.[73]

For example, Khorchide says explicitly that his idea of revelation as self communication is inspired by Vatican II and modern Catholic theology[74] and he quotes time and again from contemporary Christian theologians to enrich his own thinking. However, his approach becomes sometimes problematic when he borrows Christian expressions without mentioning their origin, such as the famous sentence *Deus vult condiligentes* from Duns Scotus that he simply brings into German without any reference.[75] Such an unconscious borrowing shows how important it is to reflect the influence that another tradition has on your own thinking. The controversial debates on Khorchide's theology within Islam might also reflect some concerns within the German Muslim community about a too careless dealing when borrowing from other religious traditions.

a) Learning from Christian authors within Islamic Systematic theology (Mona Siddiqi)
A good example for a prominent Muslim scholar learning from Christian authors and keeping at the same time more distance to them (and reflecting in detail what can be received from a Muslim point of view) is Mona Siddiqi. She also engages sometimes explicitly the field of comparative theology and she is definitely a

70 Cf. Tatari 2012, 255–276.
71 Cf. Dag 2017, 113.
72 Cf. Pourmohammadi 2015, 83–93.
73 Cf. Khorchide 2012; Khorchide/ Topkara 2013, 67–76.
74 Cf. Khorchide 2012, 109.
75 Cf. Khorchide 2012, 70.

person who is in the process of deep learning within the field of Christian systematic theology.[76]

Let us look at two of her recent books to understand her way of approaching the field of comparative theology. In her recent book on *Human Struggle* she explores this topic "through the writings of Christian, Western and Muslim theologians, philosophers and thinkers. The purpose of the comparative approach is to show that the language and experience of struggle and suffering is universal."[77] For Siddiqi struggle and suffering are both part of the human condition.[78] However she does not want to say that all religions approach this topic in similar ways. In Islam the topic is associated quickly with great jihad.[79] In Christianity, human struggle is usually subsumed within suffering.[80] This shows already some characteristic differences between Islam and Christianity. But her aim is not to explore these differences; her aim is to strengthen the human ability to struggle and to cultivate it. "Struggle contains a sense of hope in the midst of all kinds of moral, societal and personal uncertainties."[81] And this hope which is essential for both religions and for humanity in general is what she wants to help to develop.

Hence she deals with a common concern of humanity and she tries to use the help of another religion to address it—which is a typical and important move within comparative theology.[82] She also uses the typical micrological turn of comparative theology in some chapters using a Christian and a Muslim author. And she tries to give "equal weight and significance to both thinkers".[83] Hence she learns from both of them, also from the non-Muslim author who becomes something like a *locus theologicus* as we call it in Catholic theology, i.e. he becomes a source of inspiration for her own theological reflections and insights.[84]

76 Another interesting author in the field of Islamic systematic theology would be Martin Nguyen who aims to bring Muslim theology into the present day in his academic work (cf. Nguyen 2019). The way he conceives theology as a creative process in an engaged approach to Islam that simultaneously fosters faith and enacts righteousness in the modern world shows clearly how he is inspired partly by his position at a Jesuit institution (Fairfield University); it would be promising to analyze also his work from the perspective of comparative theology.

77 Siddiqui 2021, 195.

78 Cf. Siddiqui 2021, 3.

79 Cf. Siddiqui 2021. 3.

80 Cf. Siddiqui 2021, 31.

81 Siddiqui 2021, 9.

82 Cf. Stosch 2012, 199–203.

83 Siddiqui 2021, 4.

84 Cf. Stosch 2012, 205.

Her second chapter on the search for salvation in Ghazali and Rilke includes examples from poetry to get a broader picture of Christianity[85]—which is also a typical move within comparative theology because it helps to widen the perspective on another religion.[86] In her third chapter on *Community and Divine Calling* in Dietrich Bonhoeffer and Sayyid Qutb[87] she brings together two very diverse theologians with very different legacies who were both "eventually hanged on charges of conspiring against the state."[88] What is striking from a comparative theological perspective is how clearly she expresses appreciation for the Christian part of this pair at points of differences; in her reconstruction "the biggest difference between the two men is that Bonhoeffer's prison letters are full of hope, not anger. They exude loyalty and joy despite flashes of sadness at his lonely and at times painful incarceration."[89] This statement brings into full light one of the most admired characteristics of Bonhoeffer without any attempt to balance it through some equally positive claims on Qutb which makes very obvious the non-apologetic nature of her enquiry. Of course, apologetics is not excluded from comparative theology as long as it is done within confessional theology. But apologetics would not be the aim of comparative theology, and it strengthens the impression of the comparative agenda of Siddiqi's book to observe how clearly she avoids an apologetic contrasting of Muslim and Christian thinkers.

In another book on *Christians, Muslims, and Jesus* Siddiqui is engaged substantially in reading Christian theologians and in learning from them.[90] She explicitly wants to come to a "greater depth how to talk of God"[91] through dialogue—which is a basic idea of comparative theology. Like Kermani,[92] she even tries to explore whether the cross makes any sense for her as a Muslim—a subject usually avoided by Muslims and which seems to be one of the most important obstacles for Muslim-Christian dialogue. Her approach to this delicate subject is very exciting. She is looking at the "regulative-expressive level of religious beliefs" as I call it in my own hermeneutical foundation of comparative theology,[93] i.e. she is asking a number of her Christian friends to tell her briefly "what they think and feel when they look at

85 Cf. Siddiqui 2021, 45–82.
86 Cf. Stosch 2012, 197–198.
87 Cf. Siddiqui 2021, 83–138.
88 Siddiqui 2021, 83.
89 Siddiqui 2021, 137.
90 Cf. Siddiqui 2021, 1, 225.
91 Siddiqui 2021, 225.
92 Cf. Stosch 2016a, 89–106; Stosch 2016b, 69–85.
93 Cf. Stosch 2019, 73–96; Stosch 2010, 115–134, here 127.

a cross or a crucifix"[94]. Then she is quoting those friends for several pages,[95] and she reconstructs step by step why the cross is so important for Christians as revelation of God's self-emptying love. She does not agree with this concept and makes clear that the Qur'an is silent about it. She shows appreciation for it on an existential level without including the Christian ideas in her theology. Hence, she shows respect and develops a Muslim understanding through looking at the cross in the way it rules the lives of Christians. Through this regulative orientation—as I call it—she avoids dealing with the cross within theological theories such as atonement.[96]

b) Engaging Christian philosophical traditions

An important part of Systematic theology has always been—within Christianity and Islam— to learn from philosophical insights that have been developed in another philosophical tradition. An early and well explored example of this is the reception of Aristotle in Islam, Judaism and Christianity.[97] This kind of research on the relationship of Ibn Sina and Aquinas for example is still very vivid in Islamic thinking. Rahim Acar for example shows how close Ibn Sina and Aquinas are in their ways of developing classical theism. He even admits sometimes that Aquinas is more helpful for religious concerns, for example when he finds a way to harmonize the ideas of necessity and contingency of the universe.[98] He sees how their positions concerning theological language shape their theories. But he does not try to develop an Islamic type of thinking in the tradition of Ibn Sina with the help of Aquinas. Hence, he is not going in Burrell's direction. Acar stays descriptive and observes many similarities and some differences. Sometimes Ibn Sina is more coherent for him, sometimes not. Hence his reflections are important starting points for comparative theological efforts, but they stay on a purely philosophical level.

Whereas Aristotle has been rediscovered first in the Islamic context which makes it easy for Muslims to connect to this kind of philosophy,[99] the great challenge for Islamic systematic theology today consists in the question of how to deal with recent developments within Western philosophy which can also be explained by the interaction of this philosophy with Christianity. One of the exciting dimen-

94 Siddiqui 2013, 234.

95 Cf. Siddiqui 2013, 234–237.

96 I do not want to say that it is impossible to approach such theological theories within comparative theology. The opposite is true as I tried to show myself (Stosch 2018, 61–77.). It is simply sometimes easier and more promising to develop comparative theology on the level of grammar and the regulative-expressive dimension of faith.

97 Especially David Burrell has written extensively in this direction (cf. footnote 7).

98 Acar 2005, 232.

99 That's why analytic philosophy is so well received in the Islamic world. It uses methods well known since classical theism and can be traced back to scholastic authors in both religions.

sions of the birth of a European Islamic theology today consists in the fact that it uses Western and even Christian philosophers just as tools for their own theological insights as the scholastic theology had used Aristotle or Plato. Let me just point to some examples from this quickly emerging field.

Muna Tatari in Paderborn starts her own reflections with the anthropological turn within Kantian philosophy[100] and develops them with the help of process theism.[101] Nasrin Bani Assadi in Bonn develops an Islamic concept of free will with the help of the philosophy of Kant, Fichte, and Krings.[102] Ufuk Topkara in Berlin tries to get a more adequate modern reception of Miskawayh by reading him with Albert Camus.[103] Sevcan Ozturk in Ankara also looks at existentialist philosophy and brings Kierkegaard and Iqbal together.[104] Idris Nassery in Paderborn uses Western ethical traditions, especially post-Kantian ones for the development of Islamic law.[105] Tuba Isik in Berlin and Naciye Kamcili-Yildiz in Paderborn learn from approaches in Christian religious education for their own work in the field of Islamic religious education.[106] Many of these scholars have graduated in comparative theology and they still continue to develop and define the field of Islamic comparative theology. But many others could be named as well and the positive reception of Western philosophy becomes more and more widespread in Islamic theological contexts. Fortunately, this phenomenon is not a purely European phenomenon. Muhammad Modjtahed Schabestari for example is a prominent Iranian thinker who uses Kant and Wittgenstein within his own theological approach.[107] And many others could be mentioned.

Instead of naming more people in this field here, let me summarize my little overview by coming back to the forms of learning that Cornille developed to help to define the field of comparative theology. Are all forms of learning used within Islamic comparative theology?

100 Cf. Tatari 2018, 194.
101 Cf. Tatari 2018, 198.
102 Cf. Bani Assadi 2024.
103 Cf. Topkara 2018.
104 Cf. Ozturk 2018.
105 Cf. Nassery 2017.
106 Cf. Isik/Kamcili-Yildiz 2022.
107 Cf. Schabestari 2010, 15–29.

Forms of Learning within Islamic Comparative Theology

There are only a few books from Muslim authors that reflect already explicitly Cornille's forms of learning and that show step by step how they use all these forms of learning in their own Islamic theology.[108] But it is not state of the art in comparative theology that all forms of learning have to be used at the same time and in the same approach. Of course, it is not very convincing if comparative theology always and only ends up in reaffirmations of one's own position. Moreover, it is obvious that intensification is a very widespread form of learning within Islam as we can see in the above mentioned approaches from Dag and Abdelnour for example. However, these two legitimate forms of learning within comparative theology (reaffirmation and intensification) should not be alone if we want to speak of comparative theology.

At least in my own approach of comparative theology it is very important that it starts with an attitude of vulnerability, with unsolved problems, and the expectation to learn something which was not clear before.[109] Recovery is a form of learning which can be found in Zishan Ghaffar's ways of engaging Biblical and Patristic traditions in order to recover forgotten ways of understanding the Qur'an. Appropriations can be discerned in Jerusha Tanner Rhodes' engagement with Christian feminist theology or Farid Esack's learning from Christian liberation theologians. Reinterpretation can be seen in Siddiqi's way of dealing with human struggle in a way that integrates Christian ideas in their own approach. And rectification can be pointed out in the exegetical work presented by Munim Sirry—which of course is a sort of revisionism exactly in Catherine Cornille's sense. Hence even without digging deeper into the different strategies, we can easily see that all forms of learning that can be differentiated to understand better the field of comparative theology are already used within Islamic comparative theology. And it makes sense to make them more visible and methodologically more self-reflexive—as through this book.

108 I am only aware of the Islamic conclusions in Muna Tatari's and Mouhanad Khorchide's above mentioned books.

109 Cf. Stosch 2012, 213–215.

Bibliography

Abdelnour, Mohammed Gamal (2021), *A Comparative History of Catholic and Aš'arī Theologies of Truth and Salvation: Inclusive Minorities, Exclusive Majorities* (Currents of encounter 66), Leiden/Boston: Brill.

Acar, Rahim (2005), *Talking about God and Talking about Creation: Avicenna's and Thomas Aquinas' Positions* (Islamic Philosophy, Theology and Science 58), Leiden/Boston: Brill.

Akhtar, Shabbir (2018), *The New Testament in Muslim Eyes: Paul's Letter to the Galatians*, London: Routledge.

Askari, Hasan (1991), *Spiritual Quest: An Inter–Religious Dimension*. Leeds: Seven Mirrors Publishing.

Atay, Rifat (2014), *Religious Pluralism and Islam: A Critical Examination of John Hick's Pluralistic Hypothesis*, Saarbrücken: Scholars' Press.

Awad, Najib (in process), *Christian Mu'tazilism? Christian and Muslim Kalām and Rationalism During the Early Abbasid Era.*

Bauer, Thomas (2011), *Die Kultur der Ambiguität: Eine andere Geschichte des Islam*, Berlin: Verlag der Weltreligionen.

Barga, María Enid/ Alsulaimi, Nadeen Mustafa A. (2022): "My/our servant Job: Creation and temptation as a guide to understanding Job as God's servant.", in: Pim Valkenberg, ed., *A Companion to Comparative Theology* (Brill's Companions to Modern Theology 2), Leiden/ Boston: Brill, 247–265.

Beidaghy, Mojtaba (2019), *Der Mensch als Selbstmitteilung Gottes: Offenbarungstheologie und theologische Anthropologie bei Karl Rahner (1904–1984) und Morteza Motahhari (1919 –1979),* Paderborn: Universitätsbibliothek.

Burrell, David B. (2011), *Towards a Jewish–Christian–Muslim Theology* (Challenges in Contemporary Theology), New York: John Wiley & Sons.

Clooney, Francis X. (2010), *Comparative Theology: Deep Learning across Religious Borders*, New York: John Wiley & Sons.

Cornille, Catherine (2020), *Meaning and Method in Comparative Theology,* Hoboken: Wiley Blackwell.

Crowther, Daniel J. *et al*., eds., (2017), *Reading the Bible in Islamic Context: Qur'anic Conversations* (Routledge Reading the Bible in Islamic Context), London/New York: Routledge.

Dag, Esra Akay (2017), *Christian and Islamic Theology of Religions: A Critical Appraisal* (Routledge Studies in Religion 56), London/ New York: Routledge.

Demiri, Lejla (2013), *Muslim Exegesis of the Bible in Medieval Cairo: Najm al-Dīn al-Ṭūfī's (d. 716/1316) Commentary on the Christian Scriptures. A Critical Edition and Annotated Translation with an Introduction* (The History of Christian-Muslim Relations 19), Leiden: Brill.

Fredericks, James L. (1999), *Faith among Faiths: Christian Theology and non-Christian Religions*, New York/ Mahwah: Paulist Press.

Fürlinger, Ernst/ Kusur, Senad, eds., (2019), *Islam und religiöser Pluralismus: Grundlagen einer dialogischen muslimischen Religionstheologie* (Beiträge zu einer Theologie der Religionen 17), Zürich: Theologischer Verlag.

Gäde, Gerhard (1998), *Viele Religionen – ein Wort Gottes: Einspruch gegen John Hicks pluralistische Religionstheologie*, Gütersloh: Gütersloher Verlagshaus.

Ghaffar, Zishan (2018), *Der historische Muhammad in der islamischen Theologie: Zur Kriterienfrage in der Leben-Muhammad-Forschung* (Beiträge zur Komparativen Theologie 31), Paderborn: Schöningh.

Ghaffar, Zishan (2020), *Der Koran in seinem religions- und weltgeschichtlichen Kontext: Eschatologie und Apokalyptik in den mittelmekkanischen Suren* (Beiträge zur Koranforschung 1), Paderborn: Brill Germany.

Ghaffar, Zishan (2021), "Kontrafaktische Intertextualität im Koran und die exegetische Tradition des syrischen Christentums", *Der Islam* 98, 313–358.

Hussein, Amir (2017), "Comparative Theology in Islam: Towards a Muslim Theology of Religion", *Frankfurter Zeitschrift für islamisch-theologische Studien. Special Issue 1: Comparative Theology*, 51–64.

Isik, Tuba/Kamcili-Yildiz, Naciye (2022), *Islamische Religionsdidaktik. Ein Leitfaden für Unterricht und Studium*, Paderborn: Schöningh.

Kaltner, John / Mirza, Younus (2018), *The Bible and the Qur'an: Biblical Figures in the Islamic Tradition*, Bloomsbury: T&T Clark.

Khalil, Mohammad Hassan (2012), *Islam and the Fate of Others: The Salvation Question*, New York: Oxford University Press.

Khorchide, Mouhanad (2012), *Islam ist Barmherzigkeit: Grundzüge einer modernen Religion,* Freiburg *et al*.: Herder.

Khorchide, Mouhanad / Topkara, Ufuk (2013), "A Contribution to Comparative Theology: Probing the Depth of Islamic Thought.", *Religions* 4, 67–76.

Khorchide, Mouhanad / Stosch, Klaus von (2019), *The Other Prophet: Jesus in the Qur'an.* Translated by Simon Pare, London: Gingko Press.

Knauer, Peter (1994), "Ein anderer Absolutheitsanspruch ohne exklusive oder inklusive Intoleranz", in: Francis X. D'Sa / Roque Mesquita, eds., *Hermeneutics of Encounter. A Festschrift in Honor of Gerhard Oberhammer,* Wien: De Nobili Research Library, 153–173.

Mahdavi Mehr, Vahid (2023); *Is the Quran Supersessionist? Toward Identifying the Quran's Theological Framework of Engagement with Earlier Abrahamic Traditions* (Beiträge zur Komparativen Theologe 38), Paderborn: Schöningh.

Makhlabi, Ali / Ciccarelli, Larry (2017), "The 'sin' of David in light of Islamic thought", in: Crowther, Daniel J. *et al*., ed., *Reading the Bible in Islamic Context: Qur'anic Conversations* (Routledge Reading the Bible in Islamic Context), London/New York: Routledge, 62–76.

Nair, Skankar (2024), "Comparative theology avant la lettre? A Muslim 'deep reading' of the 'Rāmāyaṇa' in Early Modern South Asia", in: Axel M. Takas / Joseph L. Kimmel, eds., *The Wiley Blackwell Companion to Comparative Theology. A Festschrift in Honor of Francis X. Clooney*, Hoboken: John Wiley & Sons, 442–448.

Nassery, Idris (2017), *Zwischen Recht und Ethik: Skizzen einer Wirtschaftsethik in islamisch-theologischer Perspektive – eine Annäherung mit Abu Hamid al-Gazali* (Studien zu Religion, Philosophie und Recht), Baden-Baden: Nomos.

Neville, Robert C. (2008), *Ritual and Deference: Extending Chinese Philosophy in a Comparative Context* (SUNY Series in Chinese Philosophy and Culture), Albany: State University of New York Press.

Nguyen, Martin (2019), *Modern Muslim Theology: Engaging God and the World with Faith and Imagination* (Religion in the Modern World), New York: Bloomsbury.

Ozturk, Sevcan (2018), *Becoming a Genuine Muslim: Kierkegaard and Muhammad Iqbal* Routledge Studies in Islamic Philosophy), Abingdon/New York: Routledge.

Pourmohammadi, Naeme (2015), "Überprüfung des Problems, Erlösung' im christlich-islamischen Dialog." in: Klaus von Stosch / Aaron Langenfeld, eds., *Streitfall Erlösung* (Beiträge zur Komparativen Theologie 14), Paderborn: Ferdinand Schöningh, 83–93.

Schabestari, Muhammad Modjtahed (2010), "Die prophetische Lesart der Welt", in: Hamideh Mohagheghi / Klaus von Stosch, eds., *Moderne Zugänge zum Islam: Plädoyer für eine dialogische Theologie* (Beiträge zur Komparativen Theologie 2), Paderborn: Schöningh, 15–29.

Shafaie, Shirin (2017), "Toward inter–theological hermeneutics. A case study in reading between the Joseph stories", in: Crowther, Daniel J. *et al*., eds., *Reading the Bible in Islamic Context: Qur'anic Conversations* (Routledge Reading the Bible in Islamic Context), Abingdon/ New York: Routledge, 45–61, 59.

Siddiqui, Mona (2021), *Human Struggle: Christian and Muslim Perspectives*, Cambridge: Cambridge University Press.

Siddiqui, Mona (2013), *Christians, Muslims, and Jesus* New Haven/London: Yale University Press.

Sirry, Munim (2014), *Scriptural Polemics: The Qur'ān and Other Religions*, New York: Oxford University Press.

Stosch, Klaus von (2010), "Wittgensteinian Fideism?", in: Ingolf U. Dalferth/ Hartmut von Sass, eds., *The Contemplative Spirit: D.Z. Phillips on Religion and the Limits of Philosophy*, Tübingen: Mohr 2010, 115–134.

Stosch, Klaus von (2012), *Komparative Theologie als Wegweiser in der Welt der Religionen*, Paderborn: Schöningh, 199–203.

Stosch, Klaus von (2014), "Is Comparative Theology Catholic?", *Studies in Interreligious Dialogue* 24, 59–67.

Stosch, Klaus von (2016a), "Developing Christian theodicy in conversation with Navid Kermani", in: Michelle Voss Roberts, ed., *Comparing Faithfully: Insights for Systematic Theological Reflection* (Comparative Theology: Thinking across Traditions), New York: Fordham University Press, 89–106.

Stosch, Klaus von (2016b), "Kermani's writing on Islamic religion", in: Helga Druxes / Karolin Machtans / Alexander Mihailovic, eds., *Navid Kermani*. (Contemporary German Writers and Filmmakers 3)*,* Oxford *et al*.: Peter Lang, 69–85.

Stosch, Klaus von (2016c), "Theologie als Wissenschaft", *ET-Studies* 7, 3–26.

Stosch, Klaus von (2018), "How Q 5:75 can help Christians to conceptualize atonement", in: Catherine Cornille, ed., *Atonement and Comparative Theology: The Cross in Dialogue with other Religions* (Comparative Theology: Thinking Across Traditions), New York: Fordham University.

Stosch, Klaus von (2019), "Wittgenstein's later philosophy as foundation of comparative theology", in: Gorazd Andrejč/ Daniel H. Weiss, eds., *Interpreting Interreligious Relations with Wittgenstein: Philosophy, Theology and Religious Studies* (Philosophy of Religion 9), Leiden/ Boston: Brill, 73–96.

Tanner Rhodes, Jerusha (2014), *Never Wholly Other: A Muslima Theology of Religious Pluralism*, New York: Oxford University Press.

Tanner Rhodes, Jerusha (2017), "A Muslim Theology of Religions: Religious Pluralism in Contemporary Muslim Thought", *Frankfurter Zeitschrift für islamisch-theologische Studien. Special Issue 1: Comparative Theology*, 31–46.

Tanner Rhodes, Jerusha (2018), *Divine Words, Female Voices: Muslima Explorations in Comparative Feminist Theology,* New York: Oxford University Press.

Tatari, Muna (2012), "Eine Praxis der Gerechtigkeit und Liebe. Gemeinsamkeiten und Unterschiede in christlichen und islamischen Entwürfen einer Theologie der Befreiung ausgehend von Gustavo Gutiérrez und Farid Esack" in: Muna Tatari / Klaus von Stosch, eds., *Gott und Befreiung: Befreiungstheologische Konzepte in Islam und Christentum* (Beiträge zur Komparativen Theologie 5), Paderborn: Schöningh, 255–276.

Tatari, Muna (2018), “Using comparative insights in developing Kalām: A personal reflection on being trained in comparative theology”, in: Francis X. Clooney/ Klaus von Stosch, *How to Do Comparative Theology,* New York: Fordham University Press, 188–205.

Tatari, Muna / Klaus von Stosch (2021), *Mary in the Qur’an: Friend of God – Virgin – Mother*. Translated by Peter Lewis, London: Gingko Press.

Topkara, Ufuk (2018), *Umrisse einer zeitgemäßen philosophischen Theologie im Islam: Die Verfeinerung des Charakters,* Wiesbaden: J.B. Metzler.

Voss Roberts, Michelle (2017), *Body Parts: A Theological Anthropology*, Minneapolis: Fortress Press.

Ward, Keith (1994), *Religion and Revelation: A Theology of Revelation in the World’s Religions*, Oxford: Clarendon Press.

Abdul Rahman Mustafa

Chapter 2
Comparative Theology: Islamic Perspective

Prelude

Mid-air aboard a spacecraft, un-moored between earth and sky, the linguist's dizzy, dreamy, hallucinatory experience leaves her transformed, able—finally—to ingest the non-linear alien language she has hitherto been unable to decode.[1] But the acquisition of language, in this scene from *Arrival*, merely postpones the revelation of mutual intelligibility into a distant time that is now and then—yet neither, since its arrival is predicated on experiencing time in a way currently unavailable to humanity. To speak another's language, it might be enough to crack a linguistic code. But to understand another's language, it has to be the other's code, the timbre and rime of an alien life, that cracks us open not merely to hear the words of another, strange as they might sound, but also to the strangeness of our own words and way of life. With dizziness, vertigo, even a sense of insecurity prompted by the realization of the precarity of one's convictions—how easily these might be recast in alternative arrangements of experience—one has a chance, no more, to know otherness on its own terms. Without such experiences, learning the words of another is little more than subterfuge—mere communication masquerading as comprehension or, more grotesquely, as community.[2]

Comparative theology, a discipline in the Western academe that grew out of an impulse within Christian systematic theology, announces its desire to move beyond superficial comparison to a true confrontation with difference. But to what end? What is disclosed as a consequence of learning of, or from, another tradition? For some, the very act of learning from the other allows for an inhabitation of desirable political and ethical postures that are not readily available. The Building Bridges Seminar, which for more than twenty years has brought together Christians and Muslim scholars to learn each other's scriptures—and their own —is one example of such theological exchange. For its chair, Daniel Madigan, as for his predecessor, Rowan Williams, a dialogue of this kind ought not to aim for the elimination of real theological differences between Christians and Muslims.[3] Rather, a legitimate and valuable purpose of such an exchange

1 Villeneuve 2017.

2 On translation, see "Translator's Introduction" in Kilito 2008.

3 Madigan 2013, 244–60.

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is to improve the quality of disagreements on both sides, a theme that is reiterated in the published records of the Building Bridges seminars.[4] A theological exchange of this kind, seeking richer disagreement, arguably charts a different course from other modes of comparative theology that prevail in the academe. Francis Clooney, for instance proposes that a theologian from a "home tradition" embarks on a journey of "deep learning" in another tradition (traditionally its texts, although recent interventions have also stressed the importance of attending to embodied rituals) and finally navigates back home with a new set of resources by which to address the home tradition.[5] Clooney's method has been acclaimed by comparative theologians on both sides of the Atlantic,[6] despite the very different contexts within which Islamic theology was invited as an interlocuter into already ongoing discussions in comparative theology in Europe and North America, although a discussion of these differences is beyond the scope of this chapter.

The limits of any academic comparative theological project whose real 'home' is not only the topography of an intangible tradition but the quotidian bricks and concrete of the secular university, are exposed in their (un-)willingness and (in-)ability to subject the epistemic limits and methods of academic systematic theology to rigorous interrogation and critique. This chapter begins by arguing that under the conditions that prevail in the modern university, it might be necessary for comparative theology to jettison even those postures—such as hospitality and gratitude—that are generally lauded as virtues in comparative theological exchange. Another aspect of comparative theology is then discussed, namely the importance of both expanding the theological archive by admitting new artefacts into it, and also new ways of reading them, particularly the theological arguments and expressions uttered by believers in order to recognize in such expressions not a philosophical triumphalism of the sort often championed in Islamic systematic theology (*kalām*) but a response to the contrarieties of human experience of pain, pleasure and paradox expressed in everyday speech or *kalām*.

On the Inhospitable Academe

If comparative theology is indeed deep learning across traditions, its origins in Christian systematic theology have bequeathed to it a distinctive technique and

4 Cf. Ipgrave 2004.
5 Clooney 2010.
6 v. Stosch 2018, 37–58.

method. The hegemony of Christian theology reigns large across comparative theology, creating the conditions and setting the boundaries for the tolerance of religious diversity. For most of its history, as Michelle Voss Roberts shows, comparative theology has been championed as the branch of systematic theology that "seeks to interpret the Christian tradition conscientiously in conversation with the texts and symbols of non-Christian religions." Integrated within Christian systematic theology, comparative theology, in turn, becomes one of the disciplines that "has the potential to enrich systematic theology and, by extension, theological education, at its foundations."[7]

The entanglement of comparative theology and Christian theology runs so deep that many scholars are convinced that the most urgent work that needs to be done in comparative theology is to expose the extent to which its speaking a language of universality conceals the particularity of its origins within Christianity. What is revealed in these efforts, of which Hugh Nicholson's genealogy of comparative theology is one prominent example, are the ways in which widely utilized binaries such as "theology of religions"[8] and "comparative theology" themselves reiterate older knowledge paradigms that lifted Christianity, with the particularity of its theology, to the level of a universal religion.[9] Indeed, the sustained division between the study of theology and the study of religion in the secular academe in the West was, and remains, an integral and necessary aspect of this enterprise.[10] This academic division recasts the dyad of secular reason and rational religion that drives the modern West—"at once, a scientific discovery, a political mythology and a colonial manifesto"[11] that functions as much to establish a regime of truth as to disenfranchise those excluded from it on the grounds that they are insufficiently or improperly secular.

It is in the secular academe, then, that the epistemic and philosophical boundaries between the study of theology and religion are most zealously guarded, even as breaches of disciplinary boundaries become more common. The subversive potential of this disciplinary promiscuity is mitigated, however, since all disciplines venturing to breach their own borders within the secular academe are beholden to the secular paradigm itself. Unlike the gates of *ijtihād* (whose fictional closure continues to be narrated in Western discourses on Islam as fact— and one that signals the intellectual decadence of Islamic thought), the gates of the secular academe are

7 Voss Roberts 2014, 2.
8 On the latter, see Cornille 2018, 19–36.
9 Nicholson 2011.
10 Cf. Mustafa 2023, 1–41.
11 Mustafa 2023.

firmly shut to keep out any and all challenges from a non-secular episteme.[12] The secular university, as Mahmood Mamdani might put it, is where political boundaries are turned into epistemological ones. The anomalous existence of comparative theology in the secular university nevertheless reinforces the primacy of secular reason and the scientific method as the criteria by which any claim to truth can be verified or falsified. It is the secular subject fashioned in the university who can confidently assert that they know not only what they know and do not know but also the limits of what is and can be known by anyone. Therefore, no claim to knowledge of that which, according to the secular subject, cannot be known can be advanced as evidence of the limits of secular reason. Rather, all such claims can only constitute evidence of the lack of full reason (and, therefore, full humanity) of the one advancing such a claim. Comparative theology, as long as it operates within the epistemic domain of the academe, is thoroughly implicated in this erasure of alternative claims to knowledge and the exclusion and abjection it enacts as a form of epistemic coloniality.

In one sense, then, comparative theology is called upon, like any other discipline, to consider the possibility that its failure to question its own methodological biases leaves it bereft of the opportunity to arrive at the truth it seeks. But comparative theology cannot so readily admit that it is like any other discipline, not least because, notwithstanding its situatedness in the secular academe, practitioners of comparative theology regularly turn to friendship[13] or hospitality[14] as both method and metaphor for what they do. Despite the frequency with which comparative theologians idealize hospitality as an ethical ideal, there is comparatively little critical reflection in the field on the ways in which hospitality operates as a force of delegitimization and exclusion in particular acts of comparative theological exchange.[15] Who is the host? Who is the guest? On what promises of good behavior and reciprocity on the part of the guest has hospitality been extended? Must hospitality always be reciprocated? These questions arise all the more forcefully following Derrida's reflections on how hospitality must always carry with it a concomitant obligation by which the act of hospitality itself is potentially nullified.[16] For what might accompany the extension of hospitality is a demand to accept it, or a threat of the consequences if the gesture is refused, or if the guest fails to proffer the proper gratitude for it. Gratitude for the act of hospitality binds the

12 Mustafa 2013.
13 Soskice 2005, 167–81. For another perspective, see Tareen 2023.
14 Moyaert 2010, 61–88.
15 Siddiqui 2015.
16 Derrida/Dufourmantelle 2000.

party receiving hospitality into a further set of obligations that reinforce its precarity within imbalances of power.[17]

The challenge for comparative theology here is to confront what it means to rely on the concept of a home in various forms: from an academic department in which one is housed to the dwelling of a "home" tradition from which one ventures out with a predetermination to return. A home, as Hagar Kotef remarks, promises both belonging and alienation.[18] The oppositionality is not coincidental but structural. For it is only in delivering, or promising, the exclusion of the outsider that the home is able to offer the fantasy of safety to those housed within it. The very purpose of a house is to keep one safe not only from nature but from savages, beasts and other monsters dwelling in a state of nature, yet to be civilized. Kotef's study shows how, in contexts where the home and nation serve as interchangeable metaphors that speak to a national identity, some humans can acquire the status of the less-than-human whom the home, the settlement and the nation must keep out. But such considerations do not only arise in settler colonial contexts, as we see with the growing popularity of anti-immigrant political slogans that call for Muslims living in or migrating to Europe to "go back home." What does it mean to host a comparative theological dialogue in the institution of a nation whose identity presumes is the exclusion of Muslims, immigrants, indigenous peoples and others as well as the maintenance of abusive and coercive regimes against those who dare to withhold gratitude for the 'hospitality' extended to them under such conditions?

One might well find one's self refusing to respond to an act of hospitality according to the code of respectability and reciprocity expected by the host. This too, could be an ethical response by the immigrant, the refugee, the Muslim, the other, who recognizes that hospitality carries with it a cost. "I refuse to be acceptable" then, says the British Muslim poet and activist Suhaiymah Manzoor-Khan in *This is not a Humanizing Poem*, before laying bare the various codes of respectability she and others like her are expected to abide by in order to secure recognition of their humanity by those who appear to have the power to withhold recognition, hospitality, friendship, and love when the recipient of hospitality fails to respond with gratitude for what is given—an expectation that appears to be raised or lowered depending on the precarity of the recipient of hospitality. Like Manzoor-Khan, Muslim, Christian, and other comparative theologians who accept the hospitality of a university or a state might refuse to pay the price demanded for being the recipient of hospitality, friendship, love and justice, which, as Cornel West says,

17 Mustafa 2021.
18 Kotef 2020.

is the form love takes in the city, questioning whether such sentiments can co-exist with a code of hospitality that appears to strip them of their humanity:

> So this will not be a 'Muslims *are* like us' poem
> I refuse to be respectable
>
> Instead
> Love us when we're lazy
> Love us when we're poor
> Love us in our back-to-backs, council estates, depressed, unwashed and weeping,
> Love us high as kites, unemployed, joy-riding, time wasting, failing at school,
> Love us filthy, without the right colour passports, without the right sounding English,
>
> Love us silent, unapologizing, shopping in Poundland,
> skiving off, homeless, unsure, sometimes violent
> Love us when we aren't athletes, when we don't bake cakes
> when we don't offer our homes, or free taxi rides after the event,
> When we're wretched, suicidal, naked, and contributing *nothing*
> Love us then
>
> Because if you need me to prove my humanity
> I'm not the one that's not human.[19]

The Muslim theologian working in the secular setting of the Western university is, therefore, as compromised as comparative theologian by the moral and ethical challenge of being in the academe, and perhaps more so. It must be recalled that the establishment of faculties of Islamic theology in mainland Europe, in general, was, to no small extent, a response to the wave of populist far-right, ethnocentric, and Christian nationalist political sentiment across much of mainland Europe.[20] When Muslim theologians working in faculties of Islamic theology are invited to participate in comparative theology, which originated and evolved as an impulse within Christian theology, there is a political dimension to the theological exchange that can not only never entirely be set aside but which is actively recalled in each act of hospitality in academic comparative theology, where the host is almost always the university. In the case of Germany and other countries in mainland Europe where state funding of higher education is the norm, this amounts to saying that the nation state itself assumes the role of the host. Modern education is itself one of the effects of the state's sovereign will, creating, as Wael Hallaq describes, the subject as a particular identity "*with a particular mode of rationality*" (emphasis in original).[21]

19 Manzoor-Khan 2024.
20 Schmeidel/Ralston 2021; Arjana 2015; Norton 2011.
21 Hallaq 2018.

The comparative theologian who claims an ethical dimension to their work must, then consider the possibility that the ethical response to the hospitality of the university is not reciprocation but transgression, violation, and abuse. Fred Moten and Stefano Harvey consider just this possibility in their widely discussed examination of the problem of the ethical lack in the university, the place that purports to foster enlightened discussion but then betrays this promise. The only ethical way of being in university, they conclude, is in subversion:

> It cannot be denied that the university is a place of refuge, and it cannot be accepted that the university is a place of enlightenment. In the face of these conditions one can only sneak into the university and steal what one can. To abuse its hospitality, to spite its mission, to join its refugee colony, its gypsy encampment, to be in but not of—this is the path of the subversive intellectual in the modern university.[22]

If Muslims are invited to participate in comparative theology, and if this invitation is extended by the university, are Muslims ethically obliged not only to accept this invitation but, having accepted it, to react to it with an act of purloinment? What other forms of ethical response might be available, or possible, for Muslims who are invited to share in the hospitality extended by one of the archetypal sites for the creation and preservation of the modern, liberal state's discipline and control, its exercise of sovereign power over its subjects, to say nothing of the active complicity of the academe itself in ongoing violence by states that extinguishes the lives of indigenous populations across the globe and also ravage the planet's resources? What sort of ethical dialogue, let alone breakthrough, is possible in such scenes of hospitality?

Life: A Theological Argument

To 'make sense' of another theology demands more than an explication of the inner logic and compositional arrangements of premodern textual arguments ensconced within a systematic theology. Theology is itself a way of sensing life, which also means sensing one's incapacity to make sense of the life one is called upon to live. It is therefore not just the words of theological life, its scriptures, liturgies, prayers, and so on, that must be translated for a true exercise in comparative theology to take place, but how such words might make possible an experience of— and reconciliation with—the challenge of existing as created beings. If 'making sense' or 'getting the sense' of a theological argument means, first and foremost, to sense the

22 Moten/Harney 2004.

sort of life that gave form to it, any theology authored by a creature must disclose, perhaps after much effort, a record of a realization of the limitations of creaturely existence. Textual theological arguments can therefore be many things besides a rational rhetorical arrangement deployed to secure a win against an interlocutor. Even when designed to secure such a win, such arguments and expressions might afford a glimpse into the inner life of believers confronted with the complexity, contradiction, imbalance, precarity and suffering of life. Theological arguments, then, are also performances in which various possible lives are imagined, affirmed, abjected—and extinguished. Studying the affective life of theology might involve not only going beyond texts but also new ways of understanding the work being done by theological language within texts, liturgies, and even in quotidian, everyday speech and action.

Expanding the archive of comparative theology beyond the strictly textual artefacts of theology means searching beyond theology for the theological. In the case of Islam, for instance, it is ritual law that is often a locus for the mediation of the divine and the human, the canvas on which various forms of divine life and human responsiveness to the divine, are imagined or foreclosed. To take just one example, a debate over the effect of nail polish on one's ritual purity serves to disclose conceptions of divine power as either arbitrary or merciful, as well as human experiences of failure to live up to the demands of the law as a necessary religious experience that is only possible in submission to divine law.[23] Such moves towards attending to ritual have already transformed comparative theology, even if there remain important limitations on the way comparative theology, on account of its Christian genealogies, approaches ritual.[24] Another, perhaps even more significant aspect of Islamic theological life beyond theology is to be found in the political, precisely the category that some comparative theologians seek to exile, thereby ignoring the undeniable fact that theological exchange often begins with disagreement over questions of right and wrong, or, in other words, the question of the law by which one is to live one's life in community with others.[25]

The capacity of the comparative theologian to enter into the affective and embodied life of theological expressions and arguments of another tradition, whether in law, ritual, or politics, will ultimately be limited, however, by the extent to which they are confined by the systematic constrictions of their own discipline. Comparative theology, domiciled within systematic theology and the secular university, might still enter into theological exchange with an unjustifiable confidence

23 Mustafa 2020.

24 Moyaert 2018.

25 Ralston 2020; Adamson 2019.

in a deep learning across traditions secured through a systematic dialecticism, believing that the triumphalist form of theological argument can be meaningfully severed from the believer for whom this form is itself an admission of creaturely vulnerability.

It is not only new theological artifacts, then, that are needed by the comparative theologian but also new ways of living and speaking in which the resonance of theological artifacts in the life of a believer can be known. This means, first and foremost, a recognition of the multiple ways in which theological—as well as non-theological—language and words are used. To recognize, that is, that theological language often aims not at any sort of resolution but holds in place the contradictions, the abundance and lack, of human experience. As the anthropologist Talal Asad puts it in his discussion of Islamic traditionalism in relation to Wittgenstein's concept of language as a form of life:

> My point is merely that for traditionalists, such apparent contradictions (God is All-Merciful, and yet I am dying from a painful and fatal disease) are not to be resolved by resorting to philosophical resources—by one set of words being translated into another—but by words expressing a particular form of life.[26]

Asad reinforces one of the central themes in the philosophy of language associated with Wittgenstein, itself prefigured in the ideas of the 13th century Muslim theologian Ibn Taymiyyah. For all three, our ability to understand the other is retarded not by our failure to understand facts about the world but by our failure to appreciate language as a form of life in which words are capable of multiple significations. Because our words are what we live by, they cannot be understood by those who only speak as we speak until they have also lived as we live. Wittgenstein's account of language, which has been appropriated in various, and often inconsistent, ways by comparative theologians,[27] carries a cautionary note for the comparative theologian who is persuaded by its view of the ways in which language attempts to come to terms with the meaning—and limits—of life. The task of the comparative theologian, therefore, like that of the humanist critic, does not have to be limited to asking of another tradition: is it true but ought also to ask: what truth is there in it?[28] To concede, in other words, the multiplicity of ways in which truth is lived spoken, and to allow this multiplicity to abide without reducing it to sameness. Coupled with a political commitment to solidarity with those who are disenfran-

26 Asad 2020. For more on Wittgenstein and Islamic traditionalism in relation to comparative theology, see Mustafa 2018. For a critique, see Moad 2022.

27 Andrejč/Weiss 2019.

28 I owe the formulation to Christopher Ricks, "T.S. Eliot's Humanism." Available at https://www.youtube.com/watch?v=j575U9uGP0E&t=1s.

chised, the work of the comparative theologian becomes a mode of political solidarity, of resistance against one's own urge to render the particular experiences of holding together abundance and privation described by the politically disenfranchised across diverse traditions into the analytic terms of one's own discourse. Each theological tradition is thus challenged in its own way to find enter into an empathetic solidarity, particularly with those for whose disenfranchisement it bears some responsibility.

Theological Lives of *Kalām*

Muslim systematic theology (*kalām*) also frequently carries its own systematic dependencies that induce the false impression that arguments can be studied formally, as forms of legitimation and justification, almost independently of their cultural context or their use in the life of an individual or community. The cosmological argument for the existence of God, for instance, was crafted by Muslim theologians from their understanding of Aristotelian cosmology and its notions of contingency and motion, and now, centuries later, is used by Christian scholars as a riposte to modern atheism.[29] But as David Burrell has shown,[30] the shared lives of Jewish, Christian, and Muslim philosophy and theology carry with them an inherently political dimension. If we attend seriously to the implications of this finding, we might wonder how the *kalām* cosmological argument could be translatable across cultures or epochs. For an argument is never reducible to a disembodied inner logic and compositional arrangement, but also always contains an account of human bewilderment and perplexity at creaturely existence and the repeated human failure to capture within the seemingly impregnable form of syllogistic reasoning the human inability to adequately comprehend existence. Accepting this conclusion as true, or at least containing an important truth, means appreciating that a theological argument, like the language in which it is composed, is itself a performance of life that points to the inability of life to be reduced to the forms in which it appears. An argument might only seldom in other words, and almost never in its own, capture the full experience of perplexity that prompts its composition.

In its non-Arabic vernaculars, freed from its association with the back and forth of scholasticism, *kalām* still denotes this human sense of perplexity, debility, and lack. This is most apparent in the case of *kalām* in its South Asian vernaculars,

29 Craig 1979.
30 Burrell 2014.

where the term frequently refers to a paradoxical set of ideas chanted in poetry and performed in song:

> I am perplexed by this talk: Who are You? What are You?
> If grasped, an idol; if un-grasped, a God! You are a Puzzle-lock!
>
> What reason may encompass, how can that be limitless?
> That may be understood, how can that be God?
>
> You are a puzzle-lock! The philosopher, in his argument, does not find God.
> He unravels a thread but cannot find its head.
>
> You are a puzzle-lock![31]

In these vernaculars, *kalām* is often not systematic theology in a dialectical or scholastic mode. It is not a form of rational demonstration that elicits rational assent, as when a reader nods their head in response to an argument they encounter in a text. Instead, *kalām* in some of its South Asian vernaculars is an attempt to confront and experience paradox that elicits not silent assent but an affirmation of the excess of human desire and here, theological language is perplexed and joyous life. Joyous because perplexed by its own desirous joy, its *jouissance*. *Kalām*, here, is a theopoetics that registers the unsettling human experience of dizziness and perplexity that cannot be captured in philosophical argument, which only records one's lack and inability to escape the perplexity of existence:

This is not, of course, to deny the importance of logical coherence in theological argument. Nor is it to say that all defenses of particular theological arguments are equally correct. Comparative theologians must also take seriously the claims of their opponents to intellectual coherence. Comparative theology must be expansive enough to find life in both the linearity of textual arguments and the lyric of song. Refusing the association of textual arguments with dialectical triumphalism, we might choose to hear instead the cries of pain and anguish that accompany any such triumphalist composition, to see that occasionally, when the rhetorical and textual authority of an argument appears most formidable, it occludes the vulnerability and abjection of its author. Instead of its reliance on dialectics as the progression or resolution of an argument or idea, comparative theology might do well to tarry with an Islamic poetics that aims not for the resolution of an argument but for abiding in paradoxical inhabitations of pain and joy as a way of apprehending creaturely—and divine—life.

As it encounters affective theologies that reside and resonate beyond the textual artifacts of theology and discovers the different resonances of theological

31 Latif 2007.

life within such non-textual artifacts, comparative theology might be transformed into an attempt to understand a way of life and not merely decipher a theological code. This theological encounter entails as much an alteration of method as of mood. To allow transformation rather than mere communication, to abide in an encounter with other(s) in which one is othered also to one's self, demands not only that comparative theology produces what Clooney calls "dramatically charged and unsettled writing, irreducible to any tidy conclusions about the world or anything in it"[32] but also transforming the world it inhabits through such forms of writing and talking about how our own ways of writing and talking created the worlds we have come from, those we inhabit or are torn from, and the ones yet to come—of whose pains and pleasures we may neither think nor speak—yet.

Bibliography

Adamson, Peter, ed. (2019), *Philosophy and Jurisprudence in the Islamic World*, Berlin: De Gruyter.

Andrejč, Gorazd / Weiss, Daniel H., eds. (2019), *Interpreting Interreligious Relations with Wittgenstein*, Leiden: Brill.

Arjana, S. Rose (2015), *Muslims in the Western Imagination*, Oxford: Oxford University Press.

Asad, Talal (2020), "Thinking about Religion through Wittgenstein", *Critical Times* 3.3, 403–442.

Burell, David B. (2014), *Towards a Jewish-Christian-Muslim Theology*, Chichester: John Wiley & Sons.

Clooney, Francis X. (2010), *Comparative Theology: Deep Learning across Religious Borders*, Malden: Wiley-Blackwell.

Clooney, Francis X. (2014), *His Hiding Place Is Darkness: A Hindu-Catholic Theopoetics of Divine Absence*, Stanford: Stanford University Press.

Clooney, Francis X. / Stosch, Klaus von, eds. (2018), *How to do Comparative Theology*, New York: Fordham University Press.

Cornille, Catherine (2018), "The problem of choice in comparative theology", in: Francis X. Clooney / Klaus von Stosch, eds., *How to do Comparative Theology*, New York: Fordham University Press, 19–36.

Craig, William Lane (1979), *The Kalām Cosmological Argument*, Eugene: Wipf and Stock.

Derrida, Jacques / Dufourmantelle, Anne (2000), *Of Hospitality*, tr. Rachel Bowlby, Stanford: Stanford University Press.

Ford, David F. / Quash, Ben / Soskice, Janet Martin, eds. (2005), *Fields of Faith: Theology and Religious Studies for the Twenty-First Century*, Cambridge: Cambridge University Press.

Hallaq, Wael (2018), *Restating Orientalism*, New York: Columbia University Press.

Ipgrave, Michael, ed. (2004), *Scriptures in Dialogue: Christians and Muslims Studying the Bible and the Qur'an Together. A Record of the Seminar "Building Bridges" Held at Doha, Qatar, 7–9 April 2003*, London: Church House.

32 Clooney 2014, 30.

Kilito, Abdelfattah (2008), *Thou Shalt Not Speak My Language*, trans. Waïl S. Hassan, Syracuse, NY: Syracuse University Press.
Kotef, Hagar (2020), *The Colonizing Self: Or, Home and Homelessness in Israel/Palestine*, Durham: Duke University Press.
Latif, Amer (2007), "The Performance of Perplexity: A Sufi Approach to the Paradoxes of Monotheism", *The Muslim World* 97.4, 611–625.
Madigan, Daniel A. (2013), "Muslim–Christian dialogue", in: Catherine Cornille, ed., *The Wiley-Blackwell Companion to Interreligious Dialogue*, London: Wiley-Blackwell, 244–260.
Manzoor-Khan, Suhaiymah (2024), "This is not a Humanizing Poem." https://www.youtube.com/watch?v=G9Sz2BQdMF8 (accessed May 2024).
Moad, Edward Ryan (2022), "Islamic Wittgensteinian Fideism?", *European Journal of Analytic Philosophy* 18.2, 5–28.
Moyaret, Marianne (2010), "Absorption or hospitality: Two approaches to the tension between identity and alterity", in: Catherine Cornille / Christopher Conway, eds., *Interreligious Hermeneutics*, Eugene: Cascade Books, 61–88.
Moyaret, Marianne (2018), "Towards a Ritual Turn in Comparative Theology: Opportunities, Challenges, and Problems", *Harvard Theological Review* 111.1, 1–23.
Moten, Fred / Harney, Stefano (2004), "The University and the Undercommons: Seven Theses", *Social Text* 79, 101–115.
Mustafa, Abdul Rahman (2013), *On Taqlīd: Ibn al-Qayyim's Critique of Authority in Islamic Law*, Oxford: Oxford University Press.
"Ibn Taymiyyah & Wittgenstein on Language", *The Muslim World* 108.3, (2018), 465–491.
"Ritual and Rationality in Islam: A Case Study on Nail Polish", *Islamic Law and Society* 27.3 (2020), 240–284.
"Supernatural, Unnatural, Queer: Gratitude and Nature in Islamic Political Theology", *Political Theology* 22.8 (2021), 699–719.
"Innovation in Premodern Islam: Between Non-Religion, Irreligion and the Secular", *Islamic Studies* 34.1 (2023), 1–41.
Nicholson, Hugh (2011), *Comparative Theology and the Problem of Religious Rivalry*, Oxford: Oxford University Press.
Norton, Anne (2011), *On the Muslim Question*, Princeton: Princeton University Press.
Ralston, Joshua (2020), *Law and the Rule of God: A Christian Engagement with Shari'a*, Cambridge: Cambridge University Press.
Ricks, Christopher, "T.S. Eliot's Humanism." https://www.youtube.com/watch?v=j575U9uGP0E&t=1s (accessed May 2024).
Schmeidel, Ulrich / Ralston, Joshua (2021), *The Spirit of Populism: Political Theologies in Polarized Times*, Leiden: Brill.
Siddiqui, Mona (2015), *Hospitality and Islam: Welcoming in God's Name*, New Haven: Yale University Press.
Soskice, Janet Martin (2005), "Friendship", in: David F. Ford / Ben Quash / Janet Martin Soskice, eds., *Fields of Faith: Theology and Religious Studies for the Twenty-First Century*, Cambridge: Cambridge University Press, 167–181.
Stosch, Klaus von (2018), "Reflecting on approaches to Jesus in the Qurʾān from the perspective of comparative theology", in: Francis X. Clooney / Klaus von Stosch, eds., *How to do Comparative Theology*, New York: Fordham University Press, 37–58.
Tareen, Sher Ali (2023), *Perilous Intimacies: Debating Hindu-Muslim Friendship After Empire*, New York: Columbia University Press.

Villeneuve, Denis, dir. (2017), *Arrival*, California: Paramount Pictures.
Voss Roberts, Michelle (2014), "A place for comparative theology in Christian systematic reflection", in: Michelle Voss Roberts, ed., *Comparing Faithfully: Insights for Systematic Theological Reflection*, New York: Fordham University Press, 1–17.
Voss Roberts, Michelle, ed. (2014), *Comparing Faithfully: Insights for Systematic Theological Reflection*, New York: Fordham University Press.

Ufuk Topkara

Chapter 3
Comparative Theology from an Islamic Perspective: A Case Study

Introduction

Comparative theology[1] has gained attention among a steadily growing global audience, becoming academically rooted in the Western world in the last century. What began as a particular research interest of Catholic theologians, soon attracted broader interest across religious denominations. Today, a variety of research agendas within and also increasingly outside of Christian theology are nested within the umbrella term 'comparative theology'. This has included the development of comparative theological thinking within the newly emerging field of Islamic theology in Germany, institutionalized with a chair in Comparative Theology from an Islamic Perspective at the Berlin Institute for Islamic Theology, Humboldt University. While the internal plurality of the field continues to grow in the religiously heterogeneous and plural societies of Europe, it seems that all comparative theologies share the same underlying intention: the wish to identify a common thread among various religious communities, their theologies and ultimately their take on the existential questions faced by humanity (a concern that I will argue is also shared by the discipline of philosophy).

Grappling with plurality requires methods of intellectual engagement. A comparative theology as a field can potentially provide guidance in identifying methods not only of cross-theological but also transdisciplinary learning and reflection. It is not within the scope of this chapter to provide an overview of all existing comparative theological schools and their particular methodological outlooks. One branch, however, has attracted wide-scale attention and has also been recognized as a formative voice in the contemporary German academic terrain: *Comparative Theology* in the tradition of Catherine Cornill, Francis X. Clooney and Klaus von

1 This chapter would like to differentiate between comparative theology on the one hand and Comparative Theology on the other. While the former is understood as a generic term that encompasses all forms of comparative work within one or multiple schools of theological thought, the latter is the designation of a specific form of theological comparative inquiry that has been connected to the work of Catherine Cornill, Francis Clooney and Klaus von Stosch. In order to differentiate the two terms from one another, the specific kind in the tradition of Cornill, Clooney and von Stosch will be written with a capital letter in the beginning and in italics: *Comparative Theology*.

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Stosch. This school of *Comparative Theology* was established towards the end of the 20th century at the divinity schools in the USA. It is based on the notion of concurrently arguing for one's own truth, while also discovering this truth in other faith traditions in different forms.

While acknowledging the potentiality of such an approach, this chapter will argue that doing comparative theology from an Islamic perspective requires a profoundly different approach. The approach that this chapter suggests is one present in the intellectual history of Islam:[2] learning not only from, but with one another, understanding that truth does not emanate from one tradition, but rather can be sought through discursive engagement between religious and other thought traditions. Part of the reason is that religious thought in Islam has historically developed in entanglement and negotiation with philosophy, among other disciplines.

This chapter attempts to rekindle such an approach, not by presenting an entirely novel method, but rather by instigating a once known *modus operandi* within Muslim theological history of horizontal, transdisciplinary engagement. I herein hone in on one such case of engagement, focusing on 20th-century German-Jewish thought as interlocutor and inspiration for the development of contemporary Islamic thought (including theology). This approach assumes not only a comparative but also a *correlative* relationship between thought traditions. It is rooted in the fact that Islamic thought has always been a discursive tradition, entailing discourse with plural religious traditions, and also across disciplinary boundaries—with philosophy, in particular.

This chapter proceeds as follows. First, I will give a brief overview of conceptualizations of comparative theology and outline the main argument of *Comparative Theology*. Second, I will present a certain reiteration of comparative theology from an Islamic perspective and argue for its validity. Third, I will demonstrate a correlative theology by choosing Walter Benjamin's critical methodology (both philosophy and inflected with Jewish thought) as a conversation partner. Given the limitations of a chapter this will be presented as a single case study, which showcases a concrete example of such a correlative theology. Finally, I will conclude by developing an outlook regarding how Islamic thought (including theology) can benefit from comparative, interdisciplinary and interreligious discourse.

2 Toprakyaran 2014.

Preliminary Observations

Recent years have witnessed the emergence of Islamic theology departments in the academic landscape of Germany, enabling Muslim scholars of Islam to develop Islamic thought in the context of their lived geographical and social environment—the Western world.[3] Emplacing Muslim scholars of Islam at the university and labeling their discipline 'Islamic theology', however, evokes a set of challenges that remain largely unaddressed.[4] Most importantly, the designation as 'theology' immediately invokes a proximity to Christian theology, which in turn creates both intellectual and practical problems. The German Science Counsel (*Wissenschaftsrat)* was aware of the inherent challenges of using the term 'theology' for Muslim religious thought in the realm of academia.[5] Christian theology is a long-standing tradition both within academia and the public domain in Germany. Entering both of these spheres, Muslim scholars are cognizant of the specific status of theology within academia and the surrounding debates at the universities.[6]

They are also aware that for centuries Christian theologies have been exerting influence on debates both within and outside of academia, coding certain linguistic terminologies, and establishing a specific cultural paradigm surrounding religion. In other words, Muslim scholars are entering a space that has already been both linguistically and intellectually codified by Christian tradition and its corresponding theological vocabulary. This is merely a description, not a judgment. There is nothing inherently wrong with this, nor is it really surprising, given the role of the Church in European history. The same phenomenon—of the broad cultural impacts of the dominant religion—is present across the globe. What I am trying to point out here, however, is the tension that arises when a different religious culture enters this space and attempts to express itself through the established language: in this case, employing terms both used and defined by Christian theological thought. For instance, what a Christian theologian means by revelation (*Offenbarung*) is fundamentally different from a Muslim understanding. Christian theology teaches that revelation is intrinsically linked to God's self-revelation in Jesus (*Selbstmitteilung*). The most important content of the Christian revelation is the message that God is love. According to von Stosch, the only way for God to win our love is therefore for God to take on the form of a human servant and invite us to surrender to his power and glory. For the promise of love is not possible without humble self-abasement to the level of the other. In this sense, God's sovereignty and freedom is shown in

3 Khalfaoui/Ehret 2021; Sejdini 2021; Engelhardt 2017.
4 Dreier 2023.
5 Schulze 2022.
6 Göcke 2018.

the fact that he renounces his independence from humanity and wants to be determined by humanity by becoming a servant and seeking humanity's love.[7]

In the majority of cases where Muslim scholars of Islam employ German language terms that are codified by Christian theology, the semantic difference is substantial. How can we be mindful about this difference? How can Muslim scholars of Islam gain an autonomy in which their theological vocabulary will not be continuously juxtaposed to Christian theological terminologies? One way might be to keep using the same terms but inserting a line of explanation, such as 'revelation in the Muslim understanding'. Alternatively, one might simply refer to the Arabic term and introduce that instead of the German word. A cursory look into German publications of Muslim scholars of Islam seem to suggest that they employ both strategies in dealing with this challenge, most often opting for a pragmatic choice instead of extrapolating the underlying tensions every time—an approach that this chapter, too, adopts at points. However, I argue that the discussion of the underlying meanings is unavoidable and absolutely necessary, in order to comprehend where the various theological cultures differ.[8] There is a distinctiveness to any religious culture and its corresponding theology. While much is gained by collaboratively expounding the similarities of religious thought, equally important, in my opinion, is the explanation of where theologies differ. I believe that there are elemental differences between the outlook of *Comparative Theology* and comparative theology from an Islamic perspective that need to be addressed. I also believe that these differences cannot be overcome and that comparative theology from an Islamic perspective should not simply adopt the methodological approach of *Comparative Theology*. Instead, it should pursue a different research agenda, one that both critically engages with its own heritage of cross-religious and transdisciplinary engagement and at the same time attends to contemporary debates.

Comparative Theology, its Origin and Outlook. A Brief Overview

What exactly does the field of comparative theology consist of, what is its subject matter and what methods does it use? As far as comparative theology is concerned, we can easily state that comparative learning, which constructively engages with

7 von Stosch 2010, 49.

8 One constructive way is certainly the publication of a multi-volume publication that defines fundamental terms and basic concepts in both traditions. Cf. Heinzmann *et al.*, 2016.

other religious cultures and secular sciences, has a long tradition in the history of monotheistic theologies. One could also argue that this approach is basically nothing new, rather resembles the basis of all successful major theological treatises. However, it remains to be seen if *Comparative Theology* as a theological sub-discipline is actually limited to this understanding of a learning attitude. In order to clarify this question, it is necessary to take a closer look at the research field of comparative theology in order to better classify the approaches it contains.

Comparative Theology, as a field of research, is a relatively young (sub)discipline and only became a distinct area of inquiry in the Western world in the modern era. In the academic literature, a distinction is made between the *Theology of Religions*,[9] *Comparative Theology*,[10] *Intercultural Theology*[11] and *Interreligious Studies*[12] in the English-speaking world.

However, what exactly *Comparative Theology* means and what methodological characteristics guide this theology remain debated.[13] Regardless of the controversies surrounding the methodological outlook, the overwhelming majority of comparative research approaches in contemporary theology can be traced back to their common origin in Christian theology.[14] It is above all Catholic-Christian theologians who, following the Second Vatican Council, felt internal and external pressure to develop a new relationship with non-Christian religions. Different approaches have since developed within Christian theology regarding the question of how this new relationship should be shaped, whereby a tension between inner-church ecumenism, the missionary mandate and interreligious dialog can also be better understood. The development of *Comparative Theology* has been clearly influenced by these disputes.

Are comparative approaches a cautious evolution of existing theological schools within Christianity? Or is *Comparative Theology* ushering in a new era of thinking that leaves behind the sometimes rigid and historically embedded understandings of how to engage the religious other? In fact, a certain formation can be observed within Christian theologies in this regard. The viewpoint of abandoning apologetic attitudes and thought patterns in favor of a role that is not only benevolent but also appreciative of the other theological tradition is understandably popular. However, this attitude then inevitably leads to the central question of how theologians can remain true to their own truth claims on the one hand, while at the same time

9 Bernhard 2010.
10 Cornille 2019; Clooney 2013.
11 Wrogemann 2020.
12 Gustafson 2020.
13 Hock 2011.
14 Hedges 2017, 4.

appreciating those of other faiths in their differences and beliefs. The implementation of this theological standpoint and the underlying methodological questions are therefore inevitably critical. Individual theologians not only determine their hermeneutical approach to other religious traditions; their methodology also provides a justification for the normative mission of comparative theology. In addition, methodology also serves as a criterion for differentiation, not only in terms of Christian approaches, but also in relation to comparative research approaches in other theological traditions. In this context, it is vital to distinguish *Comparative Theology* from approaches that merely diagnose a pluralistic tradition without formulating a precise methodology as to how the relationship between the different traditions of thought can be conceived, or how conflicts can be moderated due to opposing principles of faith and truth claims. Klaus von Stosch describes the programmatic approach of *Comparative Theology* as the preservation of one's own truth claims, while embracing new modes of intellectual inquiry and understanding.[15] *Comparative Theology* aims to better understand one's own faith and the faith of others in order to come closer to the divine truth. Its advocacy for one's own truth and the claims of others is its way of solving the problem regarding the question of how we can make sense of religious plurality.[16] The focal point of *Comparative Theology* is therefore not only to consistently advocate for one's own truth, but also to discover this truth in the other in a different form. The central distinguishing feature of *Comparative Theology* is that it seeks to learn from religious traditions other than its own in order to understand its own truth in a new and deeper way.[17]

In my opinion, this particular methodological approach cannot be adopted by a comparative theology from an Islamic perspective. The emphasis on a truth claim is an almost insurmountable obstacle for comparative theology from an Islamic perspective. On the one hand, the search for one's own truth in the religious practice and theological tradition of the other—as promoted by *Comparative Theology*—seems to be prone to accepting an objectification of the other. Although *Comparative Theology* emphasizes that the religious other is respected in their otherness, the encounter is still characterized by the search for one's own truth, which suggests a kind of hierarchical relationality to truth. This focus on one's own truth runs the risk of viewing the other merely as a foil in order to rediscover one's own pre-existing claim in a different guise. The conversation or the encounter with the religious other loses at this moment equal footing and thus becomes entangled in hierarchies. In the end, a conversation on these grounds essentially results in an

15 von Stosch 2012, 14.
16 von Stosch 2012, 155.
17 von Stosch 2012, 156.

asymmetrical relationship (one that, as I noted above, already exists in the theological language used). This becomes particularly clear when the other theological tradition does not emphasize the question of truth with the same urgency, or even values ambiguity. In fact, as Thomas Bauer has pointed out "The Western way was to eliminate ambiguity. The path of classical Islam, on the other hand, was to start one step earlier and already domesticate ambiguity. But if ambiguity only needs to be domesticated and not eliminated, battles over the truth can be avoided".[18] The suspension of truth claims in the history of Islamic thought was a direct result of heated controversies among Muslims and non-Muslims alike that often ended in violent confrontations. Suspending truth claims from discourse in Islamic religious thought, on the other hand, created a specific culture that came to shape Islamic thought in a unique way. I don't see a reason why we, as Muslim scholars of Islamic thought today, should deviate from this theological culture and abandon an approach that has long promoted religious diversity and plurality. Consequently, the conversation with other religious traditions or other scientific disciplines for that matter can only make sense if religious truth claims remain excluded from the discourse.

Framing Comparative Theology from an Islamic Perspective

Instead of emphasizing one's own truth claims or exploring them in other faith traditions, this chapter seeks to imagine the cultivation of a comparative theology from an Islamic perspective through a different path: one that assumes a correlative relationship between disciplines. One could pursue a variety of different research avenues in this regard, but I am specifically concerned with the question of how Islamic thought can be brought into conversation with modern philosophy, in particular (but not exclusively) thought that sits at the intersection of modern philosophy and Jewish thought. As I will explain in more detail below, Islamic religious thought has always been entwined with philosophical thought, and this entwinement is also seen in Jewish thought. This makes bringing these thought traditions into conversation a fruitful endeavor. Far from attempting to be just a theoretical endeavor, this chapter will showcase this approach through one case study. It engages with the work of 20th century German Jewish thinker Walter Benjamin in order to highlight how religious thought can be part of the modern philosophical

18 Bauer 2011, 377.

conversation; it uses this case study as both interlocutor and inspiration for contemporary Islamic theology. The methodology is again correlative, bringing Islamic theology into conversation with a German Jewish philosopher. It does not engage with truth claims. And it accepts ambiguity, not least of all of disciplines (philosophy, theology) in engagement with religious thought traditions.[19] Tradition is here operationalized as a generic term that includes but is not limited to the entire symbolic, written, and institutional apparatus with which a group attempts to preserve the memory of its past, its values, its character, and its specific cultural patterns. What in time is rendered as tradition is often, but not exclusively, a reconstruction of the past in the contemporary context, and the questions and challenges it is shaped by. Our comprehension and classification of tradition is thus substantially influenced by who we are, what we are concerned with, what we are afraid of, and what we think the future is holding for us. In other words, tradition can be comprehended—albeit not exclusively—as a set of multilayered narratives through which we sift, and which we compartmentalize in order to identify those narratives that are relevant to our lived realities.

By arguing for a revitalization of Islamic thought as a tradition that engages with other religious thought traditions and other disciplines, more broadly, my research agenda intends to awaken a long-standing mode of knowledge formation. This mode explicitly acknowledges other thought traditions as equal to Islamic claims in epistemological authority. I have previously written on the relationship between modern philosophy and Islamic branches of knowledge, arguing that they should be horizontal rather than hierarchical, requiring humility in recognizing the valuable contributions both make to discerning the human experience.[20] By juxtaposing the modern philosophical concepts of knowledge and understanding with Islamic thought, I created in this work the tension necessary to reinvoke this tradition as a means to seeking new insights. By arguing that both hold equal epistemological authority, they became mutually dependent instead of diametrically opposed to one another. Human reasoning encapsulated in other thought traditions thus becomes an authoritative source for developing Islamic thinking. Islamic

19 I understand my thinking as a continuation of approaches within the Muslim thought tradition, which acknowledges a tension between the modes of contextual and atemporal interpretations of Islam. They must be negotiated in each generation time and again. This understanding doesn't lean entirely towards a contextual interpretation nor an atemporal, favoring one approach to Islam over the other. Instead, it affirms that the Muslim tradition carries a high appreciation of ambiguity, that it is interwoven with thought patterns and structures of different cultures, and that it derives its openness and its interconnectedness not only from religious sources but rather sees it as a self-perception of humanity seeking to understand and interpret the world.

20 Topkara 2018.

thought that is not only open, but dependent on learning from the broader human experience, enables its adherents to develop knowledge applicable to humanity in its broad diversity. This too holds true when Islamic thought comes into conversation not only with modern philosophy, but also with other religious traditions, as well as with ideas at the intersection of modern philosophy and religious thought.

The Understanding of Islamic Thought

This chapter is guided by a number of basic assumptions about the nature of Islamic thought. In what follows, I present these premises as theses and then contextualize them in order to clarify their background. Ultimately, this historical contextualization should help to substantiate my particular understanding of Islamic thought.

First, I presume that contemporary Islamic thought should not be understood as a special discipline, detached from the lived world and confined to textual studies of the Qur'an and the derivation of religious dogma. It is important to consider both the diversity and the philosophical nature of Islamic thought.

Second, this work is based on an understanding of Islamic thought derived from an emancipatory shift. This demarcation is directed against a historical self-understanding based solely on the claim of preservation.[21] In contrast, I envision Islamic thought as existing in a tense relationship that mediates between the claims of preservation on the one hand and an innovative, progressive, and emancipatory access to scripture and tradition on the other. Seen in this way, Islamic thought consists of a confrontation between the past and the present.[22] This is a dynamic process that enables new interpretations and develops old ones further, thus contributing to an understanding of theology in new contexts.

Without subjecting Islamic thought to this critical examination of modern philosophical thought, it runs the risk of becoming a tradition impenetrable to both insiders and outsiders. This chapter, therefore, at once injects novelty and invokes historical knowledge in order to create a much-needed intellectual space for Islamic thought in modernity. I depart from both a perspective that contends with imagined conceptualizations of the "modern" as excluding Islam[23] and a focus on the intellectual history of Islam rather than modern Islamic thought.[24] Specifically, by engaging with modern debates in Islamic thought, I instead shed light on the capacity of Islamic thought to contribute to ongoing discourses. Importantly, my

21 Winter 2010.
22 Benzine 2012.
23 Van Norden 2017.
24 Dagli 2004.

approach diverges from strands within Islamic thought that reject modernity, and at the same time from attempts from within Islamic discourses to better emplace Islam in modernity, which describe rather than systematically analyze.

Finally, one guiding assumption behind this work is that Islamic thought has always developed interdependently with prevailing philosophical ideas, and has thereby both confronted the philosophical questions of its time and made an independent contribution to the corresponding debates.

Islam as an Entangled Tradition

First, we must note that the aim of considering Islamic thought in the context of other *Wissenskulturen* is by no means a novel objective. As seen in research on the intellectual history of Islam during its formative period from the second/eighth to the fifth/eleventh centuries, the interweaving of philosophical ideas is often mentioned.[25] In fact, Islamic thought grew out of the desire by scholars of the Muslim community to uphold the authority of Islamic revelation against arguments increasingly posed by philosophers. The Muslim scholars of this epoch explored the ancient sources of Hellenistic culture and implemented the knowledge that they gained through such studies in their own work.[26] This process was accompanied by a gradual change in political culture, from the pursuit of particular interests to a global orientation. This new perspective, it is argued, is closer to the self-image and realities of the contemporary Islamic world than to the societal structures of the Arabian Peninsula, which were based on a rigid tribal culture.[27] The density and diversity of Islamic scholarship also indicates that the increasing diversity of the Islamic world—in terms of ethnic groups, languages, and cultures—provided opportunities to work towards the common good. The prevailing diversification of the sciences—and above all, of philosophy—should therefore not be understood as an expression of Islamic philosophy striving for a monopoly on interpretation.[28] Nevertheless, Greek philosophy's influence on Islamic thinking was not accepted or welcomed everywhere or at all times.[29] This may be at least partially due to the fact that ancient philosophy confronted its Islamic-Arab heirs with claims of a strict method and a specialized scholarly ideology.[30] This immediately gave rise to the

25 Daiber 2012.
26 Groff 2007.
27 Hourani 2003.
28 Anjum 2007.
29 Adamson / Key 2015; Endress 1986.
30 Endress 2003.

perception, above all among theologians, of a competition between the two, and consequently also a tendency to view philosophy negatively. Various theological arguments directed against philosophers can be found in early theological sources of Islam. They also, however, bear witness to the fact that early Muslim theologians had no extensive knowledge of philosophy. Their rejection of philosophy was based not so much on a discussion of content as on competitiveness.[31]

Although the rejection of philosophy developed into a countermovement that still exists today, the tensions that emerged during the early phase of appropriation of Greek philosophy had largely subsided by the end of the translation period in the fourth/tenth century.[32] The socio-cultural history of Baghdad, the capital of the Abbasid Empire (750–1258 CE), constitutes a representative example. Suspicion of philosophy was replaced by a lively discussion around intellectual interpretive authority and scientific recognition. A polyglot, multi-religious, multi-ethnic community of researchers shaped the self-image of the ruling elites.[33] Muslim thinkers who did not try to prevent Islamic thought from opening to other intellectual traditions were not concerned with defending the Islamic faith in the face of Greek philosophy.[34] They created works that were read primarily as behavioral instructions, as opportunities to shape and cultivate one's own person and one's dealings with others—in short, the whole community.[35] Religious access to the world was seen as one among many ways in which to understand humankind's existence. Moreover, the lines between philosophy and theology were not sharply delineated. Not only were there fluid boundaries between philosophical treatises on the one hand and theological questions on the other, but non-denominational controversies were increasingly included in these discussions.[36]

Islamic thought as a Discursive Tradition

The history of Islamic thought is intertwined with what has later come to be known as Western philosophy. From the early reception of Greek philosophy onwards, the historical development of philosophy as a discipline has provided an array of intellectual challenges that Islamic thought has debated and struggled with. Based on the work of contemporary Muslim thinkers, we may conclude that Islam in its pure

31 Shihadeh 2016.
32 Adamson / Key 2015.
33 Endress 2016.
34 Gutas 2002.
35 Alshaar 2014.
36 Griffel 2018a; Shihadeh 2016.

form has never existed.[37] Thus, for them, Islam cannot be forced into a single form that stands outside of time.[38] Anyone who would speak of "Islam" and thus take up a position is always necessarily referring to competing forms of Islam. Talal Asad has discussed the idea of understanding the Islamic tradition in this sense—as above all a discursive tradition.[39]

Asad argues that religion as a neatly separable aspect of social life is a modern Western construct and, as such, not an adequate conceptualization of Islam.[40] According to Asad, the most urgent theoretical need, on the other hand, is a matter not so much of finding the right scale but of formulating the right concepts.[41] Essentially, the discursive tradition is understood as a historically evolving set of discourses, embodied in the practices and institutions of Islamic societies and hence deeply imbricated in the material life of those inhabiting them.[42] One can speak of an Islamic discursive tradition precisely because one can speak of a set of well-defined and universally accepted foundational texts and interpretive techniques in Islam.[43] Asad's definition is therefore not merely descriptive, it is rather normative, capturing the mode in which Islamic thought is both mediated and authorized. It assumes the presence of opposing epistemologies in the same locus. Asad observes a tension emerging from this presence, a result of opposing epistemological claims. Knowledge and understanding are not primarily products of inquiry, but of tension and conflict. According to Asad, the discursive mode therefore requires the juxtaposition between ideas. This tension, however, can only rise if unequivocal communication between the two is established. In other words, philosophy and Islamic thought alike have to make their epistemological claims transparent and mutually comprehensible. Therefore, anybody engaging in the discursive tradition of Islam has to overcome the intellectual challenge of proficiently mastering two disciplines. Anjum emphasizes that the Islamic discursive tradition is characterized by its own rationality or styles of reasoning—couched in its texts, history, and institutions. This does not mean that there is some rationality, logic or philosophy that is essentially Islamic and thus impenetrable to outsiders. To the contrary, certain theoretical considerations and premises emanating from the content and form of the foundational discourses come to characterize the tradition, and so anyone wishing to argue within the Islamic tradition must begin with them, even if only to argue

37 Moosa 2003.
38 Brague 2013.
39 Asad 1993, 2003.
40 Asad 1993.
41 Asad 1986.
42 Hirschkind 1996.
43 Anjum 2007.

against them.[44] As a result of his work on al-Ġazālī, Ebrahim Moosa has described the discursive tradition as a perspective made up of both continuities and discontinuities in the history of one's own ideas.[45] Shahab Ahmed has also taken up this thread. In his monograph "*What Is Islam?*" he struggles with the question of whether Islam must be addressed in the singular or the plural, whether there is a distinction to be made between a religious and a cultural Islam, and finally whether the term "Islam" as an analytical category can be used at all.[46]

Muslim Scholars of Islam in Germany and their Context

Research on Islam is categorizing a new wave of Muslim scholars emerging in the West into various sub-disciplines such as Neo-traditionalists, Neo-Legalists, or Neo-Conservatives.[47] While these categories recognize a different approach that takes the new contexts into account, they still do recognize a rising field of Muslim scholars, who distinctively engage with other thought traditions.[48] These scholars turn to other thought traditions not in an attempt to refute them or show how Islamic thought is distinctively different from them,[49] but instead to seek inspiration and guidance.[50] This phenomenon will arguably expand the existing interpretations of Islamic thought both in the public and intellectual realms, but not replace them. Interpreting the Islamic tradition through the lenses of an explicit western philosophical positionality will yield *one possible reiteration* of how one can read and understand Islamic thought today. There is and will always be a mul-

44 Anjum 2007.

45 Moosa 2005.

46 Ahmed 2015.

47 Bano 2018.

48 One should be aware of a tendency among some authors who use the engagement with other thought traditions to Islamize issues. Islamizing means accommodating any question, critique, or intellectual challenge in the body of Islamic thought. There is virtually no scenario in which Islamic thought would need to engage with other thought traditions to identify challenging ideas or questions of its time. Abdessamad Belhaj, 'The Fall of The Western Family" Ṭāhā 'Abd al-Raḥmān's Critical Islamic Ethics', *ReOrient*, 4:1 (2018), 24–43.

49 This happens for instance in the case of Moroccan scholar Taha Abd al-Rahman, who engages with Western thought to critique it and who attempts to position Islam as a tangible alternative. ʿAbd al-Raḥmān (2012), *Suʾāl Al-ʿAmal*.

50 Milad Karimi could be named here as someone who utilizes G.W.F. Hegel and Martin Heidegger in his studies to deconstruct religious thought in Islam and reconstruct it through that engagement. See Karimi 2021. The same can be said about Mustapha Chérif and his dialogue with Jaques Derrida. See Mustapha 2008. Finally, Imran Aijaz attempts to harbor philosophical thought through employing its critical potential for deconstructing fideistic foundations in Islam. See Aijaz 2018.

titude of different explanations and interpretations of the Islamic sources and their rich scriptural heritage. It should go without saying, that the legitimacy of this diverse terrain—conceptualized as Islamic tradition—is built into the very framework of religious thought in Islam.[51] Muslim societies have always—even during the times of institutional religious authorities like the caliphate—negotiated vividly the scope and meaning of the Qur'anic revelation and the Prophetic *sunna*. They have nurtured and contributed to vigorous discourses in which Muslim thinkers have presented and defended their interpretations, ultimately paving the path to a culture that has learned to navigate this plurality of opinions and interpretations across contexts and across time.

Thus, by rooting an Islamic thought in contemporary German academia, I also propose locating it within Germany's philosophical tradition of critique, employing the work of 20th century Jewish philosophers as an exemplar that can illuminate intellectual possibilities for an Islamic thought of the 21st century. In doing so, I am also interpreting the Islamic tradition through the lenses of another religious minority that grappled with their place in Western modernity, doing so through both modern philosophy and religious thought. In order to initiate the debate, I have chosen Walter Benjamin (1892–1940), a 20th century German-Jewish thinker, as representative of modern philosophy and also Jewish thought. He employed his marginal position as opportunity—a lens through which to make sense of, critique, and emplace himself (as well as the Jewish people more broadly) in modernity. Like Benjamin, Muslim scholars today have to navigate how to preserve religious tradition while acknowledging philosophical knowledge. Can we imagine a contemporary Islamic thought that oscillates between its own tradition and secular knowledge, that is independent but also open to both sides of these debates? By receiving modern philosophy through the lenses of this Jewish intellectual, this paper aims to achieve two goals: first, to understand how modern philosophy has been articulated through the course of philosophical history; and second, to learn from how Jewish intellectuals negotiated the relationship between modern philosophy and their monotheistic religion. Before we proceed with Benjamin's thought, however, it is necessary to first elucidate what modern philosophy is.

What is Modern Philosophy?

Scholars identify three criteria which Islamic thought would have to confront in order to legitimately claim its place within the framework of modern debates. First,

51 Dziri 2023.

it would have to recognize the methodological autonomy of the other sciences. Second, thinking in categories of freedom, as an indispensable right of every individual, is required. And third, any critical thinking would have to take into account the "Copernican revolution" in philosophy at the end of the 18th century and the developments in its aftermath: the centering on the human being as an independent individual, the post-metaphysic identity, and ultimately even the debates surrounding post-humanism.[52]

With regard to the methodological autonomy of the other sciences, Jürgen Habermas sees the monotheistic religions as bearing a particular responsibility. According to him, religious consciousness must adjust to the authority of the sciences, which hold a monopoly on knowledge about the world. Without this impulse for reflection, monotheisms could develop into a destructive force in ruthlessly modernized societies.[53]

By far the most serious development in modernity, however, is attributed to the turn towards the human being, which began with the Enlightenment, and the resulting potential for emancipation. From this perspective, the anthropological turn has developed into the central demand of philosophy and is the touchstone for any examination of modernity. It would thus claim normative meaning, which comes under special scrutiny in the confrontation with modernity. If Islamic philosophy wants to be taken seriously, it is argued, then it can hardly escape the questions raised by the concepts of human self-confidence, self-determination, and self-realization.[54] Undoubtedly, this catalog of questions represents an intellectual challenge, especially since it describes not only the contours, but also the material content of a new discourse. How then can we understand and determine the relationship between modern philosophy and Islamic thought?

Within the intellectual history of Germany, modern philosophy is intrinsically linked to Immanuel Kant and his paradigmatic shift towards the human being in the late 18th century.[55] Kant made individual autonomy and freedom the foundation for his philosophical thought. One of the fundamental aims of Kant's philosophical project—perhaps *the* fundamental aim—was to develop a robust defense of human freedom and autonomy by establishing the criterion of objective criticism. He did this by arguing that the individual subject possesses innate capacities of theoretical and moral reasoning. In order to strengthen his argument, Kant proposed a reversal of perspective. Just as Copernicus suggested that new scientific insights should be integrated into an adequate overall view through a transformation of the geo-

52 Gardner / Grist 2015; Pippin 2016.
53 Habermas 2001.
54 Habermas 1992.
55 Weischedel 2013; Habermas 1991.

centric into a heliocentric world view, Kant introduces the idea that our knowledge is not directed towards the objects, but that the objects depend on our knowledge. As a result of this counterintuitive assumption, the scientific examination of our faculty of knowledge or the self-examination of reason becomes the starting point of any inquiry.[56] This philosophical idea, which, in contrast to the alleged metaphysical knowledge of dogmatism and skepticism doubting all knowledge, seeks to ascertain through a "Critique of Pure Reason" whether and to what extent rationalization is actually possible.[57] According to Habermas, a philosophy that incorporates the Kantian paradigmatic shift at the end of the 18th century should cease to identify itself as philosophy as it was conceptualized in the centuries before. Instead, it should render itself as critique.[58] It is exactly this dimension of Kant's philosophy that shaped modern philosophy ultimately as the age of criticism.

Jewish Representative of Modern Philosophy. The Case of Walter Benjamin

In many ways, Kant's philosophical project, with its reception and further elaboration by other philosophers, embodied a novel hope for German-Jews; the emergence of a new, reflective society that would abandon segregation and discrimination policies based on religious or cultural belonging. Given the socio-cultural othering that German-Jews were confronted with, Kant's humanism resembled an opportunity to reframe and recode not just the status of the German-Jews but the state of mind of society as a whole. There is a close connection between the family histories and the philosophical theories of German-Jewish intellectuals in the post-Enlightenment era. Specifically, I would argue that the emphasis on individual autonomy one finds amongst these thinkers grew at least partially out of common features in their life trajectories; specifically, negative experiences with societal and political authority: social marginality on account of their Jewish backgrounds. Employing Kant's critical lens not only paved the way for German-Jews to critique and question the status quo in German society but also allowed them to intellectually challenge their own faith tradition. Notwithstanding the intellectual differences, almost all modern German-Jewish philosophers share one attribute: an unbending commitment to criticism.[59]

56 Höffe 1992.
57 Baumgartner 1991.
58 Habermas 1991.
59 Habermas 1991, 46.

There are numerous branches of modern philosophy and within each branch representatives of Jewish thought. I have chosen to study Walter Benjamin as a proponent of critical theory. He has been widely recognized as the "father" or "predecessor" of the school of critical theory.[60] I believe that this thinker provides a fruitful entry point into engaging modern philosophy that takes seriously religious thought. During his lifetime, Benjamin developed a reputation as a multifaceted and interdisciplinary intellectual—he worked as a literary critic, journalist, correspondent, radio author, and essayist. Unlike other groundbreaking thinkers of the post-World War I era, his influence only began to make an impact after World War II (and shortly after his own death), when Benjamin's life and writing simultaneously became the epitome of crises, destruction, and the downfall of an entire cultural, social, and political world.

Many transformations occurred in a rapid sequence at the turn of the 20th century: the formulation of the two central theories of modern physics—the quantum theory by Max Planck (1900) and the theory of relativity by Albert Einstein—revolutionized physics and by extension the development of sciences, in general. Medicine advanced more in a few years than it did over the 2,000 years prior. Psychiatry discovered new terms to describe the human mind. The technological and scientific progress led to the dissolution of traditional worldviews and the social devaluation of their concepts. This was accompanied by strong intergenerational conflicts —especially among the middle-class, the educated youth—resulting in vehement protest against authorities and political leadership.

In the realm of academic philosophy, the enormous dynamics around 1900 led to a fundamental crisis, because the traditional conceptual apparatus—the prevailing epistemology being a systematically developed neo-Kantianism—could no longer sufficiently explain these developments. Consequently, the "hard" sciences, but also social sciences like history and sociology, departed from their outdated philosophical foundations to establish new axiomatics and methodologies for themselves. This intense transformation also created fault lines and exposed a new kind of vulnerability. In the aftermath of World War I, modernity became seen as an age of deep and violent transfigurations, leading to the collapse of the existing order.

Many thinkers thus embarked on new paths to describe this world in ruins and Walter Benjamin is probably one of the most innovative of such protagonists. Benjamin develops categories of thought to instigate a form of reconstruction. Interestingly enough, Benjamin employs theological conceptions to elaborate his proposal, aside from historical and philosophical ideas. To do so, he connects with a specific mode of Jewish thinking that has come to be the cornerstone of the religious tradi-

60 Jeffries 2016.

tion in Judaism: *remembering*.[61] Benjamin is convinced that our world today cannot be understood without its past. Far from being just a tool to explain the present, the past holds a key to our future. It is the tradition of (Jewish) religious thinking in which Benjamin locates the hope for the future.[62]

From an epistemological point of view, (Jewish) theological conceptions allow him to do two things: (1) to think about the unity of history—to understand humanity as creatures in an environment that is also created, thus turning humans into generic beings. Instead of viewing humans as isolated individuals, Benjamin sees humanity as part of a whole that relates to the whole. This establishes a specific dynamic of creation and progression, a connection between the past and the future, between revelation in the past and messianism in the future to come. (2) In order to understand humanity's forms of expression, their ways of communication, their languages, symbols and signs, as a creative process, Benjamin draws an analogy to the language of God, with which the creation of the world begins according to the testimony of the Jewish Bible. The Jewish tradition has always understood language, signs and communications as creative forces and has always identified other readings behind the revealed text.[63]

The process in which Benjamin appropriates this theological concept is that of criticism or translation. The starting point always resembles the authority of an original text, which he reads and comments on. His intention is to comment on the text in such a way that its inner context becomes intellectually accessible. Hereby, Benjamin translates aesthetic or theological content into (philosophical) arguments in order to underline the creative power of such traditional conceptualizations but also of language as such.[64]

Benjamin is convinced that the divine inspiration behind a text lies in its essence; it is first and foremost a linguistic content. This linguistic content, however, communicates itself through signs; it is conveyed symbolically. Benjamin understands signs as ciphers that simultaneously reveal and conceal, corresponding with the mysteriousness of the religious tradition. Critiquing, therefore, means primarily attempting to reveal the inner structure, the essence of the idea behind the text. Critiquing religious tradition enables Benjamin to develop a methodology that can be directly employed to make sense of the contemporary. In other words, translating religious or theological contexts in this way and using them heuristically, empowers Benjamin to illuminate contemporary phenomena, and give them a meaning that otherwise would have remained hidden. Critique is not only directed at the

61 Münz 1995, 483.
62 Mosès 1994.
63 Lindner 2011, 175–192.
64 Benjamin 2008, vol. 2, 140–157.

religious tradition and contemporary phenomena, it is also a means to understand oneself and one's own positionality. This turns critique into a mode of self-awareness and by extension ultimately into a tool of self-understanding.

Two generations after the experience of World War II, a disillusioned audience, scattered worldwide and disappointed by the societal promises of modernity, started to recognize in Benjamin's work, life, and writings an epoch characterized by ambiguity, revolutions, and catastrophes—serving as a foundation, pillar, and source of our present. The late reception of Benjamin's writings is comparable to the perception of Franz Kafka's work, which only gained recognition as prophetic and groundbreaking for understanding the dynamics of the 20th century long after his death. While Kafka's impact was primarily literary, Benjamin's significance is transdisciplinary, and lies in the realm of theory—his concepts of knowledge, methodology, and subjects inspire scholars from literature, cultural studies, and the humanities worldwide. This becomes clear when considering how Benjamin understood himself: as a critic. His approach to the subjects he engaged with was critical; or in other words, he intended to extract meaning that could help him understand and navigate his present. He treats his textual subjects as testimonies of an (intellectual) authority and sets out to illuminate the underlying horizons in them. Benjamin approached this epoch analytically, conceptually, through the study of its objective societal energies: as the period of industrialization and high capitalism, but also through memories, as a confrontation with impressions from his childhood as a reservoir of memories containing experiences with things that cannot be logically grasped.[65] Studying Benjamin's thought does not only resemble a set of multiple modes through which he attempted to make sense of the world, it also provides us with an understanding of how modern philosophy came to unfold in the case of a specific thinker. Incorporating the positionality of Benjamin, we can see how he navigated continuities and discontinuities, as much as attempts of conciliation and/or confrontation between modern philosophy and Jewish thought.[66] What becomes clear is that Benjamin not only negotiated the claims of secular knowledge but also contributed to the perseverance of Jewish thought and tradition.[67]

65 Osborne / Charles 2015.
66 Scholem 1968.
67 Scholem 1983.

Constructing Islamic Thought through Comparative Theology

Any kind of thought, whether it be philosophical, academic or theological, unfolds in specific intellectual and geographical contexts. It relates to and addresses specific discourses; it even assumes shared points of reference among those who participate in a discourse. Islamic Theology in Germany operates under these same premises.[68] This is how I frame Islamic theology and how I interpret the task of comparative theology from an Islamic perspective. It ought to relate to the surrounding intellectual, philosophical and academic debates and position itself among the questions and inquiries that are put forward in those debates.[69] Islamic Theology should, however, also engage with its own past. It should be lived and practiced wherever Muslims live and practice. It should not conceive of itself outside of the surrounding intellectual paradigms, nor should it position itself as a unique, unadulterated religious tradition that opposes the Zeitgeist. As much as this idea of a rebellious, resistant, alternative religious culture has been cultivated by Muslim puritan groups in the past two centuries,[70] it factually contradicts how Muslims historically and across the world had come to shape and nurture the tradition of Islamic thought. Since the ties to this kind of religious culture have been severed, reconnecting with its spirit as an active, but also scripturally grounded discursive tradition remains a tantamount challenge to any Muslim thinker today.

But where should this endeavor of reconnection commence? Comparative theology from an Islamic perspective can provide a meaningful and constructive contribution to this mode of religious inquiry. Combining the discursive tradition of Islamic thought with a willingness to learn from contemporary intellectual debates will enable Islamic theology to speak to a broad public. It can provide one particular perspective, a kind of thinking that takes the idea of the divine as seriously as it takes the human experience, the vulnerabilities, the shortcomings, the fears. Contributing to both societal and academic debates can help Muslims to not only position themselves positively but also imbue them with the agency to actively shape and develop their theological tradition. One way in which to do so is through critical engagement with other religious traditions in so much as modern philosophy, and perhaps most of all those strands of thought (as in the example of Benjamin) that unite them both. Engaging with Benjamin's thought introduces the potential to learn firsthand how to navigate the conversation between a religious tradition

68 Behr 2014; Sanseverino 2016; Omerika 2018.
69 Toprakyaran 2014.
70 El Fadl 2007.

and modern philosophical thought. Benjamin's reconceptualization and particular accentuation of what critique can provide for debates is a very powerful tool that would certainly also enrich Islamic thought today. Certainly, critique is not absent in Islamic discourses, neither in the past nor in the present. But the way in which Benjamin weaves together religious and philosophical thinking is worth investigating if it can be adopted by Muslim thinkers today. Engaging with critique, above all self-critique, would not only instigate a paradigmatic shift, it would also create a new dynamic enabling Muslim to speak to audiences beyond their own community, their own confinements.

Walter Benjamin incorporates religious thinking into his interpretation of modernity and hereby turns religious thought into a meaningful contributor to contemporary debates, instead of denying it any validity for our times. I believe that comparative Islamic theology, in critical conversation with multiple religious traditions and disciplines, can fruitfully do the same.

Bibliography

Adamson, Peter (2016), *Philosophy in the Islamic World* (A History of Philosophy without any Gaps 3), Oxford: Oxford University Press.

Adamson, Peter / Key, Alexander (2015), "Philosophy of language in the medieval Arabic tradition," in: Margaret Cameron / Robert J. Stainton, eds., *Linguistic Content. New Essays on the History of Philosophy of Language*, Oxford: Oxford University Press, 74–99.

Ahmed, Shahab (2015), *What Is Islam? The Importance of Being Islamic*, Princeton: Princeton University Press.

Alshaar, Nuha (2014), *Ethics in Islam. Friendship in the Political Thought of al-Tawhidi and his Contemporaries* (Culture and Civilization in the Middle East), London: Routledge.

Anjum, Ovamir (2007), "Islam as a Discursive Tradition: Talal Asad and His Interlocutors", in: *Comparative Studies of South Asia, Africa, and the Middle East*, 27/3, 656–672.

Apel, Max / Ludz, Peter (1976), *Philosophisches Wörterbuch*, 6. Auflage, Berlin/New York: De Gruyter.

Asad, Talal (1993), *Genealogies of Religion: Discipline and Reasons of Power in Christianity and Islam*, Baltimore/London: Johns Hopkins University Press.

Asad, Talal (1986), *The Idea of an Anthropology of Islam. Occasional Papers*, Washington D.C.

Bano, Masooda, ed., (2018), *Modern Islamic Authority and Social Change. Evolving Debates in the West*, 2 vols., Edinburgh: Edinburgh University Press.

Bauer, Thomas (2011), *Die Kultur der Ambiguität. Eine andere Geschichte des Islam*, Berlin: Verlag der Weltreligionen.

Baumgartner, Hans Michael (1991), *Kants "Kritik der reinen Vernunft". Anleitung zur Lektüre*, Freiburg/München: Alber.

Behr, Harry Harun (2014), "Islamisch, theologisch, wissenschaftlich", in: *Frankfurter Zeitschrift für Islamisch-Theologische Studien*, 1, 113–122.

Benjamin, Walter (2008–), *Werke und Nachlaß. Kritische Gesamtausgabe*, 21 vols., Frankfurt a.M.: Suhrkamp.

Benzine, Rachid (2012), *Islam und Moderne. Die neuen Denker*. Berlin: Weltverlag der Religionen.
Bernhardt, Reinhold (2010), "Dialog und Theologie der Religionen", in: *Theologische Rundschau* 75/4, 416–441.
Bulliet, Richard (2004), *The Case for Islamo-Christian Civilization*, New York: Columbia University Press.
Clooney, Francis X., (2010), *Comparative Theology. Deep Learning across Religious Borders*, Oxford: Wiley Blackwell.
Cornille, Catherine (2008), *The Im-Possibility of Interreligious Dialogue*, New York: Crosssroad.
Dagli, Caner (2004), "On Beginning a New System of Islamic Philosophy", in: *The Muslim World* 94/1, 1–27.
Daiber, Hans (2012), *Islamic Thought in the Dialogue of Cultures. A Historical and Bibliographical Survey* (Themes in Islamic Studies), Leiden: Brill.
Dreier, Lena (2023), *Der Islam als akademische Praxis. Von der biographischen Islamizität zum pluralen Islam* (Religion in der Gesellschaft), Würzburg: Ergon.
Dziri, Amir (2023) *Tradition und Diskurs. Wandel als Möglichkeit islamischer Hermeneutik*, Berlin: De Gruyter.
El Fadl, Khaled Abou (2007), *The Great Theft: Wrestling Islam from the Extremists*, New York: Harper One.
Endress, Gerhard (2016), "Theology as a rational science. Aristotelian philosophy, the Christian Trinity and Islamic monotheism in the thought of Yaḥyā Ibn ʿAdī", in: Damien Janos, ed., *Ideas in Motion in Baghdad and Beyond. Philosophical and Theological Exchanges between Christians and Muslims in the Third/Ninth and Fourth/Tenth Centuries* (Islamic History and Civilization 124), Leiden: Brill, 221–53.
Endress, Gerhard (2003), "Athen – Alexandria – Bagdad – Samarkand. Übersetzung, Überlieferung und Integration der griechischen Philosophie im Islam", in: Peter Bruns, ed., *Von Athen nach Bagdad. Zur Rezeption griechischer Philosophie von der Spätantike bis zum Islam* (Hereditas 22), Bonn: Borengässer, 42–63.
Endress, Gerhard (1986), "Grammatik und Logik. Arabische Philologie und griechische Philosophie im Widerstreit", in: Burkhard Mojsisch, ed., *Sprachphilosophie in Antike und Mittelalter*, Bochumer Kolloquium, 2.–4. Juni 1982 (Bochumer Studien zur Philosophie 3), Amsterdam: John Benjamins Publishing Company, 163–299.
Engelhardt, Felix (2017), *Islamische Theologie im deutschen Wissenschaftssystem. Ausdifferenzierung und Selbstkonzeption einer neuen Wissenschaftsdisziplin,* Wiesbaden: Springer VS.
Gardner, Sebastian / Grist, Matthew, eds., (2015), *The Transcendental Turn*, Oxford: Oxford University Press.
Göcke, Benedikt Paul, ed., (2018), *Die Wissenschaftlichkeit der Theologie, Bd. 1 Historische und systematische Perspektiven* (Studien zur systematischen Theologie, Ethik und Philosophie 13), Münster: Aschendorf Verlag.
Gustafson, Hans, ed., (2020), *Interreligious Studies: Dispatches from an Emerging Field*, Waco: Baylor University Press.
Gutas, Dimitri (2002), "The Study of Arabic Philosophy in the Twentieth Century. An Essay on the Historiography of Arabic Philosophy", in: *British Journal of Middle Eastern Studies* 29/1, 5–25.
Griffel, Frank (2018), *Den Islam denken. Versuch, eine Religion zu verstehen*, (Reclams Universal-Bibliothek), Leipzig: Reclam.
Griffel, Frank (2018a), "Was Fakhr al-Dīn al-Rāzī an Averroist after all? On the double-truth theory in medieval Latin and Islamic thought", in: Sabine Schmidtke, ed., *Studying the Near and Middle East at the Institute for Advanced Study, Princeton, 1935–2018* (Gorgias Handbooks), Piscataway: Georgias Press, 205–217
Groff, Peter S. (2007), *Islamic Philosophy A–Z*, Edinburgh: Edinburgh University Press.

Habermas, Jürgen (1991), *Philosophisch-politische Profile*, Frankfurt a. M.: Suhrkamp.
Habermas, Jürgen (1992), *Nachmetaphysisches Denken*. *Philosophische Aufsätze*, *part 1*, Frankfurt a. M.: Suhrkamp.
Habermas, Jürgen (2001), *Glauben und Wissen*, Frankfurt a. M.: Suhrkamp.
Hedges, Paul (2017), *Comparative Theology. A Critical and Methodological Perspective* (Brill Research Perspectives in Humanities and Social Sciences / Brill Research Perspectives in Theology), Leiden: Brill.
Heinzmann, Richard *et al*. (2016), *Lexikon des Dialogs – Grundbegriffe aus Christentum und Islam*. Freiburg/Basel/Wien: Herder.
Hirschkind, Charles (1996), "Heresy of Hermeneutics: The Case of Nasr Abu Zayd", in: www.stanford.edu/group/SHR/5-1/text/hirschkind.html (accessed 10 June 2024).
Hock, Klaus (2011), *Einführung in die Interkulturelle Theologie*, Darmstadt: WBG.
Hourani, Albert (2003), *Die Geschichte der arabischen Völker. Von den Anfängen des Islam bis zum Nahostkonflikt unserer Tage*, Frankfurt a. M.: Fischer.
Höffe, Otfried (1992), *Immanuel Kant*, München: C. H. Beck.
Jeffries, Stuart (2016), *Grand Hotel Abyss: The Lives of the Frankfurt School*, London: Verso Publishing.
Khalfaoui, Mouez / Ehret, Jean, eds., (2021), *Islamische Theologie in Deutschland. Ein Modell für Europa und die Welt*, Freiburg: Herder.
Lindner, Burkhardt, ed., (2011), *Benjamin-Handbuch, Leben-Werk-Wirkung*, Stuttgart: J.B. Metzler.
Mosès, Stéphane (1994), *Der Engel der Geschichte. Franz Rosenzweig. Walter Benjamin. Gershom Scholem*, Frankfurt a. M.: Jüdischer Verlag.
Münz, Christoph (1995), *Der Welt ein Gedächtnis geben: Geschichtstheologisches Denken im Judentum nach Auschwitz*, Gütersloh: Gütersloher Verlagshaus.
Omerika, Armina (2018), "Geschichtlichkeit und Geschichtsbilder im modernen islamischen Denken", in: *Frankfurter Zeitschrift für Islamisch-Theologische Studien*, 4, 7–37.
Osborne, Peter / Charles, Matthew (2015), "Walter Benjamin", in: Edward N. Zalta, ed., *The Stanford Encyclopedia of Philosophy*, https://plato.stanford.edu/archives/fall2015/entries/benjamin/ (accessed 10 June 2024).
Pippin, Robert B. (2016), *Die Aktualität des Deutschen Idealismus*, Frankfurt a. M.: Suhrkamp.
Sanseverino, Ruggero Vimarcati (2016), "Was ist Islamische Theologie? Für eine islamische Glaubenswissenschaft des Islams", in: *Frankfurter Zeitschrift für Islamisch-Theologische Studien*, 3, 171–185.
Seydini, Zekirija (2021), *Rethinking Islam in Europe. Contemporary Approaches in Islamic Religious Education and Theology,* Berlin: De Gruyter.
Shihadeh, Ayman (2016), "Religious readings of philosophy", in: Richard C. Taylor / Luis Xavier López-Farjeat, eds., *The Routledge Companion to Islamic Philosophy*, New York/Abingdon 2016: Taylor & Francis, 412–23.
Scholem, Gershom (1968), "Walter Benjamin", in: *Über Walter Benjamin*, Frankfurt a. M.: Suhrkamp, 132–162.
Scholem, Gershom / Tiedemann, Rolf, ed., (1983), *Walter Benjamin und sein Engel. 14 Aufsätze und kleinere Beiträge*, Frankfurt a. M.: Suhrkamp.
Schulze, Reinhard (2022), "Islamische Theologie im Wissenschaftssystem moderner Universitäten", in: Abbas Poya / Farid Suleiman / Benjamin Weineck, eds., *Bildungskulturen im Islam* (Islamkundliche Untersuchungen 347), Berlin/Boston: De Gruyter, 74–102.
Taylor, Richard S. / López-Farjeat, Luis Xavier, eds., (2016), *The Routledge Companion to Islamic Philosophy*, New York: Routledge.

Topkara, Ufuk (2018), *Umrisse einer zeitgemäßen philosophischen Theologie im Islam*. *Die Verfeinerung des Charakters*, Stuttgart: J. B. Metzler.
Toprakyaran, Erdal (2014), "Vom Nutzen und Nachteil der Historie für die Islamische Theologie in Deutschland", in: *Frankfurter Zeitschrift für Islamisch-Theologische Studien*, 1: 122–135.
Van Norden, Bryan (2017), *Taking Back Philosophy: A Multicultural Manifesto*, New York: Columbia University Press.
von Stosch, Klaus (2010), *Offenbarung* (Grundwissen Theologie), Paderborn: Schöningh.
von Stosch, Klaus (2012), *Komparative Theologie als Wegweiser in der Welt der Religionen* (Beiträge zur Komparativen Theologie 6), Paderborn: Schöningh.
Weischedel, Wilhelm (2013), *Gott der Philosophen: Grundlegung einer philosophischen Theologie im Zeitalter des Nihilismus*, Darmstadt: WBG.
Winter, Tim (2008), *The Cambridge Companion to Classical Islamic Theology* (Cambridge Companions to Religion), Cambridge: Cambridge University Press.
Wrogemann, Henning (2020), *Religionswissenschaft und Interkulturelle Theologie* (Lehrwerk Evangelische Theologie 10), Leipzig: Evangelische Verlagsanstalt.

Aaron Langenfeld

Chapter 4
Does a Dismissal of Truth Claims Help the Project of an Islamic Comparative Theology?

Critical Response to Ufuk Topkara

Reconstruction

In his contribution, Ufuk Topkara attempts to show a way of defining an Islamic comparative theology, which he understands from the outset as an alternative to the Christian or, more precisely, Catholic project he has identified. It should be noted that, strictly speaking, he only refers to *one* line of Christian-influenced comparative theology, namely the methodology of Catherine Cornille and Klaus von Stosch based on Francis X. Clooney. This observation is significant because an extended look at the diversity of comparative theological styles in the Christian world shows that Topkara's basic assumption of a quasi-essential difference between Christian and Islamic comparative theology, which he himself would rather see as correlative theology, is tenable. However, since his argument is fundamentally based on the assumption of difference described above, I will first reconstruct the premises that lead to this conclusion and accordingly also support his own sketch of an Islamic comparative theology.

a) Topkara gives various (partly competing) core definitions of Christian comparative theology. I will pick out two of these definitions, because I believe that they show the decisive motivation for his demarcation and therefore for his foundation of an Islamic comparative theology. The first assumes that comparative theology "is based on the notion of concurrently arguing for one's own truth, while also discovering this truth in other faith traditions in different forms." (2) The second—with direct reference to Klaus von Stosch—says: "Comparative Theology aims to better understand one's own faith and the faith of others in order to come closer to the divine truth. [. . .] The central distinguishing feature of Comparative Theology is that it seeks to learn from religious traditions other than its own in order to understand its own truth in a new and deeper way." (6) Although it should be noted that the first definition reflects the concerns of inclusivist and pluralist theologies of

Aaron Langenfeld, Paderborn

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religion and can therefore only be accepted as a definition of comparative theology with great reservations, Topkara places the keyword 'truth claims' at the center of the comparative project. Accordingly, he also understands the intention of learning in the encounter with other religious traditions as an attempt to better understand *exclusively* one's own truth claims. Even if it is not entirely clear to me on what basis this exclusive conclusion follows, and why it should not be possible for me to be authentically interested in the truth claims of others and their deeper understanding when encountering them, it should be conceded that the line of comparative theology focused on by Topkara is *always also* about understanding oneself deeper.

b) However, according to Topkara, the focus on truth claims is essentially incompatible with the Islamic tradition, which is why Christian theology cannot represent a model of comparative theology for Islam: "The emphasis on a truth claim is an almost surmountable obstacle for comparative theology from an Islamic perspective." (ebd.) While a truth-orientated, Christian comparative theology always has to set a hierarchical a priori and therefore inevitably levels of ambiguity, Islam, according to Thomas Bauer, has classically 'domesticated ambiguity'. Without pointing out that Thomas Bauer similarly ascribes a high degree of tolerance for ambiguity to classical Catholicism and that he describes the problem of the loss of ambiguity as a more general problem of modernity,[1] Topkara moves on: "Suspending truth claims from discourse in Islamic religious thought [. . .] created a specific culture that came to shape Islamic thought in a unique way. I don't see a reason why we, as Muslim scholars of Islamic thought today, should deviate from this theological culture and abandon an approach that has long promoted religious diversity and plurality. Consequently, the conversation with other religious traditions or other scientific disciplines [!] for that matter can only [!] make sense if religious truth claims are excluded from discourse." (7)

c) Topkara therefore argues that the renunciation of truth claims can lead to an interreligious discourse that is free of domination. He sees the justification for such a renunciation of truth claims in the Islamic tradition, whereby he understands tradition as "a set of multilayered narratives through which we sift, and which we compartmentalize in order to identify those narratives that are relevant to our lived realities." (8) Tradition is therefore not to be narrowed down to specific scriptures and symbolic forms of the past, but rather a continued and multi-layered, permeable narrative of the present. In other words: Islamic thought in particular opens up the space to understand tradition as a contemporary discursive continuation of lived

1 Cf. Bauer 2018.

faith, which expressly recognizes no privileged theological places of knowledge. Consequently, one's own scripture and tradition have no higher epistemic dignity than the Torah and the Gospel. Explicitly: "By arguing for a revitalization of Islamic thought as a tradition that engages with other religious thought traditions and other disciplines, more broadly, my research agenda intends to awaken a long-standing mode of knowledge formation. This mode explicitly acknowledges other thought traditions as equal to Islamic claims in epistemological authority." (ebd.)

d) In the following argumentative steps, Topkara shows the extent to which Islamic thought has always developed in discourse with other religious and, especially, philosophical positions and, for this very reason, cannot be separated from these traditions either materially or formally. Accordingly, an Islamic comparative theology should understand itself more as a correlative theology.

e) As an example of a correlative theology in dialogue with modern philosophy, Topkara cites the philosopher and writer Walter Benjamin, whom he reads as a Jewish philosopher.[2] Benjamin succeeds in reclaiming the Jewish tradition as a source in the crises of late modernity and in perpetuating and preserving Jewish thought through the crisis.[3] Benjamin, Topkara concludes, could consequently be an example of Islamic theology in contemporary Germany.

Critical Response

The argument that the dialogue between religions would be more appreciative and purposeful if they renounced their claims to truth, or at least relativized them with regard to other religious traditions, is, of course, by no means new. Theologically, it is close to pluralistic religious theologies; philosophically, there are references to relativistic positions. The assumption however that the dispensation of religious truth claims is compatible with the Islamic tradition and that this tradition is therefore particularly open and willing to learn for its reorientation in global modernity, is certainly worthy of consideration. Also, the rather open accusation levelled at Catholic and Christian comparative theology that their insistence on the claim to

2 As far as I have knowledge of the research debates on Benjamin, this attribution is highly questionable. However, I am not able to engage in this question in this given context.

3 I must honestly confess that the argumentative context in which Walter Benjamin is brought into the question of an Islamic comparative theology does not seem plausible to me. The mere fact that religious thought is formed in the confrontation with intellectual history as a whole and the philosophy of the time in particular, as well as the conclusion that dialogue with philosophy can therefore still make us capable of speaking today, could also have been asserted more easily.

truth expresses an ultimately missionary concept that never regards the (religious) other as an end in itself, but only as a vehicle, is considerable. All three aspects,

a) the postulate of a dispensation of truth claims,
b) the specific compatibility assumption of egalitarian epistemology and tolerance of ambiguity in the Islamic tradition
c) and the accusation levelled at Christian comparative theology of exploiting the (religious) other, will be critically discussed below.

Ad a) Philosophically, it must be clarified whether Topkara has in mind an abandonment of truth claims in the sense of metaphysical relativism or—which I consider more likely—a kind of practical relativism regarding the exclusion of truth claims in interreligious dialogue. If the former is the case, he would of course have to face up to the fundamental criticism of relativism—including the problem of self-contradiction.[4] In the second case, the question should at least be raised whether the problem of conflicting truth claims is not merely shifted to other levels if they are not made explicit. One example from my experience of dialogue is that the a priori restriction to what can be said in common—such as the ethical—constantly leads to conversations breaking down the actually decisive (metaphysical) reasons. The question of whether human life may be ended under certain conditions is, as an ethical one, also anthropological, cosmological and so on.

Even approaches that are critical of the position of religious truth claims in public discourse, such as those influenced by Jürgen Habermas, do not generally exclude them from the communication process, but 'merely' doubt their universalizability.[5] At the same time, these approaches themselves exhibit a presence in terms of content, insofar as they assume reasonable freedom as a universal criterion of reasonable understanding.[6] This makes it clear that discourses can presumably never occur entirely without presupposed truth claims—even if they are of a formal nature. In view of the post-colonial criticism to which these Western discourse theories based on the principle of 'reasonable freedom' are exposed, it is plausible to doubt that a ban on the communication of religious truth claims actually leads to a higher tolerance of ambiguity.[7]

It is also possible that Topkara means an exclusion of *exclusive sources of knowledge of the truth* from the discourse. What speaks *against* this interpretation is that he explicitly wants to exclude "religious truth claims" from the dialogue (which, incidentally, would presumably also include religiously based ethical, legal

4 Cf. Baghramian / Coliva 2020; Irlenborn 2016.
5 Cf. as a first approach Breul 2021.
6 Cf. Habermas 2019.
7 Cf. Tingyang 2020.

and pastoral convictions), but what speaks *in favor* of it is that he writes elsewhere about the equivalence of different traditions of thought or ideas (and not truth claims) with regard to their "epistemological authority". If we assume that he is concerned with avoiding epistemic superiority, in my view this does not necessarily pose a philosophical problem (apart from the aforementioned 'pre-discursive orientation of the discourse') but presumably a theological one.

Ad b) The assumption that religions in general and Islam in particular do not know any privileged theological principles of knowledge is simply incomprehensible to me. Of course, I have to admit that I am not able to survey the Islamic tradition as a whole in such a way as to rule out the possibility that individual lines have represented such a logical relativism (incidentally, there have of course also been such individual lines in Christianity). But overall, the assumption that there is no hierarchy of theological sources of knowledge in Islam seems highly implausible to me, both in terms of intellectual discourse and, in particular, in terms of everyday life.[8] After all, the idea that all possible sources of knowledge of God are completely equal also means that the Qur'an, the hadith and the sunnah would not play a more important role for Muslims in justifying their faith than the Torah and the Gospel.

In contrast Topkara himself writes: "In fact, Islamic thought grew out of the desire by scholars of the Muslim community to uphold the authority of Islamic revelation against arguments increasingly posed by philosophers." (10) Obviously, the impulse to open up to (religious) others is also based on a truth-orientated and, in this sense, apologetic interest, namely to protect one's own convictions and the epistemic authority on which they are based, specifically revelation, against their leveling and equalization. This truth-orientated intention does not exclude the possibility that one's own convictions may change in the apologetic-discursive process and that other perspectives may be appreciated and critically integrated. Topkara endeavors to describe the Islamic (and not any other) tradition as "unique", which is particularly capable of integrating and promoting diversity. The fact that, in contrast, he categorizes the Christian tradition in a purely apologetic manner as generically deficient and at least latently encroaching due to its focus on truth, not only methodologically but also in terms of discourse practice, is not conducive to the coherence of his argument.

Ad c) Let us now turn to this accusation. Firstly, it should be noted that it is often and intensively discussed in Christian theology and has led to numerous critical debates that have had concrete methodological consequences for comparative modelling. Of course, Topkara cannot be criticized for not taking note of this, but

8 To my approach to Islamic thinking cf. Langenfeld 2016.

in my view he can be reproached for not embedding a rather sharp critique hermeneutically.

Methodologically, reference should be made to the instance of the third party, which many comparative theologians demand in order to avoid an imbalance or too great a balance in the concrete dialogue. The basic attitude of hospitality and epistemic humility or vulnerability is also described in the tradition of virtue ethics theorizing as standard principles of comparative theology that are intended to reduce hierarchies.[9] In fact, comparative theologians do not usually give up doing *theology*, so they do not give up asking for truth on the basis of certain sources. Conversely, my question to Ufuk Topkara is what the theological concern of the comparative or correlative theological model he presents actually consists of. What is the specific Islam of his approach if it is precisely the specifically religious aspect that is to be kept out of the discourse? Why should I even be motivated to enter into dialogue about something that has no epistemic or ethical intrinsic value?

However, as soon as one admits that the Qur'anic-based Islamic faith has a meaning for the life of the individual and of many, it is always also *about this concrete belief*, which is the subject of dialogue with others and, possibly, apologetics.

Christian comparative theology of the kind I represent, which is very close to the reference models of Clooney, Cornille and von Stosch mentioned by Topkara, is about resisting the subjectivist illusion of modernity and describing identity formation as a communicative process. It thus locates itself in a second line of modernity, in which Georg Wilhelm Friedrich Hegel and, in my view (as the forefather of critical theory), Walter Benjamin also stand. Becoming oneself through the encounter with the other, discredited by Topkara as an inescapable utilization, is described here analytically as interdependence or—positively—as direct proportionality. In the process of loving and appreciative communication, the dialogue partners do not become less, but more themselves through the engagement with others, and this explicitly includes ultimate metaphysical and ethical orientations, those convictions that embed and support my everyday actions. Bringing these convictions into the dialogue, especially where they force (painful) self-reflection, is, in my view, the goal of comparative theology, not to demonstrate superiority, but to handle the vulnerability of one's own beliefs honestly. Keeping truth claims out of the discourse, on the other hand, seems to me to be a form of immunization that, in the worst case, leads to fideistic and tradition-relativistic consequences. In fact, I think that Topkara is much closer to the aim of Christian comparative theology—namely, a discursive and evolving religious self in dialogue with the (religious) other—than it might seem. Conversely, from a Christian point of view, the historical and phil-

9 Cf. Langenfeld 2018; Langenfeld 2023.

osophical justification of the Islamic tradition's discursiveness and tolerance of ambiguity appears to me to be very instructive and stimulating, encouraging me to look at my own tradition in a new way. I don't really understand why that would be a bad thing.

Bibliography

Baghramian, Maria / Coliva, Annalisa (2020), *Relativism* (New Problems of Philosophy), Abingdon: Routledge.

Bauer, Thomas (2018), *Die Vereindeutigung der Welt. Über den Verlust an Mehrdeutigkeit und Vielfalt*, Ditzingen: Reclam.

Breul, Martin (2021), "Rational Theology within Postmetaphysical Thinking. A Catholic Assessment of Habermas' View of Religious Belief", *Horizons* 48, 456–474.

Clooney, Francis X. / Stosch, Klaus von, eds. (2018), *How to do Comparative Theology*, New York: Fordham University Press.

Habermas, Jürgen (2019), *Auch eine Geschichte der Philosophie*, Berlin: Suhrkamp.

Irlenborn, Bernd (2016), *Relativismus* (Grundthemen Philosophie), Berlin/Boston: De Gruyter.

Langenfeld, Aaron (2016), *Das Schweigen brechen. Christliche Soteriologie im Kontext islamischer Theologie* (Beiträge zur Komparativen Theologie; 21), Paderborn et al.: Schöningh.

Langenfeld, Aaron (2018), "The Moment of Truth. Comparative and Dogmatic Theology", in: Clooney, Francis X. / Stosch, Klaus von, eds., *How to do Comparative Theology*, New York: Fordham University Press, 59–71.

Langenfeld, Aaron (2023), "Gutes Gespräch. Die Relevanz epistemischer Tugenden für gelingende interreligiöse Dialoge", in: Koritensky, Andreas / Wasmaier-Sailer, Margit / Weidner, Veronika eds., *Wie Dialoge gelingen. Gesprächsfähigkeit und epistemische Verantwortung* (Kirche in Zeiten der Veränderung 17), Freiburg / Basel / Wien: Herder, 289–303.

Tingyang, Zhao (2020), *Alles unter dem Himmel. Vergangenheit und Zukunft der Weltordnung*, Berlin: Suhrkamp.

Zishan Ghaffar

Chapter 5
Covenant Theology in the Qur'an—Challenges and Insights for Comparative Theology from a Muslim Perspective

Introduction

A relatively recent school of comparative theology, represented chiefly by Francis X. Clooney, James L. Fredericks, Catherine Cornille, and Klaus von Stosch, seeks to understand other theologies and religious convictions from a confessional standpoint.[1] In this context, comparative theology is best understood as a hermeneutical endeavor:[2] it aims to understand, engage with, and appreciate alternative theological perspectives in a spirit of friendship, thereby also deepening the understanding of one's own tradition.[3] For this reason, the aforementioned comparative theologians generally avoid a *macrological* perspective—one that explores interreligious relations in terms of inclusion, exclusion, or pluralism. Instead, they adopt a *micrological* approach, engaging closely with specific texts and beliefs. The essential virtues and preconditions for this form of comparative theology include epistemic humility, rootedness in one's own tradition, hermeneutical openness, empathy, and hospitality.[4] As a result, the outcomes of these engagements often take the form of diverse learning experiences within comparative theology.[5]

This chapter seeks to reflect on the challenges posed by comparative-theological work from a Muslim perspective, drawing on a Qur'anic-theological framework. By *Qur'anic theology*, I refer to the worldview of the Qur'an as it can be reconstructed in a historically critical and descriptive manner.[6] The central question is whether the Qur'an articulates beliefs or statements that present challenges to the practice of comparative theology, or conversely, whether such practice is in fact encouraged by the Qur'an. I explore this issue by focusing on the theme of covenant theology in the Qur'an. This topic appears especially pertinent, since the concept of the covenant has

1 Cf. Fredericks 1999; Clooney 2010; Moyaert 2014; Clooney/von Stosch 2018; Cornille 2019.
2 Cf. Moyaert 2012.
3 Cf. Fredericks/Tiemeier 2015.
4 Cf. Cornille 2008.
5 Cf. Cornille 2019.
6 Cf. Ghaffar 2022.

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played a central role in both Jewish and Christian traditions in defining and locating one's own communities in relation to others. When considering how Muslims might generally position themselves vis-à-vis the Christian and Jewish traditions, it is illuminating to investigate how the Qur'an conceptualizes the relationships among different religious communities within the framework of covenant theology. Therefore, my initial task will be to summarize the Qur'anic notion of covenant. This will be followed by a comparative analysis of covenant theology and anti-Jewish polemic in the Syriac Christian tradition. Building upon this comparison, the final section will address the implications that the Qur'anic discourse on covenant theology holds for the practice of comparative theology from a Muslim perspective.

Covenant Theology in the Qur'an

One of the central concepts for describing the relationship between human beings and God in the Qur'an is that of the covenant. The Arabic terms *ʿahd* and *mīṯāq* denote the concrete form of this relationship expressed through a covenant, contract, or agreement.[7] This section offers a brief overview of the Qur'anic conception of covenant theology, drawing on recent research on the topic. In the Qur'an, a covenant is an agreement initiated by God that is binding upon both parties. A prominent example of this can be seen in God's covenant with the community of believers surrounding the Prophet Muhammad. The fifth chapter (sūra) of the Qur'an, *al-Māʾida*, opens with a listing of numerous norms and regulations addressed to the Muslim believers, including pilgrimage rites, dietary rules, and purity regulations (Q 5:1–7). Verse 5 addresses marital and dietary rules in relation to Jewish and Christian communities—referred to as "People of the Book" (*ahl al-kitāb*)—and culminates in a theological assertion on the proper disposition of faith: "[. . .] Those who do not believe in the faith [*man yakfur bi-l-ʾīmāni*], their work is in vain [*fa-qad ḥabiṭa ʿamaluhū*], and they will be among the losers in the next world. (Q 5:5)"[8] This formulation reflects the expectation that believers should not only observe specific regulations but also do so with the correct disposition of faith (*ʾīmān*). Only when proper actions are paired with authentic faith commitment does God promise full

7 For the non-theological usage of these terms in the Qur'an, see Sinai 2023, 709–710. For a comprehensive exploration of the theological and conceptual connections between the two terms, see Rane 2023.

8 All translations in this chapter are adapted from Jones 2007.

eschatological reward. Scholars have noted the Qur'an's use of commercial metaphors as a distinctive feature of its covenant.[9]

The opening of Sura 5 with prescriptions for the Muslim believers is framed by its covenant-theological foundation in verse 7: "Remember God's blessing on you and the covenant that He took from you, when you said, 'We hear and we obey.' Fear God. God knows [the thoughts] contained in [men's] breasts." God's expectation that the Muslim community adhere to certain principles of faith and conduct is grounded in a covenant and the community's affirmation of it: "We hear and we obey." This affirmation alludes both to the Mosaic covenant and to the Qur'anic criticism of the Israelites, who failed to uphold the covenant (Q 2:93). At its core, this passage encapsulates the essential elements of the Qur'anic theology of covenant: God initiates the covenant with human beings.[10] While this refers in the Qur'an to the Muslim community, it had previously been established with the Israelites (Q 5:70), Christians (Q 5:14), and with the prophets (Q 3:81, 33:7) as well. God expects these groups to observe certain norms and principles of faith and commits Himself, in turn, to fulfilling His promise—reward for compliance, punishment for violation (Q 2:40).[11] This reward and punishment are to be understood in eschatological terms, though God may also act with reward or punishment in this life.[12] Ultimately, each individual must justify him- or herself before God on the Day of Judgment with respect to their covenantal obligations.

Since God has entered into covenants not only with the Muslim community but also with other collectives, the question arises as to how these various divine covenants relate to one another. It has been suggested that Qur'anic covenant theology employs the theme of covenant polemically in order to justify and legitimize the revelation given to the Prophet Muhammad. The Prophet's mission and the authenticity of his message are likewise grounded in covenant theology:

> "The Qur'an's theology of covenant is not just about monotheism; it also has prophetological, ethical, and eschatological connotations. This motif is used for confessional demarcation, exhortations to faithfulness (in legal, ethical, and even combative settings), promises of the afterlife, negotiation for the legitimacy of the new Prophet, and polemics against unbelievers. Covenant in the Qur'an is a multifaceted leitmotif."[13]

At the same time, numerous scholars have emphasized that, despite its polemical context, the Qur'an argues in an inclusive rather than supersessionist fashion.

9 Cf. Sinai 2023, 711.
10 Cf. Sinai 2023, 711f.
11 Cf. Sinai 2023, 710f.
12 Cf. O'Connor 2019, 16–19.
13 O'Connor 2019, 19.

Qur'anic covenant theology does not articulate an exclusive election of the Muslim community intended to replace the election of Christians and Jews in their respective covenants.[14] This interpretation is further supported by reference to the universal character of Qur'anic covenant theology. The Qur'an alludes to two primordial moments in which God offered His covenant: first, to the descendants of Adam (Q 7:172–173),[15] and second, to humanity as a whole (Q 33:72).[16] The non-exclusive nature of this theology is also evident in the Qur'anic account of God's blessing of Abraham, in which God explains that Abraham's descendants are not included by default. Abraham's request for his progeny to be blessed is rejected in light of the universal and conditional nature of the divine covenant:

> "And [recall] when Abraham was tested by his Lord with certain words, and he fulfilled them. HE said, 'I am making you a leader [*ʾimāman*] for the people.' He said, 'And of my seed?' [*ḏurriyyatī*] HE said, 'My covenant [*ʿahdī*] does not extend to those who do wrong.'" (Q 2:124)

Covenant Theology in Syriac Christian Tradition

Qur'anic studies in recent decades have brought to light the significance of the Syriac Christian tradition for understanding Qur'anic discourses.[17] While one must be cautious in asserting direct linguistic dependencies, bringing the Qur'an into conversation with late antique Syriac Christian discourses has nonetheless proven fruitful for contextualizing and further defining Qur'anic theology. The following chapter offers an overview of covenant theology as conceptualized within the context of anti-Jewish polemic in the Syriac Christian tradition, focusing on the authors Aphrahat (d. 345), Ephrem (d. 373), Isaac of Antioch (5th century), and Jacob of Sarug (d. 520/521).[18] Admittedly, this selection of Syriac authors could be expanded; however, those included here were particularly influential for the Syriac Christian tradition and collectively represent the period from the fourth to the sixth centuries. Their views on covenant theology are thus broadly representative of this tradition. These theological tendencies certainly display significant overlap with the perspectives of

14 Cf. Firestone 2011 and Lumbard 2015.

15 Cf. Kadi 2003, Jaffer 2017 and Hussain 2025, esp. 12–16.

16 Cf. Sinai 2023, 713f.

17 Cf. Van Bladel 2008, Griffith 2008 and 2011, Reynolds 2010, Witztum 2011, Tesei 2013, El-Badawi 2014 and 2016, Anthony 2014a und 2014b, Ghaffar 2021.

18 Kazan 1962, 1963, 1965 and Benin 1984 have already analyzed and compared these authors with regard to the topic of covenant theology and anti-Jewish polemics. The present overview builds upon their analyses.

contemporary Christian authors in the Western tradition.[19] However, the present study does not systematically address the latter. As the next chapter will demonstrate, the discursive horizon of the Syriac authors alone provides ample material for developing a deeper understanding of Qur'anic covenant theology.

In all cases, the covenant-theological reflections of these authors appear within the context of their discussions on Jewish law and its validity. This is also true for Aphrahat's "Demonstrations," where he elaborates his views in the chapters on circumcision, the Sabbath, and dietary regulations.

In his discourse on circumcision, Aphrahat writes:

> "In each generation, God made with all generations and tribes His covenants [*qyāmaw*] as it pleased Him. In their times they were kept and (then) they were changed. [. . .] When He chose Abraham, He called and chose him not through circumcision, but through faith, naming him father for all the peoples. After his faith, then He commanded him to circumcise (Gen. 17:5, 9–14)."[20]

In this passage, Aphrahat emphasizes that God established a series of covenants with humanity throughout history, adapting and modifying them according to His will. Abraham, notably, was chosen on account of his faith, and only subsequently received the commandment to practice circumcision.

The reasons for this commandment are further elucidated by Aphrahat:

> "He (God) commanded him to circumcise the flesh of his foreskin, a mark and a pledge of the covenant [*rušmā w-ātā da-qyāmā*] (Gen. 17:11) so that when his seed would multiply, they would be distinguished from all the nations among whom they should walk, so that they would not be mingled with their unclean deeds."[21]

Circumcision thus functions not only as a sign (*ātā*) of God's covenant with Abraham and his descendants but also as a means of separation—ensuring that they remain distinct as God's people and are protected from the idolatrous practices of surrounding nations.

That the descendants of Abraham can be recognized and held accountable is also central to Aphrahat's argument:

> "My beloved, this should be assured to you that circumcision is a sign [*rušmā*] so that they (Jews) should be distinguished from the unclean people. See how, when He brought them forth from Egypt and they travelled in the wilderness for forty years, they were not circumcised because they were one people and were not mixed with other people. There He did not mark them out because they were pasturing by themselves. The reason for this marking out the seed of Abraham [*zarʿeh d-abrāhām*] in this: it was not because all people were not his own, that

19 Cf. Benin 1984, 135–136.

20 Valavanolickal 2011, vol. 2, XI:3, 4–5; Parisot 1894/1907, XI:3, 473–476.

21 Valavanolickal 2011, vol. 2, XI:4, 6; Parisot 1894/1907, XI:4, 477–478.

> He separated the seed of Abraham for himself as a flock; rather, He abandoned all the nations who were performing evil deeds of paganism [*ʾbādē bišē d-ḥanputā*] because of their deeds. He marked them (as) His people, not so as to make known to Himself that they are the seed of Abraham, because He knew them also without marking them; but so that they themselves might recognize one another and not to conceal themselves through false pretexts. For the following thing could have happened if they had not been marked: when some of them were found worshipping idols, or committing fornication or adultery or stealing or doing something outside the Law, those of them who were found in these things might lie and deny that 'we are not the children of Abraham,' so that they might not be killed or receive capital punishment."[22]

A further point of significance is the transformation of divine law and covenant across historical epochs:

> "For in everything the Law and the covenant [*nāmōsā wa-qymāmā*] have been changed. For at first God changed the covenant of Adam and offered another one to Noah; again He also concluded (a covenant) with Abraham. He changed the one of Abraham and gave another one to Moses. When that of Moses was not kept He gave another in the last generation [*ḥrenā b-dārā ḥrāyā*], a covenant which will not be changed [*qyāmā d-lā meṯḥallap*]. [. . .] All of these covenants are not like one another. For the circumcision in which the one who gave the covenants takes pleasure is that of (which) Jeremiah had said, 'Circumcise the foreskin of your heart' (Jer. 4:4)."[23]

God, Aphrahat argues, revised His laws with each successive covenant. Following the covenant with Adam, He introduced normative changes with every subsequent covenant. Finally, in the last generation, through Jesus, the immutable covenant of God was fulfilled.

The giving and annulment of the Law are outlined by Aphrahat as follows:

> "For He gave the Law to Moses with His observances and covenants. When they did not keep the Law, He annulled the covenants. He promised to give a new covenant and He said, it was not like the first, although the giver of both of them is one and the same."[24]

Even prior to Moses, patriarchs such as Noah and Abraham observed aspects of the Law, though it was not given to them in the same manner as to Moses. Yet significant rituals such as the Sabbath were not observed by these early figures:

> "From Noah was born Abraham, the faithful man, the head of the righteous, who observed the Law although the Law was not (yet) given to him. He begot Isaac, the son of the promise and

22 Valavanolickal 2011, vol. 2, XI:6, 8; Parisot 1894/1907, XI:6, 481–484.
23 Valavanolickal 2011, vol. 2, XI:11, 14–15; Parisot 1894/1907, XI:11, 497–500.
24 Valavanolickal 2011, vol. 2, XI:11, 15; Parisot 1894/1907, XI:11, 499–500.

> Jacob, the head of the people. These righteous fathers did not observe Sabbath, but they were justified through faith [. . .]."[25]

Aphrahat once again underscores the contingent nature of certain Jewish laws. Even the patriarchs—Noah and Abraham, for example—kept these laws, though not in the same form.

Certain commandments, it is further stated, were imposed on the Israelites as a result of their disobedience:

> "When they made for themselves the calf and departed from Him, then He had given them the commandments and the judgments which are not good: the offering and the cleansing of leprosy, of discharge, of menstruation and of birth; [. . .]."[26]

Many of the fundamental aspects of covenant theology articulated by Aphrahat are echoed by the Syriac authors who followed him.

Ephrem adopts a view similar to that of Aphrahat, positing a succession of divine covenants that replace one another and ultimately culminate in the final covenant realized through Christ:

> "'The times are accomplished' [Mark 1:15], which were completed from generation to generation. First of all, from Adam to Noah, with the covenant which those of the family of Seth established, when they were separating themselves from the family of Cain. The other [covenant] from Noah to Abraham [was] that they must not eat blood [. . .]. From Abraham to Moses, [it was] through circumcision, but without the Law, and from Moses until [Christ's] appearance, [it was] with the Law. '[The times] are accomplished' [Mark 1:15], for there is no further change [*d-layt tub mḥallpānā*]."[27]

Ephrem further draws an analogy between prophets and apostles and physicians, who prescribe different commandments according to the spiritual ailments of their respective eras. He argues that certain requirements—such as Sabbath observance and circumcision—were incumbent only upon the Israelites, the so-called "middle generation," due to being uniquely afflicted by paganism:

> "They gave all medicines to the sick and feeble (people). Some of the laws have become obsolete because the former sufferings are no more. Others of them (still) exist because the sufferings (still) exist. Apostles and prophets are soul doctors. According to the sickness of the people, they brought help. According to the sufferings that were in their generations, they gave the medicines. Their medicines served the last and the first. There are sufferings of individual generations, there are sufferings that (are found) in all generations. For the new ailments that set in, they give new medicines. For the enduring sufferings of all generations they

25 Valavanolickal 2011, vol. 2, XIII:8, 40; Parisot 1894/1907, XIII:8, 557–558.
26 Valavanolickal 2011, vol. 2, XV:8, 125; Parisot 1894/1907, XV:8, 755–756.
27 McCarthy 1993, V:13, 100; Leloir 1990, V:13, 46.

> gave enduring medicines. [. . .] Abolished today are the commandments of the Sabbath, circumcision and the distinction between clean and unclean. For the latter they are superfluous, for the middle ones [*meṣʿāyā*] they were useful. They were of no use to the first, for they were healthy through knowledge [*idaʿtā*]. Even for the last they are useless; for they are healthy by faith [*haymānutā*]. Only the middle ones [*meṣʿāyā*] did they serve; for they suffered from the wound of paganism [*ḥanputā*]."[28]

Ephrem reinforces Aphrahat's argument by highlighting the contingent relevance of these Jewish laws in relation to the specific challenges posed by idolatry in their time. These laws were intended for that intermediary generation. However, for the final generation following the advent of Jesus Christ, such laws became unnecessary.

In the writings of Isaac of Antioch, we find further reflections that both refine and deepen the positions advanced by earlier Syriac theologians. Isaac likewise maintains that the final covenant established through Christ is eternal and nullifies all previous covenants:

> "And our master revoked the curse of the law [*lāṭat nāmōsā*] for the nations with his cross [*ba-zqipeh*]". [. . .] The Messiah revoked the curse of Moses, and made the nations enter the inheritance. [. . .] The last will and testament [*diateqe*] of the father was confirmed, and our savior sealed [*ḥtam*] it. [. . .] The last will and testament of the father will not ever be revoked by the judge. [. . .] Our lord is the lord of both of them [Moses and Jacob], his command may not be changed, his decree is everlasting, and his blessings are unto eternity."[29]

Isaac makes explicit that it is through Jesus that God's final will and testament are sealed (*ḥtam*). All prior legal regulations—some of them punitive in nature—thereby lose their force.

Yet Isaac offers an additional rationale for the practice of Jewish circumcision and its subsequent abrogation. As long as the mystery of Christ as God's Son remained hidden among them, the Jews were marked with circumcision as both a seal (*ḥātmā*) and a sign (*ṭabʿā*). Once Christ was incarnate, however, the function of circumcision as a seal was rendered obsolete:

> "Abraham was stamped [*etṭba'*] like a vessel [*mānā*] because of the treasure [*simtā*] that was in him. And the seal [*ṭabʿā*] continued in your generation because the treasure was in you until now. [. . .] So, the Jews were stamped with circumcision [*gzurtā*] because of the seed of everlasting life which was preserved within them until the proper time. And when that which it was (to protect) went forth, seal [*ḥātmā*] and stamp [*ṭabʿā*] became ineffective."[30]

28 Beck 1961, III:147–187, p. 26–27.
29 Kazan 1961, 42–43, l. 241–284.
30 Kazan 1961, 44, l. 293–314.

For Isaac, Jesus represents the spiritual seal by which God's ultimate will is affirmed. Accordingly, with Christ's coming, the physical seal of circumcision becomes obsolete, having fulfilled its purpose only until the appearance of the Messiah. Circumcision thus functioned as a visible sign of the promise that the Messiah would arise from among and in the midst of Israel.

Lastly, Jacob of Sarug's reflections on covenant theology—as found in his homilies against the Jews—will be considered. Jacob likewise affirms that circumcision was a requirement unique to the middle generation of Jews, serving as a blood-seal both to protect them and to set them apart as true believers:

> "It [circumcision] was not given to either the first or the last, only those in the middle [*da-l-meṣʿāyā*] reached them to be marked by it. O Jew, if you despise the last uncircumcised, despise also the first uncircumcised. [. . .] The Lord marked him [Abraham] so that it might be well known to whom he belonged."[31]

> "The good Lord sealed his possessions, lest the clean mix with the unclean all around. The Lord circumcised the flock in his name and called it his possession; Therefore circumcision was decreed in (his) name. The peoples of the earth became slaves to vanity; On earth they wander in groups in search of (vain) idols. The Lord stamped circumcision on Abraham as a sign (*rušmā*), so that he could be the flock of the only God among the peoples. [. . .] This unique people that remained to him he signed with a seal of blood (*b-ṭabʿā da-dmā*)."[32]

According to Jacob, the crucifixion of Christ marked the end of the validity of circumcision:

> "Circumcision was required for the people up to the cross; but since he crucified him, the Jew is circumcised in vain. When it was given, circumcision was useful in its time; (But) his time is up, he who circumcises is totally wrong. The whole flock of all nations has been stirred together; [. . .] The whole flock of all nations has become his."[33]

In continuity with earlier Syriac authors, Jacob identifies five covenants between God and humanity:

> "There were five covenants (*ḥammšā qyāmin*) between God and mankind (*nāšutā*). Jew accept these five from him. From Adam, from Noah, from Abraham, from the house of Moses. And that of His Son, which in the end He gave to the world. But the Jew receives only four, (each) at his time; He despises only one, the best (*šuprā*) of the five."[34]

31 Albert 1976, II:93–96 and 130, p. 74 and 76.
32 Albert 1976, II:131–138 and 144, p. 76.
33 Albert 1976, II:159–163 and 167, p. 78.
34 Albert 1976, IV:109–114, p.118.

Jacob further observes that, despite the Israelites' repeated lapses into sin and idolatry, they nonetheless continued to receive divine prophecy:

> "Sometimes you have sinned and broken the law; countless times you have rebelled against the Lord (your) Master. When you were rebellious, he took pity on you and forgave you; [. . .] You worshiped idols, celebrated festivals in honor of the gods; You sacrificed your sons and daughters to the demons and the stars, but far from you the prophecy was never taken away until the day you hang the son on wood and the father despised you. [. . .] Along with idolatry (*ḥanputā*), your people had prophecies [. . .] although you were a heathen (*ḥanpā*), you did not detest prophecy, but it will flee from you now that you are a crucifier."[35]

Prophecy, according to Jacob of Sarug, was ultimately withdrawn from the Jews. Just as Isaac of Antioch describes Jesus as the one who seals God's final will and testament, Jacob likewise portrays Jesus as the one who "bound and sealed prophecy."[36]

The overarching discourse on covenant theology among the Syriac Christian authors considered here can be summarized as follows. A central tenet shared by all the Christian authors is the conviction that Jewish laws have become ineffective and obsolete with the advent of Christ. This claim is rooted in the belief that God established a sequence of covenants with humanity throughout history—covenants that successively replaced one another until the final covenant was made through Christ. Much like a wise educator, God guided humanity step by step toward salvation in Christ. Within this conceptual framework, certain laws and practices were binding exclusively for the Jews, but not for the generation of the patriarchs that preceded them, nor for Christians living after the coming of Christ. Furthermore, the true meaning of these laws is ultimately understood to be spiritual.

The Syriac Christian authors offer various explanations for the institution of Jewish laws. On one hand, they maintain that God's intention was to set the Israelites apart from their pagan environment (*ḥanpā* / *ḥanputā*) through these laws. On the other hand, the laws served both to guard Israel against erroneous beliefs and to punish for particular transgressions.

Another important aspect concerns the role of physical circumcision: it functioned not only as a marker delineating Israel from its pagan environment but also as a seal or sign (*ṭabʿā*) of the messianic promise. The people of Israel served as custodians and preservers of this promise. However, with the coming of the Messiah, the function of this seal became redundant and was rendered obsolete.

Typically, the Syriac authors describe five covenants: those with Adam, Noah, Abraham, Moses, and, finally, with Christ. From a diachronic perspective, they further distinguish three generations of believers—the first, the middle, and the

35 Albert 1976, V:175–183, 213 and 215–216, p.146, 148, 150.
36 Albert 1976, I:287, p. 62.

last. Certain practices, such as circumcision, were seen as obligatory and valid only for the middle (*meṣʿāyā*) generation, that is, for the Israelites, who, in particular, required protection from pagan influences (*ḥanputā*).

The final covenant is conceived as rendering all previous covenants obsolete through Jesus, who both fulfills and seals (*ḥtam*) them: prophecy and the law have reached their ultimate and definitive expression.

The Qur'anic Adaptation of Covenant Theology in the Syriac Christian Tradition

Scholars have observed parallels within the Christian tradition concerning a number of motifs found in the Qur'an's anti-Jewish polemic.[37] Indeed, the Qur'an shares key features of covenant theology previously articulated in the Syriac Christian tradition. For example, much like Syriac sources, the Qur'an recognizes a sequence of five covenants throughout human history:[38]

> "7. [Recall] when We took a covenant from the prophets—from you and from Noah and Abraham and Moses and Jesus, the son of Mary. We took a binding covenant [*mīṯāqan ġalīẓan*] from them, 8. That He might ask the truthful about their truthfulness. [. . .]" (Q 33:7–8)

In contrast to the Syriac authors, the covenant with Adam is omitted here, while the covenant with Muhammad is included instead—reflecting a particular emphasis on the covenant through Muhammad.[39] Another parallel lies in the examples of Israel's violation of the divine covenant:

> "153. The people of the Scripture ask you to bring down a Scripture from heaven for them. 153a. In the past they asked Moses for something greater than that when they said, 'Show us God plainly.' A thunderbolt took them because of their wrong-doing. Then they chose the calf after the clear proofs had come to them. Yet We forgave them that, and gave Moses a manifest authority. 154. We raised the mountain over them in return for their compact and We told them, 'Enter the gate in prostration'; and We told them, 'Do not transgress the Sabbath', and We took from them a firm covenant [*mīṯāqan ġalīẓan*]." (Q 4:153–154)

Similarly, the Qur'an emphasizes that certain obligations prescribed for the Israelites serve a testing and punitive function (Q 4:160). Notably, however, it never asserts that God renounces His covenant or unilaterally annuls it due to human

37 Cf. Reynolds 2010b and 2012.
38 Cf. O'Connor 2019, 9.
39 Cf. Sinai 2023, 252.

wrongdoing. While God initiates the covenant, He never ultimately revokes it. Indeed, despite their transgressions, God continues to turn towards the Israelites and forgives them (Q 2:52–54).

This chapter argues that the Qur'an engages deeply with the broader discourse on covenant theology and anti-Jewish polemic found in Syriac Cristian writings. In doing so, the Qur'an adopts and responds to key terms—which in the Syriac Christian tradition form a coherent semantic field associated with covenant theology (*ḥanpā, ḥanputā, ṭabʿā, ḥtam, meṣʿāyā*)— within the same theological context yet receives them in a counterfactual manner. I use the term "counterfactual intertextuality" to describe a form of intertextual reference in which inherited ideas are inverted in accordance with a different theological framework. Such counterfactual engagement appears to be a characteristic feature of the Qur'an's response to discourses in the Syriac Christian tradition.[40] The present chapter seeks to demonstrate that this phenomenon is particularly evident with respect to the Qur'an's covenant theology.

The extent to which particular Qur'anic terms are structurally intertwined with discourses relevant to covenant theology among Syriac authors is exemplified by the term *ḥanīf* (pl. *ḥunafāʾ*), which occurs twelve times in the Qur'an and appears to denote a fervent devotion to the worship of the one God.[41] Notably, in most instances, this term refers to Abraham himself or to his religious attitude and ritual practice (*millah*), and often appears in conjunction with the statement that Abraham was not one of the *mušrikūn* (those who associate partners with God).[42] Scholarly debate has centered on whether, following later Muslim tradition, *ḥanīf* referred to non-Christian and non-Jewish monotheists among the Arabs, and how a term etymologically derived from the negatively charged Syriac word *ḥanpā* ("pagan") came to serve as a positive designation for monotheists in the Qur'an. Sinai has analyzed the Arabic root and the term's usage in poetry.[43] Building on the arguments of de Blois,[44] he concludes that, among Christian authors, Abraham could already be regarded as a "gentile candidate for salvation in Christ" prior to circumcision. Even as a "pagan" (*ḥanpā*), he was considered to possess the correct religious attitude toward God. This positive understanding of *ḥanīf*, combined with the Arabic meaning of *ḥanafa ilā* ("to incline toward something"), may have led to its application in Arabic to denote particular forms of ascetic piety.[45]

40 Cf. Ghaffar 2021.
41 Cf. Sinai 2023, 236–244.
42 Sinai 2023, 236–237.
43 Sinai 2023, 241–242.
44 Cf. de Blois 2002.
45 Cf. Sinai 2023, 243.

Mohsen Goudarzi offers another interpretation, positing a ritual context for the use of the term *ḥanīf*.[46] Especially from a late antique Christian and Jewish perspective, the Arabian sacrificial cult was viewed as pagan in character; accordingly, its practitioners could be designated as *ḥanpā* ("pagans"). In the Qur'an, it is precisely this cultic dimension of monotheistic religious practice that is emphasized with reference to Abraham: "By describing Abraham as the founder of the Meccan sanctuary and as a *ḥanīf* who was nevertheless 'not among the *mushrikūn*,' the Qurʾan upheld the rites associated with this sanctuary and insisted simultaneously that the performance of these rites did not render one a polytheist."[47]

The arguments of Sinai and Goudarzi can be further substantiated by considering the discursive context of covenant theology among the Syriac authors. For these writers, the terms *ḥanpā* and *ḥanputā* play a central role in their anti-Jewish polemic against the Jewish law. Aphrahat emphasizes that Abraham was justified by his faith even prior to circumcision, yet he and his descendants had to be physically marked in order to be distinguished from the pagans. Aphrahat speaks of circumcision as a marking and sign of the covenant (*rušmā w-ātā da-qyāmā*). In this way, God protected Abraham and his descendants from relapsing into idolatry. Ephrem underscores the same point, extending it to most of the Jewish laws (circumcision, Sabbath, dietary laws, sacrificial cult[48]). These were valid for the middle generation—that is, from Abraham until the appearance of Jesus—since humanity prior to that time suffered from "paganism" (*ḥanputā*).[49] The first generation from Abraham and the last generation after the coming of Jesus no longer required these laws. Isaac of Antioch asserts that Jesus lifted the curse of the Mosaic Law for the nations through the Cross. The curse of Moses has been lifted, and the nations are now able to inherit. Jacob of Sarug also refers to circumcision as the seal of blood (*ṭabʿā da-dmā*), by which the Jews were protected from the defilement of the pagan cult. Nevertheless, this becomes unnecessary by the Crucifixion, since all humanity and the nations are unified in God's flock. At times, he also describes Jews, on account of their failings, as pagans (*ḥanpē*), emphasizing that despite their idolatry (*ḥanputā*), God blessed them with prophecy. However, when they killed the Son of God, God withdrew prophetic revelation from them. Taken together, the middle generation between Abraham and the advent of Jesus is thus viewed as a distinct era: Beginning with the Abrahamic covenant and circumcision, the Jewish laws served to differentiate the Jews from paganism —yet, time and time again, they succumbed to it.

46 Cf. Goudarzi 2023.

47 Sinai 2023, 78.

48 Cf. Beck 1961, III:179–180 and 217–218, p. 26–27.

49 Beck 1961, III:188, p. 27.

The Qur'an now reverses this argument. Abraham himself is explicitly described as *ḥanīf*, and in almost every case, it is simultaneously emphasized that he was not one of those who associate others with God. In this way, the negative connotation of the term is eliminated,[50] and *ḥanīf* becomes a positive marker of the orthodoxy of the middle generation. The Jewish laws are not portrayed as a provisional measure to shield true believers from the pagan environment; rather, the laws themselves are presented as the actual expression of ideal monotheistic faith in practice. Thus, the use of *ḥanīf* in the Qur'an can also be read as an example of counterfactual intertextuality: The middle generation beginning with Abraham was not more subject to paganism than previous or subsequent generations. Rather, even as "pagans" themselves, they were not polytheists but believers in one God.

One may quite rightly ask why the Qur'an would engage in such counterfactual argumentation. What relevance did this have for the Muslim community surrounding the Prophet Muhammad? In this light, I wish to underscore the argument of Mohsen Goudarzi, who suggests that many of the commandments for the Qur'anic community (above all, animal sacrifice) would have appeared pagan from the perspective of Christian and Jewish groups.[51] According to the logic of the Syriac Church Fathers, this would also apply to the dietary regulations in the Qur'an, which, for the most part, lost their function after the Crucifixion of Jesus. The Qur'an now appears to reject and invert the anti-Jewish polemic with respect to Jewish law, so that the Qur'anic ordinances might likewise be justified apologetically. This wider discursive horizon can be illustrated by one example. In Sura 16, the term *ḥanīf* occurs twice:

> "120. Abraham was an example [*ʾummatan*], obedient to God, of upright faith [*ḥanīfan*], who was not one of those who associate [others with God], [. . .] 123. Then We gave your inspiration, 'Follow the religion [*millata*] of Abraham as a man of upright faith [*ḥanīfan*], who was not one of those who associate [others with God].'" (Q 16:120)

50 I agree with Goudarzi: "However, in the light of the negative connotations of Aramaic terms that correspond to *ḥanīf*, one wonders if the persistent rejection of polytheism that accompanies occurrences of *ḥanīf* is a clarification rather than emphatic repetition of the same concept. In other words, perhaps the Qurʾan insists that *even though* Abraham was a *ḥanīf*, he was not a polytheist." (Goudarzi 2023, 87).

51 "As we saw above, one of the arguments that Christians made against animal sacrifices was that these were a concession to the idolatrous proclivities of the Israelites, and that the coming of Jesus abolished the utility of sacrificial worship and necessitated serving God in other ways. The Qurʾanic statement under consideration can be read as a response to such supersessionism. That is to say, Q 30:30 seems to posit that the worship of God through cultic rites cannot be abrogated because it conforms to humans' natural constitution, which has remained stable since God created them." (Goudarzi 2023, 96).

Abraham is portrayed as a pious, God-observant person—a *ḥanīf*—and the Prophet Muhammad is instructed, after the receipt of revelation, to follow Abraham as a *ḥanīf*. Both statements serve as the culmination of a preceding discussion on legal observance.

The section begins in verse 113 with a reminder of the Prophet Muhammad as a messenger:

> "113. A messenger had come to them from among their own number, but they accused him of falsehood, and they were smitten by punishment while they were wrong-doers." (Q 16:113)

The subsequent verses, 114–117, articulate the dietary commandments for Muslims:

> "114. Eat of the good and lawful food which God has provided for you, and be thankful for the blessing of your Lord, if it is Him you serve. 115. He has forbidden you only carrion, blood, the flesh of the pig, and what has been hallowed to other than God. But whoever is forced to it, neither wishing nor transgressing, God is Merciful and Compassionate to him 116. And do not say, because of what your tongues falsely describe, 'This is lawful, and this is forbidden', so that you may invent falsehood against God. Those who invent falsehood against God will not prosper. 117. A brief enjoyment—and then they will have a painful punishment." (Q 16:114–117)

Particularly noteworthy is the warning in verse 116 against arbitrarily altering or supplementing God's commandments. As a cautionary example, verse 118 refers to the Jews, who are portrayed as having allowed themselves to be led astray:

> "118. To those who are Jews We have forbidden what We have told to you before. We did not wrong them, but they wronged themselves." (Q 16:118)

This likely alludes to the tightening of restrictions for the Jews (Q 4:160) following their repeated breach of God's covenant (Q 4:154 ff.). Yet, the subsequent verse makes clear that God did not, for all that, turn away from the Jews or annul His covenant; rather, He remains willing to extend mercy to them if they repent:

> "119. Then your Lord, in the case of those who have done evil in ignorance and then have repented after that and made amends thereafter, your Lord is Forgiving and Merciful." (Q 16:119)

One might reasonably ask why, subsequent to this discussion of dietary observance, the verse referring to Abraham as *ḥanīf* appears at this point:

> "120. Abraham was an example [*'ummatan*], obedient to God, of upright faith [*ḥanīfan*], who was not one of those who associate [others with God]" (Q 16:120)

The Arabic word translated here as "example" most commonly refers in the Qur'an to a community. In this regard, it may also allude to God's promise that Abraham

and his descendants would form a great nation (Gen 18:17–18).[52] In the Qur'an, *ummah* can refer either to a community bound by kinship or to one united by shared beliefs and religious practice.[53] The latter meaning appears particularly relevant to the Muslim community surrounding the Prophet Muhammad.[54] Abraham is presented here as a prototype—an individual whose faith and practice exemplify the ideal of the monotheist. He is described as a *ḥanīf* and explicitly not a *mushrik*.

If we recall the covenant-theological discourse among the Syriac authors, it appears even clearer why, within the context of the Qur'anic dietary regulations, reference is made to Abraham. The Syriac authors argued that Abraham was already a believer prior to circumcision and before the giving of the laws, and that these commandments were instituted for his descendants and the middle generation precisely because they were threatened by, and had lapsed into, paganism and idolatry. Jacob of Sarug asserts that the Jews were pagans yet were nevertheless blessed by God with prophecy; however, with the coming of Jesus Christ, these laws have become redundant, as all nations are now able to enter into the final covenant with God.

The Qur'an responds by inverting this logic: the revealed Jewish laws and dietary regulations are not merely a protective barrier against idolatry and paganism but represent, in themselves, the authentic expression of monotheistic religious praxis. Consequently, the middle generation is not to be understood as a superfluous episode in human history, particularly vulnerable to idolatry (*ḥanputā*) and therefore requiring special laws for protection. Rather, Abraham himself—as a true monotheist—was a *ḥanīf*, embodying a distinct mode of religious observance and commandments. These laws, for his descendants include dietary regulations, embody a genuine manifestation of monotheistic faith and disposition. Thus, the invocation to Abraham as *ḥanīf* serves to legitimize the Qur'anic dietary commandments.[55] Accordingly, the Prophet Muhammad is instructed to follow Abraham as a *ḥanīf* in his own observance of Qur'anic laws:

> "123. Then We gave you inspiration, 'Follow the religion [*millata*] of Abraham as a man of upright faith [*ḥanīfan*], who was not one of those who associate [others with God].'" (Q 16:123)

In this verse, adherence to the law by Muslims—and by the Prophet himself—particularly regarding dietary regulations, is justified and even mandated with explicit reference to the example of Abraham as a *ḥanīf*. Abraham is thus depicted as the

52 Cf. Reynolds 2018, 429–430.

53 Cf. Sinai 2023, 86–94.

54 Sinai 2023, 91–94.

55 At the same time, however, Muslims are warned not to—unlike some Jews—intensify or deliberately misinterpret these laws.

ideal monotheist, embodying the worship of God through ritual observance. Unlike the Syriac authors, however, the Qur'an inverts the logic of paganism (*ḥanputā*) as the rationale for the temporary validity of Jewish laws: here, Abraham's status as a *ḥanpā* serves to establish the ongoing validity of Jewish law—in this context, the dietary rules. Accordingly, the Prophet is instructed to follow (*ittabaʿa*) the *millah* of Abraham.

But what exactly does *millah* signify in this passage? Throughout the Qur'an, the term is closely linked to Abraham as *ḥanīf*, always emphasizing that he was not a *mushrik*.[56] However, *millah* is also used to refer to the religious doctrine or faith tradition of those opposed to the Qur'anic message (Q 38:7). Consequently, the word is frequently translated simply as "religion." Sinai observes that, in contrast to *dīn*, *millah* seems to emphasize more the doctrinal dimension of faith—although, as he notes, the Qur'an itself does not draw a sharp distinction between belief and practice.[57] Etymologically, *millah* is related to the Syriac term *melltā* ("word"). Sinai convincingly shows that in the New Testament, the "logos of God" at times designates Christian doctrine or teaching, a usage later adopted by Christian writers for their own proclamation of faith.[58] In the Qur'an, this meaning of *melltā/millah* as creedal or doctrinal teaching applies not only to the Qur'anic revelation and monotheistic faith but also to the religious beliefs of the Meccans.[59]

Nonetheless, this still leaves open the question of why the Qur'an uniquely associates the "true" *millah* with Abraham himself. Angelika Neuwirth has suggested that the Qur'anic use of *millah* derives from the Hebrew *milah* ("circumcision"), a ritual tied closely to Abraham through the covenant of circumcision (*brit milah*) in Genesis 17.[60] Sinai, however, noted that this etymology does not explain the Qur'an's application of *millah* not only to Jews, but also to Christians (see Q 2:120), and even to non-monotheistic communities. Moreover, the repeated Qur'anic injunction to "follow" (*ittabaʿa*) the *millah* does not in itself imply a reference to circumcision as a ritual practice.[61]

When viewed in light of the covenant-theological discourse among the Syriac authors, it becomes possible to reconcile both hypotheses. Syriac Church Fathers argued that Abraham was justified by faith even before undergoing circumcision. Circumcision—symbolizing the covenant—and the Jewish laws established after the Mosaic covenant (such as dietary restrictions, Sabbath, and purity regulations) were intended

56 Cf. Sinai 2023, 236–237.
57 Sinai 2023., 647–648.
58 Sinai 2023, 648–649.
59 Sinai 2023, 646–647.
60 Cf. Neuwirth 2017, 540–541.
61 Cf. Sinai 2023, 650.

only for the middle generation and became obsolete with the coming of Christ. Abraham's circumcision thus symbolically inaugurates the middle period, during which these laws remained valid until they were superseded by the final covenant.

It is therefore hardly coincidental that precisely where the Qur'an outlines dietary requirements for Muslims, it recalls Abraham's *millah*. In this context, the invocation of *millah* may subtly allude to circumcision (*milah*), the symbol of the covenant and of the election of Abraham and his descendants as a community defined by their religious duties and obligations to God. However, according to the Qur'an's inverted theological logic—when set against the covenant theology in Syriac Christian tradition—these commandments are the authentic and enduring expression of true monotheistic faith in God.

Notably, the frequent use of the verb *ittabaʿa* ("to follow") with *millah* in the Qur'an provides further evidence for this evocation of circumcision. The Syriac authors refer to circumcision as a seal or stamp (*ṭabʿā*). Jacob of Sarug, for instance, speaks of the "seal of blood" (*ṭabʿā da-dmā*), and Isaac of Antioch repeatedly comments that Abraham was "stamped" by circumcision (*eṭṭbaʿ*). While the Arabic *ittabaʿa* has a different initial root radical (t-b-ʿ) than the Syriac *eṭṭbaʿ* (ṭ-b-ʿ), both verbs share the same verbal stem and can be difficult to distinguish phonetically: *ittabaʿa* ↔ *eṭṭbaʿ*. Inverting the Syriac authors' argument, the Qur'an plays on the association of *ittabaʿa* and *millah* in alluding to the covenant of circumcision and the Jewish laws. One "follows the covenant of circumcision" by observing certain purity rules and dietary laws. Circumcision thus did not serve merely as a means by which God physically marked His believers to distinguish them from other peoples and protect them from paganism; rather, it functioned as an expression of true faith, manifest in a radical orientation toward God and in the observance of corresponding cultic commandments.

Already with Abraham, physical circumcision was a "circumcision of the heart," though it nevertheless entailed associated cultic obligations. Thus, in the Qur'an, *millah* does not refer merely to physical circumcision, but rather to the underlying religious disposition expressed in faith and practice. That the Qur'an intends circumcision to be understood in a spiritual sense is further underscored by its use of the same root for the "seal" of circumcision (*ṭ-b-ʿ*) within the context of covenant theology and unbelief. The Syriac authors had argued that the physical seal (*ṭabʿā*) of circumcision was needed to shield the Jews from the unbelief (*ḥanputā*) of their contemporaries. The Qur'an, by contrast, proclaims:

> "155. Because they broke their covenant and did not believe in God's signs and killed the prophets without right and said, 'Our hearts are uncircumcised' 155a.—No, God has set a seal upon them because of their unbelief [*ṭabaʿa llāhu ʿalaihā bi-kufrihim*], and they do not believe, except for a few." (Q 4:153–155).

Certain actions—such as killing the prophets—led the Israelites to break the covenant; physical circumcision did not prevent these actions. What is decisive is the inner disposition of faith, which prevents a person from being drawn into unbelief. For this reason, the Israelites are depicted as saying that their hearts are uncircumcised, whereas the Qur'an states that God has set a spiritual seal (*ṭabaʿa*) upon them due to their unbelief (*kufr*).

Contrary to the logic of the Syriac authors, the Qur'an asserts that God did not establish circumcision as a physical seal to prevent unbelief; but that acts of disbelief are the sign that people's hearts have been spiritually sealed and remain uncircumcised. This phenomenon is described not only for the Israelites, but also for other peoples:

> "101. These are the settlements, the tidings of which We recount to you. Their messengers had come to them with the clear proofs but they would not believe what they had previously denied. Thus God sets a seal on the hearts of the unbelievers [*wa-naṭbaʿu ʿalā qulūbihim*]." (Q 7:101)

The close connection between the discourse in Q 16:113–123 and the broader question of the general applicability of dietary laws and circumcision for monotheistic believers—as well as its proximity to the debates among the Syriac Church Fathers—is reinforced further by verse 124. This verse follows immediately after the command to follow the *millah* of Abraham and refers to the Sabbath:

> "124. The Sabbath was only appointed for those who disagreed about it. Your Lord will surely judge between them on the Day of Resurrection, concerning that about which they used to differ." (Q 16:124)

Alongside circumcision and the dietary and purity regulations, the Sabbath was, above all, another precept that, according to the Syriac authors, applied only to the middle generation. Nowhere does the Qur'an question the enduring validity of the Sabbath; on the contrary, it even criticizes its neglect by certain Jews (Q 2:65; 4:47). The "disagreement" (*ikhtilāf*) mentioned here with respect to the Sabbath appears, in fact, to refer to the dispute between Christians and Jews regarding its continuing relevance. Sinai points out that in the Qur'an, *ikhtilāf* consistently denotes disagreements on religious matters between different religious communities.[62] The example of verse 124 thus illustrates how, in the same covenant-theological context as the Syriac authors, the Qur'an problematizes the validity of the Sabbath as a matter of Christian–Jewish conflict and refers its ultimate resolution to the eschaton.[63]

62 Cf. Sinai 2023, 528.

63 This applies also to other theological questions on which Christians and Jews do not agree (cf. Zellentin 2023, 293–294).

The analysis of the passage Q 16:113–124 has shown how, in the context of explaining dietary regulations for Muslims, the Qur'an also draws on a discursive horizon shaped by covenant theology and anti-Jewish polemic in the Syriac Christian tradition, by receiving central arguments and terms and adapting them in a counterfactual manner consistent with Qur'anic theology. In essence, the Qur'an inverts the argumentation of the Syriac Church Fathers: Jewish laws (circumcision, dietary and purity laws, and Sabbath observance) are not limited merely to the "middle generation" (*meṣʿāyā*)—that is, the era from Abraham through Moses to the appearance of Jesus. Rather, these laws are seen as the genuine expression of true monotheistic faith. This inversion is also reflected elsewhere, in the way the Qur'an elevates the middle generation—or community—as a standard and model for all others. The Muslim prophetic community is described as a "middle community":

> "143. Thus We have made you a moderate community [*ummatan wasaṭan*] [community, who stands in the middle] for you to be witnesses to the people and for the messenger to be a witness to you. [. . .]" (Q 2:143)

As Sinai notes, their role as a middle community is "that they are to function as a global focal point exemplifying the qualities of piety and righteousness that God intends other humans to emulate."[64]

If the immediate context of these verses is considered, it becomes clear that the exemplary status of the prophetic community as a "middle community" is particularly expressed through its cultic practice, thereby inverting the reasoning of the Syriac Church Fathers. The designation of the prophetic community as the middle community appears in the context of the discussion on the direction of prayer (*qibla*):

> "140. 'Or do you say that Abraham, Ishmael, Isaac, Jacob and the tribes were Jews or Christians?' Say, 'Do you know better, or God? And who does greater wrong than those who hide testimony that he has from God? God is not unaware of what you do.' 141. That is a community that has passed away. It will have what it has earned and you will have what you have earned. You will not be asked about what they used to do. 142. The fools among the people will say, 'What has turned them away from the qibla which they used to observe?' Say, 'To God belong the place where the sun rises and the place where the sun sets. He guides those whom He wishes to a straight path.' 143. Thus We have made you a moderate community for you to be witnesses to the people and for the messenger to be a witness to you. And We fixed the qibla that you used to observe only to recognize those who would follow the messenger from those who turn on their heels. It was a hard thing except for those whom God guided. But God is not one to see your faith wasted. God is Gentle and Compassionate." (Q 2:140–143)

64 Cf. Sinai 2023, 527.

By invoking the patriarchs (Abraham, Ishmael, Isaac, and Jacob), the passage asserts that every religious community (both Christians and Jews) must ultimately justify itself before God on the Day of Judgment. Immediately thereafter, the criticism regarding the change of the *qibla* is raised. According to Muslim tradition, this possibly refers to the shift of the prayer direction from Jerusalem to Mecca and the Kaaba.[65] It is highly likely that this critique originated among Christian and Jewish groups. The Qur'an's declaration that the Muslim community is the "middle community" can be read in conjunction with the Qur'anic argument establishing the Kaaba's significance as an Abrahamic sanctuary (Q 2:124–129). As argued by the Syriac Church Fathers circumcision and Jewish laws were only relevant for the middle generation. By contrast, the Qur'an explicitly asserts that it is precisely the middle generation that should serve as a model of monotheistic community, and that Muslims, by adhering to the direction of prayer toward the Kaaba, are following an Abrahamic practice of this middle generation.

For this reason, in the immediate lead-up to this passage, we read:

> "135. They say, 'Be Jews or Christians and you will be guided.' Say, 'No. [Be of] the religion of Abraham, a man of pure faith [*millata ʾibrāhīma ḥanīfan*]. He was not one of those who associate others with God.'" (Q 2:135).

This entire discursive context—concerning the "middle generation" of the *ḥanpē*, the observance of specific (dietary) regulations, and the establishment of the Kaaba as an Abrahamic sanctuary—is likewise the central topic in Sura 3:

> "93. All food was lawful for the Children of Israel apart from that which Israel forbade to himself before the Torah was sent down. Say, 'Bring the Torah and recite it, if you tell the truth.' 94. Those who invent lies against God after that—those are the wrong-doers. 95. Say, 'God speaks the truth. Follow the religion of Abraham, a man of pure faith. He was not one of those who associate others with God.' 96. The first house founded for the people was at Bakka, a blessed [place] and a guidance for created beings. 97. In it are clear signs—the station of Abraham. Those who enter it are safe. 97a. It is the people's duty to God to make pilgrimage to [that] house—for those who can make a way to it. Those who do not believe—God has no need of created beings." (Q 3:93–97)

Here, reference is made to the dietary prescriptions of the Israelites, along with a warning against adding to the divinely revealed commandments. Instead, one is instructed to follow the *millah* of Abraham as a *ḥanīf*, and to recognize the House of God in Mecca (*bakka*) as an Abrahamic sanctuary, complete with its associated cultic observances (pilgrimage, sacrifice). Thus, the very same discursive logic found among the Syriac Church Fathers is turned here on its head in a counter-

65 Cf. Neuwirth 1996.

factual manner: Abraham and the middle generation after him did not, as *ḥanpē*, merely observe certain cultic laws and obligations (circumcision, Sabbath, dietary and purity rules, sacrifice) for a limited time. Rather, their religious practice as *ḥanpē* is presented as an enduring paradigm for monotheistic faith.

This Qur'anic perspective—viewing the "middle community" and generation as exemplary for monotheistic belief—corresponds with a covenantal conception oriented toward prophecy and universality. Unlike the perspective of the Syriac Church Fathers the Qur'anic framework does not present God as superseding one covenant with another; rather, it formulates a universal prophetic covenant, one that presupposes continuity (though not absolute identity) in prophetic messages and doctrinal content.

A universal covenant with humanity is depicted in two Qur'anic passages (Q 33:72; Q 7:172). In Q 33:72, it is said:

> "72. We offered the trust [*amānata*] to the heavens and the earth and the mountains, but they refused to carry it and were afraid of it. And man carried it, he is guilty of wrongdoing and ignorance." (Q 33:72)

Several questions arise regarding this verse. What is meant by *ʾamāna*? How and why was it offered to the heavens, the earth, and the mountains? And why were humans ready to accept it? In the Meccan suras *ʾamānāt* are explicitly linked to a covenant (*ʿahd*):

> "1. Prosperous are the believers, 2. Who are humble in their prayers, 3. And who shun idle talk, 4. And who are active in giving *zakāt,* 5. And who guard their private parts, 6. Save from their wives or what their right hands possess. Then they are not blameworthy 7. – But those who seek beyond that, those are transgressors. 8. Those who observe their trust [*ʾamānātihim*] and covenant [*ʿahdihim*], 9. And who pay heed to their prayers 10. – Those are the inheritors 11. Who will inherit paradise, in which they will remain for ever." (Q 23:1–11)

> "22. Except for those who pray, 23. Who continue at their prayer, 24. And in whose wealth there is a known right 25. For the beggar and the deprived; 26. And [except for] those who believe in the Day of Judgement 27. And who are afraid of the punishment of their Lord 28. – There is no security from the punishment of their Lord -29. And who guard their private parts 30. Except with their spouses and what their right hands possess. Then they are not blameworthy. 31. But those who seek more than that are transgressors. 32. And [except for] those who keep their trusts [*ʾamānātihim*] and their covenant [*ʿahdihim*] [. . .]" (Q 70:22–32)

In both instances, safeguarding the *ʾamānāt* includes upholding a covenant (*ʿahd*), and this virtue is listed among the qualities of believers, who fulfill their covenantal obligations such as prayer, almsgiving, and other acts of covenantal obedience. For both verses, one of the canonical readers (Ibn Kathīr) has the singular or collective

form *ʾamāna*, which matches its use in Q 33:72.[66] If the sense of *ʾamāna* as a covenant and as obedience to specific commandments is considered for Q 33:72, one is immediately reminded of the Mosaic covenant (Exodus 19–24), which the Israelites accepted at Sinai (Ex 24:3). Arguably, this suggests that Q 33:72 refers to a scenario similar to the Mosaic covenant, yet reframed within the Qurʾān's evolving theology of covenants. Thus, all of humanity was offered the *ʾamāna*.

A crucial question remains: Why was the *ʾamāna* offered to the mountains, the heavens, and the earth? The Midrash *Mekhilta de-Rabbi Ishmael* helps illuminate the Qurʾānic logic.[67] In its exegesis of Ex 20:2, it is said:

> "And it was for the following reason that the nations of the world were asked to accept the Torah: In order that they should have no excuse for saying: Had we been asked we would have accepted it. For, behold, they were asked and they refused to accept it, or it is said: 'And he said: 'The Lord came from Sinai'' etc. (Deut. 33.2). He appeared to the children of Esau the wicked and said to them: Will you accept the Torah? They said to Him: What is written in it? He said to them: 'Thou shalt not murder' (ibid. 5.17). They then said to Him: The very heritage which our father left us was: 'And by thy sword shalt thou live' (Gen. 27.40). He then appeared to the children of Amon and Moab. He said to them: Will you accept the Torah? They said to Him: What is written in it? He said to them: 'Thou shalt not commit adultery' (Deut. 5.17). They, however, said to Him that they were all of them children of adulterers, as it is said: 'Thus were both the daughters of Lot with child by their father' (Gen. 19.36). Then He appeared to the children of Ishmael. He said to them: Will you accept the Torah? They said to Him: What is written in it? He said to them: 'Thou shalt not steal' (Deut. 5.17). They then said to Him: The very blessing that had been pronounced upon our father was: 'And he shall be as a wild ass of a man: his hand shall be upon everything' (Gen. 16.12). And it is written: 'For, indeed, I was stolen away out of the land of the Hebrews' (ibid. 40.15). But when He came to the Israelites and: 'At His right hand was a fiery law unto them' (Deut. 33.2), they all opened their mouths and said: 'All that the Lord hath spoken will we do and obey' (Ex. 24.7)."[68]

The Qurʾānic presentation of the offer of the *ʾamāna* adapts this scenario of a sequential offer. Whereas in the *Mekhilta* the Torah is offered to various tribes before being given to Israel, in the Qurʾān the *ʾamāna* is first offered to the mountains, heavens, and earth before finally being offered to humankind. In the *Mekhilta*, the other tribes fear the burden of the Torah's regulations, and only the Israelites accept; in the Qurʾān, humanity accepts the *ʾamāna*. The substitution of human tribes with cosmic entities—the heavens, the earth, and mountains as intermediaries—reflects the universalizing tendency of covenant theology in the Qurʾān: God

66 al-Ḫaṭīb 2002, Vol. 6, 153 and Vol. 10, 86.

67 Sinai refers to a similar idea in *Sifre Deuteronomy* (Sinai 2023, 713).

68 Lauterbach 1933, 234–235.

offered the *ʾamāna* not to specific tribes but to all of creation, and only humans were willing to accept it.

The Qurʾānic choice of earth, heaven, and mountains as addressees can be further illuminated through another passage from the *Mekhilta*, which addresses why the Torah was not given in the land of Israel:

> "Why was the Torah not given in the land of Israel? In order that the nations of the world should not have the excuse for saying: Because it was given in Israel's land, therefore we have not accepted it. [. . .] Therefore, the Torah was given in the desert, publicly and openly, in a place belonging to no one. To three things the Torah is likened: To the desert, to fire, and to water. This is to tell you that just as these three things are free to all who come into the world, so also are the words of the Torah free to all who come into the world."[69]

This comparison between Torah and the elements—desert, fire, and water—also conveys a universalist message: like these elements, the Torah is, in principle, accessible to all. Anyone who wishes may make use of them, but only the Israelites chose to receive the Torah. The Qurʾān reworks this comparison to reinforce its own universalist outlook on covenant theology. In the Qurʾānic narrative, the cosmic elements are not merely analogies for the *ʾamāna* but are themselves the recipients of the offer. Through this transformation, these elements assume a new dimension: water corresponds to the heavens, the desert to the earth as a whole, and fire becomes the mountains—the site of the burning bush and God's epiphany. Just as the Qurʾān shifts the offer from particular human tribes to all humanity, it transforms these elements into cosmic spheres, making them fitting recipients of the divine covenant.

However, Q 7:172 is more frequently cited as the paradigmatic example of a universal covenant between God and humankind:

> "172. And when your Lord took from the Children of Adam, from their loins, their seed, and made them testify concerning themselves, [saying] 'Am I not your Lord?' They said, 'Of course. We testify' — lest you say on the Day of Resurrection, 'We were unaware of this.'" (Q 7:172)

Although the standard Qur'anic terms for "covenant" are not explicitly mentioned here, the verse unmistakably bears the marks of a binding covenant. God compels Adam and his descendants to bear witness to His oneness, thereby ensuring that, on the Day of Resurrection, no one can claim ignorance as a defense for having violated God's covenant and the obligations it entails. Within the Muslim tradition, debate has centered on the timing of this primordial covenant and whether a distinction was made between the righteous and unrighteous descendants of Adam.[70]

69 Lauterbach 1933, 236–237.
70 Cf. Gramlich 1983.

In this regard, there are also fascinating parallels between hadith literature and rabbinic tradition.[71] However, Dirk Hartwig has persuasively demonstrated that the placement of Q 7:172 immediately after the recollection of the Mosaic covenant and its ordinances in Q 7:171 is intentional.[72] Here, the Mosaic covenant is grounded by reference to the universal covenant between God and humanity described in Q 7:172–173. On these grounds, one might further argue that, from the perspective of Qur'anic theology, all individual prophetic covenants ultimately derive from this primordial covenant. It is precisely at this juncture that the distinctiveness of Qur'anic covenant theology becomes apparent. Whereas the Syriac Church Fathers understood covenant theology in a primarily Christocentric and Christological sense—seeing the appearance of Christ as the fulfillment of the final, eternal covenant—the Qur'an operates with a universal concept of covenant that encompasses all of humanity.

In his homilies, Jacob of Serugh addresses a possible Jewish objection to a Christocentric covenant theology:

> "The People say: 'If God had a Son, why did He not reveal Him to the first generations of the house of Seth and Enosh? Why was the generation (of the Son) hidden from Noah and Abraham? Why did neither Isaac nor Jacob suspect it? Why did He not reveal it to the righteous of those times? But only at the end of time did He reveal it to creatures? If someone announces something new, I don't (want to) listen to it; If it hasn't existed since the beginning of the world, don't tell me about it. If God, as you say, had a Son, from the beginning, to the whole world, He would have manifested Him! He would not have kept Him, and then revealed Him, at the end [. . .]'".[73]

Here, Jacob reflects on the counterfactual challenge: Why did God not reveal the truth about His Son to the earliest generations (Noah, Abraham) and to all of humanity from the very beginning, but instead wait until the end of time to manifest His Son? Jacob explains that God deliberately kept the mystery of His Son concealed at first. As he observes, the Israelites repeatedly fell into idolatry and struggled to maintain a consistent monotheistic confession. Had God revealed His Son from the outset, this would likely have intensified the risk that the notion of divine sonship would be misunderstood in idolatrous terms.[74]

Drawing on a covenant-theological perspective, Jacob then clarifies why God's revelation of His Son was not given from the very start:

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71 Cf. Hussain 2025, 14–16.

72 Cf. Hartwig 2008.

73 Graffin 1976, IV:1–11, p. 112.

74 Graffin, IV:25–70, p. 112–116.

> "If you accuse the Son of God of delaying, accuse the Law of delaying too. These things the Father revealed to Moses on Mount Sinai. Why didn't He reveal them to Adam, Noah and Abraham? How He created heaven and earth and all creatures, until Moses, the Lord did not reveal them to any of the righteous. Neither of the law, nor of the Sabbath, nor of the commandments, except to Moses, nothing was said of them by God. Time had passed, generations had succeeded one another from Noah to Abraham; The mystery which the Lord revealed to Moses had remained hidden from Him. Yet no one says: 'Why did He delay in giving the Law?' They received it, as if He had given it from the beginning. He also gave circumcision to Abraham, when He willed, whereas He had not given it to Adam or Noah, and it was received. Likewise, according to His good pleasure, He made a law for Noah: He would eat the immolated flesh of animals. Now, God had not said this to Adam, and Noah had not asked why (this) had not existed from the beginning."[75]

Jacob thus argues that, through his successive covenants with Noah, Abraham, and Moses, God gradually introduced new obligations and progressively revealed knowledge. This gradual revelation, Jacob suggests, also offers a response to Jewish critiques regarding the later revelation and incarnation of the Son.

The primordial covenant described in the Qur'an (Q 7:172) offers a contrasting perspective to Jacob of Serugh's counterfactual argument. From the outset, a covenant exists—not one rooted in Christological revelation but grounded in the universal acknowledgment of the one true God. This profession of faith constitutes the foundational basis for all subsequent divine covenants with humanity, including those established through Moses and through Jesus Christ. According to the Qur'an, God is not understood as a teacher who reveals the secret of His nature to humanity gradually or in stages; rather, His true nature has been manifest to humankind from the very beginning. This theological perspective underpins all historical covenants which do not supplant or supersede one another but instead form a line of prophetic—not Christological—continuity (Q 33:7).

The advent of Muhammad as the Seal of the Prophets (*ḫātam an-nabiyyīn*, Q 33:40) is indeed viewed as fulfilling Abraham's prayer regarding the Kaaba (Q 2:125–130). However, this fulfillment does not represent the culmination of a salvation-historical trajectory in which successive covenants are enacted and replaced, ultimately culminating in a final covenant with a Messiah. When Jacob of Serugh describes the Son of God as having sealed prophecy (*ḫātmāh la-nbyutā*),[76] he interprets this as the realization of the promise of a Davidic Messiah. On these grounds, he insists, it is futile for the Jews to continue awaiting a Messiah. Strikingly, the

75 Graffin, IV:88–104, p. 118.

76 Graffin, I:287. Benin has already noted the parallel with the Qur'anic title for the Prophet Muhammad (cf. Benin 1984, 146, fn. 55).

Davidic covenant is the only biblical covenant explicitly absent from the Qur'an. Nowhere in the Qur'anic text is David promised an eternal kingship.[77]

The appearance of the Prophet Muhammad does not fulfill a messianic promise but rather responds to Abraham's prayer that a messenger be raised among his descendants and continue to proclaim his *millah*. The sending of Muhammad does not abrogate previous covenants; indeed, the mission assigned to Muhammad is the very same as that given to Jesus: both are charged with teaching the Book and wisdom (Q 2:129; 5:110; 3:48). There is, therefore, no claim of supersessionist privilege for the Prophet Muhammad. Rather, Muhammad's mission is to uphold and renew monotheistic faith in line with the primordial covenant of God and the *millah* of Abraham. This, too, formed the prophetic mission entrusted to both Moses and Jesus.

Qur'anic Covenant Theology and Islamic Comparative Theology

In this concluding chapter, I wish to reflect on the religious and theological implications of Qur'anic covenant theology, particularly how its central aspects can inform and enrich comparative theological approaches from a Muslim perspective.

A key dimension is the *micrological approach* adopted in comparative theology: an approach grounded in the genuine effort to understand specific faith propositions in their own right. The methodology the Qur'an employs in its covenant theology especially in engaging with corresponding discourses within the Syriac Christian tradition demonstrates a general tendency of Qur'anic thought: rather than evaluating entire religious traditions as true or false, it focuses on particular beliefs and their problematic aspects. Admittedly, this Qur'anic lens is partially shaped by polemical concerns, notably the desire to affirm the authenticity of the Prophet Muhammad's mission and message. Yet, the Qur'an's engagement with the Abrahamic traditions is itself *micrological* in nature. On this basis, it can be argued that Islamic theology—both in its internal reflections and in the context of interreligious dialogue—should strive to adopt such a *micrological* approach to foster genuine understanding of other traditions.

This *micrological* perspective is expressed in the Qur'an not only through thoughtful engagement with normative questions, but also through a distinct hermeneutical openness in its dialogue with both Christian and Jewish traditions. Holger Zellentin, for instance, has illustrated through the example of the law of

77 Cf. Ghaffar 2020, 57–68.

retaliation how the Qur'an instructs Jews and Christians to faithfully adhere to the Torah, while at the same time leaving open to them, as communities, the broader question of how these legal norms should be operationalized:

> "Q 5 *Sūrat al-Mā'ida* 44–47, to summarize, illustrates both the precision and the elision with which the Qur'an demands the rule of the Torah for Jews and, subsequently, the rule of the Torah as modified by the Gospel for Christians, both understood as individual legal frameworks that do not fully overlap with the laws governing the nascent Islamic community as epitomized by the Qur'an's new legal framework. In neither case does the Qur'an actually spell out the exceedingly complex question of how precisely to apply the Jewish and the Christian laws. Yet this only corroborates the passage's insistence that these groups have all they need in the Torah, as applied by the righteous rabbis or, as updated by Jesus, by the People of the Gospel, respectively. If a gross simplification were admissible, I would hold that the Qur'an can be said to relegate the answer to the question of what falls within Judaism to its Jewish and, surprisingly, also to its Christian audience. It encourages both Jews and Christians to consult the Torah, and if they happen to differ about it, to turn to the Gospel, and to listen to the Qur'an."[78]

This ongoing hermeneutical openness, from a Qur'anic perspective, calls for a *micrological* approach within the dialogue of the Abrahamic traditions particularly concerning questions of continuity and commensurability in religious practice. Importantly, this imperative encompasses not only the Qur'anic outlook but also the broader Muslim tradition.

Beyond the *micrological* lens, the Qur'an also implies the comparative-theological virtue of epistemic humility. All of God's covenants throughout human history are rooted in a universal and primordial covenant. The fulfillment of the obligations established by each particular covenant must be understood in light of this universal bond. This, in turn, places a distinct responsibility upon Muslims to continually examine the extent to which they have upheld the duties entrusted to them (Q 35:32).

Syriac authors, for their part, argued that the middle generation—prior to the coming of the Son of God—was exceptionally susceptible to paganism and idolatry, and thus required distinct commandments. The Qur'an, by contrast, emphasizes the exemplary role of Abraham and the middle generation in relation to divine commandments. It asserts that every generation remains equally vulnerable to *shirk* and idolatry—even after the appearance of Jesus and Muhammad. Accordingly, epistemic humility—particularly regarding one's own certainty in faith becomes essential—both within internal practice and in interreligious dialogue.

A further challenge for comparative theology—and for Islamic theology more broadly—emerges from the Qur'an's reference to the *millah* of Abraham, which

78 Cf. Zellentin 2023, 292.

Holger Zellentin terms "historical supersessionism."[79] Zellentin applies this term to the Qur'anic invocation of Abraham, which—much like in the Pauline tradition—serves to legitimize and foreground Muslim religious practice as standing in closer continuity with Abraham than that of Judaism and Christianity. Yet, the Qur'an does not categorically reject the Jewish tradition:

> "What surprises is that despite clearly being heir to the Christian anti-Jewish tradition, the Qur'an still reaches out to its Jewish contemporaries, that it accepts rabbinic authority in principle, that it imparts and presupposes such intimate knowledge of aspects of the rabbinic tradition, and that it leaves the doors to salvation open for practicing rabbinic Jews, no matter how narrowly so."[80]

If one appreciates the way in which the Qur'an inverts the anti-Jewish polemic prevalent in Syriac-Christian tradition, one might argue that the Qur'an, in contrast to this Christian polemic, defends the possibility of salvation for Jews—alongside Christians and Muslims. Each community is thus continually challenged to demonstrate its faithfulness. For this reason, comparative theology within the Abrahamic traditions is, from a Qur'anic perspective, indispensable. Jews, Christians, and Muslims are all called to ongoing, fraternal, and sincere dialogue, in which they constantly examine how their concrete beliefs and normative practices may—or may not—be rendered commensurable with one another. With regard to non-Abrahamic traditions, the virtues of epistemic humility and the *micrological* approach remain equally essential in the practice of comparative theology. All covenants—including those with the Abrahamic framework—are ultimately rooted in a primordial covenant. Therefore, even when engaging with non-biblical religious traditions, it remains essential to discern and critically reflect upon what is specifically believed and practiced.

The impulses described here, which ground a practice of comparative theology within the framework of Qur'anic covenant theology, may also be brought into fruitful conversation with later Islamic tradition. This invites reflection, for example, on the extent to which certain biographical traditions about the Prophet developed historical narratives that are supersessionist or exclusivist in nature—and whether such portrayals are ultimately compatible with the deeper theological structures of the Qur'an itself.

79 Cf. Zellentin 2023, 294.
80 Zellentin 2023, 294.

Bibliography

Albert, Micheline, ed., (1976), *Jacques de Saroug: Homélies contre les Juifs* (Patrologia Orientalis 174), Turnhout: Brepols.

Anthony, Sean W. (2014a), "Muḥammad, the Keys to Paradise, and the *Doctrina Iacobi*: A Late Antique Puzzle", *Der Islam* 91 (2), 243–265.

Anthony, Sean W. (2014b), "Further Notes on the Word *ṣibgha* in Qurʾān 2:138", *Journal of Semitic Studies* LIX (1), 117–129.

Beck, Edmund, ed., (1961), *Des heiligen Ephraem des Syrers Hymnen de Fide* (Scriptores Syri 73) Louvain.

Benin, Stephen D. (1984), "Commandments, covenants, and the Jews in Aphrahat, Ephrem, and Jacob of Sarug", in: David R. Blumenthal, ed., *Approaches to Judaism in Medieval Times*, California: Scholars Press, 135–156.

Clooney, Francis X. / von Stosch, Klaus, eds., (2018). *How to Do Comparative Theology* (Comparative Theology: Thinking Across Traditions), New York: Fordham University Press.

Cornille, Catherine (2008), *The Im-Possibility of Interreligious Dialogue*, New York: Crossroad.

Cornille, Catherine (2019), *Meaning and Method in Comparative Theology*, Hoboken: John Wiley & Sons.

de Blois, François (2002), "*Naṣrānī* (Ναζωραῖος) and *ḥanīf* (ἐθνικός): Studies on the Religious Vocabulary of Christianity and of Islam", *Bulletin of the School of Oriental and African Studies* 65 (1), 1–30.

El-Badawi, Emran I. (2016), *The Qur'an and the Aramaic Gospel Traditions*, London: Routledge.

El-Badawi, Emran I. (2014), "The Impact of Aramaic (Especially Syriac) on the Qur'ān", *Religion Compass* 8 (7), 220–28.

Firestone, Reuven (2011), "Is there a notion of 'Divine Election' in the Qurʾān?", in: Gabriel Said Reynolds, ed., *New Perspectives on the Qurʾān: The Qurʾān in Its Historical Context 2*, London: Routledge, 393–410.

Fredericks, James L. (1999), *Faith among Faiths. Christian Theology and Non-Christian Religions*, New York/ Mahwah: Paulist Press.

Fredericks, James L. / Tiemeier, Tracy S., eds., (2015), *Interreligious Friendship after Nostra Aetate*, London: Palgrave McMillian.

Ghaffar, Zishan (2020), *Der Koran in seinem religions- und weltgeschichtlichen Kontext. Eschatologie und Apokalyptik in den mittelmekkanischen Suren*, Paderborn: Schöningh.

Ghaffar, Zishan (2021), "Kontrafaktische Intertextualität im Koran und die exegetische Tradition des syrischen Christentums", *Der Islam* 98 (2), 313–58.

Ghaffar, Zishan (2022), "Kanon im Kanon? Herausforderungen einer koranischen Theologie", in: Klaus von Stosch and Christiane Tietz, eds., *Normativität Heiliger Schriften in Judentum, Christentum und Islam* (Hermeneutische Untersuchungen zur Theologie 87), Tübingen: Mohr Siebeck, 67–91.

Goudarzi, Mohsen (2023), "Unearthing Abraham's Altar: The Cultic Dimensions of *dīn*, *islām*, and *ḥanīf* in the Qurʾan", *Journal of Near Eastern Studies* 82 (1), 77–102.

Gramlich, Richard (1983), "Der Urvertrag in der Koranauslegung (zu Sure 7, 172–173)", *Der Islam* 60 (2), 205–230.

Griffith, Sidney (2008), "Christian lore and the Arabic Qurʾān: The 'Companions of the Cave' in *Sūrat al-Kahf* and in Syriac Christian tradition", in: Gabriel Said Reynolds, ed., *The Qurʾān in its Historical Context*, Abingdon: Routledge, 116–134.

Griffith, Sidney (2011), "*Al-Naṣārā* in the Qur'ān: a hermeneutical reflection" in: Gabriel Said Reynolds, ed., *New Perspectives on the Qur'an* (The Qur'an in Its Historical Context 2), Abingdon: Routledge, 301–322.

Hartwig, Dirk (2008), "Der 'Urvertrag' (Q 7:172): ein rabbinischer Diskurs im Koran", in: Dirk Hartwig *et al*., *"Im vollen Licht der Geschichte". Die Wissenschaft des Judentums und die Anfänge der kritischen Koranforschung*, Würzburg: Ergon, 191–202.

al-Ḫaṭīb, ʿAbd al-Laṭīf (2002), *Muʿǧam al-qirāʾāt*, Damaskus.

Hussain, Saqib (2025), "Adam and the Names", *Bulletin of the School of Oriental and African Studies* 88 (1), 1–26.

Jaffer, Tariq (2017), "Is there covenant theology in Islam?", in: Majid Daneshgar and Walid A. Saleh, eds., *Islamic Studies Today: Essays in Honor of Andrew Rippin*, Leiden: Brill, 98–121.

Jones, Alan, trans., (2007), *The Qurʾān*, Cambridge: Gibb Memorial Trust.

Lumbard, Joseph E. B. (2015), "Covenant and Covenants in the Qur'an", *Journal of Qur'anic Studies* 17 (2), 1–23.

Kadi, Wadad (2003), "The Primordial Covenant and Human History in the Qur'ān", *Proceedings of the American Philosophical Society* 147 (4), 332–338.

Kazan, Stanley (1961), "Isaac of Antioch's Homily against the Jews." *Oriens Christianus* 45, 30–53.

Kazan, Stanley (1962), "Isaac of Antioch's Homily against the Jews (Part two)." *Oriens Christianus* 46, 87–98.

Kazan, Stanley (1963), "Isaac of Antioch's Homily against the Jews (continuation)." *Oriens Christianus* 47, 89–97.

Kazan, Stanley (1965), "Isaac of Antioch's Homily against the Jews," *Oriens Christianus* 49, 57–78.

Lauterbach, Jacob Z., ed. and trans., (1933–1935), *Mekhilta de-Rabbi Ishmael*, 2 vols., Philadelphia: Jewish Publication Society.

Leloir, Dom Louis, ed. and trans., (1990), *Saint Ephrem: Commentaire de l'Évangile concordant*, *Texte syriaque*, MS Chester Beatty 709 (Chester Beautty Monographs 8), Leuven: Peeters.

McCarthy, Carmel, trans., (1993), *Saint Ephrem's Commentary on Tatian's Diatessaron*, Oxford: Oxford University Press.

Moyaert, Marianne (2012), "Recent Development in the Theology of Interreligious Dialogue: From Soteriological Openness to Hermeneutical Openness", *Modern Theology* 28, 25–52.

Moyaert, Marianne (2014), *In Response to the Religious Other. Ricoeur and the Fragility of Interreligious Encounters*, London: Lexington Books.

Neuwirth, Angelika (1996), "The spiritual meaning of Jerusalem in Islam", in: Nitza Rosovsky, ed., *City of the Great King: Jerusalem from David to the Present*, Cambridge: Harvard University Press, 93–116.

Neuwirth, Angelika (2017), *Der Koran. Band 2/1: Frühmittelmekkanische Suren*, Berlin: Verlag der Weltreligionen.

O'Connor, Andrew J. (2019), "Qur'anic Covenants Reconsidered: *mīthāq* and *ʿahd* in Polemical Context," *Islam and Christian–Muslim Relations* 30 (1), 1–22.

Parisot, Jean (1894/1907). "Aphraatis Sapientis Persae: Demonstrationes," in: Accurante R. Graffin, ed. and trans., *Patrologia Syriaca* 1, 1–2, Paris: Firmin-Didot.

Rane, Halim (2023), "Higher Objectives (maqāṣid) of Covenants in Islam: A Content Analysis of 'ahd and mīthāq in the Qurʾān", *Religions* 14 (4), 514.

Reynolds, Gabriel S. (2010a), *The Qurʾān and Its Biblical Subtext*, Abingdon: Routledge.

Reynolds, Gabriel Said (2010b), "On the Qurʾānic Accusation of Scriptural Falsification (*taḥrīf*) and Christian Anti-Jewish Polemic," *Journal of the American Oriental Society* 130, 1–14.

Reynolds, Gabriel Said (2012), "On the Qurʾan and the Theme of Jews as 'Killers of the Prophets.'" *Al-Bayān* 10, 9–32.

Reynolds, Gabriel Said (2018), *The Qurʾān and the Bible*, New Haven: Yale University Press.

Sinai, Nicolai (2023), *Key Terms of the Qurʾan: A Critical Dictionary*, Princeton: Princeton University Press.

Sokoloff, Michael (2009), *A Syriac Lexicon*, Piscataway: Gorgias Press.
Tesei, Tommaso (2013), "The prophecy of Ḏū-l-Qarnayn (Q 18:83–102) and the origins of the Qurʾānic corpus", in: Angelo Arioli, ed., *Miscellanea arabica* 2013–2014, Rom: Aracne, 273–90.
Valavanolickal, Kuriakose, trans., (2011), *Aphrahat Demonstrations*, *I–II* (Moran Etho), Piscataway: Gorgias Press.
Van Bladel, Kevin (2008), "The Alexander legend in the Qurʾān", in: Gabriel Said Reynolds, ed., *The Qurʾān in its Historical Context*, Abingdon: Routledge, 175–203.
Witztum, Joseph B. (2011), *The Syriac Milieu of the Quran: The Recasting of Biblical Narratives*, Ann Arbor: ProQuest.
Zellentin, Holger (2023), "What falls within Judaism according to the Qur'an? Q 5 Sūrat al-Māʾida 44–47 as critique of Mishnah Avot 1:1", in: Karin Hedner Zetterholm and Anders Runesson, eds., *Within Judaism? Interpretive Trajectories in Judaism, Christianity, and Islam from the First to the Twenty-First*, Lanham: Lexington Books, 282–308.

Pim Valkenberg

Chapter 6
Islamic Comparative Theology from the Perspective of Qur'ānic Exegesis: Elements of a Christian Response to Prof. Ghaffar

Prof. Zishan Ghaffar's proposal for an Islamic comparative theology from the perspective of Qur'ānic exegesis focuses on a specific concept that is most often used to describe the way in which Christians have asserted themselves and their religious tradition over and against Jews and Judaism, namely supersessionism.[1] While different forms of supersessionism have dominated Christian theological attitudes towards Jews and Judaism until fairly recently, comparative theologians engaged in Christian–Jewish relations are now trying to find out if it is possible to end such supersessionism without uprooting the fundamentals of Christian theology itself.[2] It is rather difficult to engage in a respectful theological engagement with contemporary Jewish traditions if one's own Christian tradition considers the covenant between God and the Jewish people abolished or superseded by the new covenant in Jesus Christ. In a similar way, Islamic comparative theologians look at the way in which the Qur'ān can be interpreted as a revelation that does not supersede covenants between God and Jewish and Christian partners.[3] Is it possible to show that the Qur'ān opens up possibilities for a non-supersessionist theology of biblical covenants? This is the agenda that Prof. Ghaffar sets himself, and in order to do so he looks first at the Christian Syriac tradition and subsequently compares that tradition with the Qur'ān.

Even though I'm a Christian theologian, my response to Prof. Ghaffar's proposal will concentrate more on his discussion of the Qur'ānic materials than on his treatment of the Syriac tradition. In part this is because of my training as a theologian in the Western or Latin tradition of Christianity. I was aware of the fact that the different theological traditions that express themselves in Syriac and Arabic are an important part of the Christian tradition, and I had even collaborated with

1 Soulen 1996.

2 See, for instance, the website of the Society for Post-Supersessionist Theology, founded in 2018 and meeting in conjunction with the Annual Meeting of the American Academy of Religion and the Society of Biblical Literature since then: https://mail.google.com/mail/u/0/#label/Society+for+post-supersessionist+theology. For a comparative theological reflection, see Moyaert 2022.

3 See Mehr 2022, 230–246.

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Prof. Herman Teule of the Institute of Eastern Christian Studies when I started my teaching in theology and religious studies at the Catholic University (now Radboud University) in Nijmegen, the Netherlands.[4] However, I only became fully aware of the importance of the Syriac traditions as key to understanding the cultural and religious world in which the Qur'ān is proclaimed when I started teaching at the Catholic University of America and came in contact with the work of my colleague Prof. Sidney Griffith.[5]

At the same time, I knew that the reference to Syriac as a possible source of the language of the Qur'ān has been misused in the history of Orientalist scholarship that reads the Qur'ān as a pastiche of Christian Syriac hymns.[6] Because of the controversies surrounding the so-called "revisionist" approach to the Qur'ān, I think that it is extremely important that Muslims gain access to these Syriac traditions in order to look critically at these supposed influences on the language and concepts in the Qur'ān. This is what Zishan Ghaffar does in his proposal.

In his discussion of the Syriac tradition of Christian theology, Ghaffar concentrates on the theology of the covenant. The general conviction of Christian theologians is that the covenant with the Jewish people is no longer valid because of the new covenant in Jesus Christ. In itself, this is a conviction that is not particular for the Syriac tradition; it can be found in the Latin and Greek fathers of the Church as well. I would say that the specific form in which we find this conviction in Syriac authors is the hymnic or narrative reworking of biblical materials. We do not find thematic structures but narrative sequences following the biblical stores. Ghaffar analyzes a number of these narratives from Aphrahat, Ephrem, Isaac of Antioch, and Jacob of Sarug, that seem to indicate a series of covenants, beginning with a first era when the covenants with Adam, Noah, and Abraham were of a rather general nature, and continuing with the very specific covenant with Moses on behalf of the people of Israel. These specific laws were valid for the Jewish people until the new covenant in Christ made them superfluous. Until Christ, the covenants were only temporary and culturally determined, but in Christ the covenant has become permanent and universal. In some of the texts discussed, the emphasis is on the temporary character of the Mosaic covenant, but some of the sermons against the Jews address contemporary Jews and their observance of obsolete commandments as well. Again, as far as I can tell the basic idea of the contrast between the temporary and limited nature of the covenant with the Jews and the permanent and universal character of the covenant in Christ is not singular to the Syriac Christian

4 See, for example, Teule 2005.

5 Griffith 2008, 2013, and, most recently 2022.

6 See the discussion by Reynolds 2008, 1–25. See also Younès 2020, 79–93.

tradition.[7] At the same time, authors writing in Syriac tend to express these ideas in a specific poetic and biblically oriented style, which partially explains the strong anti-Jewish language.[8]

In the second part of his proposal, Ghaffar discusses the notion of the covenant in the Qur'ān, on the basis of an analysis of the concepts *'ahd* and *mīthāq*, and a reading of some of the longer Medinan surahs. One of the important conclusions is that the notion of covenant in the Qur'ān implies a reciprocity of obligations, often expressed in commercial terminology. Therefore, if Jews or Christians do not fulfill the promises made, as the Qur'ān repeatedly states, for instance in Q.4:155, Q.5:14, and Q.2:27, God will pass justice on them; however God will not break the covenant, because of God's mercy (see, for instance, Q.2:52). Ghaffar comes to the conclusion that there is a "counterfactual intertextuality" between the Syriac tradition and the Qur'ān: the Qur'ān displays some of the motifs that we find in the Syriac tradition as well but sometimes inverses the anti-Jewish tendencies. The main conclusion of this inversion of anti-Jewish polemics in the Qur'ān is that there is only one universal covenant of God with people, and therefore there is no exclusive covenant and also no supersessionism. This conclusion is somewhat similar to the outcome of Reuven Firestone's inquiry about the terminology of election and covenantal relationships in the Qur'ān: "Overall, the Qur'ān articulates a less exclusive view of divine election than previous scriptures. It allows the possibility of more than one community to be in a special relationship with God simultaneously and there seems to be no obvious intent to decommission the chosen status of prior communities by virtue of a new Qur'ānic dispensation."[9] The fact that there is no supersession of previous covenants, and therefore no epistemic privilege of any religious community in the Qur'ān is for Zishan Ghaffar the condition of possibility of an Islamic Comparative Theology. The Qur'ān itself shows a comparative approach in which other religious communities are challenged but not criticized as such. This gives an excellent point of departure for an Islamic Comparative Theology, even if the later Islamic tradition did introduce supersessionism in its attitude toward the Jewish and Christian traditions.[10]

I think that Ghaffar's analysis is extremely important for Christian theologians who may be able to use insights from this Qur'ānic point of view in further developing a non-supersessionist theology that takes both Jewish and Islamic points of view into account. In this respect, study of the Qur'ān may also benefit Christians

7 See the introduction to Ephrem the Syrian, *Hymns,* translated and introduced by McVey 1989, 3–48, at 15; Hartung 2022, 3–47, at 34.

8 Cf. McVey 1989, 36.

9 Cf. Firestone 2011, 393–410, at 404.

10 For a similar analysis, see Mehr 2022, 230–246.

in dialogue with Jews. In my case, study of the Qur'ān's attitude towards Jews and Christians as *ahl al-kitāb* ("People of Scripture") has helped me to reflect on these relationships.[11] Recently, I have tried to show how this reflection may contribute to a Christian theology of dialogue in the context of Catholic–Jewish Dialogue.[12] The challenge for the Christian comparative theologian is that it is not possible to make a neat distinction between an original revelatory Scripture that is without supersessionism and a later Christian tradition that introduced such supersessionism, since some of these supersessionist voices have been introduced by the writers of the New Testament themselves. Even though the Qur'ān does not have different human authors, its message concerning Jews and Christians can sometimes be ambiguous, and therefore the later supersessionism in the Islamic tradition cannot always be construed in opposition to the non-supersessionism of the text itself. I want to substantiate this with two different examples.

The first is the beginning of verse 48 of *sūrat al-mā'ida* ("the table" or "the banquet"), a famous verse that is often used by Muslims to underscore their dialogical intentions as enjoined by the Qur'ān. This verse begins by stating that God sent down to Muhammad "the Scripture with the truth, as confirmation of what was before it of Scripture, and guarding over it."[13] Two words are used here to describe the relation between what was sent to Muhammad and what was sent before: *muṣaddiq* and *muhaymin*. The first word is relatively clear, because it means "confirming" or "declaring truthful." The second word, however, is interpreted differently; it can be taken to mean "declaring authentic" or "preserving, securing." According to this interpretation, the relation between Jewish and Christian scriptures and the Qur'ān does not imply any supersessionism, since the later revelation confirms and safeguards earlier revelations.[14] However, the Islamic tradition has mostly chosen to interpret "protecting" or "guarding" or even "having authority," in which case the Qur'ān claims for itself what Mustansir Mir calls "hermeneutical privilege": the earlier Scriptures need to be interpreted in the light of the Qur'ān.[15] If one connects this verse with the preceding verses, a non-supersessionist interpretation seems justified, since these verses assert "the validity of Jews and Christians

11 Cf. Valkenberg 2021.

12 Cf. Valkenberg 2024.

13 Qur'ān 5:48. This translation and a more detailed discussion can be found in Valkenberg 2021, 209–216.

14 Boisliveau 2013, 266: "le sens le plus probable de *muhaymin* nous parâit donc être le premier, à savoir que le Coran declare véridique ce qu'il y avait avant lui de l'Écriture, et est donc un synonyme de *muṣaddiq*".

15 Mir 2008, 122.

judging by their own scriptures."[16] Moreover, the idea that the plurality of religious laws and ways of life is rooted in God's will seems to assert "the providential nature of different religious communities and their distinct laws and practices."[17]

However, connecting the verse with the next verses in which Muhammad is told that he has to pass judgment on Jews and Christians and beware of their errant interpretations, leads to a decidedly supersessionist interpretation culminating in the warning not to take them as *awlīyā'* (partners in a transaction or alliance). The ambiguity between supersessionist and non-supersessionist interpretations reflects the ambiguity of the qur'ānic attitude to Jews and Christians: they have received special revelation, but with revelation comes knowledge and thus accountability.[18]

The second example refers to the words "double portion of God's mercy" (*kiflayn min raḥmatihi,* Q. 57:28) or "their reward two times" (*ajrahum marratayn,* Q.28:54) that are promised to some of the People of Scripture. The Muslim tradition of exegesis has given different interpretations of these words. With reference to the first text, one of the earliest Muslim interpreters of the Qur'ān, Muqātil ibn Sulaymān who wrote his commentary about 150 years after the *hijra*, or around 770 according to the Western calendar, explains that there is a minority among the Christians who preserved the authentic faith of Jesus, and believed in both the revelation given to Jesus and the revelation given to Muhammad, thus claiming a double source for their faith.[19] In a similar vein, the traditionalist Ibn Kathīr explains that the double reward is for the People of Scripture who have embraced Islam.[20] He supports this interpretation by giving two versions of a parable that reminds Christians of the parable of the workers in the vineyard in the Gospel according to St. Matthew (20:1–16).[21] In the first version, recorded by Imam Aḥmad, the Jew starts to work early and the Christian comes to work later. The Muslim starts to work at the end of the day but he receives a double reward about which

16 See *The Study Qur'ān* 2015, 301.

17 *The Study Qur'ān* 2015, 301.

18 Another text that can be interpreted in supersessionist and non-supersessionist ways is Q.2:41, "Believe in that which I have sent down, confirming that which you have with you." The commentary in *The Study Qur'ān* (25) mentions two possible interpretations: either the Qur'ān supports the validity and teachings of those books, or it is a fulfillment of the foretelling of prophet Muhammad's mission within these books.

19 Muqātil ibn Sulaymān, *Tafsīr* (2003), 3, 327 (on Q 57:27).

20 The label "traditionalist" indicates that Ibn Kathīr, who died in 774 according to the *hijri* calendar, or 1373 according to the Western calendar, bases his commentary mainly on *aḥādith* or traditional stories about the Prophet and his companions. An abridged English translation of his *Tafsīr* or commentary has been published in Saudi Arabia (Riyadh: Darussalam, 2003); it is one of the most popular commentaries among traditional Muslims in the United States.

21 Cf. Poorthuis 2020; see also Speight 2006.

the Jew and Christian complain, yet God states that He bestows His grace as He wants.[22] The second version of the parable, however, states that the first and second workers considered their work fruitless and forfeited their wages, so that the final workers receive all the wages.[23] We see two different forms of supersessionism at work here, even though it is not at all certain that the text of the Qur'ān suggests such a theological construction. In that sense, I am happy to agree with Dr. Ghaffar that the text of the Qur'ān generally does not suggest any supersessionism, even if I want to add that the Qur'ān has been interpreted in a supersessionist way because its succinct mode of expression leaves this possibility open.

For the final part of my response, I want to return to the way in which Dr. Ghaffar uses the texts by the Syriac authors to construe his "counterfactual intertextuality." He has employed this method before in his book *Der Koran in seinem religions- und weltgeschichtlichen Kontext*.[24] I came across this method for the first time when I read a draft of a chapter that Klaus von Stosch contributed to a book that I recently edited. His thesis that the Qur'ān reacts negatively to the apocalypticism of the Byzantine Emperor Herakleios is largely based on Ghaffar's analysis which is certainly convincing in its emphasis on the theological agenda that the Qur'ān proposes when interacting with the historical situation of its time.[25] Ghaffar's familiarity with the chronological approach to the Qur'ān as proposed by Angelika Neuwirth and the *Corpus Coranicum* at the Berlin-Brandenburg Academy of Sciences surely gives his work a solid historical foundation. Yet my question is what happens with the approach of Comparative Theology proposed by Ghaffar if it is largely based on a historical reconstruction of the way in which the Qur'ān reacts to a given political situation? Could it be the case that the agenda of Christian orientalists and of later revisionists who suggested that the Qur'ān cannot be an original revelation because it borrowed from Christian Syriac authors still determines the hermeneutical framework of a comparative theology that works with the idea of a "negative intertextuality" between the Syriac Christian tradition and the Qur'ān? I do not think that Dr. Ghaffar has any apologetic motives, since his arguments are based on a historical foundation. Yet it is not entirely clear to me how an Islamic comparative theology can be developed on the basis of historical rather than theological presuppositions. An Islamic comparative theology would

22 *Ḥadīth* collected by Imām Aḥmad from 'Abdullah ibn 'Umar, as quoted in *Tafsīr ibn Kathīr* (abridged), 9:506–7. The reference here is to Al-Bukhāri as reproduced in *Fatḥ Al-Bāri* 4:521 and 6:571.

23 *Ḥadīth* collected by Al-Bukhāri from Abu Mūsa, as quoted in *Tafsīr ibn Kathīr* (abridged), 9:507–8. The footnote refers to *Fatḥ Al-Bāri* 4:523.

24 Ghaffar 2020.

25 Stosch 2022.

have to show how the Qur'ān reacts to the historical situation of its time, and to the Jewish and Christian claims of superiority, while at the same time laying the foundations of a non-supersessionist theology of prophetic covenants. Dr. Ghaffar has certainly given us a magnificent building block for such a theology, and I sincerely hope that Muslim theologians, together with their Jewish and Christian colleagues will be able to build such a non-supersessionist comparative theology in dialogue.

Bibliography

Boisliveau, Anne-Sylvie (2013), *Le Coran par lui-même. Vocabulaire et argumentation du discours coranique autoréférentiel*, Leiden: Brill.

Firestone, Reuven (2011), "Is there a notion of 'divine election' in the Qur'ān?", in: Gabriel Said Reynolds, ed., *New Perspectives on the Qur'ān: The Qur'ān in its Historical Context* 2 (Routledge Studies in the Qur'ān), London/New York: Routledge, 393–410.

Ghaffar, Zishan (2020), *Der Koran in seinem religions- und weltgeschichtlichen Kontext. Eschatologie und Apokalyptik in den mittelmekkanischen Suren*, Paderborn: Ferdinand Schöningh.

Griffith, Sidney H. (2008), *The Church in the Shadow of the Mosque. Christians and Muslims in the World of Islam*, Princeton NJ: Princeton University Press.

Griffith, Sidney H. (2013), *The Bible in Arabic. The Scriptures of the "People of the Book" in the Language of Islam*, Princeton NJ: Princeton University Press.

Griffith, Sidney H. (2022), "Late Antiquity and the Religious Milieu of the Qur'ān's Origins", in: George Archer, Maria M. Dakake, Daniel A. Madigan, eds., *The Routledge Companion to the Qur'ān*, Abingdon/New York: Routledge, 3–12.

Hartung, Blake (2022), "Introduction", in: Joshua Falconer, Blake Hartung and J. Edward Walters, eds., *St. Ephrem the Syrian, Songs for the Fast and Pascha* (The Fathers of the Church 145), Washington D.C.: The Catholic University of America Press, 3–47.

Ibn Kathīr (2003), *Tafsīr Ibn Kathīr* (abridged), 10 vols., ed. and trans. by Shaykh Safiur Rahman al-Mubarakpuri, Riyadh: Darussalam.

Mehr, Vahid Mahdavi (2022), "Can there be an Islamic comparative theology?", in: Pim Valkenberg et al., eds., *A Companion to Comparative Theology* (Brill's Companions to Modern Theology 2), Leiden/Boston: Brill, 230–246.

McVey, Kathleen E. (1989), "Introduction", in: *Ephrem the Syrian, Hymns* (The Classics of Western Spirituality), Mahwah: Paulist Press, 3–48.

Mir, Mustansir (2008), *Understanding the Islamic Scripture. A Study of Selected Passages from the Qur'ān*, New York: Pearson.

Moyaert, Marianne (2022), "An introduction to Christian – Jewish comparative theology", in: Pim Valkenberg et al., eds., *A Companion to Comparative Theology* (Brill's Companions to Modern Theology 2), Leiden/Boston: Brill, 111–131.

Muqātil ibn Sulaymān (2003), *Tafsīr*, edited by Aḥmad Farīd, Beirut: Dār al-Kutub al-ʿIlmīyah.

Poorthuis, Marcel (2020), "The transformative creativity of Islamic storytelling: Jewish and Christian sources of parables in the Ḥadīth", in: Marcel Poorthuis, Eric Ottenheijm, eds., *Parables in Changing Contexts: Essays on the Study of Parables in Christianity, Judaism, Islam, and Buddhism*, Leiden: Brill, 72–94.

Reynolds, Gabriel Said (2008), “Introduction: Qur’ānic studies and its controversies”, in: Gabriel Said Reynolds, ed., *The Qur’ān in Its Historical Context* (Routledge Studies in the Qur’ān), London/New York: Routledge, 1–25.

Soulen, R. Kendall (1996), *The God of Israel and Christian Theology*, Minneapolis: Fortress Press.

Speight, Marston, R. (2006), “A versatile Mathal: The man who hired laborers”, in: Irfan A. Omar, ed., *Islam and Other Religions: Pathways to Dialogue. Essays in Honour of Mahmoud Mustafa Ayoub*, London/New York: Routledge, 79–86.

Stosch, Klaus von (2022), “The Qur’ānic critique of apocalyptic ideas and a Christian response”, in: Pim Valkenberg et al., eds., *A Companion to Comparative Theology* (Brill’s Companions to Modern Theology 2), Leiden/Boston: Brill, 212–229.

The Study Qur’ān: A New Translation and Commentary, ed. by Seyyed Hossein Nasr et al., New York: HarperOne, 2015.

Teule, Herman (2005), “Paul of Antioch’s attitude towards the Jews and the Muslims: His letter to the nations and the Jews”, in: Barbara Roggema, Marcel Poorthuis, Pim Valkenberg, eds., *The Three Rings. Textual Studies in the Historical Trialogue of Judaism, Christianity, and Islam* (Publications of the Thomas Institute Utrecht 11), Leuven: Peeters, 91–110.

Valkenberg, Pim (2021), *No Power over God’s Bounty. A Christian Commentary on the “People of Scripture” in the Qur’ān* (Christian Commentaries on Non-Christian Sacred Texts), Leuven: Peeters.

Valkenberg, Pim (2024), “Supersessionism and the Children of God. Theological Reflections on Human Rivalry and God’s Generosity”, in: Matthew Levering, Matthew Tapie, eds., *The Challenge of Catholic–Jewish Theological Dialogue*, Washington D.C.: The Catholic University of America Press, 76–88.

Younès, Michel (2020), *Les approches chrétiennes de l’islam. Tensions, déplacements, enjeux*, Paris: Les Éditions du Cerf.

Vahid Mahdavi Mehr

Chapter 7
Qurʾān-Based Hermeneutics of Non-Supersessionism

Introduction

As a developing academic field, the new comparative theology faces some methodological challenges. In defining Islamic comparative theology, seeing how Christian theologians dealt with these challenges might be beneficial. In the first part of this chapter, I try to briefly look at two questions that comparative theologians need to answer: Why do we need comparative theology when we have theology and/or comparative religion? And how do we choose which "other" religion to engage with? In the second part of the chapter, I will go through three examples discussing the scriptural possibility of a non-supersessionist Islamic comparative theology, a possibility that also provides answers to the two questions in the first part. Using these examples, I try to show how the mainstream supersessionist reading of the Quran is not as based as it is presented. Continuing what I have argued elsewhere on Quranic non-supersessionism, I hope this is another step toward establishing an Abrahamic comparative theology.[1]

Why Comparative Theology?

The most fundamental challenge comparative theology faces, Reinhold Bernhardt claims, is proving its necessity. Why would a theologian engage in comparative work?[2] The answer to this question was relatively straightforward in the so-called old comparative theology. It was argued that "the most important and at the same time most edifying consequence of a 'fair survey' of the great religions of the world is that it testifies to the truth and universality of Christianity, alone among all others."[3] To this day, scholars of different religions write many books and articles to show the same for their respective religions.

1 Cf.Mehr 2023, henceforth referred to as "elsewhere."
2 Bernhardt 2009, 199.
3 Masuzawa 2006, 79.

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In the new comparative theology, on the other hand, one acknowledges unresolved challenges and problems in one's theology and might decide to go to other theologies and see if their treatment of a similar problem is of any insight. However, as Glenn Willis points out, we might ask whether this is admitting an inherent shortcoming in one's own tradition. "Does the turn from Christianity toward Hinduism or Islam or Buddhism reveal a failure to skillfully investigate the diverse richness of Christianity itself? What is the *added* benefit of exploring another tradition, for understanding one's own?"[4]

For Klaus von Stosch, the added benefit is that comparative engagement with some aspects of other theologies offers a more productive way of investigating one's own tradition. It does not mean that one's tradition inherently lacks something or that the comparative theologian needs to implement some part of another tradition into one's own. It is, instead, an acknowledgment of unresolved problems or unanswered questions for which the comparative theologian tries to provide an answer using hints and insights gained from studying the other's treatment of a similar problem.[5] From this perspective, comparative theology provides an intermediatory stage that boosts one's ability to mine one's inexhaustible tradition more efficiently. While a sound answer to Willis, this does not create a "necessity" for the new field of comparative theology; Bernhardt's question remains unanswered. As Catherine Cornille concedes, "[t]he act of comparison does not generally impose itself as natural or necessary, or as emerging from an evident relationship between data from different religions."[6] It might be quicker, more productive, but it is not necessary.

Moreover, it is not evident that comparative theology is more efficient in solving a problem in one's theology than theology. It is not easy to understand a tradition or religion different than one's own. It usually requires learning a different language and familiarizing oneself with a different culture, a monumental, if not impossible, task. Let us assume, however, that academic collaborations and access to the abundance of resources available, at least to some, make this a viable option. We still need to answer another question and solve another problem, the problem of choice.

The Problem of Choice

"[O]ne of the important challenges for comparative theology [. . .] involves the seemingly limitless possibilities provided by themes and traditions available for

4 Willis 2018, 125.
5 Stosch 2019, 238.
6 Cornille 2019,157.

comparative theological engagement."[7] Admitting that choosing the guest tradition for a comparative study requires some justification, Cornille concludes that it might ultimately be chance that decides the particular tradition that a comparative theologian chooses to study.[8]

Depending on one's answer to the problem of choice, there can be two approaches to Christian comparative theology. One approach, let us call it general comparative theology, makes use of "[t]he general recognition of goodness and truth in other religions (as, for example, in the document *nostra aetate*)" and engages with "a vast plethora of religious teachings and practices,"[9] seeking to "deepen and advance theological truth."[10] Without bothering itself too much with the problem of choice or the question of necessity, this approach lets scholars do what they feel is productive to their theology.

The other approach, let us call it Abrahamic comparative theology, concentrates on the Christian recognition of Judaism, in *Nostra Aetate,* for example, and sees it as an attempt at overcoming the problem of supersessionism.[11] Marianne Moyaert believes that "[f]or comparative theology after the Shoah, guided by the rules of engagement laid out earlier, the real challenge will be to formulate a non-supersessionist theology, in which the relation between Church and Synagogue is revisited."[12]

In facing a particular identifiable theological challenge, this approach is methodologically different from the general comparative theology. Here, Judaism is an exception to an otherwise non-pluralistic theological system,[13] because "[t]he relationship between Church (Christianity) and Israel (Judaism) is of another nature than that between, for example, Christianity and Hinduism."[14] To reshape the Christian theology of Israel is not what comparative religion can do, and to do it in conversation with Judaism is not what theology does. Hence, as opposed to many others, Moyaert and von Stosch have a concrete choice of the guest religion, Judaism, and they can also answer Bernhardt's question. An Abrahamic comparative theology, hence, seems not to have either of the two problems.

7 Cornille 2020, 156–157.

8 See Cornille 2018, 26.

9 Cornille 2018, 25.

10 Cornille 2020, 10.

11 I refrained from calling it *Israeltheologie*, as it is called in German, because I believe a certain understanding of Islam could be included in this comparative theological project, not accounted for in *Islamtheologie*.

12 Moyaert 2018, 186.

13 See Stosch 2019, 245.

14 Moyaert 2018, 175.

Islamic Comparative Theology

Like anything Islamic, the starting point of an Islamic comparative theology must be the Quran. What becomes evident to a student of comparative theology is how little the Quran is present in the Islamic theology of religions and how it is usually overlooked in favor of philosophical or traditional arguments. Rigorous discussions and systematic analyses of seemingly contradictory traditions or philosophical positions found in classical Islamic literature, whether theology or law, is hardly present when we look at the Quranic verses that discuss other Abrahamic traditions. If early Muslim theologians were perplexed by the Quran's descriptions of God and creation or legal rulings that governed Muslims' everyday life, and their disagreements were the foundation of different schools of thought, not many seemed to care about the Quran's theology of religions. They all seemed to agree, without much argumentation, that the Quran is supersessionist.

What is yet to be developed, and we will see the need for it through some examples, is a properly Quranic framework for engaging with other religions and traditions: A framework that does not use the Quran as a repository of verses to ornament its otherwise non-Quranic structure. In the following, I hope to show why I think there is a need for such systematic reading of the Quran and why the same two approaches in Christian comparative theology are also available in Islamic comparative theology.

Q 2:62

In sura 2, *al-Baqarah*, we encounter a statement regarding Jews and Christians that should have been foundational to a Quranic theology of religions. Q 2:62 reads:

> Indeed, those who believed [in this prophet], and the Jews, and the Christians, and the Sabians, those of them who believe in God and the Last Day and act righteously, they shall have their reward with their Lord, and they will have no fear, nor will they grieve.[15]

The literal meaning of the verse seems to suggest that from a Quranic perspective, not only the religion of the new believers but also the religion of Jews and Christians are considered acceptable to God on the condition that they believe in God and the afterlife and that they do good. This is how Ibn Abbās is said to have understood the literal meaning of the verse.[16] However, no classical Muslim scholar,

15 In this chapter, I used Ali Qarai's translation of the Quran with some modifications.
16 See al-Andalūsī, *Muḥarrar* (2001), 1, 157; al-Ṭabarī, *Jāmi'* (1991), 1, 256.

including Ibn Abbās, subscribes to the acceptability of the plurality of Abrahamic religions suggested by the literal meaning of this verse.

Ibn Abbās is said to have believed that a later verse, Q 3:85, in which the Quran declares *islām* is said to be the only acceptable religion, has abrogated Q 2:62.[17] In his opinion, there was a short period of time where the traditions of Jews, Christians, and Muslims were in principle acceptable in the eyes of God, but then, God declared Islam the only true religion and, henceforth, Jews and Christians need to convert to Islam for their beliefs and actions to be accepted by God.

There are two problems with this opinion. Firstly, abrogation is a contested notion in Quranic exegesis. Some exegetes, for example, believed that abrogation only occurs in divine prescriptions, *aḥkām*. There is no abrogation for divine descriptions, *akhbār*, or a divine promise, *wa'd*.[18] God might replace a legal ruling with another but does not change divine promises. Hence, if following any of the three traditions has been acceptable at some point, they should remain acceptable.

Moreover, it is implausible that the term *islām* in the allegedly abrogating verse means Islam in its denominational sense. It was clear to many exegetes that *islām* is a general designation for the religion of those who submit to the God of Abraham, regardless of their legal system.[19] This understanding of the term *islām*, together with the problems with the possibility of abrogation for this verse, meant that 2:62 is most probably not at all related to 3:85. If we look at the classical understanding of the following verse, 3:86, we can see that the verse seems to be discussing an entirely different matter, unrelated to Jews and Christians. It discusses apostates who converted back to their previous non-Abrahamic religion; some regretted their decision and wanted to become Muslim again, and some did not.[20]

Another opinion on the meaning of Q 2:62, also attributed to Ibn Abbās, created a temporal sequence for the followers of Abrahamic traditions mentioned in the verse. The verse this opinion proposes speaks about Jews in the time of Moses when Judaism was still valid, and Christians in the time of Jesus when Christianity replaced Judaism. Naturally, contemporary to the Quran, these religions were no more acceptable and were replaced by this new religion.[21]

Another explanation, to avoid accepting the plain meaning of the verse, is to claim that believing in God, mentioned in the verse, entails believing in God's final prophet.[22] This explanation, however, trivializes the wordings of Quranic verses in

17 al-Ṭabarī, *Jāmi'* (1991), 1, 256–257.
18 al-Ṭusī, *Tibyān* (n.d.), 1, 284.
19 See al-Ṭabarī, *Jāmi'* (1991), 3, 142; al-Andalūsī, *Muḥarrar* (2001), 1,468; al-Ṭusī, *Tibyān* (n.d.), 2, 520.
20 al-Ṭabarī, *Jāmi'* (1991), 3, 242–243.
21 al-Ṭabarī, *Jāmi'* (1991), 1, 254; Ṭabarsī, *Majmaʿ* (1994), 3, 306; al-Rāzī, *Kabīr* (1999), 3, 536.
22 See Muqātil, *Tafsīr* (2002), 1, 41; Shahrestānī, *Mafātīḥ* (2008), 1, 387.

which believing in God's prophets and believing in God are mentioned separately,[23] implying they are two different beliefs. We can see how there seems to be a presupposition preventing the exegetes from considering the possibility of the verse meaning what it literally states.

Before discussing the next example, we must address the "Sabians" mentioned in this verse. Classical exegetes try to identify Sabians, offering different speculations of their rituals and beliefs.[24] However, they also propose another explanation for the term. Ṭabari, for example, relates traditions in which the term refers to those who leave their ancestral religion for another. A Sabian, hence, might simply mean a convert. The word cannot refer to Muslims because they are called believers. Could it mean Christians that converted to Judaism or Jews who converted to Christianity?

Q 5:43–44 & 48

> And how should they make you a judge, while with them is the Torah, in which is God's judgment? Yet, despite that, they turn their backs, and they are not believers. (43)

This verse is said to have been proclaimed on the occasion of a legal dispute between some Jews of Medina, to resolve which they came to the prophet.[25] Like what we saw in Q 2:62, commentators try to mitigate the solid non-supersessionist implications of this verse. The verse seems to imply not only that the Torah, as Jews had it at the time of the Quran, contains God's laws but also that Jews are expected to act according to their Torah. It means the Quran considers the Torah valid and normative for Jews of its purview.[26] However, it could be argued that the verse is only rhetorical; hence, it has no implications. As if to rule out this possible reading, the following verse explicitly affirms the place of the Torah in the eyes of the Quran:

> We sent down the Torah containing guidance and light. The prophets, who had submitted, judged by it for the Jews, and so did the rabbis and the scribes, as they were charged to preserve the Book of God and were witnesses to it. So do not fear the people, but fear Me, and do not sell My signs for a paltry gain. Those who do not judge by what God has sent down, it is they who are the faithless. (44)

23 See *Quran*: Q: 4.136.

24 See al-Ṭabarī, *Jāmiʿ* (1991), 1, 252–253.

25 See al-Ṭabarī, *Jāmiʿ* (1991), 6, 156–157.

26 For a discussion of legal implications of these verses, see al-Ṭabarī, *Jāmiʿ* (1991), 6, 158–160.

Again, commentators tried to explain away the obvious by appealing to the widespread belief in the corruption or alteration of the Torah, *taḥrif*,[27] claiming that rabbis "were charged with preserving the Book of God" *but* they did not do their Job,[28] or that they *did* sell God's signs "for a paltry gain."[29] These verses' otherwise crucial theological implications for the continued validity of the Torah for Jews are left unexplored.[30]

Discussing verse 43, where God expected Jews to act according to the Torah, some commentators claimed that it refers only to the unabrogated parts of the Torah.[31] As such, Jews are not expected to uphold the Torah as a whole; the Torah has been abrogated. It is only the unabrogated legal matters in the Torah that this verse is talking about. We might ask, however, how could Jewish scholars know which parts of the Torah are abrogated and which are not?

In his commentary on Q 5:43, Rāzi mentions a Hanafi opinion that helps us better understand the complications of a supersessionist reading. If parts of the Torah are not abrogated, some Hanafis claim they should also be binding for Muslims.[32] This position assumes only one true religion, changing and evolving through time. The coming of new prophets abrogates some earlier laws of this one religion until it is completed through the revelation given to the final prophet, when it changes and evolves no more. This entails, a Hanafi might say, that we need to investigate earlier instances of revelation for possibly unabrogated laws. After all, as an article of faith, Muslims believe in God's revelations to them *and* God's revelations to Jews and Christians.

> Do not dispute with the People of the Book except in a manner which is best, except with those who are wrongdoers, and say, 'We believe in that which has been sent down to us and has been sent down to you; our God and your God is one, and to Him do we submit'.[33]

Discussing this verse, commentators relate a hadith in which Muslims are advised not to agree or disagree with the exegesis of the Torah they *hear* from Jews because they do not know, and they cannot check whether they are being truthful and correct. They are advised only to reiterate the second part of this verse.[34] Based

27 See al-Andalūsī, *Muḥarrar* (2001), 2, 196; al-Zamakhsharī, *Kashshāf* (1983), 1, 637.

28 al-Andalūsī, *Muḥarrar* (2001), 2, 196.

29 al-Zamakhsharī, *Kashshāf* (1983), 1, 637.

30 To see a detailed discussion of *taḥrif*, extensively discussing its history and meaning in the Quran, see Tabatabaei 2022, (in Farsi). I have also briefly discussed some relevant verses elsewhere.

31 See Ṭabarsī, *Majmaʿ* (1994), 3, 304.

32 See al-Rāzī, *Kabīr* (1999), 12, 364.

33 *Quran*: Q: 29.46.

34 al-Ṭabarī, *Jāmiʿ* (1991), 21, 4.

on this hadith, Muslim scholars, given the opportunity to read the Torah for themselves, should have no problems doing so.

To make a stronger non-supersessionist claim, verse 48 contains another divine postulate:

> For each [community] among you, We had appointed a code [of law] and a path, and had God wished He would have made you one community, but [His purposes required] that He should test you in respect to what He has given you.

Rāzi initially argues, commenting on Q 5:43, that the Hanafi opinion cannot be correct since we are commanded against reading the Torah.[35] Discussing the following verse, however, he explains this opinion more positively and does not immediately refute it.[36] Commenting on Q 5:48, however, he lays out his proper argument against the Hanafi opinion. He claims that most scholars argue against this Hanafi opinion by referring to this verse. Instead of one religion with a continuously changing law, the verse shows that there have been several different religious law systems with their theological core remaining the same. Hence, even the unabrogated parts of the Jewish *shari'a* are not binding for us Muslims. "The Torah has a *shari'a*, the Gospels have a *shari'a*, and the Quran has a *shari'a*."[37] In a surprising way, this verse was understood to be a clear statement in favor of supersessionism and the abrogation of earlier Abrahamic traditions.[38]

If the Jewish tradition as a whole has been abrogated, however, why does God criticize its Jewish audience for not upholding the Torah? There was a reason behind the peculiar Hanafi opinion that Rāzi's explanation seems to ignore. Also, do these two supersessionist explanations not create a paradox? On the one hand, some scholars see the Quran as a continuation and correction of the Torah, pointing out which parts have been abrogated and which have not. In that case, Muslim scholars need to study the Torah to see whether they find any unabrogated laws in it that they might have missed in the Quran. On the other hand, some scholars see Jewish and Christian traditions as being abrogated entirely or their scriptures tampered with and altered. This makes the Quranic condemnation in Q 5:43 unjustified. Each of these two positions must maneuver around some Quranic verses contradicting the chosen position.

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35 See al-Rāzī, *Kabīr* (1999), 12, 364.

36 Since Q 4:44 is the first verse in chapter 11 of the Quran, there might have been a break between his commenting on the two verses. It might be the case that Rāzi had contemplated on the opinion more and was convinced that it should not be ignored. I am not an expert on Rāzi, but I thought this might be interesting for those who might want to follow through with it.

37 al-Rāzī, *Kabīr* (1999), 12, 373; al-Ṭabarī, *Jāmiʿ* (1991), 6, 174.

38 See Ṭabarsī, *Majmaʿ* (1994), 3, 314.

In all these speculations and discussions, there is no scenario in which the theological acceptability of a plurality of Abrahamic traditions is even considered. Although a non-supersessionist reading of this block of verses, Q 5:43–48 makes a case for Jews being allowed to exercise their system of law, based on the Torah, and Muslims their own, based on the Quran, and this possibility makes sense of the literal meaning of Q 2:62 and Q 29:46; the supersessionist presupposition of scholars prevents the appearance of this option even as an opinion to be discussed and refuted.

Q 3:64

As one of the most famous verses of the Quran in interreligious endeavors, let us finally discuss Q 3:64.

> Say, 'O People of the Book! Come to a word common between you and us: that we will worship no one but God, and that we will not ascribe any partner to Him, and that we will not take each other as Lords besides God.' But if they turn away, say, 'Be witnesses that we are *muslims*.'

We might expect that classical scholars show the same attitude in discussing this verse. However, there is barely any trace of the supersessionist adjustments in the exegesis of this verse. Ṭabari meticulously explains the meaning of the words and phrases of the verse, and so do many others, describing the word *sawā'*, common, as the shared beliefs of Jews, Christians, and Muslims, and not what can be called Islamic.[39] As Rāzi puts it, it means "something that is no closer to one [tradition] than the other."[40] The implications of the verse, however, remain unexplored. Can it mean that believing in the prophet of Islam is not a part of this agreement? If Jews uphold their Torah without believing in the Quran's prophet, is it acceptable in the eyes of God, even if not preferable, as the verse seems to suggest? Does this implication not align well with previous verses that we discussed? As if this verse tells the story of a rejected proposition that is no longer valid, our commentators do not discuss the theological content of the verse.

It is our stance on supersessionism that decides the answer to these questions. If we choose to read the Quran in a supersessionist framework, all these verses and many more lose their literal meanings and have to be tweaked to conform to or reinforce the supersessionist framework. Whatever they mean, even if we cannot plausibly explain their meaning, they cannot be non-supersessionist. In such a frame-

39 See al-Ṭabarī, *Jāmiʿ* (1991), 3,213; al-Andalūsī, *Muḥarrar* (2001), 1, 448; al-Zamakhsharī, *Kashshāf* (1983),1, 370; Shahrestānī, *Mafātīḥ* (2008), 2,1054.
40 al-Rāzī, *Kabīr* (1999), 8, 251.

work, thinking of any Abrahamic tradition plurality becomes unimaginable and deeply anti-Quranic. The supersessionist framework takes care of creating meaning and context for some of the most fundamental verses for a Quranic theology of Abrahamic religions. By isolating them from their previous and/or following verses, relating narratives that might have otherwise been dismissed as weak, unreliable, or unacceptable, or erasing them using uncritical claims of abrogation, those verses that do not fit the supersessionist framework are easily explained away.

A non-supersessionist framework, on the other hand, does not do this to the Quran. In a non-supersessionist framework, we do not need to explain away these verses. It does not ignore or deform any of them. Other verses that condemn Jewish and/or Christian behaviors or their treatment of the Quran, its prophet, or its community, still make sense and are understandable in their historical and even traditional context without losing their literal meaning. In fact, verses' grammatical peculiarities and intricacies sometimes help point us toward their proper historical context. The more historical studies progress, and the more we learn about the religious, social, and political purview of the Quran, the more seemingly polemical verses of the Quran prove to be accurate responses to problems or questions, or beliefs present in the time of the Quran.[41] For my claim and the non-supersessionist reading to be tested against evidence, however, it should first be considered a possibility.

It is usually the case that when the Quran explicitly proclaims something, theologians find themselves rationalizing and making sense of the proclamation. It is only after exhausting all efforts to understand it that a theologian might find it necessary to move away from the literal meaning of a verse. In the case of non-supersessionism, however, its possibility is not even considered. Muslim supersessionist scholars would imagine God having a physical body before imagining a scenario in which the tradition of Jews and Christians are as valid as Muslims'. This observation shows how the hegemony of supersessionism has made this otherwise obvious possibility unthinkable.

My argument here is not that these examples prove that the Quran is non-supersessionist. Non-supersessionism in the Quran should be investigated on many levels. I tried elsewhere to investigate the Quranic non-supersessionism to show why we must consider a non-supersessionist framework as a possibility that could change how we understand the Quran. Here, I try to emphasize the unsystematic state of the supersessionism assumed for the Quran.

41 The scholarly works and projects of Klaus von Stosch and Zishan Ghaffar provide many examples of these cases. I have also provided some examples elsewhere.

Islamic Supersessionism

Tim Winter's discussion of Islamic supersessionism provides some criticisms that a non-supersessionist framework might face. One of the first points of departure for many is pointing out the social and political beliefs of non-supersessionist Muslim scholars. A non-supersessionist reading of the Quran might be depicted as shaped by the so-called modern pluralistic values. "Concerned to harmonise the faith with the modern axiom of equality, these writers characteristically deploy complex hermeneutical strategies of contextualization and deconstruction in order to unearth the seeds of a theological pluralism from the Quran's discourse."[42]

Indeed, pluralist Muslim scholars and those interested in interfaith dialogue might believe their efforts and ideologies promote peace, justice, equality, etc. What is misleading about Winter's claim, however, is that he seems to assume that Muslim exegetes had no social, political, or ideological axioms that affected their exegeses of the Quran. If some of those works did not need court funding or court approval from Muslim emperors for their legitimacy or the legitimacy of their campaigns against Christians and Jews, supersessionism was a vital theological tool. It is helpful when theologians openly state their ideological stances and beliefs because we can better understand their possibly unuttered presuppositions in their arguments. It is, however, impossible to think that there were people with no ideological agendas directly or indirectly influencing their reading of the Quran.

I do not think that comparative theology has a necessary connection to any value system. Unlike Christianity, non-supersessionism need not be a normative stance for engaging with Judaism and Christianity in Islam. As I tried to show with some examples, non-supersessionism is presented to us in plain Quranic terms. Amy-Jill Levine argues that in Christianity, "supersessionism is of interest, not only, and I think not primarily, because of either exegesis or theology. Supersessionism is of interest because of ethics and, now, identity politics."[43] In the Quran, on the other hand, as far as I am concerned, non-supersessionism comes from a plain reading of the Quran.

Similar to Christianity, however, a non-supersessionist reading of the Quran can only discuss Judaism and Christianity, whose followers the Quran directly addresses and to whom the Quran directly connects itself. There cannot be an immediate generalization of the conclusions of an Abrahamic theology to any random religion or tradition. To expand itself to include other systems of faith, Abrahamic compara-

42 Winter 1999, 135.
43 Levine 2022.

tive theology must first produce theological results. Then we can see whether those results contribute to general comparative theological studies.

Winter describes revelation as "frankly a supersessionist event, proclaiming the abrogation (*naskh*) of prior religion by Islam."[44] We can see how supersessionism is normative and is a presupposition for scholars such as Winter. However, the question remains: Where does this grand proclamation of supersession appear in the Quran? This is not a legal matter where tradition and hadith are at the forefront; this is theology. How could supersessionism be reconciled with verses of the Quran that explicitly contradict supersession? Does God shy away from explicitly proclaiming supersessionism? Why does the Quran, as we will see, insist on referring to the Torah as a complete book containing guidance when it wants to talk about the new revelation to an Ishmaelite prophet? Why does the Quran never plainly proclaim what is now the mainstream Muslim supersessionist history of Abrahamic religions but plainly states otherwise?

Supersessionist theologians pretend that the Quran does not discuss why it has been proclaimed. They discuss supersessionism's constitutional function for the appearance of the Quran as if this new revelation's theological necessity can only be discussed philosophically, not scripturally. After describing the Torah as a book that explains everything and a book of guidance and mercy in Q 6:1564, in the following verses, the Quran discusses itself and provides a reason for this new revelation.

> [. . .] Lest you should say, 'The Book was sent down to two communities before us, and we were indeed unaware of their studies.' Or [lest] you should say, 'If the Book had been sent down to us, surely we would have been better guided than them.'[45]

Presenting itself as a revelation in Arabic so that Arabs have a revelation that they understand and be at ease with, the Quran never claims superiority to the Torah, only affirmation of it. For a theologian familiar with Christian supersessionism and the exclusivist anti-Jewish discourse it creates, it takes a great deal of ignorance to derive supersessionism from such Quranic descriptions, not to mention the Quranic anti-exclusivist claims and arguments in its other verses. It is the supersessionist position that requires "complicated hermeneutical tactics" to seem Quranic, not non-supersessionism.

Some of Winter's arguments boil down to one rhetorical question. Do non-supersessionist theologians want to claim that the consensus of Muslim scholars has been wrong on this issue? In a comparative theology that wants to be Quranic,

44 Winter 1999, 137.
45 *Quran*: Q: 6.156–157.

nothing can stand against the Quran, no contradicting tradition, no scholarly opinion, and no alleged consensus, only Quranic arguments and evidence. However, here and elsewhere, I tried to show that in the particular case of Judaism and Christianity, a high degree of intended neglect and practical indifference is evident in the works of early Muslim scholars. Quran's theology of religions seems not to have been a priority for classical Muslim exegetes; they, to put it coarsely, did not care about Jews and Christians theologically, only legally. Those verses that discuss Jews and Christians are only read in a supersessionist framework, even when this framework produced inconclusive and contradictory results. The supersessionist framework decided which verse should appear more prominently, which should be looked over, and which should disappear entirely.

In short, Winter's claim that an "honest assessment of the Muslim body of scripture which collocates all the relevant passages [. . .] appears to confirm the classical Sunnī reading of the revelation as a frankly supersessionist event" is incorrect.[46] As opposed to legal questions related to every Muslim's daily life, there are no systematic collocations in the service of understanding the Quran's theology of Abrahamic religions. Some pieces of a non-supersessionist structure are already present in the traditional exegetical works; they are, however, never put together.[47]

Unfortunately, when supersessionism is considered "constitutive of Islam itself" and "an indispensable justification for its existence,"[48] there is no room for investigation and argumentation. We are yet to create a systematic, comprehensive discussion of verses that discuss Judaism and Christianity to account for all questions, problems, and possibilities. This is why exploring the implications and results of reading these verses in a non-supersessionist framework is necessary. Doing that, however, requires that theologians have no anxieties regarding their beliefs and be open to the possibility that what they think should be constitutive of their faith might not be so. How can we properly investigate the implications of a non-supersessionist framework when supersessionism is assumed "indispensable" and "constitutive" of our Islam? Should it not be the explicit affirmation of our belief in earlier revelations that constitute our Islam instead?

46 Winter 1999, 137.

47 Like many other subjects, there is no notable difference between Sunni and Shia scholars' stances on supersessionism. Mainstream Shia commentaries are no less supersessionist than Sunni commentaries.

48 Winter 1999, 153.

Conclusion

If a non-supersessionist Islamic theology that, in principle, accepts a plurality of Abrahamic traditions is possible, we are presented with the possibility of an Islamic comparative theology that evades some of the challenges that Christian comparative theology faces. A non-supersessionist Islamic comparative theology might be able to answer some of the methodological challenges of comparative theology much easier than Christian comparative theologians, rendering certain challenges to Christian comparative theology irrelevant to Islamic comparative theology.

What some comparative theologians do, such as Moyaert and von Stosch, to overcome Christian supersessionism is what Muslim comparative theologians must do to understand certain parts of their own Scripture and to have a systematic understanding of it. As such, for a Muslim, an Abrahamic comparative theology is rooted in the Quran, and a non-supersessionist Islamic comparative theology is based on a systematic reconstruction of the Quran's theology of Abrahamic religions.

However, I do not have much to say about an Islamic comparative theology that wants to engage with non-Abrahamic religions. Non-Abrahamic religions, those not in the purview of the Quran, are not directly addressed and discussed in the Quran. Not related to the Abrahamic family of traditions, there is also no relation between them and the Quran in a way that the notion of supersession makes sense. That is why I think there is an inherent difference between Abrahamic and general comparative theology. The two approaches have different presuppositions and methods for moving toward their goals.

Bibliography

al-Andalūsī, Abū Muḥammad ʻAbd al-Ḥaq ibn Gḥālib ibn Aṭīyyah (2001), *Al-muharrar al-wajīz fī tafsīr al-kītab al-azīz*, edited by Ạbd al-Salām Ạbd al-Shāfī Muḥammad, 6 vols., Beirut.

Bernhardt, Reinhold (2019), "Theologie der Religionen: Streit um eine Formel", in: *ZMR* 103, 191–204.

Cornille, Catherine (2020), *Meaning and Method in Comparative Theology*, Hoboken: John Wiley & Sons.

Cornille, Catherine (2018), "The problem of choice in comparative theology", in: Francis X. Clooney/Klaus von Stosch, eds., *How to Do Comparative Theology*, Bronx: Fordham University Press, 19–36.

Levine, Amy-Jill (2022), "Supersessionism: Admit and Address Rather than Debate or Deny", *Religions* 13(2). https://doi.org/10.3390/rel13020155

Masuzawa, Tomoko (2006), *The Invention of World Religions: How European Universalism Was Preserved in the Language of Pluralism*. Chicago: The University of Chicago Press.

Mehr, Vahid M. (2023), *Is the Quran Supersessionist?: Toward Identifying the Quran's Theological Framework of Engagement with Earlier Abrahamic Traditions*, Brill.

Moyaert, Marianne (2018), “Comparative theology after the Shoah: Risks, pivots, and opportunities of comparing traditions”, in: Francis X. Clooney, Klaus von Stosch, eds., *How to Do Comparative Theology*, Bronx: Fordham University Press, 164 –187.

al-Rāzī, Fakhr al-Dīn Muḥammad ibn Umar (1999), *Al-tafsīr al-kabīr*, 32 vols., Beirut.

Shahrestānī, Muḥammad ibn Ḍbdulkarīm (2008), *Mafātīḥ al-asrār wa maṣābīḥ al-abrār*, Tehran.

Stosch, Klaus von (2019), “Methoden der Komparativen Theologie”, *ZMR* 103, 234 –246.

al-Ṭabarī, Abū Jaʿfar Muḥammad ibn Jarīr (1991), *Jāmiʿ al-bayān fī tafsīr al-Qurʾān*, 30 vols., Beirut.

Ṭabarsī, Fazl ibn Ḥassan (1994), *Majmaʿ al-bayān fī tafsīr al-Qurʾān*, edited by Hāshem Rasūlī, 10 vols., Tehran.

Tabatabaei, Mohammad Ali (2022), *Tārīkhe tahrīf bāvarī dar eslām*, Tehran: Nashre Ney.

al-Ṭusī, Abū Jaʿfar Muḥammad ibn al-Ḥassan (n.d.), *Al-tibyān fī tafsīr al-Qurʾān*, edited by Aḥmad Ḥabib al-Āmelī,10 vols., Beirut.

Willis, Glenn R. (2018), “On some suspicions regarding comparative theology”, in: Francis X. Clooney, Klaus von Stosch, eds., *How to Do Comparative Theology* (Comparative Theology: Thinking Across Traditions), Bronx: Fordham University Press, 122–134.

Winter, Tim (1999), “The Last Trump Card: Islam and the Supersession of Other Faiths”, *Studies in Interreligious Dialogue* 9, 133–155.

al-Zamakhsharī, Maḥmūd ibn Umar (1983), *al-Kashshāf ḍn ḥaghāighi ghawḍmiz al-tanzīl*, edited by Ḥussain Aḥmad Muṣṭafā, 4 vols., Beirut.

Marianne Moyaert

Chapter 8
Response to Vahid Mahdavi Mehr

Dr. Vahid Mahdavi Mehr argues for the possibility of a non-supersessionist Islamic comparative theology of religions. This is an ambitious project that goes beyond well-trodden paths; it is also brave, as it challenges the mainstream view within Islamic scholarship where supersessionism is the norm. Although I am not a specialist in Islamic theology—my expertise lies in Christian-Jewish comparative theology—I am intrigued by his proposal. As with all excellent scholarly research, Mehr's work raises many questions and prompts further reflection. I will respond to his chapter as a Roman Catholic comparative theologian, who is equally, albeit starting from another tradition, committed to overcoming the problem of supersessionism.[1]

In the first part of his chapter, Mehr addresses the fundamental question: Why comparative theology? Why should a theologian engage in comparative work? What is the theological rationale behind this comparative project. If one cannot answer this question, comparative theology will remain a marginal endeavor at best and will in any case have little impact on the larger tradition and community. As Mehr explains, for the old comparative theology, the "answer to this question was relatively straightforward . . .. It was argued that "the most important and at the same time most edifying consequence of a 'fair survey' of the great religions of the world is that it testifies to the truth and universality of Christianity, alone among all others".[2] But what is the meaning and purpose of the new comparative theology, which engages in comparison "not in the spirit of contestation but for mutual learning and enquiry"?[3]

As a Roman Catholic theologian, I understand comparative theology as a form of *fides quaerens intellectum*, faith in search of understanding, which unlike comparative religion does not suspend the normative question of truth. In Clooney's words, comparative theology entails "acts of faith seeking understanding which are rooted in a particular faith tradition but which, from that foundation, venture into learning from one or more faith traditions. This learning is done for the sake of fresh theological insights that are indebted to the newly encountered tradition/s as well as the home tradition".[4] What makes this approach unique is that it assumes

1 Moyaert 2017.
2 Bernard 2009, 199, quoted in Mehr.
3 Hedges 2017, 6.
4 Clooney 2010, 11.

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that Christian faith can gain deeper insight by engaging other religious traditions. The latter are recognized as sources of truth and revelation that might inform and enhance truth through theological reflection. This premise distinguishes the new comparative theology, which is marked by an attitude of openness from the old comparative theology, which was very apologetic.[5] The complacency of the old comparative theology, which assumed Christian superiority and finality, has given way to a more dialogical approach that values religious difference. Thus, for most comparative theologians asking questions is more important than formulating final answers.

From a Catholic perspective, comparative theology can be regarded as an expression of the dialogical turn which has been set in motion since the Second Vatican Council, notably by the document *Nostra Aetate* (along with *Lumen Gentium*, *Dei Verbum*, and *Ad Gentes*). *Nostra Aetate*, especially paragraph 2, challenges Christians to approach other religions with "a focused attentiveness to the true and holy wherever it is to be found".[6] As Francis X. Clooney notes,

> What is most striking. . .is the simple fact that Nostra Aetate passes no judgments — rather it asks of us, I have always thought, a necessarily open-ended learning. The traditions we study are recognized as beautiful, and because our faith in Christ enables us to honor the true, the good, and the beautiful wherever we find it, Nostra Aetate exhorts us to study and learn from the other.[7]

If we assume, with *Nostra Aetate*, that there is truth and goodness to be found in other religions, then theologically speaking, we must look for it. From a Catholic perspective, this motivation makes comparative theological work not only important but theologically necessary.

There are, however, more concrete reasons to engage in comparative theology, and more specific learning outcomes to be expected. In her book, *Meaning and Method in Comparative Theology*, Catherine Cornille outlines several specific motivations for engaging in comparative theology: intensification, recovery, reinterpretation, appropriation, and reaffirmation.[8] Intensification involves deepening one's religious understanding through the study of other traditions. Recovery emphasizes retrieving forgotten or neglected aspects of one's own tradition through insights gained from other religions. Reinterpretation allows for the renewal of one's beliefs by considering them in light of other religious viewpoints. Appropriation integrates beneficial elements from other traditions into one's own practice and thought. Reaf-

5 Hedges 2012.
6 Clooney 2022, 41.
7 Clooney 2018, 310.
8 Cornille 2020, 115–147.

firmation reinforces the distinct identity and value of one's tradition by contrasting and comparing it with other traditions.

Personally, I identify with what Cornille calls the work of rectification; that is, the dismantling of theological misrepresentation, essentialization, and reification of religious others.[9] This research focus is primarily motivated by the conviction that Christian theological supersessionism has fostered centuries of oppression of European Jews—social exclusion, forced conversions, persecution, expulsion, and murder. According to supersessionism, since the coming of Christ, all the covenant promises God made to Israel now belong to the Church, and the Jewish people no longer have any valid role in the divine plan for salvation. The Church has replaced Israel as God's beloved and covenanted people. Supersessionism is not a marginal pattern of thinking, on the contrary. It is fair to say that the Christian imagination is permeated with anti-Jewish supersessionist ideas, which can be found in scripture, theological interpretation, liturgy, popular devotion, visual art, and so on. Supersessionist theology has had a violent impact on history and Jews have suffered tremendously because of it.

Christian theologians cannot change the past, but they can take responsibility for its continuing legacy in the present and take action towards restoring future Jewish-Christian relations. To my mind, and this is shared by other Christian-Jewish comparative theologians, like Siemiatkoski (2022), the formulation of a non-supersessionist theology is a crucial part of the road to restoration and reconciliation. So therefore, beyond the general theological rationale of faith seeking understanding, Judeo-Christian comparative theology is motivated by the need for rectification. This need is both theological and ethical, and to my mind, they cannot be separated. From this perspective, we could also speak of comparative "theoethics", to use Nestor Medina's term.[10] Since Christian theologians have in the past reduced the Jewish people to a rhetorical extra in a Christian narrative, the main issue now is to develop a dialogical theology approach that seeks to do justice to the particularity of both Christian and Jewish traditions and which does not start from crafting 'Jews' as an imaginary other, but rather respects their traditions as a theological conversation partner. Comparative theology meets these requirements.

Two issues are important in my work, and I will return to them later. First, I regard supersessionism as a specific expression of a Christian process of religionization, a term I use to refer to co-dependent processes of "selfing" (the configuration of identity) and "othering" (the making of alterity) predicated on religious difference. The processes of selfing and othering are deeply intertwined, so much so

9 Cornille 2020, 122.
10 Medina 2019.

that "[w]herever we look for the emergence of 'the self' there looms the specter of 'the other'".[11] Because of that intertwinement, I do not think it is possible to retrieve a kind of "pure Christian core" that has not been impacted by the process of religionization. The creation of a sense of Christianness is permeated by the construction of religionized others. This raises doubts about whether Christian theology can ever fully free or purify itself from these processes of selfing and othering, which risk obscuring the ongoing force of religionized legacies in the present–much like color-blindness obscures contemporary racism. It is better to take responsibility for our tradition and stay with the trouble, like Donna Harraway.[12] Therefore, I would say that the effort to formulate a supersessionist theology is and should be marked by incompleteness: motivated by the hope to avoid religionized violence and rooted in the realization that we have not yet realized this hope; we live in the 'not-yet'.

A second element I want to highlight is this: while there are several historical and theological arguments for considering the relationship between Jews and Christians as unique, and the problem of anti-Jewish supersessionism as well, there are also good reasons to broaden the scope and use supersessionism as a conceptual lens through which to understand the way Christians have historically speaking imagined not only Jews but also Muslims, 'heretics', and even 'pagans/idolaters'.[13] It is good to zoom in and to limit the scope of comparative theology to only two traditions—in my case Christianity and Judaism. However, it is also important to examine how, in the Christian imagination, supersessionist patterns of thinking also impacted the way Muslims, heretics, and pagans were made into "Christian theological problems". Comparative theologians rightly focus on the particularity of religious traditions and seek to avoid comparative generalities; however, this focus on going deep comes at the risk of not paying enough attention to systematic patterns and interrelations between the ways Christians have imagined, constructed and treated non-Christians.[14] My own research has shown that what Christian theologians said about Jews was sometimes, in certain contexts, also said about Muslims, who were projected as some kind of Jews; and Muslims were sometimes called idolaters and pagans, and at other times heretics.[15] The supersessionist theological logic that convinced Christians they were substitutes for the Jewish people in God's plan of salvation, furthermore also set in motion a colonial logic that had

11 Lieu 2004.

12 Harrawat 2016

13 Clearly this is not language that comparative theologians still use today, as it does no justice what-so-ever to the self-understanding of those of other faith traditions. It is derogatory terminology. Therefore, I put it between quotation marks.

14 Jennings 2010; Westerduin 2020.

15 Moyaert 2024.

serious consequences for the indigenous peoples of Europe's colonies; today, we may notice the continuation of the supersessionist logic in how European modernity is projected as having superseded the Christian medieval superstitious mindset.[16] If the aim is to dismantle supersessionist theologies, comparative theologians should both go deep and broad; they should attend to particularities and systematically uncover patterns that help to go to the heart of the problem of supersessionism. We must, therefore, find a way to bring Christian-Jewish comparative theology in conversation with Christian-Muslim and other forms of comparative theology. In this regard, Mehr's chapter is a welcome starting point.

Mehr practices comparative theology from an Islamic perspective. Like me, he explores the possibility of formulating a non-supersessionist theology of the Abrahamic religions. To this end, he analyzes several Quranic verses (Q 2:62; Q 5:43–44 & 48; Q 3:64), convinced that mainstream Islamic theologians mistakenly interpret these verses as supersessionist, not sufficiently considering their non-supersessionist potential. His arguments, as far as I can judge, are convincing. Drawing on my own work as elaborated above, I have three questions that highlight areas for further research.

My first question is what motivates Mehr in his work as an Islamic comparative theologian? From Mehr's chapter, it was not entirely clear what is at stake for him. I get the impression that his work is primarily motivated by the conviction that classical exegesis has wrongly opted for a supersessionist interpretation of Quranic verses that can be read differently. He thus wants to make another reading possible and perhaps even mainstream. However, I could not quite determine whether Mehr is also concerned about the violent potential—historically realized or not—of Islamic supersessionism. Is supersessionist violence also a problem within certain Islamic traditions, and does this play a role in his search for a different non-supersessionist theology? To what extent is Merh's comparative theology also a comparative theoetics, which recognizes that theology and ethics are mutually informing, and that recognizes the ethical implications of theological perspectives.

Secondly, Mehr clearly states that his non-supersessionist theological framework goes against the grain; most Islamic scholars "assume that the Quran is supersessionist". I am interested in why mainstream Quranic exegetes opted for a supersessionist interpretation of the verses, which Mehr discusses and which according to him have a clear non-supersessionist meaning. I wonder, why mainstream Islamic scholars went to such lengths to *explain away* the "non-supersessionist implications" of the verses under scrutiny. Against what background did they read and interpret these verses, and what is the historical-cultural and socio-political

16 Westerduin 2020.

context within which Islamic theologians developed supersessionist theology? I wonder if the concept of religionization may also be applicable in this context? Were Islamic theologians also in the process of constructing an Islamic sense of religious normativity by delegitimizing other traditions? Or is something else at play?

Thirdly, Mehr makes it clear that his reflections and his attempt to arrive at a non-supersessionist interpretation of the Quranic verses apply specifically to the Abrahamic religions—Judaism, Christianity, and Islam. The so-called people of the book are set apart, and the dismantlement of supersessionism is a theological project that pertains to them primarily. However, this excludes non-Abrahamic religions, which according to Mehr, are not mentioned in the Quran. However, the Quran does also talk about 'pagans' or 'idolaters'. How do they fit into the supersessionist logic, and should they not become part of this larger project? Indeed, I would find it fascinating to explore whether there is also entanglement of categories of religious otherness within the Islamic imagination. Are Christians portrayed as pagans or heretics, Jews as Christians? Is it always clear in Quranic exegesis that Abrahamic religions are a separate category, or are there comparisons and shifts depending on context and rhetoric? This is a question beyond the scope of the chapter but perhaps something that could be explored further.

It should be clear by now that Mehr's chapter triggered many questions. In any case, his work makes me enthusiastic for joint research projects that further explore and compare Jewish, Christian and Islamic supersessionist and non-supersessionist theologies of religious others. Perhaps by theologizing together, in dialogue and comparatively, we can stay in trouble while hoping for a future marked by reconciliation.

Bibliography

Clooney, Francis X. (2010), *Comparative Theology: Deep Learning Across Religious Borders*, Malden: Wiley-Blackwell.

Clooney, Francis X. (2022), "Catholic Roots for the Discipline", in: *A Companion to Comparative Theology*, edited by Pim Valkenberg with Marianne Moyaert et al. (Brill's Companion to Modern Theology), Leiden: Brill: 31–49.

Clooney, Francis X (2018) "Nostra Aetate and the Small Things of God", in: Catholicism Engaging Other Faiths Vatican II and its Impact, edited by Vladimir Latinovic · Gerard Mannion Jason Welle, O.F.M. (Patheways for Ecumenical and Interreligious Dialogue), Cham: Palgrave MacMillan, 305–316

Cornille, Catherine (2020), *Meaning and Method in Comparative Theology*, Hoboken: Wiley.

Freidenreich, David M (2023), *Jewish Muslims*, Berkeley: University of California Press.

Haraway, Donna J. (2016), *Staying with the Trouble: Making Kin in the Chthulucene* (Experimental futures: technological lives, scientific arts, anthropological voices), Durham: Duke University Press.

Hedges, Paul (2012), “The Old and New Comparative Theologies: Discourses on Religion, the Theology of Religions, Orientalism and the Boundaries of Traditions”, *Religions* 3 (4): 1120–1137. https://www.mdpi.com/2077-1444/3/4/1120.

Hedges, Paul, (2017), *Comparative Theology: A Critical and Methodological Perspective*, vol. 11 (Brill Research Perspectives in Theology), Leiden: Brill.

Jennings, Willie James (2010), *The Christian Imagination: Theology and the Origins of Race*, New Haven: Yale University Press.

Joslyn-Siemiatkoski, Daniel (2022), “Towards an Anti-supersessionist Theology: Race, Whiteness, and Covenant”, *Religions* 13 (2), 129.

Medina, Nestor, (2019), “The Doctrine of Discovery, LatinXo Theoethics, and Human Rights”, *Journal of Hispanic / Latino Theology* 21 (2), 157–173.

https://repository.usfca.edu/jhlt/vol21/iss2/4

Moyaert, Marianne (2017), “Comparative theology after the Shoah: Risks, pivots, and opportunities of comparing traditions”, in: Francis X. Clooney, Klaus von Stosch, eds., *How to Do Comparative Theology*, New York: Fordham University Press.

Moyaert, Marianne, (2024), *Christian Imaginations of the Religious Other: A History of Religionization*, Hoboken: Willey-Blackwell.

Westerduin, Matthea (2020), “Questioning Religio-Secular Temporalities: Mediaeval Formations of Nation, Europe and Race”, *Patterns of Prejudice* 54 (1–2), 136–149.

Idris Nassery

Chapter 9
Iǧtihād Beyond Boundaries: The Non-Muslim as *Muǧtahid* between Competence and Authority

Few concepts in Islamic legal thought have attracted as much scholarly and polemical attention as *iǧtihād*. Defined classically as the exertion of intellectual effort to derive a ruling from the sources of the Sharīʿa, *iǧtihād* embodies the dynamic and interpretive core of Islamic law. For centuries, it has been regarded as both a sign of jurisprudential vitality and a measure of the epistemic humility of jurists: while the truth of divine law is absolute, human access to it is always mediated through interpretation, argument, and contestation.

Modern scholarship has often narrated the history of *iǧtihād* through the trope of decline. The well-worn thesis of the "closure of the gate of *iǧtihād*" presented Islamic law as a once-creative tradition that ossified after the third/ninth century. Joseph Schacht's formulation exerted lasting influence, echoed by J. N. D. Anderson and H. A. R. Gibb.[1] Later research has shown that the narrative of a definitive "closure" is historically unsustainable. Jurists capable of *iǧtihād* continued to operate, and discussions about its scope remained active throughout the centuries. This recognition underscores the continuing relevance of *iǧtihād* not merely as a medieval construct, but as a perennial feature of Islamic legal reasoning.[2]

While questions of vitality and closure have framed much of the academic debate, less attention has been paid to a different set of questions: Who may perform *iǧtihād*, under what conditions, and with what authority? Classical *uṣūl al-fiqh* works formulated demanding but not unattainable qualifications, focusing above all on epistemic competence in the relevant sciences: mastery of Qurʾān, Sunna, consensus, analogy, and language, as well as familiarity with jurisprudential disagreement (*ḫilāf*) and customary practice (*ʿurf*). Personal attributes such as male gender, freedom, or even moral probity were not always considered prereq-

1 Schacht 1964, 70–71. Schacht was not the first to affirm the closing of the gate of the *iǧtihād*. For an earlier assertion, see Gibb 1949, 97–98.

2 On this issue, see Hallaq 1984; idem 1997. For an excellent overview, see also Emon 2019.

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uisites for the validity of *iǧtihād*; rather, they were conditions for the acceptance of a *fatwā* within the community.[3]

Instead of rehearsing the later disputes in detail, one may simply note that classical jurists gradually extended the discussion beyond technical competence to questions of authority and recognition. By the thirteenth century, some authors came to consider Muslim faith a prerequisite for authoritative *iǧtihād*, while others preserved a distinction between the cognitive act of legal reasoning and the communal acceptance of its results. These divergences reveal a deeper structural tension in Islamic legal theory: the relationship between competence and authority, between the validity of *iǧtihād* and the acceptance of *fatwā*. It is precisely this tension that will serve as the conceptual entry point for the present chapter.

This chapter takes these classical insights as its point of departure and explores how they can be sharpened through the lens of Comparative Theology. As Francis X. Clooney has argued, Comparative Theology is not a neutral science of religions but a confessional practice of faith seeking understanding across traditions.[4] It cultivates hermeneutical hospitality, reflexive positionality, and a culture of productive disagreement. These tools provide a framework for re-imagining *iǧtihād* as a practice that may draw upon non-Muslim expertise— philological, historical, or philosophical—without relinquishing Muslim authority over the binding act of *fatwā*.

The argument unfolds in three steps. It begins with a close reading of classical discussions of *iǧtihād* and the ways in which jurists negotiated the relation between competence and recognition. It then turns to three guiding questions: whether *iǧtihād* should be conceived as individual or collective, whether a non-Muslim can on epistemic grounds qualify as a *muǧtahid*, and whether the *iǧtihād* of a non-Muslim can be admitted into Muslim deliberation. Finally, the chapter proposes a conceptual matrix of "agency" and "recognition" that maps the possible roles of non-Muslim contributions—from auxiliary evidence (*amārāt*) to peer review to dialogical co-exegesis. In pursuing these questions, the chapter does not seek to dilute Muslim authority. Its aim is to show that classical legal theory already distinguishes between the cognitive act of *iǧtihād* and the authoritative act of *fatwā*. Comparative Theology helps to render this distinction explicit and offers a framework for responsibly integrating external expertise into Muslim deliberation. In this way, the study not only sharpens our understanding of Islamic legal reasoning but also contributes to wider debates on pluralism, authority, and the conditions of rational discourse in a multi-religious world.

3 al-Ǧaṣṣāṣ, *al-Fuṣūl* (1994), 4, 273; al-Baṣrī, *al-Muʿtamad* (1964), 1, 932; al-Samʿānī, *Qawāṭiʿ* (1997), 2/2, 306; al-Ġazālī, *al-Mustaṣfā* (1324/1906), 2, 350.

4 Clooney 2010, 5.

Traditional Foundations: From an Epistemic to a Theological Model of Authority

The discussion of *iǧtihād* within classical *uṣūl al-fiqh* is not merely a methodological appendix but constitutes the epistemic core of Islamic legal reasoning.[5] It determines who is entitled to derive legal rulings from the revealed sources and under what conditions human judgment may be considered legitimate beneath the sovereignty of divine truth. A closer examination of the historical material reveals a dual structure of validity and recognition. The validity of an act of *iǧtihād* rests upon methodological competence, whereas the acceptance of its results as a binding *fatwā* requires additional conditions—initially those of moral integrity and, in later periods, also of confessional affiliation. This distinction provides the conceptual key for addressing, at a later stage, the question of the role that non-Muslim expertise may play within Islamic legal reasoning.

Epistemic Authority in the Early *Uṣūl* Tradition

In the early classical works of the tenth and eleventh centuries, the *muǧtahid* is defined primarily through epistemic competence and methodological skill. This period marks the consolidation of Islamic legal theory (*uṣūl al-fiqh*) as an autonomous discipline. Authors such as Aḥmad b. ʿAlī al-Ǧaṣṣāṣ (d. 370/981), Abū l-Ḥusayn al-Baṣrī (d. 436/1044), and Manṣūr b. Muḥammad al-Samʿānī (d. 489/1096) articulated their criteria at a time when *uṣūl al-fiqh* was transforming from a casuistic craft into a systematic epistemology of law.[6]

For these thinkers, *iǧtihād* is not a moral virtue but a rationally guided practice of methodological inquiry. Al-Ǧaṣṣāṣ summarizes with remarkable precision the disciplines whose mastery qualifies a *muǧtahid*: knowledge of linguistic expressions, textual categories, the rules governing consensus (*iǧmāʿ*), abrogation (*nasḫ*),

5 Aron Zysow has shown with great precision that *iǧtihād*, in the self-understanding of Islamic legal scholarship, extends far beyond a mere methodological procedure and constitutes the very epistemological core of the law. He recounts the famous anecdote of the Ḥanafī jurist ʿAlāʾ al-Dīn al-Kāsānī (d. 578/1182), who, during a disputation on Abū Ḥanīfa's doctrine of the infallibility of *iǧtihād*, became so impassioned that he raised his whip to strike his opponent. As Zysow comments, this episode captures a "sensitive nerve of Islamic culture," for "upon this doctrine hinges in large measure the role of law among the religious disciplines. The assessment of *iǧtihād* is at the same time an evaluation of the activity of the jurist, for *iǧtihād* of one sort or another is what the jurist practices." Cf. Zysow 2014, 259–260.

6 Hallaq 1997, 117–121.

and analogical reasoning (*qiyās*).[7] Abū l-Ḥusayn al-Baṣrī offers an even more differentiated account of these qualifications. In his *al-Muʿtamad fī uṣūl al-fiqh*, he emphasizes that *iǧtihād* requires not only knowledge of the sources but also the capacity for weighing (*tarǧīḥ*) between competing pieces of evidence.[8] The knowledge of the *muǧtahid* is therefore not a static possession but a cultivated faculty of judgment (*malaka*), manifested in the disciplined exercise of method. Al-Samʿānī captures this notion of competence in a pointed formulation:

«ولا يُعتبر في الاجتهاد أن يكون رجلًا، ولا أن يكون حرًّا، ولا أن يكون عدلًا»

> "For the exercise of *iǧtihād*, it is not required that one be a man, nor that one be free, nor even that one be morally upright."[9]

This statement is far from marginal; it expresses a fundamental methodological insight. In the early phase of *uṣūl al-fiqh*, a distinction was drawn between the capacity for knowledge (*istiʿdād li-l-maʿrifa*) and the social authority of the one who exercises judgment. The truth of a legal judgment depends on the logical structure of its reasoning, not on the moral quality of the person who issues it. Thus, *iǧtihād* emerges as an epistemic activity whose legitimacy is determined by method rather than by charisma.

In the same vein, al-Ǧaṣṣāṣ explicitly marks the distinction between the validity of the cognitive act and the acceptance of its results:

«فأمّا إن جمع ذلك ولم يكن عدلًا فإنّ فتواه غير مقبولة»

> "If he possesses all these qualifications yet lacks moral integrity, his *fatwā* is not to be accepted."[10]

The statement is paradigmatic for the relationship between knowledge and social recognition. The cognitive achievement remains intact even if its bearer is morally

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7 al-Ǧaṣṣāṣ, *al-Fuṣūl* (1994), 4, 272–275. Al-Ǧaṣṣāṣ not only lists the technical disciplines required of the *muǧtahid* but explicitly links them to the principle of *ʿilla* (ratio legis) and the coherence of the *šarīʿa*. He insists that mastery of *qiyās* entails recognizing the relational logic between causes and rulings: «لأن من لم يعرف العلة لم يعرف القياس».His analysis anticipates later *uṣūl* discussions on the epistemic autonomy of causal reasoning and shows an early effort to rationalize revelation without undermining its authority.

8 al-Baṣrī, *al-Muʿtamad* (1964), 1, 932–935.

9 al-Samʿānī, *Qawāṭiʿ* (1997), 2/2, 306. Al-Samʿānī's discussion of the *muǧtahid* is embedded in his broader critique of blind imitation (*taqlīd*). He frames *iǧtihād* as an act of *kasb*—human acquisition of divine meaning—thus positioning rational inquiry as a form of moral responsibility. By denying that gender, status, or personal virtue are conditions for valid *iǧtihād*, he effectively detaches the epistemic act from the social hierarchies that structured pre-modern scholarly authority.

10 al-Ǧaṣṣāṣ, *al-Fuṣūl* (1994), 4, 273.

or socially deficient. *ʿAdāla* is a condition for the communicative reception of the ruling, not for the epistemic soundness of its derivation.

Abū Ḥāmid al-Ġazālī (d. 505/1111) continues this line of thought but expands it with an epistemological and anthropological dimension. In his *al-Mustaṣfā*, he portrays the science of legal theory as a tree cultivated by human effort: its roots are the sources of revelation, its trunk and branches the hermeneutical procedures, and its fruits the concrete legal rulings. The *muǧtahid* is the cultivator who, through his exertion (*iǧtihād*), brings knowledge itself to fruition.[11] Thus, *uṣūl al-fiqh* becomes a doctrine of revelation activated through human reason. Al-Ġazālī defines the prerequisites of *iǧtihād* with the same rational precision as his predecessors—knowledge of the legal verses of the Qurʾān, of *ḥadīth* criticism, of linguistics, of abrogation, and of analogical reasoning—and at the same time affirms that moral integrity (*ʿadāla*) is not a condition for the validity of *iǧtihād*. Only in the act of public mediation as a *muftī* does moral trustworthiness become a prerequisite for the acceptance of one's judgments.

In this way, Ġazālī makes clear that the chapter on *iǧtihād* in classical *uṣūl al-fiqh* is not a mere methodological appendix but the epistemic core of Islamic legal reasoning. The *muǧtahid*, in his conception, embodies the intersection of divine revelation and human rationality. His authority derives not from office but from the disciplined exercise of reason that translates revelatory knowledge into the sphere of responsible justification.

The early *uṣūl* tradition thus articulates a pure model of competence. *Iǧtihād* is a methodically regulated practice of knowledge whose legitimacy arises from the internal coherence of its arguments. Personal attributes pertain to the question of communicative recognition, not to the epistemic validity of the reasoning. This distinction, which at first appears technical, would later become a foundational principle of Islamic legal rationality.

11 al-Ġazālī, *al-Mustaṣfā* (1324/1906), 1, 8–9. In his introduction to *al-Mustaṣfā*, al-Ġazālī presents *uṣūl al-fiqh* as the "science of the tools of *iǧtihād*" (*ʿilm ālāt al-iǧtihād*), emphasizing its mediating function between divine revelation and human understanding. The famous tree metaphor—roots as sources, trunk as hermeneutics, fruit as rulings—illustrates his conviction that revelation achieves normative vitality only through disciplined reasoning. Elsewhere (2, 350 ff.), he clarifies that *ʿadāla* is a condition for the acceptance of a *fatwā* but not for the validity of *iǧtihād*, a distinction that would shape later debates on epistemic versus social legitimacy.

From Epistemic Competence to Confessional Affiliation

While the early *uṣūl* tradition derived the legitimacy of legal judgment from epistemic competence, later scholastic thought increasingly tied it to confessional belonging. This development reflects a shift in emphasis within Islamic legal methodology, in which methodological expertise and faith commitment came to be newly interrelated.

In the work of ʿAlī b. Muḥammad al-Āmidī (d. 631/1233), this tendency received a systematic formulation. In his *al-Iḥkām fī uṣūl al-aḥkām*, he explicitly lists belief in God and in the Prophet as prerequisites for *iǧtihād*:

«أول شروط المجتهد أن يكون عارفاً بوجود الرب مصدقاً بالرسول وبما جاء به من الشرع.»

"The first condition of the *muǧtahid* is that he recognizes the existence of the Lord and affirms the Messenger and that which he has brought in the law."[12]

This places the act of legal reasoning explicitly within the sphere of faith. Epistemic competence alone no longer suffices without confessional affirmation. This reorientation also alters the very notion of objectivity. Whereas authors such as al-Baṣrī and al-Samʿānī grounded the truth-claim of a legal judgment in the methodological rigor of its reasoning, al-Āmidī now anchors it within the domain of religious belonging. Truth no longer appears solely as the outcome of coherent argumentation, but as an expression of confessional situatedness within the Islamic community.

The subsequent Šāfiʿī scholars Ǧamāl al-Dīn al-Isnawī (d. 772/1370) and Tāǧ al-Dīn al-Subkī (d. 771/1370) deepened this trajectory. Al-Isnawī states in his *Nihāyat al-sūl fī šarḥ minhāǧ al-uṣūl*:

«الإسلام شرط للمجتهد، لأن الكافر لا يصلح أن يكون من أهل الاجتهاد.»

"Islam is a condition for the *muǧtahid*, for the unbeliever is not fit to be among the people of *iǧtihād*."[13]

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12 al-Āmidī, *al-Iḥkām* (1981), 4, 162. Al-Āmidī explicitly lists faith in God, the Prophet, and the revelation as the primary conditions for *iǧtihād*, grounding them in the rational necessity that one who derives divine norms must also affirm their source. His formulation reveals that while epistemic competence remains indispensable, it is firmly situated within a framework of theological certainty.

13 al-Isnawī, *Nihāyat* (1924), 3, 324. Al-Isnawī articulates the requirement of Islam in sharp contrast to the notion that methodological proficiency alone would suffice. While conceding that a non-Muslim might in theory possess the requisite analytical skills, he maintains that such a person

Similarly, al-Subkī writes in his *Ǧamʿ al-ǧawāmiʿ*:

«لا يصح الاجتهاد إلا من مسلم عدل.»

"*Iǧtihād* is valid only when it is performed by a just Muslim."[14]

These stipulations refer to the jurist as a person rather than to the structure of the cognitive act itself, yet they significantly reshape the relation between competence and belonging. Authority is now grounded less in methodological mastery and more in one's inclusion within the community of believers.

This theologization of legal authority is not merely a sign of increased piety; it reflects a deeper response to institutional and social transformations. With the consolidation of the legal schools (*maḏāhib*), the professionalization of the scholarly class, and the growing entanglement between legal authority and public order, a new need for stability and collective self-assurance emerged. As Wael B. Hallaq has observed, the scholastic manuals of this period reflect a legal order in which the hallmark of juristic excellence was not innovation but the ability to preserve and justify authoritative school doctrine—marking a transformation from individual epistemic autonomy to the institutional continuity of the *madhhab*.[15]

Nevertheless, the earlier distinction between the validity of *iǧtihād* and the acceptance of its results remains intact. Faith now becomes a condition for recognition, yet the methodological performance of legal reasoning continues to operate on an independent epistemic level. The *muǧtahid* still moves within the sphere of probability (*ẓann*) and follows the same logical procedures of analogy and interpretation. The transformation thus affects not the rationality of the process but the locus of its legitimation.

This reorientation marks the second stage in the development of Islamic concepts of authority. Knowledge remains the instrument, while faith becomes the condition for its communal recognition. In later centuries, thinkers such as al-Ṭūfī

lacks the *intention of drawing nearer to God* (*qaṣd al-taqarrub ilā llāh*), which endows the act of legal reasoning with its religious meaning and legitimacy.

14 al-Subkī, *Ǧamʿ*, (2003), 76. Al-Subkī builds upon al-Isnawī's position and introduces a dual condition: the *muǧtahid* must be both a Muslim and a person of moral integrity (*ʿadl*). This coupling of religious affiliation with ethical probity reflects a mature scholastic concern to ground juristic authority not only in cognitive competence but also in moral character—a move that redefined, in systematic terms, the relationship between knowledge and virtue. al-Maḥallī (d. 864/1460), in his *al-Badr al-Ṭāliʿ fī ḥall Ǧamʿ al-Ǧawāmiʿ*, a commentary on al-Subkī's *Ǧamʿ al-ǧawāmiʿ*, emphasizes that the scholars who achieve consensus (*ahl al-ijmāʿ*) must themselves be *muǧtahids*, and that "*al-islāmu sharṭun fī l-iǧtihād*"—Islam is a prerequisite for the performance of *iǧtihād*. Cf. al-Maḥallī, *al-Badr* (2005), 2, 132.

15 Hallaq 2001, 236.

and al-Šāṭibī sought to restore the autonomy of rational competence within revelation, a project that would eventually be codified by al-ʿAṭṭār and echoed in Šīʿī scholarship by al-Māzandarānī.

The Reconfiguration of Methodological Authority

In several works of the fourteenth century, the late-medieval *uṣūl* discourse displays a renewed self-reflection on the autonomy of rational judgment within revelation. Representative of this tendency are Najm al-Dīn al-Ṭūfī (d. 716/1316) and Abū Isḥāq al-Šāṭibī (d. 790/1388), whose writings emphasize the methodological independence of reason in the process of legal cognition.

In his *Šarḥ Muḫtaṣar al-Rawḍa*, al-Ṭūfī draws a sharp line between the exercise of *iǧtihād* and the acceptance of its results. The capacity for *iǧtihād* rests on methodological competence; moral integrity and faith matter for the public acceptance of a *fatwā*. He states:

«لا يُشترطُ عَدالةُ المُجتهدِ في كونِهِ مُجتهدًا؛ لأنَّ تَصوُّرَ الأحكامِ واقتناصَها بالأدلَّةِ يَصِحُّ من العدلِ والفاسقِ، بل والكافر[…] وإنَّما تُشترطُ عدالتُه لِقَبولِ فُتياه.»

> “It is not required that the *muǧtahid* be morally upright, for the conceptualization of rulings and their derivation from the proofs can be accomplished by the just, the sinner, and even the unbeliever […] Moral probity is required only for the acceptance of his *fatwā*.”[16]

Al-Ṭūfī thus separates the act of legal reasoning from the moral or confessional status of its performer. Rationality, in his view, possesses a universal structure: wherever the evidence (*adilla*) is methodically analyzed, valid knowledge becomes possible—independent of the faith of the one who reasons. *Iǧtihād* therefore appears as a cognitive practice grounded in the logic of argumentation rather than in the piety of the jurist.

Abū Isḥāq al-Šāṭibī develops this line in *al-Muwāfaqāt fī uṣūl al-šarīʿa*. Reporting the stance of the *nuẓẓār* (“the theorists”), he notes that *iǧtihād* can, in principle, be performed even by a non-believer, because it rests upon premises whose soundness, once posited, does not depend on the agent’s creed:

16 al-Ṭūfī, *Šarḥ* (1990), 3, 588. Al-Ṭūfī’s discussion is among the clearest expressions of the post-classical insistence on the universality of the rational method and the independence of legal reasoning from the personal moral standing of the jurist.

«وقد أجاز النُّظَّارُ وقوع الاجتهادِ في الشريعةِ من الكافرِ المُنكرِ لوجودِ الصانعِ والرسالةِ والشريعةِ، إذ كان الاجتهادُ إنّما يُبنى على مُقدّماتٍ تُفرَضُ صحَّتُها، كانت كذلك في نفسِ الأمر أوّلاً، وهذا أوضحُ من إطنابٍ فيه.»

"The theorists have permitted the occurrence of *iğtihād* in the Sharīʿa even by an unbeliever who denies the existence of the Creator, Prophethood, and the Law, for *iğtihād* is built upon premises whose validity, once posited, stands in itself; this needs no elaboration."[17]

The thrust here is epistemological rather than theological: if legal inference operates on conditional premises, the person's belief cannot determine validity. The passage reads less like a historical report than like a principle clarifying the independence of methodological soundness from personal or moral qualities;[18] it also gestures toward a distinction between personal uprightness and scholarly integrity, where only the latter conditions epistemic validity, while the former conditions social acceptance.[19]

Later *uṣūl* commentaries codified this distinction with increasing clarity. ʿAbd al-Raḥmān al-ʿAṭṭār (d. 1250/1834) summarizes the principle with precision in his *Ḥāšiya* on al-Isnawī:

«الإسلام شرط في قبول الاجتهاد لا في صحته»

"Islam is a condition for the acceptance of *iğtihād*, not for its validity."[20]

With this formulation, al-ʿAṭṭār gives the trajectory initiated by al-Ṭūfī and al-Šāṭibī a definitive shape: methodological soundness determines the validity of a legal judgment, while faith determines only its recognition within the community.

A parallel reflection can be found within the Šīʿī tradition, notably in Muḥammad Bāqir al-Māzandarānī (d. 1285/1868). In his *Kawāšif al-ḥuğub ʿan muškilāt al-kutub*, he describes the capacity for juristic derivation (*istinbāṭ*) as an expression

17 al-Šāṭibī, *al-Muwāfaqāt*, 4, 80.

18 al-Wadʿān, *Mā lā yarāhu,* 1, al-Ālūka, available at: https://www.alukah.net/sharia/0/115797, acł cessed 22 November 2024. Al-Wadʿān interprets the relevant passage in al-Šāṭibī not as a historical report but as the formulation of a general principle. He points out the ambiguity of Šāṭibī's reference to *al-nuẓẓār* ("the theorists") and argues that Šāṭibī's intention is to establish a methodological rule: the validity of *iğtihād* depends on epistemic procedure, not on the personal or moral qualities of the jurist.

19 al-Raysūnī, *al-Tajdīd* (2014), 713. Al-Raysūnī draws a clear distinction between *al-ʿadāla al-šaḫṣiyya* (personal integrity) and *al-ʿadāla al-ʿilmiyya* (scholarly integrity), associating them respectively with the acceptance (*qabūl*) and the validity (*ṣiḥḥa*) of *iğtihād*. His analysis reinforces the classical differentiation between epistemic performance and the social or normative recognition of a *fatwā*.

20 al-ʿAṭṭār, *Ḥāšiyat* (2003), 76.

of universal rationality.[21] For him, *fiqh* is an autonomous science whose procedures operate independently of theological premises. Juristic expertise, he argues, does not rest on personal faith but on the mastery of specific methodological skills—command of language, familiarity with the sources of law, and competence in analogical reasoning. Even a non-Muslim, in his view, can attain full juristic competence if he possesses the necessary methodological tools. Faith (*īmān*), therefore, is not a condition for the validity of the epistemic act but only for its social and normative recognition. This distinction between epistemic capacity (*malaka*) and religious authority stands at the center of al-Māzandarānī's conception of legal knowledge. In his interpretation of the *uṣūlī* tradition, the ability to infer legal rulings from the sources is not intrinsically bound to the believer's confession. What is decisive is the disciplined application of reason and the ability to draw coherent conclusions from the evidence (*adilla*). Reason appears as a universal instrument of cognition whose reach transcends confessional boundaries. Knowledge arises wherever the principles of sound inference are observed, not solely within the framework of faith.

In this perspective, a trans-sectarian insight already implicit in both Sunnī and Šīʿī *uṣūl* theory is carried forward: the authority of reason in Islamic legal methodology is, in principle, universal, even if its normative effectiveness remains tied to communal recognition. From al-Ṭūfī to al-Māzandarānī, one can discern a continuous effort to uphold the rationality of *iǧtihād* against moral and confessional exclusivism. The authority of the jurist rests upon methodological rigor rather than religious affiliation. At the same time, religious acknowledgment—just as in the early tradition—remains the condition of normative bindingness. Thus, in the late-medieval and early modern *uṣūl* discourse, epistemic humility is joined with a deepened awareness of the autonomy of reason within revelation.

21 al-Māzandarānī, *Kawāšif*, cited in Ehteshami and Rezakhany 2023, 94–112. Al-Māzandarānī, whose very title "Unveiling the Veils" (*Kawāšif al-ḥujub*) signals his epistemological ambition, conceives of legal reasoning as a gradual process of unveiling the latent meanings of revelation through disciplined inquiry. The act of *istinbāṭ* thus represents not the creation of law but its discovery through the removal of interpretive veils that obscure divine intent. In this framework, rational investigation (*naẓar ʿaqlī*) functions as the key instrument by which the jurist moves from concealment to disclosure—transforming the *ḥujub* (veils) of textual ambiguity into the clarity of legal understanding. This hermeneutic metaphor aligns with al-Māzandarānī's broader view of *fiqh* as a universal science of discernment, accessible to any mind disciplined by method rather than confined by faith.

Systematic Synthesis

The preceding analysis has shown that *iğtihād* in the classical *uṣūl* tradition was conceived as an epistemic competence whose legitimacy derives from the coherence of its reasoning rather than from the moral or confessional status of the jurist. This structure makes it possible to understand *iğtihād* as a general mode of theological rationality that mediates between divine revelation and human judgment. It thus appears not merely as a juridical category but as a hermeneutical figure of theological cognition, animated by difference, discursivity, and relational truth. From this perspective, *iğtihād* emerges as a form of knowing that does not possess truth but moves toward it—aware that truth discloses itself only within the relation between revelation, reason, and human responsibility. Its exercise is a process of accountable approximation that aims at coherence and justification while acknowledging the provisional nature of every insight. It does not question the unity of divine truth, yet it recognizes the limits of human capacity to grasp it from a single perspective. In this tension between divine transcendence and human finitude, *iğtihād* becomes an epistemic locus of theological humility.

Comparative Theology takes up and deepens this dynamic. While classical *iğtihād* remained oriented toward the inner discourse of Islamic scholarship, the comparative perspective opens a space of shared theological rationality. Within this space, the pursuit of understanding itself becomes a form of religious responsibility. Through dialogue with other theological traditions, *iğtihād* gains a new dimension: it becomes a collective process of learning in which difference is not abolished but methodically rendered fruitful.

Just as the classical *uṣūl* tradition maintained the autonomy of *iğtihād* vis-à-vis authority and dogma, so Comparative Theology insists that truth comes to light only in conversation. In this sense, it renews *iğtihād* by transforming its methodological rationality into a hermeneutical practice of mutual understanding. The focus thus shifts from individual competence to shared responsibility for knowledge, from exclusive claims of validity to the dialogical testing of truth.

What arises is a new framework for Islamic theological rationality. *Iğtihād* remains a symbol of responsible judgment but becomes a theological paradigm for discourse that is conscious of its own limitations and yet aspires to intersubjective validity. At this intersection, Islamic normativity and Comparative Theology meet—in their common search for a form of truth that is neither relativistic nor authoritarian, but relational, reasoned, and open to learning.

Collective Resonance

Classical discourse on *iǧtihād* conceives legal reasoning as an exertion of individual judgment. It represents an act of personal responsibility before revelation and, at the same time, the disciplined methodology that structures the relation between divine truth and human understanding. Yet this individuality was never understood as isolation. From its inception, *iǧtihād* functioned as an act of rational communication embedded within the scholarly community. Already in the formative period of *uṣūl al-fiqh*, juridical authority was not derived from charisma but from the ability to render one's reasoning accountable before a circle of methodologically trained peers.[22] Thus, *iǧtihād* possesses from the outset a dialogical character: it is an individual act oriented toward collective resonance.

The modern emergence of collective *iǧtihād* (*al-iǧtihād al-ǧamāʿī*) has rendered this latent social dimension explicit. In view of the growing complexity of modern life and the entanglement of religious, economic, and ethical concerns, responsibility for norm-formation has increasingly been delegated to institutional bodies.[23] Within such frameworks, *iǧtihād* no longer appears as the solitary achievement of the jurist but as the coordinated result of deliberation, in which multiple fields of expertise—legal, theological, medical, and economic—are brought into the conversation. Collective *iǧtihād* thereby becomes a locus of methodological negotiation in which disagreement is not eliminated but employed as a corrective. It extends the classical notion of consultation (*šūrā*) into a modern, interdisciplinary idiom and replaces the competitive model of individual authority with a cooperative model of shared responsibility.[24]

Recent reflections on the theory of *iǧtihād*, however, emphasize that the mere institutionalization of this process does not guarantee the intellectual or spiritual

22 Ahmad 2012, 49–51. Ahmad argues that both pre- and post-*madhhab* forms of *iǧtihād* display a continuity of methodological responsibility rather than a rupture of authority. Even before the institutionalization of the legal schools, juristic deliberation depended less on charismatic insight than on the disciplined capacity (*naẓar*) to evaluate proofs and render judgments in conversation with one's scholarly peers. As Ahmad shows, figures such as Ibn Daqīq al-ʿĪd and al-Zarkashī distinguished the capacity for reasoning (*qudrat al-naẓar*) from the mere reproduction of a school's doctrines, thereby linking legal authority to cognitive competence rather than to institutional affiliation.

23 Makhlouf 2018, 187–256. In his comprehensive analysis of contemporary *iǧtihād* institutions, Makhlouf demonstrates how the growing complexity of social, economic, and ethical questions has led to the establishment of transnational and national *fiqh* academies—such as al-Azhar's *Maǧmaʿ al-buḥūṯ al-islāmiyya* and the *Maǧmaʿ al-fiqh al-islāmī* of the OIC—which exemplify the structural transition from individual to collective modes of legal reasoning.

24 Makhlouf 2018, 151–152.

depth of judgment. Where procedural form supplants inner exertion, the act of reasoning risks devolving into administrative routine. The original vitality of *iğtihād*—its character as an intellectual and moral discipline situated between reason and conscience—wanes when it is reduced to a formal mechanism of collective approval.[25] A theologically renewed conception of *iğtihād* must therefore preserve the interior seriousness of judgment: knowledge is not simply a rule for action, but a disposition of responsibility that continually moves toward truth.

This insight attains further significance in plural and post-traditional societies where Muslims exercise their interpretive agency in dialogue with other intellectual and spiritual traditions. In such contexts, *iğtihād* becomes not only a method of legal reasoning but also a mode of cultural self-articulation. It gives voice to faith amid multiple rationalities and turns interpretation itself into a site of religious self-understanding. Within this multiplicity of cultural and religious worlds, *iğtihād* emerges as a locus of comparative theology. The act of judgement no longer mediates solely between revelation and reason but unfolds within the horizon of other religious rationalities, which both challenge and enrich it. Comparative theology renders this process of mutual illumination methodically transparent, transforming *iğtihād* into a dialogical practice of understanding. From a theological perspective, this development signals a decisive transformation. While classical iğtihād focuses on the rational preconditions of responsible judgement, collective iğtihād introduces an institutional dimension of accountability. It generates a hermeneutical public sphere in which reasoning is not only methodically verifiable but also discursively legitimized. Truth is no longer conceived as the possession of an individual intellect but as a relational event that is tested and refined through the exchange of arguments. This structure corresponds to the comparative-theological conception of learning as a critical process of inquiry: truth is sought through engagement with the other, whose perspective becomes a criterion for the refinement of one's own conviction.[26] The interlocutor thus ceases to represent a threat to identity and becomes instead a condition for theological clarification. Openness and commitment are not opposites but mutually constitutive dimensions of an understanding that proves its integrity only in the reciprocity of questioning and self-examination.

In this sense, comparative hermeneutics may be understood as an extension of collective *iğtihād*. It transforms institutional cooperation into an interconfessional

25 Ahmad (2012), 13.

26 von Stosch 2012, 19. Von Stosch describes comparative theology as a critical process of truth-seeking in which engagement with the religious other becomes both a test and a deepening of one's own theological conviction. For a comprehensive discussion of his approach, see von Stosch, 2002, 294–311 and von Stosch 2012.

process of learning and turns theological judgment into a shared act of responsibility. Whereas the legal academies of the Islamic world translated *iǧtihād* into collective procedures of juridical deliberation, the comparative perspective opens a new form of theological collegiality. It expands the community of interpreters beyond confessional boundaries and conceives the pursuit of truth as an intellectual and spiritual practice in which difference does not divide but deepens understanding. For contemporary Islamic theology, this transformation entails not relativization but refinement. The comparative perspective does not diminish the authority of *iǧtihād*; rather, it sharpens its awareness of the epistemic and ethical conditions of responsible cognition. By integrating difference methodically, *iǧtihād* becomes a form of collective hermeneutics in which individual competence and communal discernment mutually sustain one another. Knowledge thus arises within a space of shared accountability, animated by methodological integrity, intellectual humility, and dialogical openness.

The point may be stated succinctly: *iǧtihād* remains individually possible but becomes fruitful only in its collective form. Its truth unfolds not in possession but in the shared responsibility of mutual understanding. In this respect, *iǧtihād* stands as a theological symbol of relational knowledge—and comparative theology as its contemporary institutional and methodological resonance.

Iǧtihād and the Challenge of the Other

The question of whether a non-Muslim can be a *muǧtahid* and whether his *iǧtihād* may be recognized touches upon the relationship between cognitive competence and authority, between fidelity to revelation and the exercise of reason. As established above, the classical *uṣūl* tradition understood the capacity for *iǧtihād* (*malakat al-iǧtihād*) as a methodological competence grounded in thorough knowledge of the sources, linguistic precision, and logical coherence. This capacity is epistemically independent of confessional allegiance or moral status. The authority of an act of *iǧtihād*, however—its normative validity within the community—remains bound to Muslim faith commitment.

This distinction opens the horizon in which Comparative Theology becomes theologically fruitful. It allows for a differentiation between cognition and normative authority: knowledge can be shared, while authority remains bound. A non-Muslim scholar may participate epistemically in the process of reasoning without entering the sphere of normative legitimation. In this way, a space of shared rationality emerges in which Muslim jurists benefit from the reflection and critique of their non-Muslim interlocutors without surrendering their religious integrity. The gain of such exchange lies not in outsourcing responsibility, but in deepening methodo-

logical self-awareness. The perspective of the other becomes a hermeneutical companion that unsettles, refines, and extends one's own reasoning. Theology remains truthful only where it does not avoid this encounter but integrates it into its movement of understanding. In this sense, Comparative Theology is not a higher authority between religions but a school of mutual self-transparency, teaching scholars to recognize the presuppositions, interpretive patterns, and tacit certainties of their faith through the lens of another rationality.[27]

Herein lies its specific value for Islamic legal thought. Engagement with non-Muslim rationalities challenges the Islamic disciplines of law and normativity to articulate their arguments in ways that remain confessionally rooted yet intellectually accessible. The Muslim jurist learns to express the logic of revelation in dialogue with broader ethical and philosophical discourses, discerning what belongs to the specificity of faith and what speaks to a shared reason. The aim is not to subordinate religious rationality to external norms, but to manifest the reasonableness of revelation itself within interreligious and interdisciplinary exchange. This transformation also reconfigures the understanding of *iğtihād*. It is no longer an exclusive possession, but a shared process of cognition that proves itself in dialogue. Authority remains rooted in Islam, yet rationality becomes a space of encounter. Comparative Theology thus realizes its deepest intention: truth as a dialogical event that unfolds and deepens through engagement with the other. The reception of a non-Muslim *iğtihād* is therefore not a hierarchical procedure, but a mutual process of learning in which both sides expand their horizons.[28]

On the level of epistemic reception, Muslim scholars may integrate the insights of non-Muslim researchers as contributions to their own inquiry, provided these remain loyal to the methodological spirit of Islamic scholarship. This spirit encompasses not only the discipline of legal methodology (*uṣūl al-fiqh*), but also the systematic dimensions of theology (*kalām*), ethics, and mysticism (*taṣawwuf*), which together shape the relation between reason, morality, and spirituality. What

27 Comparative Theology must always begin from within one's own tradition, yet remain willing to view that tradition through the horizon of the other. It "seeks to include the view of the other into one's own theological horizon, while at the same time granting the other the right to integrate my perspective into his or her theology." See von Stosch 2012, 23–25.

28 A striking example of how a comparative-theological approach can become a performative and appreciative process of learning across traditions is offered by Klaus von Stosch. In von Stosch 2016, 97–112, he shows how theological understanding deepens when one engages attentively with the ritual dimensions of another faith, such as prayer, ablution, and fasting, allowing these practices to challenge, enrich, and renew one's own tradition. Comparative Theology, in this sense, does not merely interpret the other but learns through the other, discovering truth in the reciprocity of faith and reflection. See also von Stosch 2018, 37–58.

matters is not religious affiliation, but a shared commitment to the pursuit of reasoned understanding.

The subsequent communal ratification is not a single act of institutional endorsement, but an ongoing process of discernment within the broader Muslim community. Scholars, academies, and local contexts form a network of discursive responsibility in which *iǧtihād* continually proves its integrity. Its validity arises less from formal authorization than from the resonance it generates within this living exchange of minds. The community thereby becomes the space where *iǧtihād* takes shape as a collective practice of reason— sustained by openness, trust, and the readiness to learn through the perspective of others.

In this way, a form of controlled openness emerges: knowledge becomes dialogical, authority remains anchored in faith, and both achieve understanding through shared learning.

A vivid illustration of this dynamic can be found in contemporary bioethical debates on gene editing. In such discussions, Muslim ethicists engage with Christian, Jewish, and secular colleagues. The arguments of other religious and philosophical traditions do not alter the normative framework of Islamic legal reasoning, yet they expand the horizon in which its principles are interpreted and applied.[29] Concepts such as *maṣlaḥa* (public good) and *ḍarūra* (necessity) acquire greater precision; borderline cases are assessed with deeper nuance; and moral reasoning gains coherence and depth. The process becomes one of mutual inquiry, in which both sides learn to express their commitments more clearly and responsibly.

In this sense, Comparative Theology opens a new epistemic horizon for Islamic normativity.[30] It moves *iǧtihād* from the confines of confessional self-assurance into the breadth of a shared rationality, without undermining the sovereignty of revelation. Its value lies not in weakening Muslim discernment, but in deepening it: it renders theological judgment dialogically accountable and epistemologically transparent. This form of theological rationality reveals that every claim to truth is both conditioned and binding. It guards against the self-sufficiency of dogmatic orthodoxy as well as the arbitrariness of relativistic pluralism, recalling the original spirit of *iǧtihād*—that posture of responsibility in which knowledge has always been relational, situated between the seeker, divine truth, and the moral act of judgment.

29 The deliberative model of the German Ethics Council (*Deutscher Ethikrat*) provides a striking institutional analogue to such dialogical reasoning. Composed of scholars from medicine, law, philosophy, theology, and the natural and social sciences, including both a religious and secular perspective, it exemplifies how ethical reflection can integrate divergent moral frameworks into a shared process of public reasoning.

30 For a particularly compelling account of this dynamic of fruitful learning across legal-theological traditions, see Ralston 2022.

The Practice of Truth

The three guiding questions of this section—concerning the individual and collective forms of *iğtihād*, the possibility of non-Muslim interpretive competence, and the recognition of its results, converge on a single underlying tension: the relationship between competence and authority. In this tension lies the hermeneutical task of Islamic legal thought, namely, to determine how human judgment assumes responsible form in the presence of divine truth. The tension cannot be dissolved but can be rendered productive, as a space of theological self-examination and shared work on truth. Within the horizon of Comparative Theology, this tension is broadened. While the classical *uṣūl* tradition safeguarded the scholar's capacity for judgment against the constraints of authority and dogma, the comparative approach expands this principle by understanding judgment as a faculty that proves itself in dialogue. The encounter with other rationalities invites Muslim jurists to make the reasoning of their judgments transparent, to differentiate their premises, and to articulate the argumentative force of their tradition in ways accessible across confessional boundaries. The normative foundation of *iğtihād* remains intact, yet its epistemic depth is enhanced: to judge now means to render one's own reasoning accountable in the presence of the other. The learning that arises from this perspective consists in a sharpening of theological rationality itself. In conversation, Muslim scholarship uncovers the implicit assumptions of its thought and becomes aware of the cultural situatedness of its normative reasoning. *Iğtihād* thus becomes a discipline of methodological self-transparency, a practice of understanding the self through the other.

This process also refines the notion of authority. Authority remains anchored within the Muslim community, yet it is no longer defined solely by the conferral of validity but by the capacity to withstand the scrutiny of shared reasoning. Juridical ratification becomes a process of accountability within a hermeneutical public composed of scholars, institutions, and communities. The authority of theological judgments rests not on formal legitimation but on the persuasive force they attain in discourse. Authority is therefore not diminished but reconceived as the responsibility to sustain truth in conversation. From this posture arises an intellectual openness in which knowledge and authority do not stand in opposition but mutually sustain one another. The original meaning of *iğtihād* is fulfilled where legal discernment becomes theological self-examination, the risk of encountering truth and remaining faithful to it in thought and in action.

Conclusion

The preceding analysis has brought to light the classical distinction between the validity (*ṣiḥḥa*) and the acceptance (*qabūl*) of *iǧtihād*: epistemic validity arises from methodological coherence, whereas normative bindingness emerges only through communicative processes of Muslim recognition. This differentiation opens a systematic space in which comparative expertise— philological, historical, philosophical, and ethical—can be productively integrated into Islamic legal theory (*uṣūl al-fiqh*) without relativizing the Muslim authority that grounds normative judgment. *Iǧtihād* thus appears not merely as a juridical technique, but as a hermeneutical configuration of theological rationality: truth is not possessed but sought in a responsible movement between revelation, reason, and community.

Comparative Theology builds upon this inner rationality by translating the existing structures of justification into new contexts of reflective understanding. It strengthens the discipline of argumentation already intrinsic to Islamic normativity and understands difference as a productive stimulus to render underlying premises explicit, refine conceptual clarity, and reveal possible connections to shared standards of reasoned discourse—without flattening the revelatory logic of the tradition itself. At the same time, it cultivates a culture of learning and intellectual integrity in which revision is not regarded as weakness, but as an expression of accountable truthfulness.

Within this framework, contributions by non-Muslim scholars can assume a constructive role, not as co-authors of Islamic norm formation, but as dialogical partners who foster methodological precision, linguistic transparency, and interdisciplinary resonance. Their perspectives broaden the horizon of theological reflection without encroaching upon Muslim authority in questions of normative determination. From the interplay between competence and recognition there thus emerges a form of responsible openness in *iǧtihād*: knowledge can be shared, while authority remains bound. This openness arises not from a deficit of rationality but from the strength of a tradition that reflects its reasonableness methodically and accounts for it argumentatively. Authority does not shift from norm to procedure; it proves itself within a hermeneutical public in which reasons are rendered visible, testable, and intelligible. The criterion is not external approval, but the inner coherence and persuasive force of reasoning that withstands engagement with other rationalities without surrendering its own revelatory logic.

In this light, *iǧtihād* becomes a cipher for a theology that is committed to truth while conscious of its own provisionality. Its hermeneutical structure teaches that knowledge endures only where it remains accountable. Such a posture endows Islamic legal thought with lasting vitality: it unites fidelity to revelation with the

willingness to justify itself through argument, thereby preserving the agility of a rational tradition amid the transformations of plural publics.

The value of the comparative perspective lies not in expanding Islamic law through foreign categories, but in deepening its own work of truth. *Iǧtihād* becomes a school of theological attentiveness, teaching that faith remains convincing only where it reflects on its contingency and allows itself to be questioned by the other. Comparative Theology does not open a new space of truth but renders the existing one more transparent. It recalls that the rationality of Islamic law does not consist in demarcation but in the readiness to reaffirm its responsibility to revelation through dialogue.

In this posture, the enduring strength of *iǧtihād* becomes manifest: it embodies a theology that believes by questioning and convinces by allowing itself to be questioned—a theology that does not possess truth but journeys toward it.

Bibliography

Ahmad, Ahmad Atif (2012), *The Fatigue of the Sharīʿa*, London/New York: Routledge.

al-Āmidī, ʿAlī b. Muḥammad (1981), *al-Iḥkām fī uṣūl al-aḥkām*, ed. by ʿAbd al-Rāziq ʿAfīfī, Beirut: Dār al-Kitāb al-ʿArabī.

al-Baṣrī, Abū l-Ḥusayn (1964), *al-Muʿtamad fī uṣūl al-fiqh*, ed. by Muḥammad Ḥamīdullāh, Damascus: Institut Français de Damas.

al-Ġazālī, Abū Ḥāmid (1324/1906), *al-Mustaṣfā min ʿilm al-uṣūl*, 2 vols., Cairo: al-Maṭbaʿa al-Amīriyya.

al-Isnawī, Ǧamāl al-Dīn (1924), *Nihāyat al-sūl fī šarḥ minhāǧ al-uṣūl*, ed. by Muḥammad Bakhīt al-Muṭīʿī, Cairo.

al-Ǧaṣṣāṣ, Aḥmad b. ʿAlī al-Rāzī (1994), *al-Fuṣūl fī al-uṣūl*, ed. by ʿUǧayl Ǧāsim al-Našmī, 2nd ed., Kuwait: Wizārat al-Awqāf.

al-Maḥallī, Jalāl al-Dīn (2005), *al-Badr al-Ṭāliʿ fī ḥall Ǧamʿ al-Ǧawāmiʿ*, ed. by Abū al-Fidāʾ Murtadā ʿAlī, Beirut: Dār al-Risāla.

al-Māzandarānī, Muḥammad Bāqir (2023), *Kawāšif al-ḥuǧub ʿan muškilāt al-kutub*, ed. and trans. by Amin Ehteshami and Hassan Rezakhany, in: Kumail Rajani and Robert Gleave, eds., *Shiʿite Legal Theory: Sources and Commentaries*, Edinburgh: Edinburgh University Press, 94–112.

al-Raysūnī, Aḥmad b. ʿAbd al-Salām (2014), *al-Tajdīd al-uṣūlī*, Herndon: The International Institute of Islamic Thought.

al-Samʿānī, Manṣūr b. Muḥammad (1997), *Qawāṭiʿ al-adilla fī uṣūl al-fiqh*, ed. by Muḥammad Ḥasan Muḥammad, Beirut: Dār al-Kutub al-ʿIlmiyya.

al-Šāṭibī, Abū Isḥāq (n. d.), *al-Muwāfaqāt fī uṣūl al-šarīʿa*, ed. by ʿAbd Allāh Darrāz, Riyadh: Wizārat al-Awqāf.

al-Subkī, Tāǧ al-Dīn (2003), *Ǧamʿ al-ǧawāmiʿ fī uṣūl al-fiqh*, ed. by ʿAbd al-Munʿim Ḫalīl Ibrāhīm, 2nd ed., Beirut: Dār al-Kutub al-ʿIlmiyya.

al-Ṭūfī, Najm al-Dīn (1990), *Šarḥ Muḫtaṣar al-Rawḍa*, ed. by ʿAbd Allāh al-Turkī, Beirut: Muʾassasat al-Risāla.

al-ʿAṭṭār, ʿAbd al-Raḥmān (2003), *Ḥāšiyat al-ʿAṭṭār ʿalā Ǧamʿ al-ǧawāmiʿ fī uṣūl al-fiqh*, ed. by ʿAbd al-Munʿim Ḫalīl Ibrāhīm, 2nd ed., Beirut: Dār al-Kutub al-ʿIlmiyya.

al-Wadʿān, Walīd b. Fahd, "Mā lā yarāhu al-Šāṭibī šarṭan li-l-iǧtihād I." *al-Ālūka*. https://www.alukah.net/sharia/0/115797 (accessed Nov. 22, 2024).

Clooney, Francis X. (2010), *Comparative Theology: Deep Learning across Religious Borders*, Oxford: Wiley-Blackwell.

Emon, Anver M. (2019), "Ijtihād" in: Anver M. Emon and Rumee Ahmed, eds., *The Oxford Handbook of Islamic Law*, Oxford: Oxford University Press, 181–189.

Gibb, H. A. R. (1949), *Mohammedanism*, London: Oxford University Press.

Hallaq, Wael B. (1984), "Was the Gate of Ijtihād Closed?", *International Journal of Middle East Studies* 16 (1), 22–26.

Hallaq, Wael B. (1986), "On the Origins of the Controversy about the Existence of Mujtahids and the Gate of Ijtihād", *Studia Islamica* 63, 129–130.

Hallaq, Wael B. (1997), *A History of Islamic Legal Theories: An Introduction to Sunnī Uṣūl al-Fiqh*, Cambridge: Cambridge University Press.

Hallaq, Wael B. (2001), *Authority, Continuity and Change in Islamic Law*, Cambridge: Cambridge University Press.

Makhlouf, Ahmed Gad (2018), *Das Konzept des kollektiven Iǧtihād und seine Umsetzungsformen. Analyse der Organisation und Arbeitsweise islamischer Rechtsakademien*, Berlin: Peter Lang.

Ralston, Joshua (2022), *Law and the Rule of God: A Christian Engagement with Sharīʿa*, Cambridge: Cambridge University Press.

Schacht, Joseph (1964), *An Introduction to Islamic Law*, New York: Oxford University Press.

von Stosch, Klaus (2016), *Herausforderung Islam: Christliche Annäherungen*, Freiburg i. Br.: Herder.

von Stosch, Klaus (2002), "Komparative Theologie – ein Ausweg aus dem Grunddilemma jeder Theologie der Religionen?", *ZKTh* 124, 294–311.

von Stosch, Klaus (2012a), "Komparative Theologie als Hauptaufgabe der Theologie der Zukunft", in: Reinhold Bernhardt and Klaus von Stosch, eds., *Komparative Theologie. Interreligiöse Vergleiche als Weg der Religionstheologie*, Zürich: Theologischer Verlag Zürich, 19–25.

von Stosch, Klaus (2012b), *Komparative Theologie als Wegweiser in der Welt der Religionen*, Paderborn: Ferdinand Schöningh.

von Stosch, Klaus (2018), "Reflecting on Approaches to Jesus in the Qurʾān from the Perspective of Comparative Theology," in: Francis X. Clooney and Klaus von Stosch, eds., *How to Do Comparative Theology*, New York: Fordham University Press, 37–58.

Zysow, Aron (2014), *The Economy of Certainty: An Introduction to the Typology of Islamic Legal Theory*, Atlanta: Lockwood Press.

Ahmad Atif Ahmad, Muhammad al-Sayyid al-Sayyad

Chapter 10
Knowing God as One's Good Friend: Maṣlaḥa as a Foundation for an Islamic Humanistic Theology

Introduction

It won't be anything new to state that law and theology in Islam are inseparable twins. Any comparative theology that takes Islam as one of its anchors will, hence, need to address a different type of understanding of both religion and theology. Only pragmatists such as William James came as close as Muslim jurists-cum-theologians to acknowledging that a human's inability to understand God's ways allows Muslim lay people to hold views of themselves and of God that may not be quite the correct views but the ones their minds can comprehend. ʿIzz al-Dīn b. ʿAbd al-Salām (d. 660/1262) is explicit that a lay believer thinking of God as 'subsisting in a direction' (*jihah*) is forgivable by Muslims in this world and by God in the hereafter, given the difficulty of understanding a being who is not in space.

It is not so much a change in the subject as a clarification of it that leads one to make a turn from theology as the stiff and stable science of 'knowledge of God' to the notion of *maṣlaḥa*, or the gain and the good humanity needs and could achieve by attending to a divine gaze in the world. This notion of *maṣlaḥa*, thus broadly conceived, is foundational both in understanding God (theology) and understanding how humans need to respond to God in their practical affairs (laws). The same ʿIzz al-Dīn b. ʿAbd al-Salām, as we will detail below,[1] also taught that discerning 'where *maṣlaḥa* is' could be achieved only by knowing God, as if one knew a good friend's way of thinking, and hence deciding that in this or that case, he would do this and avoid that. Knowing the *maṣlaḥa*, in other words, is the work of a lifetime of reflection and search for God's ways in matters of the mind and in matters of the body, if these should be separated.

1 ʿAbd al-Salām (2000), 2, 315.

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The Concept and its Implications

One wishes that *maṣlaḥa* was not such an unlucky term. It is very hard to translate. The Arabic word should invoke a sense of 'the good,' 'something to be pursued,' 'something beneficial,' and 'that which is in your, or someone's, interest.' If we go for '*the good*,' conjuring up the commonly traded statement 'where *maṣlaḥa* is found, God's path is found' (حيثما وجدت المصلحة فثم شرع الله), we fall into an empty tautology. 'Interest,' well-being, and welfare also have their limits. The success of one rendering over another always depends on how the English sentence is built. The scope of the term, with Muslim jurists' being comfortable with expressions such as the 'clash of *maṣāliḥ*' (تعارض المصالح), must be sized to fit in the sentence in which the term appears.

Then there is an added burden. What makes *maṣlaḥa* doubly unlucky (next only to *maqāṣid*, roughly translatable into 'God's purposes') is its centrality in understanding and interpreting God's ways and the paths humans need to travel to meet God halfway. This leads to a frequency with which the term is invoked to solve problems of modern Islamic religious, moral and legal reasoning.

Against a modern overuse of the term, some major Muslim theologians-jurists had denied applying *maṣlaḥa* reasoning (also known as *istiṣlāḥ*—mobilizing *maṣlaḥa*) but have, in fact, used it. In a section which, curiously, discusses *maṣlaḥa* analysis as '*an imaginary source of the laws*' (*min al-usūl al-mawhuma*) in his theoretical jurisprudence compendium, *al-Mustaṣfā*, Abū Ḥāmid al-Ghazālī (d. 505/1111) argued that eliminating a human shield at the front of an invading, hostile army is justified, nay necessary, given a calculation in which '*our side*' may lose 1) the shield alone or 2) both the shield and other 'soldier and civilian' populations. Ghazālī, in other words, does not call this a form of *maṣlaḥa* reasoning, but this is how he justifies his argument, which is indistinguishable from a normal *maṣlaḥa* argument. Killing the innocent (the shield), he says, is impossible to directly justify, but the result that this contingency of innocent Muslims is eliminated shows up on both sides in a broken equation, where on one side only the shield is eliminated, and on the other they are joined by additional combatant and civilian populations. Only on one side is the invading army repelled, and more people are saved.[2]

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2 al-Ghazālī (o. J.), *al-Mustaṣfā*, ed. by Nazīh Ḥammād, 330–331:

الكفار إذا تترسوا بجماعة من أسارى المسلمين فلو كففنا عنهم لصدمونا وغلبوا على دار الإسلام وقتلوا كافة المسلمين، ولو رمينا الترس لقتلنا . . . مسلما معصوما لم يذنب ذنبا وهذا لا عهد به في الشرع ، ولو كففنا لسلطنا الكفار على جميع المسلمين فيقتلونهم ثم يقتلون الأسارى أيضا، فيجوز أن يقول قائل: هذا الأسير مقتول بكل حال فحفظ جميع المسلمين أقرب إلى مقصود الشرع; لأنا نعلم قطعا أن مقصود الشرع تقليل القتل كما يقصد حسم سبيله عند الإمكان، فإن لم نقدر على الحسم قدرنا على التقليل وكان هذا التفاتا إلى مصلحة علم بالضرورة كونها مقصود الشرع لا بدليل واحد وأصل معين بل بأدلة خارجة عن الحصر. لكن تحصيل هذا المقصود بهذا الطريق وهو قتل من لم يذنب غريب لم يشهد له أصل معين فهذا مثال مصلحة غير مأخوذة بطريق القياس على أصل معين.

The *maṣlaḥa* calculation (which Ghazālī declines to call by its name, *istiṣlāḥ*) is not necessarily *my* interest versus *your* interest, or the interest of *my group* versus the interest of *your group*. Every question given to us brings conflicting claims to a better conclusion, which cover the whole condition under consideration. It is true that the Muslim jurist-theologian is concerned with Islam as a religion and the Muslim population that bears its symbols. But within that, what is at work is not a simple utilitarian calculation of 'here lies the interest of the majority,' or 'this group is more valuable than the other, even if it is not a majority,' or 'this law fulfills the interests of a larger number.' Life's conditions present us with claims, and the theologians-jurists assess them, having made only a commitment to serving a purpose the theologian-jurist thinks God aims to fulfill.

– In this and other examples, *maṣlaḥa* analysis (if or when it is called something else) requires securing two elements: *a hierarchy of priorities* and *a confirmation of presumptive facts*: In the human shield question, Ghazālī takes the survival of *a larger part of the Muslim community* to offer a higher degree of value and hence deserve prioritization over the survival of *a smaller group of them*. This, as he says, is something of a mathematical exercise, less vs. more, or value X vs. value X+ (لأنا نعلم قطعا أن مقصود الشرع تقليل القتل).
– The presumptive facts are that failure to eliminate the human shield ineluctably yields an elimination of both the shield and an added number of the population.

Both elements must be conjured up in mind when we answer this and other questions. One may argue, to give another example we will pursue over the course of the chapter, for granting prison inmates 'conjugal visits' (family overnight visits) in order to a) allow the inmate to keep a strong bond with his family, b) allow the spouse to also have a quasi-normal relationship with the incarcerated spouse, and hence c) reduce recidivism (since strong family bonds weaken the chances of resuming a life of crime after punishment). This analysis must include an examination of the above two elements—that a decision based on it protects the higher value and that the facts presumed in the analysis be correct. If, for example, it turns out that recidivism is unaffected by the permission of family visits, that families collapse during the imprisonment of one spouse regardless of how prison administrators deal with the families of the incarcerated, or that these families collapse right after the end of a prison sentence in most cases, then the argument for family

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وانقدح اعتبارها باعتبار ثلاثة أوصاف أنها ضرورة قطعية كلية ، وليس في معناها ما لو تترس الكفار في قلعة بمسلم إذ لا يحل رمي الترس إذ لا ضرورة فينا غنية عن القلعة فنعدل عنها إذ لم نقطع بظفرنا بها ; لأنها ليست قطعية بل ظنية ، وليس في معناها جماعة في سفينة لو طرحوا واحدا منهم لنجوا ، وإلا غرقوا بجملتهم ; لأنها ليست كلية إذ يحصل بها هلاك عدد محصور ، وليس ذلك كاستئصال كافة المسلمين ; ولأنه ليس يتعين واحد للإغراق إلا أن يتعين بالقرعة ولا أصل لها .

overnight visits to keep families intact and reduce recidivism fails. (In the course of this chapter, as we express our skepticism about the very institution of correctional facilities, at least in their modern form, we make strong hints that we hold that recidivism is caused by the very existence of 'prisons' and 'jails,' which once allowed, recidivism follows.)

Sunni and Shi'i

There are, once again, two semantic spaces for the term *maṣlaḥa*. On the one hand, there is your *maṣlaḥa* and mine, possibly your interest and mine. This is where a clash of *maṣāliḥ* (تعارض المصالح) is not hard to imagine. A clash of *maṣāliḥ* is also easy to imagine without any reference to personal interests, as indicated in the shield question. On the other hand, there is an aggregated *maṣlaḥa* or a condition of balance of worthy considerations, which can be taken as a basis for a decision by a jurist. This is not necessarily an ideal or an other-worldly condition. It is, however, that which is preferred to all alternatives. This is where one may say that God's law is found where the aggregated *maṣlaḥa* is found (حيثما وجدت المصلحة فثم شرع الله).[3]

The legal language one uses shapes, and sometimes facilitates, one's conclusions. Much of the innovation in modern Shi'i jurisprudence, for example, is ultimately tethered to the invention of new terminology. In the hand of modern Shi'i jurists the word *ḥukm* (حكم) was divided multiple times; the term thus proliferated into a large basket of subcategories. This allowed these jurists not only to speak of (the traditionally accepted) normal and emergency laws (أحكام أولية وأحكام ثانوية), but also to add sometimes confusing (or more charitably, elastic) terms such as *aḥkām walawiyya* or *walā'iyya* (roughly government rulings), which, in some instances, overlap with emergency laws (أحكام ثانوية) but, in others, are distinct from them.

The aim of the laws is always the same. They are meant to bring about balance in human affairs. The question is which authority holds priority over others. When an application of this distinction and serviceable terminology grants the authority at the top of the legal and moral hierarchy the capacity to *destroy mosques and suspend the duty of pilgrimage*, one must realize that this authority is formidable.[4]

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3 Analogously Muslim jurists speak of a conflict of "sources of the law" (تعارض الأدلة) then talk of a reconciliation of these sources (الجمع بين الأدلة).

4 وكذلك ظهر أن الأحكام الحكومية الصادرة عن ولي أمر المسلمين والفقيه الولي على أساس مصالح الأمة ودفع المفاسد والمضار عنهم إذا تعارضت مع الأحكام الأولية مثل جعل الضرائب في أموالهم والتصرف في أملاكهم وأراضيهم بل بيوتهم ومساكنهم في حالة إحداث الشوارع والطرق اللازمة، بل حتى تخريب المسجد أو المعبد إذا كان ضراراً بالمسلمين، وتعطيل بعض الشعائر مؤقتا مثل الحج، كل ذلك يكون من الأحكام الثانوية النافذة ما دامت المصلحة باقية، وتبطل بعد زوال الحالة الطارئة مهما كانت.

Not that conclusions such as destroying mosques or suspending pilgrimage, e.g., in war, are impossible to arrive at within Sunni laws. What distinguishes Shi'i and Sunni legal reasoning, it has been suggested, is the distance Shi'is go, insisting that changing the laws of rituals themselves is acceptable, when both the need and a governmental command lead the community to it. In his *Fiqh al-Maṣlaḥa*,[5] Ḥaydar ubbullāh compares Najm al-Dīn al-Ṭūfī and Rūḥullāh al-Khumaynī (d. 1989) with this point in mind.

The language of the jurist does pave the way for the accomplishment of goals otherwise unachieved without the excessive straining of words. This is not unlike how Egypt's ʿAbd al-Razzāq al-Sanhūrī (d. 1971) sidestepped a debate between advocating *utilitarianism* and faith in *essential and unalienable rights* by employing clearer terminology that reduces rights to *maṣāliḥ*. It takes a jurist, though, not a mere lexicographer, to do that.

This Essay's Task

This chapter comes in three segments. We start, first, with a journey in the company of the aforementioned ʿIzz al-Dīn Ibn 'Abd al-Salām (d. 660/1262), a 7/13th century Shafi'i jurist who reduced the whole system of God's laws to observing one and the same principle with a Janus face: On the one side it is avoiding harm (or the lesser of two harms); on the other it is pursuing *maṣlaḥa*. This segment also adds even the more significant voice of Najm al-Dīn al-Ṭūfī (d. 716/1316), a daring theologian-jurist who understood the art of religious jurisprudence to be the ability to identify that which needs to be protected at all costs. That is, the *maṣlaḥa*, which is so valuable, so important, and so representative of the goals of the laws of God that even the apparent language of the revelation would be deemed secondary (in importance) to it. When they want to dismiss Ṭūfī, his foes bring him up as the man who forgot the primacy of the revelation & asserted that 'when text and genuine *maṣlaḥa* compete, the latter is bound to trounce the former.' The second segment introduces interventions by a jurist of the 5/11th century, who never disappoints when consulted on the very basis of laws and why they are the way they are. This is Abū al-Ma'ālī al-Juwaynī (d. 478/1085). This segment also gives an opportunity to continue our meditation on the legitimacy of modern incarceration, borrowing the eyes of a Muslim theologian-jurist. The third and final segment then offers an attack on the view that the very use of terms such as utility or interest deprives religious discourses of legitimacy. If this were the case, then the claim that religions

5 Ḥaydar Ḥubbullāh, *Fiqh al-Maṣlaḥa* (2019), 379.

are simply attempts by scoundrels to stay loyal to their interests while pretending to occupy higher moral grounds should be conceded. The religion of Islam never promises a total withdrawal from one's interests or prescribes suicidal advice. This final piece of the chapter moves further and further into the realm of practical calculations, where one's life may be endangered by unusual stress and where emergency views may be prescribed by the theologian-jurist. This will bring us full circle to the example with which we started where Ghazālī was clearly saying 'if the community of God is left to be destroyed, there would be no space for theology.' This segment also engages in the inevitably comparative framework by which one may speak about *maṣlaḥa* in an anglophone garb. The element of texts (of the divine revelation) is part of how *maṣlaḥa* is discovered and argued, how analogical reasoning is employed to support it, and how a conclusion and its opposite may be argued based on the standard of *maṣlaḥa.* And all this is done in a foreign language and in obedience to foreign premises. In this segment, the premodern voice of Ibn al-Qayyim (d. 750/1351), bulks large.

Theology, Laws and Medicine

For ʿIzz al-Dīn b. ʿAbd al-Salām (IAS), legal-moral and medical reasoning are unified by a simple principle: Do no harm. In his *Qawāʿid al-aḥkām fī maṣāliḥ al-anām*, he delineates the task of a jurist as balancing needs and expectations, much of which are unachievable, even if they appear so, without some sacrifice. In one stroke, IAS lowers the expectations of the practitioners of either art (law or medicine) by letting them know that all good things cannot be achieved at once or all the time; he then establishes the principle that the practice of law and medicine involve making decisions when faced with choices, and it is only the wise jurist and wise doctor who knows how to evaluate and determine which course of action is to be preferred; and by way of illustration mocks vegetarians who pretend that humans could survive without consuming the flesh of animals, making the case that preferring the lower animal to the higher is the science of the foolhardy.[6]

IAS's tone is stoutly realistic. Our worldly life is an existence of unclarity and doubt, he contends. It is embedded, however, with an opportunity for discernment and understanding of the proper way to see things. But the bottom line is that what benefits us in this world must be derived from that little fallible tool, human reason. What else? The *maṣāliḥ* of this world are exclusively comprehensible and assessa-

6 ʿAbd al-Salām (1991), *Qawāʿid*, 1, 5–6.

ble in the language of *zann*, i.e. conjecture or educated guesses. The hereafter and what makes it a life of reward, by contrast, is only learnable via divine revelation.

IAS also very simply and quickly resolves a puzzle that left Muslim jurists helpless for a long time: Were there laws before the laws? What can we say about norms before the revelation (حكم الأشياء قبل ورود الشرع)? Some said all acts and deeds were allowed. Some said all were prohibited. Some resorted to declaring their ignorance of the matter and suspended judgment (توقف). IAS says it is simple. The *maṣāliḥ* of this world were always the business of the perishable human mind. Those pertaining to an everlasting life need to be learned from the divine message. Where is the problem?[7]

IAS then moves to what might seem to be another jagged inquiry. Could good lead to bad and bad to good? Could benefit arise from cost and cost from benefit? Could *bona fide desirables* be either source or effect of *undesirables*? Or, said another way, could *maṣlaḥa* and its opposite, *mafsada*, be in each other's way and if yes, what is the way? Here is IAS's answer: The laws might prohibit what appears to be *maṣāliḥ*, because they are nothing but a path to its opposite. Think of pleasures one only attains by the means of harmful substances or risks to one's body or psyche. The laws are also known to recommend tolerating and ensuring *undesirables* or *mafāsid* to fulfill a higher good. Think of punishments applied to criminals. Punishment is always an *undesirable*, which we unhappily inflict on some for the sake of the higher good or *desirable* objective of peace and order in society. The analogy with medicine jumps at us again. Doctors would, nay should, cut a patient's hand if its defect is bound, if left alone, to spread in the body and end the patient's life. (We will keep this in mind as we advance the discussion on what punishment makes sense and what doesn't in the next section.)

What is the secret of this religious juristcraft? IAS: Identifying the *maṣlaḥa* God wants humans to pursue is accomplished by getting to know God enough to know what God would want you to think or do in a certain situation, even with no revelation found to indicate it. When you know how a good man thinks, you have the tools to guess what he would prefer in a given situation, even if you didn't have explicit

7 True, this is a commitment, on his part, to the Ash'ari idea that religious laws can only be learned from the religion. His couching the matter in the language of *maṣāliḥ*, and his distributive epistemology that separates *maṣāliḥ* into this worldly and otherworldly with two different epistemically distinct paths solves the problem in that it reminds us that before the revelation, all that people needed to do was to work out practical solutions to their problems, and whatever they thought would be what the laws were for them.

knowledge that he actually did or said anything specific about it, but you would know it, because you knew that person. . .[8]

The Permanence of Change

Just as IAS was a good reader of Juwaynī, whom we will encounter soon, he was also read and approved by subsequent jurists of all schools of law. His idea, that laws need to change to preserve a stable goal, takes on a life of its own. Hence, subsequent jurists who inherited and considered a longer legal history found the law of change to result in an implicit legal idea worthy of the sobriquet '*the permanence of change*' rule. In his *Našr al-'arf* (Treatise on Social Custom and Laws), Ibn 'Ābidīn (d. 1252/1836) provided a long list of modifications in Hanafi legal doctrines based on changes in the social conditions in the society governed by the laws. This is a hodgepodge of legal doctrines and cases, where some changes to the law are properly understood as a change in how words are used,[9] and some based on changes in the conditions of the market,[10] and most are, in fact, properly understood as changes in the properly protected *maṣlaḥa* of the individual or the group.[11] Laws

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8 ،وَمَنْ تَتَبَّعَ مَقَاصِدَ الشَّرْعِ فِي جَلْبِ الْمَصَالِحِ وَدَرْءِ الْمَفَاسِدِ، حَصَلَ لَهُ مِنْ مَجْمُوعِ ذَلِكَ اعْتِقَادٌ أَوْ عِرْفَانٌ بِأَنَّ هَذِهِ الْمَصْلَحَةَ لَا يَجُوزُ إهْمَالُهَا وَأَنَّ هَذِهِ الْمَفْسَدَةَ لَا يَجُوزُ قُرْبَانُهَا، وَإِنْ لَمْ يَكُنْ فِيهَا إجْمَاعٌ وَلَا نَصٌّ وَلَا قِيَاسٌ خَاصٌّ، فَإِنَّ فَهْمَ نَفْسِ الشَّرْعِ يُوجِبُ ذَلِكَ. وَمِثْلُ ذَلِكَ أَنَّ مَنْ عَاشَرَ إنْسَانًا مِنْ الْفُضَلَاءِ الْحُكَمَاءِ الْعُقَلَاءِ وَفَهِمَ مَا يُؤْثِرُهُ وَيَكْرَهُهُ فِي كُلِّ وِرْدٍ وَصَدْرٍ ثُمَّ سَنَحَتْ لَهُ مَصْلَحَةٌ أَوْ مَفْسَدَةٌ لَمْ يَعْرِفْ قَوْلَهُ فَإِنَّهُ يَعْرِفُ بِمَجْمُوعِ مَا عَهِدَهُ مِنْ طَرِيقَتِهِ وَأَلِفَه مِنْ عَادَتِهِ أَنَّهُ يُؤْثِرُ تِلْكَ الْمَصْلَحَةَ وَيَكْرَهُ تِلْكَ الْمَفْسَدَةَ. وَلَوْ تَتَبَّعْنَا مَقَاصِدَ مَا فِي الْكِتَابِ وَالسُّنَّةِ، لعلمنا أَنَّ اللَّهَ أَمَرَ بِكُلِّ خَيْرٍ دِقِّه وَجِلِّه، وَزَجَرَ عَنْ كُلِّ شَرٍّ دِقِّه وَجِلِّه، فَإِنَّ الْخَيْرَ يُعْتَبَرُ بِهِ عَنْ جَلْبِ الْمَصَالِحِ وَدَرْءِ الْمَفَاسِدِ، وَالشَّرَّ يُعْتَبَرُ بِهِ عَنْ جَلْبِ الْمَفَاسِدِ وَدَرْءِ الْمَصَالِحِ، وَقَدْ قَالَ تَعَالَى: {فَمَنْ يَعْمَلْ مِثْقَالَ ذَرَّةٍ خَيْرًا يَرَهُ} [الزلزلة: ٧] {وَمَنْ يَعْمَلْ مِثْقَالَ ذَرَّةٍ شَرًّا يَرَهُ} [الزلزلة: ٨] وَهَذَا ظَاهِرٌ فِي الْخَيْرِ الْخَالِصِ وَالشَّرِّ الْمَحْضِ. وَإِنَّمَا الْإِشْكَالُ إذَا لَمْ يَعْرِفْ خَيْرَ الْخَيْرَيْنِ وَشَرَّ الشَّرَّيْنِ أَوْ يَعْرِفْ تَرْجِيحَ الْمَصْلَحَةِ عَلَى الْمَفْسَدَةِ أَوْ تَرْجِيحَ الْمَفْسَدَةِ عَلَى الْمَصْلَحَةِ أَوْ جَهِلْنَا الْمَصْلَحَةَ وَالْمَفْسَدَةَ، وَمِنْ الْمَصَالِحِ وَالْمَفَاسِدِ مَا لَا يَعْرِفُ إلَّا كُلُّ ذِي فَهْمٍ سَلِيمٍ وَطَبْعٍ مُسْتَقِيمٍ يَعْرِفُ بِهِمَا دِقَّ الْمَصَالِحِ وَالْمَفَاسِدِ وَجِلَّهُمَا، وَأَرْجَحَهُمَا مِنْ مَرْجُوحِهِمَا، وَتَفَاوَتَ النَّاسُ فِي ذَلِكَ عَلَى قَدْرِ تَفَاوُتِهِمْ فِيمَا ذَكَرْته، وَقَدْ يَغْفُلُ الْحَاذِقُ الْأَفْضَلُ عَنْ بَعْضِ مَا يَطَّلِعُ عَلَيْهِ الْأَخْرَقُ الْمَفْضُولُ وَلَكِنَّهُ قَلِيلٌ. وَأَجْمَعُ آيَةٍ فِي الْقُرْآنِ لِلْحَثِّ عَلَى الْمَصَالِحِ كُلِّهَا وَالزَّجْرِ عَنْ الْمَفَاسِدِ بِأَسْرِهَا قَوْله تَعَالَى {إنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَانِ وَإِيتَاءِ ذِي الْقُرْبَى وَيَنْهَى عَنِ الْفَحْشَاءِ وَالْمُنْكَرِ وَالْبَغْيِ يَعِظُكُمْ لَعَلَّكُمْ تَذَكَّرُونَ} [النحل: ٩٠] فَإِنَّ الْأَلِفَ وَاللَّامَ فِي الْعَدْلِ وَالْإِحْسَانِ لِلْعُمُومِ وَالِاسْتِغْرَاقِ، فَلَا يَبْقَى مِنْ دِقِّ الْعَدْلِ وَجِلِّهِ شَيْءٌ إلَّا انْدَرَجَ فِي قَوْلِهِ {إنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ} [النحل:٩٠].

9 وكذا قولهم في قوله كل حل على حرام يقع به الطلاق للعرف قال مشايخ بلخ وقول محمد لا يقع إلا بالنية أجاب به علي عرف ديارهم اما في عرف بلادنا فيريدون به تحريم المنكوحة فيحمل عليه انتهى قال العلامة قاسم ومن الألفاظ المستعملة في هذا في مصرنا الطلاق يلزمني والحرام يلزمني وعلى الطلاق وعلى الحرام انتهى.

10 (ومن ذلك) مسائل كثيرة كتضمين الأجير المشترك* وقولهم إن الوصي ليس له المضاربة بمال اليتيم في زماننا * وافتائهم بتضمين الغاصب عقار اليتيم والوقف* وبعدم اجارته أكثر من سنة في الدور وأكثر من ثلاث سنين في الأراضي مع مخالفته لأصل المذهب من عدم الضمان وعدم التقدير بمدة.

11 (فمن ذلك) افتاؤهم بجواز الاستيجار على تعليم القرآن ونحوه لانقطاع عطايا المعلمين التي كانت في الصدر ضياع القرآن والدين فافتوا باخذ الأجرة على التعليم وكذا على الإمامة والاذان كذلك مع ان ذلك مخالف لما اتفق عليه أبو حنيفة وأبو يوسف ومحمد من عدم جواز الاستيجار واخذ الأجرة عليه كبقية الطاعات من الصوم والصلاة والحج وقرأة القرآن ونحو ذلك (ومن ذلك) قول الامامين بعدم الاكتفاء بظاهر العدالة في الشهادة مع مخالفته لما نص عليه أبو حنيفة بناء على ما كان في زمنه من غلبة العدالة لأنه كان في الزمن الذي شهد له

are, Ibn ʻĀbidīn asserts, partly embedded with attention to the social standards under which they are devised, and when these conditions change, not changing the laws is, in reality, an improper change of them. The laws, in a word, need to change to remain the same.[12]

Maṣāliḥ Trounce Texts

The same statement, that all harm must be avoided, led Nağm al-Dīn al-Ṭūfī (d. 716/1316) to make the argument that any law based on any one of the sources of the laws, which he counted to be limited to 19, must not lead to bringing about harm in the world.[13] The strongest of all (for him 19) sources of the law are the revelatory texts (Qur'an, Sunna) and the consensus (of all Muslims, or of jurists). Legal doctrines inferred from these sources either *lead* to harm, in which case they must be *reconsidered*, or they are compliant with the prevention-or-reduction-of-harm principle, and hence may be accepted. This is because the generality of the instruction to prevent or reduce harm (لا ضرر ولا ضرار) serves as a qualifier of all other legal and moral instructions.

Ṭūfī, in fact, rejects taking *maṣlaḥa* reasoning to be an independent source of the laws. This is because *maṣlaḥa* penetrates all processes of lawmaking. It is the source of sources. The Qur'an wants us to reduce harm and protect *maṣlaḥa*. The Sunna does the same. Consensus ditto. And so are all other sources, such as the custom of the people of Medina (عمل أهل المدينة), the consensus of all four Caliphs

رسول الله ﷺ بالخيرية وهما ادركا الزمن الذي فشى فيه الكذب وقد نص العلماء على ان هذا الاختلاف اختلاف عصر واوان لا اختلاف حجة وبرهان (ومن ذلك) تحقق الاكراه من غير السلطان مع مخالفته لقول الامام بناء على ما كان في زمنه من ان غير السلطان لا يمكنه الاكراه ثم كثر الفساد فصار يتحقق الاكراه من غيره فقال محمد لا باعتباره وافتى به المتأخرون لذلك (ومن ذلك) تضمين الساعى مع مخالفته لقاعدة المذهب من ان الضمان على المباشر دون المتسبب ولكن افتوا بضمانه زجرا بسبب كثرة السعاة المفسدين بل افتوا بقتله زمن الفترة . . . . . ومنع النساء عما كن عليه في زمن النبي – صلى الله تعالى عليه وسلم – من حضور المساجد لصلاة الجماعة وافتائهم بمنع الزوج من السفر بزوجته وإن أوفاها المعجل لفساد الزمان* وعدم قبول قوله انه استثنى بعد الحلف بطلاقها إلا ببينة لفساد الزمان مع أن ظاهر الرواية خلافه وعدم تصديقها بعد الدخول بها بأنها لم تقبض المشروط تعجيله من المهر مع أنها منكرة للقبض وقاعدة المذهب أن القول للمنكر لكنها في العادة لا تسلم نفسها قبل قبضه . . . . .وكذا قولهم المختار في زماننا قول الإمامين في المزارعة والمعاملة والوقف لمكان الضرورة والبلوى وافتى كثير منهم بقول محمد بسقوط الشفعة إذا اخر طلب التملك شهرا دفعا للضرر

12 اعلم ان المسائل الفقهية اما ان تكون ثابتة بصريح النص وهي الفصل الأول واما ان تكون ثابته بضرب اجتهاد وراي وكثير منها ما ينبيه المجتهد على ما كان في عرف زمانه بحيث لو كان في زمان العرف الحادث لقال بخلاف ما قاله اولا ولهذا قالوا في شروط الاجتهاد انه لابد فيه من معرفة عادات الناس فكثير من الاحكام تختلف باختلاف الزمان لتغير عرف اهله أو لحدوث ضرورة أو فساد أهل الزمان بحيث لو بقى الحكم على ما كان عليه أو لا للزم منه المشقة والضرر بالناس ويخالف قواعد الشريعة المبنية على التخفيف والتيسير ودفع الضرر والفساد لبقاء العالم على اتم نظام واحسن احكام ولهذا ترى مشايخ المذهب خالفوا ما نص عليه المجتهد في مواضع كثيرة بناها على ما كان في زمنه لعلمهم بأنه لو كان في زمنهم لقال بما قالوا به اخذا من قواعد مذهبه.

13 Zayd (2011), *al-Maṣlaḥa*, 240–41.

(إجماع الخلفاء الأربعة), etc. Employing these sources in legal reasoning is nothing but attempts to capture *maṣlaḥa*. It is the main aim of the laws.

Before Ṭūfī, the consensus of all has normally been seen as an indisputable source of morals and laws, stronger than any general principle no matter how basic and foundational. Ṭūfī moves, famously, to raise doubt about the infallibility of consensus as a source of law and remove all doubt about the foundational nature of the 'do no harm' principle. Unless we are dealing with a matter of pure religious rituals, reasons must be provided before any assessment or decision in a matter of a moral and legal nature, and this leads us back to the 'no harm' principle.

Which harm and which '*good*'? Do the laws offer a guarantee of '*the good*' at the lowest or minimal level? Do they consider a balance of '*the good*' for some or most? Do they consider a moderate level in some cases and the highest possible or maximal degree of '*the good*' in other cases? Ṭūfī thinks it is the latter.[14] In other words, life throws at you conditions that are rarely ideal, and to address these conditions you do the best you can, which won't be the best in theory, but if you know a better option, one that brings about more '*good*', and fail to take it, you, the jurist or the individual making the decision guided by the art of the jurists, will have failed in your task. Hence, you will only capture the (maximal) capturable *maṣlaḥa* (which won't be the maximal in the abstract), depending on the circumstances.

Even those who denied that laws may be explained in reference to 'the good,' such as Zahiris, have accepted that in practice. Zahiris are known to have quarreled about each and every single, commonly accepted doctrine of legal theory. They questioned *qiyās*, or reasoning based on the intelligibility of the laws via measurable rationales ('*illal*, علل). They even quarreled about the value of consensus. But they have validated contracts of ostensibly questionable validity such as delayed payment sales (*salam*) and rentals (*ijārah*), which all agreed included an element of ambiguity in contradiction with explicit instructions by the Prophet—all based on an implicit *maṣlaḥa* reasoning.[15]

There is no universal standard, which one may apply to resolve the conflicts of *maṣāliḥ*. What happens in the case of an impasse? What happens if multiple solutions for moral and legal dilemmas are identified? Ṭūfī allows judging matters by lot, if all considerations seem to be equal and irreconcilable (It would be hard to imagine that Ṭūfī heard of *sortition*, or the election of office holders by lot in the Roman government, but why would it matter whether he had heard of it or not?).

14 Zayd (2011), *al-Maṣlaḥa*, 246.
15 Zayd (2011), *al-Maṣlaḥa,* 248.

Juwayni's Human Panopticon

In his Ghiyāṯī,[16] Abū al-Ma'ālī al-Juwaynī (d. 478/1085) speaks about punishment as a matter of the politics in which *maṣlaḥa* rules supreme. Juwaynī, in principle, is open to factoring in all considerations in deciding the extent and intensity of punishment. He does take into account the nature of the crime and the purpose of punishment (not mere retribution; rather, some form of improvement of the criminal), among other factors. What is reasonable punishment? Juwaynī looks into normal deprivation that may be associated with taking away a criminal's freedom. For a criminal to complain about short-term deprivation of basic needs, such as good food and sex, Juwaynī says, is unreasonable. Rather, it is reasonable for the criminal and her or his punishing authority to expect and inflict, respectively, some deprivation on the criminal, which might include malnourishment and deprivation of sex. The impact of long-term deprivation as part of the punishment, however, is a different matter. Punishments leading to excessive weakness befalling a punished criminal is unjustified. [17] Take the law's permission of the consumption of carrion (an animal not properly slaughtered) when an alternative is not available. This permission is not limited to the cases where it is absolutely necessary for a person to eat carrion to avoid death.[18]

Juwaynī then makes the most significant move: There is no difference between the human needs of a free person and an incarcerated person in that they both are human beings, with human needs, and they require the satisfaction of 'necessities' or 'first-order requisites' in the short term and other 'sustaining desirables' or 'second-order requisites' in the long term. The incarcerated are limited by humans like them from enjoying what the free normally enjoy. And the religious laws restrict the free the same way the incarcerated are restricted by their fellow society-men-and-women. And exceptions to these restrictions and prohibitions apply just the same. Hence, a prohibition to eat 'carrion' by free persons is mitigated, and the free person (e.g., a traveler who can't access good or proper food—*ḥalāl* in other words)

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16 Juwaynī thinks that times of stress are not always in the future. He states that '*difficult times may already be upon us*.' Cf. al-Juwaynī, *Ghiyāth*, 476:

"لَوْ فَسَدَتِ الْمَكَاسِبُ كُلُّهَا، وَطَبَقَ طَبَقَ الْأَرْضِ الْحَرَامُ فِي الْمَطَاعِمِ وَالْمَلَابِسِ وَمَا تَحْوِيهِ الْأَيْدِي – وَلَيْسَ حُكْمُ زَمَانِنَا بِبَعِيدٍ مِنْ هَذَا – فَلَوِ اتَّفَقَ مَا وَصَفْنَاهُ، فَلَا سَبِيلَ إِلَى حَمْلِ الْخَلْقِ – وَالْحَالَةُ هَذِهِ عَلَى الِائْكِفَافِ عَنِ الْأَقْوَاتِ، وَالتَّعَرِّي عَنِ الْبِزَّةِ.

17 al-Juwaynī (1980), *Ghiyāth*, 235–236.

وَمِمَّا نَقْطَعُهُ أَنَّ الِائْكِفَافَ عَنِ الطَّعَامِ قَدْ لَا يَسْتَعْقِبُ ضَعْفًا وَوَهْنًا حَاجِزًا عَنِ التَّقَلُّبِ فِي الْحَالِ، وَلَكِنْ إِذَا تَكَرَّرَ الصَّبْرُ عَلَى ذَلِكَ الْحَدِّ مِنَ الْجُوعِ، أَوْرَثَ ضَعْفًا، فَلَا نُكَلِّفُ هَذَا الضَّرْبَ مِنَ الِامْتِنَاعِ.

18 al-Juwaynī (1980), *Ghiyāth*, 234.

فَإِذَا تَقَرَّرَ قَطْعًا أَنَّ الْمَرْعِيَّ الْحَاجَةُ، فَالْحَاجَةُ لَفْظَةٌ مُبْهَمَةٌ لَا يُضْبَطُ فِيهَا قَوْلٌ، وَالْمِقْدَارُ الَّذِي بَانَ أَنَّ الضَّرُورَةَ وَخَوْفَ الرُّوحِ لَيْسَ مَشْرُوطًا فِيمَا نَحْنُ فِيهِ، كَمَا يُشْتَرَطُ فِي تَقَاصِيلِ الشَّرْعِ فِي الْآحَادِ فِي إِبَاحَةِ الْمَيْتَةِ، وَطَعَامِ الْغَيْرِ، وَلَيْسَ مِنَ الْمُمْكِنِ أَنْ نَأْتِيَ بِعِبَارَةٍ عَنِ الْحَاجَةِ نَضْبُطُهَا ضَبْطَ التَّخْصِيصِ.

can eat carrion when it is a 'first-order requisite.' Should the prisoner be limited to this license throughout a long prison sentence? The answer is certainly no, given that the free person is allowed to seek more than 'first-order requisites' (dip into 'second-order requisites,' so to speak) when extreme circumstances become the norm—that is, when only prohibited or questionable nourishment is available in the markets.[19]

Observing the analogies between the free and the incarcerated is continued as we consider the liminal case of a person subjected to interdiction by a court (a bankrupt trader, who from now on will be prevented from using his or her own resources to buy expensive clothing, for example, or even live in an opulent house). Jurists disagree as to whether a heavily credited man may be forced to sell his own (very expensive) house and be given a more normal house in order to pay his creditors. They also disagree as to whether the heavily credited or leveraged may be forced to give up a 'fancy' or expensive servant and only keep a modest or cheaper servant, again in order to pay what he or she owes. Juwaynī here explicitly states that the interdicted still has a claim to normal clothing, even veering on the higher end, and hence does not lose access to what, for some, should be seen as his creditors' money.[20]

The logic of surveilling criminals, as in a panopticon, is not completely frowned upon in Juwaynī's reasoning. A judge has the power to apply his own intuition as to whether witnesses are or are not telling the truth. He gets to separate them for interrogation and search for contradictions or conspiracy.[21] Juwaynī's license for

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19 al-Juwaynī (1980), *Ghiyāth*, 231–232.

قَدْ يَظُنُّ ظَانٌّ أَنَّ حُكْمَ الْأَنَامِ إِذَا عَمَّهُمُ الْحَرَامُ حُكْمُ الْمُضْطَرِّ فِي تَعَاطِي الْمَيْتَةِ، وَلَيْسَ الْأَمْرُ كَذَلِكَ، فَإِنَّ النَّاسَ لَوِ ارْتَقَبُوا فِيمَا يَطْعَمُونَ أَنْ يَتْتَهُوا إِلَى حَالَةِ الضَّرُورَةِ، وَفِي الِانْتِهَاءِ إِلَيْهَا (٢٥١)سُقُوطُ الْقُوَى، وَانْتِكَاثُ الْمِرَرِ، وَانْتِقَاضُ الْبِنْيَةِ، سِيَّمَا إِذَا تَكَرَّرَ اعْتِيَادُ الْمَصِيرِ إِلَى هَذِهِ الْغَايَةِ، فَفِي ذَلِكَ انْقِطَاعُ الْمُحْتَرِفِينَ عَنْ حِرَفِهِمْ وَصِنَاعَاتِهِمْ، وَفِيهِ الْإِفْضَاءُ إِلَى ارْتِفَاعِ الزَّرْعِ وَالْجِرَاثَةِ، وَطَرَائِقِ الِاكْتِسَابِ، وَإِصْلَاحِ الْمَعَايِشِ الَّتِي بِهَا قِوَامُ الْخَلْقِ قَاطِبَةً وَقُصَارَاهُ هَلَاكُ النَّاسِ أَجْمَعِينَ وَمِنْهُمْ ذُو النَّجْدَةِ وَالْبَأْسِ، وَحَفَظَةُ النُّغُورِ مِنْ جُنُودِ الْمُسْلِمِينَ، وَإِذَا وَهَوَا وَوَهَنُوا، وَضَعُفُوا وَاسْتَكَانُوا، اسْتَجْرَأَ الْكُفَّارُ، وَتَخَلَّلُوا دِيَارَ الْإِسْلَامِ، وَانْقَطَعَ السِّلْكُ [وَتَبَتَّرَ] النِّظَامُ.

٧٤١ – وَنَحْنُ عَلَى اضْطِرَارٍ مِنْ عُقُولِنَا نَعْلَمُ أَنَّ الشَّرْعَ لَمْ يَرِدْ بِمَا يُؤَدِّي إِلَى بَوَارِ أَهْلِ الدُّنْيَا، ثُمَّ يَتْبَعُهَا انْدِرَاسُ الدِّينِ، وَإِنْ شَرَطْنَا فِي حَقِّ آحَادٍ مِنَ النَّاسِ فِي وَقَائِعَ نَادِرَةٍ أَنْ يَنْتَهُوا إِلَى الضَّرُورَةِ، فَلَيْسَ فِي اسْتِبْرَاطِ ذَلِكَ مَا يَجُرُّ فَسَادًا فِي الْأُمُورِ الْكُلِّيَّةِ. ثُمَّ إِنَّ ضَعْفَ الْآحَادِ بِطَوَارِئَ نَادِرَةٍ، إِنْ جَرَّتْ أَمْرَاضًا وَأَعْرَاضًا، فَالدُّنْيَا قَائِمَةٌ عَلَى اسْتِقْلَالِهَا بِقَوَامِهَا وَرِجَالِهَا، وَنَحْنُ مَعَ بَقَاءِ الْمَوَادِّ مِنْهَا نَرْجُو لِلْمَنْكُوبِينَ أَنْ يَسْلَمُوا وَيَسْتَبِلُّوا عَمَّا بُلُوا بِهِ.

20 al-Juwaynī (1980), *Ghiyāth*, 448.

قَالُوا: مَنْ أَفْلَسَ وَأَحَاطَتْ بِهِ الدُّيُونُ وَاقْتَضَى رَأْيُ الْقَاضِي ضَرْبَ حَجْرٍ عَلَيْهِ عِنْدَ اسْتِدْعَاءِ غُرَمَائِهِ، فَلْيُبْقِ لَهُ دَسْتَ ثَوْبٍ، وَلَا تَتْرُكُهُ بِإِزَارٍ يَسْتُرُ عَوْرَتَهُ. فَإِذَا أَبْقَوْا لَهُ إِقَامَةَ [أَثْوَابًا] ، وَإِنْ كَانَ قَضَاءُ الدُّيُونِ الْحَالَّةِ مَحْتُومًا، فَلَا يَبْعُدُ أَنْ يَسُوغَ فِي شُمُولِ النَّحْرِيمِ لُبْسُ مَا يَتَضَمَّنُ تَرْكُ لُبْسِهِ خَرْمًا لِلْمُرُوءَةِ. ثُمَّ ذَلِكَ يَخْتَلِفُ بِاخْتِلَافِ الْمَنَاصِبِ وَالْمَرَاتِبِ. وَلَا يَتَبَيَّنُ الْغَرَضُ مِنْ هَذَا الْفَصْلِ إِلَّا بِمَزِيدِ كَشْفٍ.

21 al-Juwaynī, *Nihāyat* (2007), 18, 481.

ومما نرى ذكره على الاتصال بهذا أن الشهود لو كانوا عدولاً أو زكّاهم المزكّون -كما سنصف إن شاء الله- فارتاب القاضي لنظرٍ له في الواقعة، وخيالٍ قد يُدركه الفطن. قال الشافعي: في هذه الحالة إذا ارتاب القاضي بحال الشهود، فرّقهم، ويسأل كلَّ واحد منهم على حدته: يسأله عن المكان الذي تحمَّلَ فيه الشهادة؛ والوقتِ الذي تحمَّل فيه الشهادة، وعمن كان معه. وهو في هذا كله يبغي الاستدلال على عورةٍ -إن كانت- وليس ما ذكرناه استظهاراً محبوباً، بل هو حتم.

law enforcement to supervise and control the criminal populations certainly needs to be weighed against his mistrust of imprisonment as a form of punishment and an assumption that many in prisons are brought in there unfairly. He put it on a new judge to investigate unjust imprisonment, among his first duties.[22] If there is a panopticon in Juwaynī's theory of criminal justice, it is a humane one.

Legion is the evidence that Juwaynī was open to allowing the political authorities to engineer the society it rules for the overall good. Most Sunni jurists agree that a punishment of 40 or 80 lashes may be assigned to those who imbibe intoxicants. (Ibn al-Qayyim sees drinking intoxicants as a much more problematic violation of Islamic laws than engaging in limited sexual pleasure outside marriage) The argument for a specific punishment of 40 or 80 lashes for drinkers as a law of the time of the revelation (Muḥammad's last 23 years) is flimsy. All we have essentially is a license to inflict some limited physical punishment (throwing objects at the criminal) without any specification of the number of lashes. The specific numbers were clearly an innovation by ʿUmar b. al-Khaṭṭāb, Muḥammad's second successor, to lash 40, and ʿUmar's successor, ʿUthmān, made it 80. Juwaynī spells all this out and makes it clear that it is up to the government to punish however it sees fit. The two governments' reactions in these cases, he says, were certainly a reaction to something of a pandemic of drinking.[23]

We cannot forget the pessimistic undertone noticeable in all of Juwaynī's work. Juwaynī was off by about a thousand years when he exclaimed that the end may be near, and knowledge of the laws may be on the way out.[24] Obvious, however, is Juwaynī's double commitment to a) the humanity of punishment and b) asserting the authority of the government to pursue *maṣlaḥa*-based social engineering. This leads him to vacillating on governmental liability in cases of excessive punishment. Vacillate is not too strong a word. The normally decisive Juwaynī comes up, in the matter of a government's overreach in punishment, with three views:

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22 al-Juwaynī, *Nihāyat* (2007), 18, 570.
وإذا دخل البلد وتصدى للقضاء، فينبغي أن يبدأ بالتعرف عن أحوال المحبوسين، لا يقدّم على ذلك شغلاً، والسبب فيه أن الحبس عذاب، وإدامة العذاب على أقوام من غير تثبتٍ، لا سبيل إليه، وليس هذا من تعقب أحكام القاضي الأول. وقد ذكرنا أنه لا يتعقبها إلا أن تُرفع إليه، والنظر في حال المحبوسين ليس من ذلك، فإن الحبس كما ذكرناه عذاب ناجز مستمر، وقد يكون المحبوس مظلوماً، وقد يكون في المحبوسين من حبس تأديباً، وفيما مضى من الحبس كفاية، وتقديم ما ذكرناه حتمٌ وليس من الآداب، حتى قال الأصحاب: لا ينبغي أن ينظر في خصومةٍ تُرفع إلى مجلسه ما لم يفرّغ قلبه من هذا الفن. ثم يُحضر المحبوسين، فمن أقر منهم أنه محبوس بحق، ردّه إلى السجن، ومن ادعى أنه حبُس ظلماً، فالوجه أن يقول: من خصمك؟ فإذا ذكره، أحضره، وسأله، وأمره بأن يبتدىء الدعوى، وإقامة البينة، على ما لا يكاد يخفى ترتيب الخصومة. وإن قال: قد حَبَسه القاضي المصروف، فكان ذلك حكماً منه؛ وحكمه لا ينقض، قيل له (٢): أَثْبِتْ حُكمَه بما تَثْبُتُ به أحكام القضاة. أما صورة الحبس ليس (٣) حكماً، فإذا عجز الخصم عن إثبات حقٍّ يوجب الحبس، أطلقنا المحبوس، ولا تطويل بجعل هذا ابتداء خصومة.

23 al-Juwaynī (2007), *Nihāyat*, 17, 332–335.

24 al-Juwaynī (1980), *Ghiyāth*, 521–522.

1. Assign full liability, given that the government would be held to have overreached. The Prophet Muḥammad hasn't really assigned a severe punishment to drinkers, and it was only the view of his successors, which was a political decision, which means that all succeeding governments would need to act in this matter based on the power of discretion given to government and assume all responsibility for their overreach and should not cling to the views of the Prophet Muḥammad's successors.
2. Assign no liability, given that it is a discretionary matter and can only be understood in its context and not judged from the outside.
3. Assign partial liability, splitting the difference between the pain normally expected in a normal punishment and whatever bodily or psychological pain caused by the additional or excessive punishment.

فإن لم نوجب الضمان، فلا كلام، وإن أوجبناه فالذي ذهب إليه أهل التحقيق أنا نوجب عليه الضمان بكماله؛ من جهة اتفاق العدول عما كان إلى جنسٍ آخر، وإذا اختلف الجنسان، امتنع التقسيط، ولم يتجه إلا نفيُ الضمان أو إيجابُه وكمالُه. وذكر العراقيون وجهاً آخر أن الإمام يضمن ما بين الضرب بالنعال والضرب بالسياط، فإنه يكون أشدَّ إيلاماً وأنجعَ وقعاً، فيقدر بينهما شيء بالتقريب والاجتهاد، ويلزم ذلك القدر، وهذا الذي ذكروه في نهاية البعد، والمذهب ما ذكرناه. وقد بان حكمُ الضمان فيه إذا جلد الشارب أربعين، أو أمر حتى ضرب بالنعال وأطراف الثياب.

A Balance of Responsibilities

Surveillance applied to both a) the suspicious in society and b) state authorities implementing the laws who may have betrayed the terms of their service *brings a balance* of responsibilities, mirroring a balance of power, in a Muslim society. Both those who failed to follow the laws and those who may have failed to implement the laws are subject to review and their actions are subject to correction.

Our Juwaynī offers some of the rarest expressions of the review of court and administrative decisions in criminal matters, *knowing* that abuse of power is so intrinsic to human beings, and *being acutely aware* that judicial and administrative discretion is both essential and a dangerous tool in the art of government. Judges may imprison to extract compensation, apply a threat, or punish bad behavior (وحبس القضاة منقسم إلى حقٍّ، وظلم، وأدب، وحملٍ على تأدية حق، فيحصل مما بسطناه أن ما صار إليه الجماهير التشبث به إلى التفحص، من غير أن يرد إلى الحبس). Hence, these decisions may be reviewed once the power of a given administrator or judge wanes, since we then have an opportunity to correct injustice established under their authority. Juwaynī is open to retrying cases, when the need is obvious. Most importantly, Juwaynī reiterates his openness to surveillance as a standard for soft control of the society, especially when imprisonment is not clearly justified. He applies this to threshold cases, where it is unclear

whether a given subject is or is not a culprit in a crime: *In these cases, the suspect may be surveilled, neither imprisoned, nor left alone as a free individual*'.[25]

Al-Juwaynī is hardly alone in his posture traversing a rational political science and a meaningfully humane legal and moral science. His sources in the section discussed above include three centuries of jurists, from Muḥammad b. Idrīs al-Shāfiʿī (d. 204/820) and 3rd and 4th century commentators on his work all the way to al-Qāḍī al-Bāqillānī (d. 403/1013). And this debate and the juristic posture displayed in it is not limited to Shāfiʿīs. In a missing text, preserved in part from later quotations, Ibn Ḥazm (d. 456/1064) offers a commentary on proper policies and administrative principles regarding criminals, and those suspected of criminality in society, as well as the incarcerated. The police, he says, are not meant to be there to chase people who may or may not be criminals.[26] This would be an unnecessary disturbance of social peace. Criminals will announce themselves, he says. When caught, they may be punished. Then prisons should never be a salad of criminals of all grades, lest those of a vulnerable character be hardened into the recalcitrant, unreformable type. After ensuring that men have their prisons and women theirs, each class must be further divided into subclasses, based on the danger they pose and the nature of their previous record. The vacillation between firmness in assigning proper penalties and the hope of reform is best attested in a mandatory policy, with Ibn Hazm suggesting that "a religious leader be assigned to all classes of prisoners and be sufficiently compensated by the government from the treasury".[27]

> A heavily guarded and isolated (*thaqif*) prison ought to be dedicated to the bawdy and those feared to spread their terror or criminality. Another [prison] may be dedicated to the corrigible and those incarcerated for financial liabilities or for having an untrustworthy character. All must be reviewed and examined after incarcerated. A prison for females needs to be separate. It would be a good policy to also divide these into those convicted of awful crimes and those who are not. In all cases, a religious leader must be assigned and paid from the treasury to lead them in their rituals.

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25 al-Juwaynī (2007), *Nihāyat*, 15, 574–575: وهو في ذلك لا يحبس ولا يخلَّى، بل يُنصب من يراقبه

26 Ibn Ḥazm's missing political writings, especially a book supposedly titled al-Siyāsa, has been a puzzle that occupied Iḥsan ʿAbbās, among others, but many of his quotes are preserved by Ibn Riḍwān of Malaqa (d. 783/1381) in the following source: al-Malaqī (1984), *al-Shuhub*, 328.
ويُلزمه (أي: والي الشرطة) الإمام ألا يبحث على شيء من الحدود كلها أصلا، إلا أن يجاهر بها صاحبها أو يشتكي إليه (بفاعل شيء منها، فعلى أي هذين الوجهين)كان، لزمه السؤال عن ذلك، والإرسال إليه، كإرسال النبي صلى الله عليه وسلم أنساً إلى المرأة، وسؤاله عليه السلام، عن زنا الذي كان عسيفاً على الآخر، إذا شكى إليه عليه السلام أمرهما.

27 al-Malaqī (1984), *al-Shuhub*, 360.
يعهد الإمام إلى من قلده ولاية من الولايات أن يكون لهم سجن ثقيف للدعار، ومن تخاف غائلته، وسجن آخر غير ذلك للمستورين المحبوسين في الديون والآداب وأشباهها، ويتفقد أحوال جميعهم في جميع ذلك، وسجن للنساء مفرد بواباته، موثق بهن، ولو جعل للمستورات المحبوسات في الديون والآداب سجن على حدة من سجن المحبوسات في التهم القبيحات، لكان حسنا. قال: ويجعل الإمام لأهل السجن إماما يصلي بهم جماعة والفرائض، ويرزقه من بيت مال المسلمين.

Utilitarian Calculations and their Dangers

Modern moral philosophy, even outside the lands of 'Utilitarianism,' is broadly utilitarian. That is, modern moral reasoning is usually based on a *calculation* leading to an *identification* of some overall preferred condition, at the cost of ignoring any principled commitment to rights, including the right to life. When in doubt, think of all justifications of contemporary atrocities based on the fears that things can always get worse. This style of moral philosophy is also consequentialist.[28] It rejects Immanuel Kant's deontic morality, where lying is *always, always* bad, even to save one's mother, as stiff and unrealistic.[29]

But what is wrong with that? This is a genuine, not a rhetorical, question. When examples are considered, other layers of theory will have to be introduced. Let's take punishments in the US criminal justice system, which are mostly punitive, rather than reformative. What is behind these punitive practices? *We need to put criminals away*, and this may be because we are, ultimately, retributivists (we believe, with Kant (it might turn out), that one must be punished for her or his own crime, regardless of whether the punishment contributes positively or negatively to reducing crime in the future, opposite in direction to what the deterrence theorists, who are more purely utilitarian, would have us want to sail. Kant thinks it makes no sense for me, say, to be punished this or that way so that the society benefits from the punishment (which deters others from committing a similar crime), because what is 'just' is that I be punished for what I did, and that is that.

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28 This point is obvious to those who understand utilitarianism to be a subspecies of consequentialism, but there is no harm in making this explicit.

29 A very, very quick digression to explain this throwaway line about Kant: *Deontic* is taken from deontology, which derives from the Greek word for duty (deon) and the word for branch of knowledge or inquiry (logos). Having abandoned a study of ethics based on the promotion of human character, or virtue, the way Aristotle thought about ethics, modern philosophy went down to the level of the '*act*' as a unit for moral and ethical reasoning. Aristotle would speak of *justice* in one's *character* (something you and I need to promote over the years, possibly a lifetime), but in modern moral philosophy, we are either believers in a *duty, a correct act regardless of the consequences* (hence we embrace deontological ethics) or believers in *consequentialist ethics*; hence, an act that increases our collective wellbeing is a good act. To further understand Kant's commitment to deontic morality (universally applicable acts—those that are obligatory on me and you and all people all the time) and retributivism, with its emphasis on personal responsibility for one's actions, against all collective assessments of actions as part of a whole and social reality, one may first search for a study of the different versions of Kant's categorical imperative. Or, go directly to the *Groundwork for the Metaphysics of Morals* (1785), the *Critique of Practical Reason* (1788), and the *Metaphysics of Morals* (1797)—all published in one volume titled *Practical Philosophy* (2012) in the *Cambridge Edition of the Works of Immanuel Kant.* Cf. Gregor 2012.

This is not, however, why we have extensive and expensive prison complexes in the United States. We have these because they give us comfort that those inside won't harm anyone, and those outside would be terrified to be in their place. It is, in fact, a utilitarian calculation (not necessarily a perfect one). The argument for the current (less than humane) system of punishment must stand on two legs: 1) a subscription to a certain brand of psychology (some of us are simply criminals, and Robert Sapolsky's science confirms this wholeheartedly) and 2) an appeal to the limits of our options (we just don't have the resources needed for a better treatment of the incarcerated). The consequentialist utilitarian won't stop at justifying the imprisonment of felons; s/he goes further to offer advice on how these prisoners are to be treated. The desires of an incarcerated person, they advise, are only accommodated when we have the time, energy, and resources. Hence, basic sexual needs, for example, are rarely accommodated in prisons and jails. Again, *what is wrong with any of that?*

Well, to be honest, we are still thinking about it. One can say that the punishment of criminals in the US may not be that consistent even with a commitment to doing the best that can be done in terms of materialist utility, let alone with a notion of basic rights. That said, we would like to introduce other forms of utility-calculation, hoping this might enrich our discussion. The most interesting aspect of utilitarian tests is their surprises. Just as utilitarian and consequentialist reasoning can lead us to cruel conclusions, they can also take us to embrace strange degrees of license.[30]

A strange type of license, in the following example, is given by a religious scholar from the Middle Ages, the Islamic Middle Ages if these be real (against Thomas Bauer's well-known scorn of calling any non-European society medieval). This fourteenth century scholar was both a textualist and a consequentialist (of a non-pure type) utilitarian. To explicate his peculiar view on the matter of whether one may lend his own wife to spend a day with another man to possibly save this person's life, Ibn al-Qayyim needed to lean on a seventh century precedent.

30 The easiest way to attack utilitarianism is to show how it can crush minorities. For example, Muslims in the United States, or blacks, or prisoners, can be crushed if the interests of the majority are the only item that is taken seriously and considered fully, especially if we take 'rule' of utilitarianism to be simply a confirmation of the value of 'democracy.' The thought developed here is different.

The Precedent

We are at the end of the first half of the seventh century (Islam's first). A man named Naṣr b. al-Ḥajjāj, an unusually attractive man, is allowed to have a day of limited sexual pleasure with the wife of another man, one named Mujāshiʿ b. Masʿūd. The three were close acquaintances, and in this love triangle, Naṣr was in love with Mujāshiʿ's wife and oblivious, at first, to the latter's suspicion that this was going on. The story goes that when Naṣr learned of Mujāshiʿ's awareness of the mutual attraction between his wife and Naṣr, he withdrew from all social interaction and became dangerously ill. The license to give Naṣr a day of soft sexual pleasure was given by Mujāshiʿ himself, against his wife's protestation.

The Interpreter

Now we move to the 14th century juristic discussion and the rationalization of this license by Ibn al-Qayyim (d. 750/1351) of Hanbali law fame. Ibn al-Qayyim writes:[31]

> Someone may ask "Does Shari'a permit such a thing [allowing the lending, albeit briefly, of one's wife to another in order to save that person's life]?" I would venture the following answer: "If it *were* the only way of treating someone's illness, it would not be that much worse than allowing a female [doctor or nurse] to offer medical treatment to a male patient, or the handling by a medical doctor of the body of a [male or female] patient.[32] ***As for treating a person with sexual intercourse, Shari'a does not permit it in any way.*** As for treating a person with hugs and kisses, if healing is achieved through them, it is similar to offering liquor as medicine, for those who permit it. Indeed, this is easier than offering liquor as medicine, since imbibing alcohol is a major sin, while this act [i.e., hugs and kisses to a non-spouse] is a minor sin. And it is an act of kindness, and it has been an accepted tradition (*sunnatun madiya*)[33] to be merciful to lovers in deep stress.

31 Ibn al-Qayyim (2019), *Rawdat*, 516–518.
فإن قيل: فهل تبيح الشريعة مثل ذلك، قيل: إذا تعين طريقا للدواء، ونجاة العبد من الهلكة، لم يكن بأعظم من مداواة المرأة للرجل الأجنبي ومداواته لها، ونظر الطبيب إلى بدن المريض ومسه بيده للحاجة، وأما التداوي بالجماع فلا يبيحه الشرع بوجه ما، وأما التداوي بالضم والقبلة فإن تحقق الشفاء به كان نظير التداوي بالخمر عند من يبيحه، بل هذا أسهل من التداوي بالخمر، فإن شربه من الكبائر، وهذا الفعل من الصغائر، والمقصود أن الشفاعة للعشاق فيما يجوز من الوصال والتلاق سنة ماضية وسعي مشكور.

32 The most bizarre aspect of this argument is that it doesn't stop to ask whether such 'treatment' might, in fact, lead to an exacerbation of the condition of the patient, given what is known to most people that access to sex leads to wanting more of it. If we were to assume that Ibn al-Qayyim did indeed contemplate repeated lending of one's wife with the aim of healing his former friend, that would stand as an early example of an '*open marriage*.'

33 He probably means to indicate that good and polite Arab society is kind to the weak.

In Ibn al-Qayyim's reasoning, one is dealing with a marriage of textualism and consequentialist utilitarianism. The Qur'anic term '*lamam*' (Q 53:32) indicating a peccadillo of sorts here haunts Ibn al-Qayyim,[34] as he approaches how one looks into prohibited, limited sexual pleasure. Said verse strongly prohibits grave sins and abominations (*kabā'ir*, *fawāḥish*) but excepts *lamam*. The term *lamam* indicates essentially soft sex. Two analogies are drawn between the case under consideration and other cases. If soft sex is measured against medical treatment, which includes the handling (by a man) of the private female parts (vagina, breasts, etc.), it ought to be allowed when need requires it. If it is scrutinized by juxtaposition to offering an intoxicant as medicine, it is also allowed for those jurists who allow it. Only sexual intercourse is out of the discussion.

Textualism

What is the *lamam* in the Qur'anic verse (53:32) that haunted Ibn al-Qayyim, as he made his *maṣlaḥa* calculation in the above view? One more story won't hurt—this being sourced from the questionable Muqātil b. Sulaymān Qur'anic exegesis. The verse, it is said, was revealed to the Prophet of Islam after a man named Nabhān (the date-seller) sexually assaulted the wife of an absent soldier, touching her buttock with his hand but failing to rape her, which he might have had she not reprimanded him and escaped. The lady had been in need of food, a fragility that led the assailant to attempt to take advantage of her in his grocery store. An angry 'Umar b. al-Khaṭṭāb, reminding those present that the soldier *was out exposing himself to death for the sake of the group* and entrusting them with his wife's safety and well-being,[35] jumped on the man and suggested his execution to the Prophet. The verse, hence, came to establish that a touch on the buttock is, indeed, forgivable, as it qualifies as *lamam*.

Scholars discussed this term in detail in diverse literature, from Qur'anic exegesis to lexical commentaries to legal manuals.[36] And they differed on the concept of "*lamam*." Their opinions can be summarized as follows:

– What is meant by "*lamam*" is the sin and immoral acts committed by the Companions during the pre-Islamic era, such as disbelief in God, adultery, and theft.

34 الَّذِينَ يَجْتَنِبُونَ كَبَائِرَ الْإِثْمِ وَالْفَوَاحِشَ إِلَّا اللَّمَمَ ۚ إِنَّ رَبَّكَ وَاسِعُ الْمَغْفِرَةِ.

35 Muqatil b. Sulayman (2002), *Tafsīr*, 4, 164.

36 Ibn al-Qayyim (2019), *Rawdat*, 516–518; al-Shanqīṭī (1995), *Aḍwā*, 7, 75–76; al-Sīrāfī (2011), *al-Taqrīb*, 4, 307; Sayyid Quṭb (1990), *Fi zilāl al-Qur'ān*, 6, 3412–3413; Ibn Kathīr (1997), *Tafsir al-Qur'an al-'azim*, 7, 353; *Mawsu'at* (2019), 20, 730–739.

In other words, sins preceding coming to Islam, for those born before they embraced the faith.

- *Lamam* indicates minor sins, such as kissing, hugging, touching a woman, and any foreplay between an unmarried man and woman, not including explicit sexual intercourse.
- *Lamam* is a sin for which the laws of Islam do not specify a punishment in this world, which also does not deserve punishment in the Hereafter.
- *Lamam* is when a person commits a sin once and then repents, regardless of whether the sin was minor or major.
- *Lamam* refers to the thoughts of the heart that do not actually turn into a sin.

The view of the majority of the Companions of the Prophet and most jurists and Qur'anic exegetes, supported here by Ibn al-Qayyim, is the second opinion. That is, *lamam* indicates minor sins, such as kissing, hugging, touching someone of the opposite sex to whom an individual is not married; and any foreplay between unmarried man and woman, not including explicit sexual intercourse. Ibn al-Qayyim examined both the sources of the above five views (which authorities held each one) and their consistency with other legal doctrines of the law (we presume his own *madhhab*, or school of law). This favored view is also that of several prominent interpreters, Ibn al-Qayyim reminds us.

What is the benefit of this textualist bent? It is supposed to offer a ceiling to *maṣlaḥa* reasoning. In other words, when in doubt about the hierarchy of values within any *maṣlaḥa* calculation, we consult the texts of the Qur'an and the Prophet's Sunna. The texts will tell us what not to compromise on. Considering *lamam* (e.g., kissing a non-spouse) to be a light matter, one must note, is hardly the way of pious textualists. Authors such as Ibn Hajar (with his abundant sources behind him) warn with a bright red light that, in reality, no crime against God's order is a small matter. Exceptions to the textually based principle that one may not be seen alone with a stranger (in a *khalwa* condition), however, are also made based on texts that introduce the notion of necessity. We learn, for example, that the Prophet's wife 'A'isha was accompanied by one man when she was lost and her ride was non-functional.[37]

What is the cost of this textualist bent? A textualist bent may be sincere, where the textualist limits himself by the texts (against his own personal preference), and it may be an artificial *ex post hoc* appeal to a text that fits the rational mold of the textualist. The problem is that texts are not consistently intelligible. If we imagine,

37 "قَالَ أَصْحَابُنَا وَلَا فَرْقَ فِي تَحْرِيمِ الْخَلْوَةِ حَيْثُ حَرَّمْنَاهَا بَيْنَ الْخَلْوَةِ فِي صَلَاةٍ أَوْ غَيْرِهَا وَيُسْتَثْنَى مِنْ هَذَا كُلِّهِ مَوَاضِعُ الضَّرُورَةِ بِأَنْ يَجِدَ امْرَأَةً أَجْنَبِيَّةً مُنْقَطِعَةً فِي الطَّرِيقِ أَوْ نَحْوَ ذَلِكَ فَيُبَاحُ لَهُ اسْتِصْحَابُهَا بَلْ يَلْزَمُهُ ذَلِكَ إذَا خَافَ عَلَيْهَا لَوْ تَرَكَهَا وَهَذَا لَا اخْتِلَافَ فِيهِ وَيَدُلُّ عَلَيْهِ حَدِيثُ عَائِشَةَ فِي قِصَّةِ الْإِفْكِ وَاَللَّهُ أَعْلَمُ." (شرح مسلم: ٩/ ١٠٩- كتاب الحج: والنأي هو البعد).

for example, that severe punishments must be assigned to major violations of God's laws, we are in for a surprise. There are major violations of the law (e.g., bad manners with a parent, *ʿuqūq al-walidayn*) that are not punished at all.[38]

Ibn al-Qayyim's Two Analogies

Ibn al-Qayyim's ostensibly jarring conclusion is that one man may lend his wife (who, don't forget, was the cheater) to a lover for a short time to save this lover's life, or offer one instance of pleasure before this lover's demise; the discussion relies on two analogies with decisions that are broadly accepted in Islamic legal reasoning. The law that allows imbibing prohibited substances, if needed as medicine, and the otherwise prohibited handling of the private parts in the bodies of strangers, if needed in medical treatment, should not be scandalized or appalled when allowing a brief act of mercy by a spouse toward a former acquaintance. Or should it? Is there a difference Ibn al-Qayyim is ignoring? A difference, possibly, rooted in a) human nature, again if such a thing be real, or b) a '*basic human right*' both Mujāshiʿ and his wife are thought to have exercised or relinquished by consenting to a visit of care for Naṣr, regardless of what might come out of it.

Let's take human nature first and inquire about Ibn al-Qayyim's commitments in this area. Does *human nature* play any part in Ibn al-Qayyim's reasoning? Would Ibn al-Qayyim go as far as to say that a woman, for example, may give her body to a coercer who wants 'sexual intercourse' as a price for necessary water or food. Would he give this license to a man, i.e., allow a man to be sexually objectified to save his own life?

Your Body or Your Life

In *al-Turuq al-hukmiyya* Ibn al-Qayyim confirms the worst of our suspicions.[39] He does, in fact, go so far as to say that a woman may allow a stranger to have sexual

38 وَقَالَ الرَّافِعِيُّ: هِيَ مَا أَوْجَبَ الْحَدَّ. وَقِيلَ: مَا يُلْحِقُ الْوَعِيدَ بِصَاحِبِهِ بِنَصِّ كِتَابٍ أَوْ سُنَّةٍ. هَذَا أَكْثَرُ مَا يُوجَدُ لِلْأَصْحَابِ وَهُمْ إلَى تَرْجِيحِ الْأَوَّلِ أَمْيَلُ; لَكِنَّ الثَّانِيَ أَوْفَقُ لِمَا ذَكَرُوهُ عِنْدَ تَفْصِيلِ الْكَبَائِرِ اهـ كَلَامُهُ. وَقَدِ اسْتَشْكَلَ بِأَنَّ كَثِيرًا مِمَّا وَرَدَتِ النُّصُوصُ بِكَوْنِهِ كَبِيرَةً لَا حَدَّ فِيهِ كَالْعُقُوقِ.

39 Ibn al-Qayyim, *al-Turuq* (2019), 1, 135–38.

والفرق بينه وبين المرأة: أن العار والفساد الذي يلحق المفعول به لا يمكن تلافيه، وهو شر مما يحصل له بالقتل، أو منع الطعام والشراب حتى يموت، فإن هذا فساد في نفسه وعقله وقلبه ودينه وعرضه، ونطفة اللوطي مسمومة تسري في الروح والقلب، فتفسدها فسادًا قلَّ أن يُرجى معه صلاح. ففساد التفريق بين روحه وبدنه بالقتل دون هذه المفسدة.

intercourse with her, if she feared death out of thirst. The story on which he relies goes as follows. ʿUmar b. al-Khaṭṭāb is presented with a confessing adulteress. As he prepares to mete out her punishment, he is told that she gave herself to a man who stipulated this 'sexual encounter' as a price for water she desperately needed. *She is coerced*, ʿAlī b. Abī Ṭālib declared, *and hence must be spared the punishment*! Ibn al-Qayyim pushes this conclusion, not only to offer us an exception in the realm of criminal justice whereby a license after the fact gives the judge a chance to forgive a defendant, but makes of it a general license, which seems to neutralize any commitment to a duty of chastity for indigent ladies. The even more questionable conclusion Ibn al-Qayyim makes is that he does not extend this license to a man propositioned to be a passive party in homosexual sodomy. Death is preferable for a man, he asserts, to life after being raped. '*The homosexual's semen is poisonous, and it pierces the soul and heart*.' A man who lets himself be sexually objectified will have been '*corrupt*,' he says, in his soul, heart, reason, morality, and honor.

One thing is for sure: Ibn al-Qayyim is still an arrow's shot away from a materialist who equates a person with the person's body. What if we disagree with Ibn al-Qayyim and say that a man may be excused for keeping his life at the cost of the humiliation brought about by sexual objectification? A man, in some cases, may need to stay alive to feed desperate children, for example. Would we still have a distance to claim as a separation between us and true materialists?

Near Absolutes (Consent, The Right to Procreate)

Ibn al-Qayyim's textualism was expected to push him to identify his bottom line—where he has non-negotiables or near absolutes. And the Qur'anic text discussed above assured him that *sexual acts below the level of intercourse* may be a possible space for license, depending on what these *violations of the law*, and they are violations of the law, are up against. What Ibn al-Qayyim said about licensing destitute ladies to offer their bodies to save their lives, however, left us unsure as to what the bottom line was, other than an act that left life itself unliveable after it.

Are other legal traditions clearer about where they draw the line at which one will have touched a non-negotiable or an absolute right? In American law, someone's decision to offer their body for the sexual entertainment of another is a personal matter left to this person's consent, barring a *rescinding of* or *confusion about the extent of* the consent, and barring instances of violation of the public order. BDSM (the umbrella acronyms for sadomasochism, standing—last we checked—for *bondage, discipline, sadism, masochism*) is mostly legal in the US, but it is more accurate to say that it is allowed in some jurisdictions in the United States and not

in others, given how the interpretation of the laws by law enforcement tends to be a bit elastic. The federal law is certainly silent about it, and the anti-BDSM decision by the New York Supreme Court in *People v. Jovanovic* (1999, appealed, repealed & retried 2001 then dropped) remains an ambivalent and rare precedent.

We here move to the realm of arguments from '*rights*,' not a balance of interests. Though, again, not absolute or consistent, founding an argument on a notion of a basic right (consent in the case of BDSM) may cancel any invocation of the interest of the public, or other private parties. Well, let's take it seriously for a moment. One has a basic right to their own body to use for the sake of attaining even perverse pleasures. Two basic rights may be at work here. It seems that a human's need for sex (not unlike their need for food) is so basic, and simultaneously the human has pure sovereignty over their own bodies, even when all object to how the person uses her or his body. But is it the basic right at work or, more likely, a degree of comfort with 'libertine-ness,' which is embraced by modern American law and society? If sex and food *were* not really distinguishable in that they fulfill basic human needs, would not allowing prison inmates access to consensual sexual action (with consenting partners) be protected as a basic right?

The argument for basic rights would carry no further burden of analysis. If the argument is made for pragmatic reasons, i.e., allowing conjugal visits is a way to keep an inmate connected to her or his family so as to reduce the chances of total isolation from society (which adds to the chances of recidivism), then confirming the factual presumption is necessary for the argument. As hinted earlier, tests of the facts leave us unsure of the strength of this argument. Studies have shown that marriages don't tend to survive the incarceration of one of the spouses, and those marriages that survive a prison sentence do collapse after the imprisonment ends.[40] The causal link is not easy to articulate, however. That is, it may be that the

40 This National Institute of Health Studies, published in the Journal of Criminology in August 2014, has yet to be superseded or contradicted. Cf. Siennieck 2014. The piece relies on an aggregate of studies as it indicates in its abstract: "Recent studies have suggested that incarceration dramatically increases the odds of divorce, but we know little about the mechanisms that explain the association. This study uses prospective longitudinal data from a subset of married young adults in the National Longitudinal Study of Adolescent Health (N = 1,919) to examine whether incarceration is associated with divorce indirectly via low marital love, economic strain, relationship violence, and extramarital sex. The findings confirmed that incarcerations occurring during, but not before, a marriage were associated with an increased hazard of divorce. Incarcerations occurring during marriage also were associated with less marital love, more relationship violence, more economic strain, and greater odds of extramarital sex. Above-average levels of economic strain were visible among respondents observed preincarceration, but only respondents observed postincarceration showed less marital love, more relationship violence, and higher odds of extramarital sex than did respondents who were not incarcerated during marriage. These relationship problems explained

same people who cannot keep a healthy marital relationship are prone to commit criminal acts; and it may be that incarceration destroys otherwise workable relationships.

We will leave this matter, then, as a question to pursue in future days, as a point of application for our religious, moral, legal, and theological commitments—our commitments to our humanity, which is an offshoot of the divine omnipresence, God's presence at the start of this creation and throughout its duration, whether what is left of it is millennia, centuries, or decades.

A Note on Rights

The Arabic word '*ḥaqq*' remains vague and susceptible to eclectic borrowing from modern and premodern notions of rights. Words such as *jus* (the Latin for both right and law or legal) and *droit* (French for both right and law; hence *faculté de droit* is *school of law* or *school of the study of rights*) had a long journey and didn't, until very, very recently, indicate independent claims before a case is decided. In *Natural Rights Theories* (1979) Richard Tuck showed that the long career of the word *jus* made it mean, on different occasions, the correct balance in the legal or moral world, what accounted for all considerations and imperatives of law and order, or, in some contexts, a simple claim to property (my *jus* or *ius* (house or land) = belongs to me), among other meanings over time. Despite a shorter history, droit as '*right*' is just as rich. *Haqq* needs its own investigation, and it has to be a long one.

It is possible that Muḥammad b. Idrīs al-Shāfiʿī (d. 204/820) was the first to coin the word in the sense in which humans have *rights* and God has *rights*, where these may be in competition, and where one is stronger, and that all Shāfiʿī was addressing was a narrow matter within criminal law in Islam (hence, *ḥudūd* and *jināyāt*-punishments are there to protect rights, and if I can forgive my father's killer, my human right takes priority over that of God, while in a fornication claim, I couldn't forgive, nor can anyone, because God's right takes priority).

But why limit rights to humans and God? How about rivers? The soil? Without much digging in our memory, we know that *Fatāwa al-Subkī* has a well-known treatise on the obligation to care for the river in Damascus and its fair distribution. These non-sentient beings, when Islamic legal literature is read closely, all have

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approximately 40 percent of the association between incarceration and marital dissolution. These findings are consistent with theoretical predictions that a spouse's incarceration alters the rewards and costs of the marriage and the relative attractiveness of alternative partners." Cf. https://onlinelibrary.wiley.com/doi/abs/10.1111/1745-9125.12040.

rights. At a minimum, we know that animals have rights. IAS, whom we met earlier and heard him chastise vegetarians, speaks of the rights of cattle and non-human life (*al-baha'im wa-l-hayawan)* as follows. Their rights (*ḥuqūq*) include proper financial support *(nafaqata-mithliha),* including providing adequate veterinary care even when the animal ceases to be useful, never exposing an animal to predation (whether of its species or of a different species), and making sure its male and female meet to procreate. (Analyze this! Analyze it in comparison with humans not having adequate access to sexual relief because of incarceration.)

The practical question we kept revisiting as we considered the different sides of how *maṣlaḥa* may be conceptualized and comprehended has been the question of calculating the interests of society and the interests of prisoners and their overlap, that is, when a society calculates that its prisoners' interests are part of its own long term interest, and refrains from turning these prisoners into even worse misanthropes inside its prisons, since they are meant to get out at some point. We may not be in total agreement about how to address this matter.

One of us (A. A.) is convinced that the idea of imprisonment as punishment has never worked for any society.[41] The logic of compensation (embedded in the laws of *delicts* in ancient Roman law, *torts* in modern American law, and *damanat* in medie-

41 When asked how I could seriously suggest the release of imprisoned criminals in the United States, where I have lived for 28 years and should know how bad these prisoners are, I exclaim that a good chunk of bad criminals must already be out, since many of those imprisoned are individuals the police were able to pin the crimes on (to close their cases and pretend to have done their work). Some take this comment with annoyance or think it is a tongue-in-cheek demurral. I am not here as focused on the fact that Black Americans are, as everyone knows, overrepresented in the prison population and that this may be a continuation of slavery. If the prison population is 100% white, it is still going to be true that many of them are not criminals at all, and equally true that those among them who are criminals should face different consequences for their actions. A milder sceptic of prisons, Jeremey Bentham by name, enumerated instances of what could go wrong with punishment, being sometimes ineffectual and sometimes counterproductive. '*Introduction to the Principles of Morals and Legislation*' (chapter 13, section 5, article 17): "Where the purpose of putting an end to the practice may be attained as effectually at a cheaper rate: by instruction, is for instance, as well as by terror: by informing the understanding, as well as by exercising an immediate influence on the will. This seems to be the case with respect to all those offenses which consist in the disseminating of pernicious principles in matters of *duty*; of whatever kind the duty be; whether political, or moral, or religious. And this, whether such principles be disseminated *under*, or even *without*; a sincere persuasion of their being beneficial. I say, even *without:* for though in such a case it is not instruction that can prevent the writer from endeavoring to inculcate his principles, yet it may stop the readers from adopting them: without which, his endeavoring to inculcate them will do no harm. In such a case, the sovereign will commonly have little need to take an active part: if it be the interest of *one* individual to inculcate principles that are pernicious, it will as surely be the interest of *other* individuals to expose them. But if the sovereign must needs take a part in the controversy, the pen is the proper weapon to combat error with, not the sword."

val and early modern Islamic law) is the only meaningful logic to address violations of the laws, civil or criminal. It is reasonable, in fact, to *punish the society itself* (*not only its misanthropes*) for (the society's) abandonment of those members in it whose violation of the law ascends to 'criminal behavior' (including murder and treason, the most extreme forms of antisocial behavior). One can take a page from Juwaynī's manual (discussed earlier) to apply surveillance for known violators of the laws to reduce the chances that they would strike and cause damage. If the society has an argument that some of its members are simply sick and incorrigible, it might decide to eliminate these sick members. Pretending to have established correctional institutions for these sick members with a prayer that torturing them for years might make them come back and follow the laws just doesn't make much sense.

Conclusion: What is an Islamic Humanist Theology?

The argument of this chapter is twofold. First, we argue that a good understanding of godly life in Islam, which is coupled with a good understanding of God, is grounded on how a Muslim evaluates existing options in the lowly, worldly life of the here (Arabic: *dunya*). Second, we specifically draw attention to forms of abandonment and neglect of social and human purposes when we, moderns, allow our defense of life and property to lead us to treat some of us as 'untouchables' of sorts, when we shun them in prisons, with arguments from rights or from utilitarianism, while proclaiming ourselves as card-carrying religious and moral leaders.

The argument, perhaps, needs to be pursued further and completed. What we have, then, is a modest start. We think that this start allows us to reflect on the role of a theologian-jurist with clarity. The clarity here, at least, takes us away from sometimes hairsplitting discourses about how the human and the divine relate, aiming, instead, to see divine 'gazes' and purposes in human beings as they live their normal lives.

A Muslim theologian-jurist today has fewer religious commitments, compared with their medieval forbears, and assumes more interdisciplinary interests, compared to their intellectual grandfathers of the 14/20th century. Today's theologian-jurist reaches out and aims to make him/her-self intelligible, and s/he hopes to encounter listening ears and attentive eyes (aware that not everyone in Western audiences is deliberate in their attempts to listen and observe). We appreciate the interest in our attempts to bridge barriers, with honesty being the highest value, rather than an attempt to persuade or dissuade, let alone triumph in argument.

Islam is the youngest of the three Abrahamic religions. It is also younger than the fourth that make up, with then, the family of Western religions, that is, Zoroastrianism. It is finally, hence, younger than the well-known older Eastern traditions of Hinduism and Buddhism. But it is old. It, hence, traversed many paths until it made it to its 15th century, our own.

The longevity of Islam's traditions of theological and moral/legal reasoning allowed its theologian-jurists to address questions of war and peace, crime and punishment, the spiritual and the material, individuals and families, markets and finance, rituals and entertainment, and the list is long. Its geographic expanse allowed it to consider all these questions of faith and practice under different circumstances.

An embarrassment of riches, in a sense, is what it suffers. To draw on these diverse traditions, aware that they all connect, is the starting point. Islam's relative youth, if a youth is allowed to be aged a millennium and a half, also made its moral and legal legacy focused on balancing spiritual goals with something we may have to call material success. This is not a point to shy away from. Some of the language given for the first time by Martin Luther or Friedrich Schleiermacher, about the centrality of humans and human reason in the endeavors of theology, has been accepted throughout the Islamic tradition from its infancy. A humanist theology in Islam is the norm; in fact, a divine-bound or -based theology that excludes human comprehension and human limitations and needs is what requires justification and may, indeed, upon reflection be relegated to the status of mysticism (which is nothing to spit on, but it is not properly a theology or a study of God, since it more or less negates the validity of the existence of the natural, physical world, except as mere distraction (as Ibn ʿAṭāʾAllāh of Alexandria (d. 709/1309) had it: God distracts us from the only reality (Himself) with this unreal world من علامات قهره سبحانه أن حجبك عنه بما ليس بموجود معه)).

Averroes (d. 596/1198) in his *Faṣl al-Maqāl*, is still our guide when he says that studying philosophy, the search for wisdom, is an obligation for scholars of theology and law, rather than a mere choice. His argument for this position also still resonates with us: '. . .were you to say that philosophy was not the business of Muḥammad's Companions, I would remind you that 'neither was fiqh' (the religious legal science of the 2nd/8th century).

A humanist theology, still, requires humans to not fall into a worship of their desires and propensities. This balance allows God to be a companion, warts and all (i.e., acknowledging inevitable anthropomorphic fears), who could surprise humanity with types of prioritization unavailable in materialist philosophies. This much opens a discussion with other religious traditions, with a humility the Qur'an requires on many occasion; at a minimum: that Muslims and non-Muslims come to

stand on one and the same plain (Q 3:64 يَا أَهْلَ الْكِتَابِ تَعَالَوْا إِلَى كلمة سواء), while allowing a divergence of views by both sides (Q 109:6 لَكُمْ دِينُكُمْ وَلِيَ دِينِ).

Bibliography

ʿAbd al-Salām, ʿIzz al-Dīn (2000), *Qawāʿid al-aḥkām fī maṣāliḥ al-anām*, edited by Nazīh Ḥammād, 2 vols., Beirut: Dār al-Qalam.

al-Ghazālī, Abū Ḥāmid (2000), *al-Mustasfā min ʿilm al-uṣūl*, edited by Nazīh Ḥammād, Beirut: Dār al-Qalam.

al-Juwaynī, Abū l-Maʿālī ʿAbd al-Malik (1980), *Ghiyāṯ al-umam fī iltiyāṯ al-ẓulam*, ed. by ʿAbdallāh Dīb, Beirut: Maktabat Imām al-Ḥaramayn.

al-Juwaynī, Abū l-Maʿālī ʿAbd al-Malik (2007), *Nihāyat al-maṭlab fī dirāyat al-madhhab*, ed. by ʿAbdallāh Dīb, Beirut: Dār al-Minhāǧ, 2007.

al-Malāqī, Ibn Riḍwān (1984), *al-Shuhub al-lāmiʿa fī l-siyāsa al-nāfiʿa*, edited by ʿAlī S. al-Nashshār, Casablanca: Dār al-Ṭaqāfa.

al-Shanqīṭī, Muḥammad al-Amīn (1995), *Aḍwāʾ al-bayān fī īḍāḥ al-Qurʾān bi-l-Qurʾān*, Beirut: Dār al-Fikr.

al-Sīrāfī, Quṭb ad-Dīn (2011), *al-Taqrīb fī l-tafsīr,* edited by A. Gharieb, Cairo: Ministry of Culture.

Bentham, Jeremy (1789), *An Introduction to the Principles of Morals and Legislation.*

Ibn al-Qayyim al-Jawziyya (2019), *al-Turuq al-ḥukmiyya fī l-siyāsa al-sharʿiyya*, Medina: ʿAṭāʾāt al-ʿIlm.

Ibn al-Qayyim, Muḥammad b. Abī Bakr (2019), *Rawḍat al-muḥibbīn wa-nuzhat al-mushtāqīn*, edited by M. A. Shams, Mecca: Dār al-Fawāʾid.

Ibn Kathīr, Ismāʿīl b. ʿUmar, (1997), *Tafsīr al-Qurʾān al-ʿaẓīm*, edited by H. al-Ḥajj, Cairo: al-Maktaba al-Tawfīqiyya.

Mawsūʿat al-tafsīr bi-l-maʾṯūr / Encyclopedia of Qurʾānic Exegesis based on Ḥadīṯ (2019), edited by Musāʿid al-Ṭayyār, Jeddah: Shāṭibī Institute & Dār Ibn Ḥazm, 2019.

Muqātil b. Sulaymān (2002), *Tafsīr Muqātil*, edited by ʿAbdallāh Shiḥāta, Beirut: Dār Iḥyāʾ al-Turāth.

Quṭb, Sayyid (1990), *Fi ẓilāl al-Qurʾān*, Cairo: Dar al Shurūk.

Siennick, Sonja E. / Stewart, Eric A. / Staff, Jeremy (2014), "Explaining the Association Between Incarceration and Divorce", *Criminology* 52 (3), 371–398.

Zayd, Muṣṭafā (2011), *al-Maṣlaḥa fī l-tashrīʿ al-islāmī*, Cairo: Dār al-Yusr.

Hakkı Arslan

Chapter 11
Legal Codes, Commentaries and Fatwas/ Responsa: The Function of Legal Genres in Islamic and Jewish Law

Introduction

Jewish-Islamic studies have experienced a significant growth in recent years. There are several legitimate reasons for such a comparison: first, the long common historical experience and, second, the similarity of the two legal systems, which are also erroneously called 'nomocentric' religions.[1] Since the second half of the 19th century, the obvious similarities between Islamic and Jewish law in terms of content, methodology, and structure, and the common historical experience have led Jewish scholars in particular to examine both legal systems comparatively from different points of view as well as for mutual influences or common sources. Since then, numerous individual comparative studies have emerged not only in the field of legal literature, but also in the fields of philology, poetry, dogmatics, mysticism and ethics.

While the first scholars, such as Abraham Geiger and others, attempted to demonstrate the influences of Jewish law on the early phase of Islamic law in the first phase of comparative studies, the second phase of Jewish-Islamic studies is dominated by the attempt to present the influences of Islamic law on the further development and systematization of Jewish law from the 8th century onwards.[2] However, a comparative study should not be limited to mutual influences or borrowings, but rather ask why certain developments were carried out. The organizing questions must therefore go beyond the influences and borrowings. In this respect there have also been studies focusing on theoretical reflections regarding the comparability of the two traditions.[3]

Since then numerous comparative studies have analyzed various aspects of rituals, substantive law or legal hermeneutics. The aspect of legal genres, however, in my opinion, has been neglected so far, with only a few marginal notes that there are parallels between the various literary forms of halakhic literature and Islamic

1 David 2014.
2 LIBSON 2003, 3–21; LIBSON 2006, 262.
3 For example, David, 2014, 3–11.

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legal literature.[4] Gibson mentioned that for example the first codices and the responsa collections, and thus the classical legal literature of rabbinic Judaism, as well as that of Karaite Judaism, emerged in the context of Ummayad and Abbasid rule between the 8th and 12th centuries.[5]

The starting point of the chapter is as follows: in both traditions different forms of legal literature have emerged, such as codices/mukhtaṣars, commentaries, super commentaries, fatwas/responsa and court decisions/decrees. Obviously, these different genres fulfil different functions in the context of legal discourse. There are, of course, a number of other genres, but for the purposes of this chapter the focus will be on those that represent legal doctrine and practice, which can be schematized as follows.

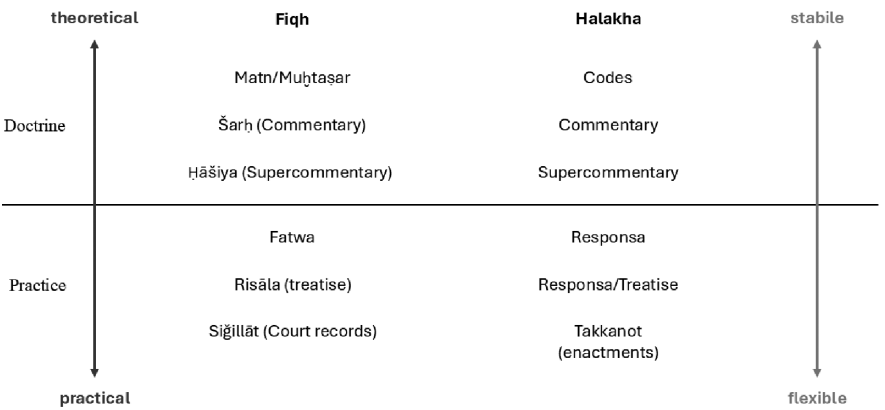


Figure 11.1: Mapping Legal Texts: Fiqh and Halakha.

In the Islamic legal literature the *epitome (mukhtaṣar)*, *commentary (sharḥ)*, and super-commentary (ḥāšiya) are primarily understood as representing the doctrine of the legal school. The fatwas, tractates, and *siǧillāt* are categorized more in the realm of practice. While the genres in legal doctrine treat the law in a systematic abstract manner and thus stabilize the law, the genres in legal practice are intended to provide contextualization of the law and make it more flexible. This distinction between doctrine and practice is an ideal-typical division and is intended to provide

4 MERON 2002, 414–5.

5 LIBSON 2006, 270. "Muslim influence, however, never actually reached the proportions of 'legal transplants,' but was rather limited, primarily affecting a few topics of legal theory, private law (*muʿāmalāt*), and, to a certain degree, genres of legal literature." LIBSON 2006, 262.

an initial orientation as to the area in which the genres are primarily to be located. However, the boundaries between them are often fluid and permeable.

Nevertheless, the analytical distinction between doctrine and practice is useful, especially since there is a clear distinction between the two areas in the classical *adab al-muftī* literature, as we will see later in the text.[6] Thus, there are two levels of analysis at play here: firstly, the different levels of law, i.e. legal doctrine and practice, and secondly, the genres in which these levels are represented as ideal types.

The aim of this chapter is to compare the functions of these different genres of legal literature within both traditions in the pre-modern discourse of the 11th to 19th centuries, by focusing on the question of stability and flexibility of the legal discourse. How did scholars of both traditions manage the tension between stable/theoretical and flexible/practical law and what function did the text genres have in this process? Previous studies have shown that the different textual genres in Islamic law fulfil specific functions and that there is a functional interplay between the different types of legal literature.[7] While some stabilize the discourse, other layers of legal literature provide space for creativity and practicality, i.e. this diversification of legal literature had the purpose of managing the tension between the stable, static, ancient, sacred law and the current, applied law. As such, these genres represent different levels of law and therefore potentially contradict or deviate from each other. However, these deviations have not been treated as contradictions, but rather as differences arising from the different levels they represent. Thus, there is a functional interplay between the different genres in which the different levels of law are negotiated.

The starting hypothesis of the comparison is that the different genres in Jewish law fulfil a similar function. This is because in Jewish law too, especially in the Sephardic tradition under Islamic rule after the 9th century, various text genres emerged over time that took on forms similar to those in the Islamic legal tradition. It is reasonable to assume that the Jewish legal scholars developed parallel patterns concerning the legal literature within the bigger paradigm of the Islamic legal context and therefore assigned similar functions to the genres as in the Islamic legal tradition. I am therefore looking to see whether our findings on Islamic legal text types can also be applied to Jewish genres and in what respects similarities or differences can be recognized. It is therefore an initial exploration that needs to be analyzed in more detail. In short, we can carefully say that we do indeed have similar tendencies in the Jewish legal tradition, which we can find in some studies that deal with the question of different levels of law. A very useful distinction of

6 ARSLAN 2024,

7 OBERAUER 2021, 4.

different levels was presented by Menahem, where he divided the law into three levels, calling them law, law to be applied and concrete judicial decisions, which shows a similar concern to distinguish between doctrine and legal practice.[8] By comparing these classifications and the functioning of legal genres, I have tried to show similar trends within both traditions.

From a broader perspective, it is common to almost all legal cultures that there is a sense of negotiation between stable and flexible elements, on the one hand to provide unity and predictability, and on the other to be able to respond to changing circumstances.[9] It is therefore not surprising that we find these tendencies in the Islamic and Jewish legal traditions. The particularity of religious legal cultures is that this balance between stable and flexible elements is negotiated against the background of a divine revelation, which is seen as the main source of legal norms. In this respect, there is much in common between Jewish and Islamic legal traditions in general. The perspective of different genres used to manage different levels of law is just one method of showing how stability and flexibility are managed against the backdrop of revelation and religious tradition in both religions.

By recognizing this, we can better understand why there are different kinds of genres and how they were used in the premodern discourse, which is also crucial for our contemporary discourse. First, I want to show sketchily the functional interplay between different genres and the different levels of law in the Islamic legal literature. Then in the second step I try to look at whether there are similar tendencies in the Jewish tradition. After providing some examples for the functional interplay between the genres in both traditions I try to draw conclusions about the question of how a comparative theology could benefit from this kind of comparison.

Diversification of Islamic Legal Literature

In the Islamic legal discourse between the 11th and 14th centuries, a gradual process of canonization took place where school-specific doctrines emerged. The so-called mukhtaṣar, which is perceived as a summary of the entire school tradition, represents the canonization and thus became the source text for further legal interpretation. Practically speaking, it is a canon of certain legal opinions for a school,

8 BEN-MENAHEM 2015, 37.
9 BRAUN 2011, 4.

which is not to be understood in the final sense, but it has a high level of stability.[10] Mukhtaṣar could be seen as the equivalent of codes in the Jewish tradition, as both attempt to present the law of the legal tradition in a condensed and systematized form, which has given rise to extensive commentary on these texts.[11]

In addition to this canonization, a whole series of new genres were developed that are supposed to take on different functions within the framework of legal discourse. In other words: the diversification of the genres serves, among other things, to improve the already mentioned relationship between theory and practice and regulate stability and flexibility. But for the sake of this chapter we will focus on the main genres of legal doctrine (mukhtaṣar and commentaries) and legal practice (Fatwa).

Genres as Different Layers of the Legal Tradition

Baber Johansen was the first to conceptualize the different genres like a layer model. Different layers have different functions and there is a division of labor between the text forms; while some stabilize the discourse, others make room for practicable solutions.[12]

At the very top of the hierarchy there is the mukhtaṣar, which forms the most theoretical and also the most stable level. Together with the commentaries and super commentaries it has the function of laying down the prevailing doctrine of a certain law school. While the mukhtaṣar, the commentary and the super-commentary primarily represent the legal doctrine of the early school-masters, fatwas, treatises, and siǧillāt are more related to legal practice. While the above genres treat the law in a systematic-abstract manner and thus stabilize the law, the genres in legal practice are responsible for contextualizing the law and making it more flexible.[13] The hierarchy between these genres is clearly stated in the adab al-muftī-works (etiquette of the mufti):

> For the *mutūn (*codes*)* and the *šurūḥ* (commentaries) are set to transmit the doctrine of legal school (*mawḍūʿatān li-naql al-maḏhab*); therefore, what is written in a fatwa must not contradict these two [textual genres]. The mutūn (codes) take precedence when they contradict the

10 ARSLAN 2024,

11 Ceylan claims that Maimonides' Mishne Tora was directly influenced by the mukhtaṣar literature of the western Islamic lands. CEYLAN 2022, 380–87. In passages where I want to show the parallels, the term mukhtaṣar is translated as code for better comparability.

12 JOHANSEN 199, 448.

13 ARSLAN 2024,

> rulings in the commentaries and the commentaries take precedence when they contradict with the rulings in the fatawa.[14]

In this central statement, which can be found similarly in many other books, there are three genres at play. *Matn* or the *mukhtaṣar,*[15] the abridged base texts, which are similar to the codes in Jewish tradition, commentary of the base text, and the fatwa. While the *mutūn* and commentaries are responsible for identifying and transmitting the jurisprudential teachings, the fatwas are responsible for contextual reference. The codes therefore have the highest authority among the texts. If there is a contradiction between a statement in the code and in the fatwa, then the code prevails. Commentary is on the second level and Fatwa on the third. In these works, the terms *matn* and *šarḥ* stand paradigmatically for all genres that have as their task the dogmatic elaboration of legal doctrine, while *fatwā* stands paradigmatically for all genres that have the task of concretizing this doctrine in various contexts of application. But then there are statements which seem to put the previous statements into perspective.

> The abstract statements of the *mutūn* are not taken into account [when giving fatwa] and it is not permitted to give fatwa on the basis of these abstract statements.[16]

The codes (*mutūn*) have the highest authority, but because they are abstract, they can't be applied without considering the context. They have to be concretized in a given context to be applicable. That means the abstract black-letter rules have to be translated into concrete law to be applicable. Therefore, a statement in the *mutūn* can't be applied without considering the particular context. In the same text we can find this explanation:

> The general statements of the jurists (*iṭlāqāt al-fuqahā'*) are mostly provided with qualifications (*muqayyada bi quyūd*) that intelligent students trained in the uṣūl and furūʿ know. The scholars only remained silent because they trusted the expertise of the students.[17]

The abstract statements in the codes have always been read with qualifications in a particular context. These qualifications can be found in the commentaries or in the fatwa works. So, in theory, the codes have the highest authority, but in practice they can't be applied without taking into account social practice, without concretizing

14 Al-ʿAynī, *Risāla*, 88.
15 In this context *matn* and *mukhtaṣar* are used interchangeably. In classical texts after the 14th century the term *matn* is used more often than *mukhtaṣar*, therefore texts presented here used the term matn (pl. *mutūn*).
16 Al-ʿAynī, *Risāla*, 89.
17 Al-ʿAynī, *Risāla*, 91.

them. According to this concept, there are at least two levels of law: doctrine, which is abstract and detached from the actual context, and legal practice, which concretizes the doctrine in a given context and makes it applicable. These two levels are associated with mukhtaṣar and commentary on the one hand, and fatwa on the other. Now let's move to an example to show this functional interplay and the different levels of law.

Getting Paid for Teaching the Quran: The Functional Interplay Between Legal Doctrine and Practice

In the 12th century, the famous Hanafi scholar al-Marghinānī (d. 1196) wrote a famous mukhtaṣar called Bidāyat al-mubtadī and then began to comment on it with a commentary entitled *Kifāyat al-muntahī*. However, when he realized that this commentary was becoming too large for practical use, he decided to write a shorter commentary on al-Bidāya titled al-Hidāya.[18] This commentary became one of the most authoritative works in the hanafi school soon after its completion and was commented on dozens of times. Our example comes from the chapter on wages (*kitāb al-ijāra*) where the scholar discussed permissible and impermissible wage contracts. The question we are going to deal with in this context is whether it is permissible to pay someone for acts of worship such as giving the call to prayer, performing Hajj, or teaching the Qur'an. In his *mukhtaṣar* al-Marghinānī stated the school opinion on this question and said:

> It is impermissible [for someone] to get paid to deliver the call to prayer, to perform hajj and also for leading the prayer or to teach the Qur'an and legal norms (*fiqh*).[19]

This is the dominant rule in the legal doctrine, that it is impermissible to get paid for acts of worship. In the commentary he explained the rationale behind this rule and quotes sources to legitimize it.

> The basis is that, according to us, a Muslim may not be hired for devotional acts he performs for himself to get reward.

18 MERON 2002, 414.

19 AL-Marghinānī, Al-Hidāya, VI, 35.

> According to al-Shafii, may Allah's mercy upon him, it is valid in any act not obligatory upon the one hired, because he is being hired for defined work that he is not obliged to do, so it is allowed.
>
> It is in our favour that the Messenger of Allah, may peace and blessings be upon him, said: "Recite the Qur'an and do not eat by it," and the last words of the Messenger of Allah to 'Uthman ibn Abi al-'As: "If you are appointed to be a muezzin, do not accept any reward for the adhan.
>
> And because when a devotional act is performed, it is performed in the name of the performer, and therefore his ability to perform it is taken into consideration, he may not take a wage from anyone else, just as in fasting and praying. And because the transmission of knowledge is something that the teacher cannot give without a corresponding receptivity in the student, he is taking on something that he cannot give, so it is invalid.[20]

The *mukhtaṣar* holds it impermissible to hire someone to give the call to prayer (*adhān*), lead prayers, or teach fiqh or the Qur'an. The reason given is that these are acts of subservience to God (*ṭā'ah*) that a person does for his own sake—i.e. to earn a reward from God—so he may not be paid by someone to do them. The basic rationale is "you cannot be paid for something you earn a reward from God". In the commentary, this rule is explained and justified at length and defended against other school opinions. Therefore, the primary aim of commentary is rationalizing the law.

After he mentioned the rationale and the sources he closed this topic by saying that such an act would be invalid. But directly after that he said that this position is not practiced anymore and it should be valid in his days, because of other reasons. Here he leaves the level of doctrinal exegesis and jumps over to the social context. And says:

> Some of our teachers thought it was good in our time for someone to be hired to teach the Qur'an, because laxity in matters of religion is prevalent, so if you abstain from this, you are wasting the preservation of the Qur'an. This is the position of the fatwa.[21]

He argues at length for a position where he says at the end that this is not applicable at this moment because otherwise it would lead to the opposite of what was intended by the dominant rule, which is to waste the preservation of the Qur'an. So there is a law in the *mukhtaṣar*, and the commentary confirms it, but you can't apply it, at least not in the present circumstances. This means that not only is the doctrinal exegesis important, but also the social consequences. To come back to the hierarchy of legal genres, as we have said, the *mukhtaṣar* has the highest authority

20 Al-Marginānī, Al-Hidāya, VI, 35–36.
21 Al-Marghinānī, *Al-Hidāya*, VI, 36–37.

but at the same time you are not allowed to give fatwas according to the mukhtaṣar without considering the social context.

If we look at a later *mukhtaṣar* work, Kanz ad-daqāʾiq written by Abū l-Muʿīn an-Nasafī (d. 1310) a century later, we see following statement on the same topic:

> It is not allowed to get paid for adhan, for ḥajj, for leading prayer, for teaching the Qur'an and Islamic law (*fiqh*). But the fatwa in our days is that it is allowed to wage someone to teach the Qur'an.[22]

Here we can see that the original rule is still maintained in the *mukhtaṣar*, but the fatwa-position which was in the commentary one century earlier now moved to the main text of the *mukhtaṣar*. *Kanz ad-daqāʾiq* was also a very prominent work which caused many commentaries. One of them is Ibn Nujaims (d.1566) *Baḥr ar-rāʾiq fī sharḥ kanz ad-daqāʾiq*. Unfortunately, he died before he could complete his commentary and the place where he stopped is the topic we are dealing with. Because of this his work remained incomplete until another scholar named Muḥammad b. Ḥusain b. ʿAlī aṭ-Ṭūrī al-Qādirī (d. 1726) wrote a *takmila* (completion) to complete his work. In this commentary, written almost 550 years after Marghinānīs' work, we see that the original rule of impermissibility is still very prominent and is cited and commented upon at length. His commentary on the first sentence of Nasafis kanz ad-daqāʾiq, where it is stated that the payment of wage for teaching the Qur'an etc, is impermissible, is much longer than the commentary of al-Hidāya. And after this long explanation of the original *mukhtaṣar* rule he continued to comment on the applied rule by saying:

> {But the fatwa in our days is that it is allowed to wage someone to teach the Qur'an.} And this is the position of the later scholars (*mutaʾakhkhirīn*) of the scholars of Balkh. They thought it was good and said that the earlier scholars (*mutaqaddimūn*) of our school based their answer on the reality they faced when there were fewer people who memorised the Quran while at the same time people were very interested in it [learning from them]. And because the preservers (of the Qur'an) and the teachers were recipients of grants from the treasury and received from the students needs in terms of compensation for teaching without any specific condition. In this era however, such support has diminished, and the guardians of the Qur'ān have become concerned with securing their livelihood. If the door of teaching with remuneration had not been opened for them, the Qur'an would have disappeared. Therefore, they issued fatwas (legal opinions) allowing it, and the legal rulings vary with the changing times.[23]

Here we can see in detail the social considerations of the rulings and why the shift in school position occurred in the later period. Although the original rule has not

22 Aṭ-Ṭūrī, *Takmila baḥr*, VIII, 33–34.
23 Aṭ-Ṭūrī, *Takmila baḥr*, VIII, 34.

been applied in practice for hundreds of years, it is still preserved as the rule of earlier scholars, while the exceptional rule has become the standard position of later scholars. If we look at the fatwas that are part of legal practice, we see that most of the time the fatwa position in the commentaries is also the basis for the concrete ruling in concrete cases. But in some cases, we can see that the original ruling is still very dominant when it comes to defining the boundaries of such payments. In the 15th and 16th centuries, it became common for imams or students of religion to be paid for reciting the Qur'an at funerals or for deceased relatives or on other occasions. This became a very hotly debated issue because some scholars felt that for some people involved in these matters, reciting the Qur'an had lost its original meaning of worship and had instead become a business in which they made money. In order to emphasize the dimension of worship, scholars issued fatwas drawing some distinctions or wrote treatises discussing these issues at length on a doctrinal and social level.[24]

For example, in a fatwa of Ebu Suud Efendi (d. 1578) the question is whether it is permissible to get paid for reciting the Qur'an. The question of getting a wage for teaching the Qur'an was permissible, but what about reciting the Qur'an for someone else and getting paid for it?

> The answer of Ebu Suud is: According to the preferred view, it is permissible if the reciter reads with the intention of worship and donates the spiritual reward to the payer.

In another, there is specification of the question:

> If Zayd recites the Qur'an with the sole intention of getting paid for it, is the money he receives halal? Answer: The money he receives is not halal, he must give it back to its owner.[25]

Here we can see that the original rule of not getting paid for acts of worship is still valid, when it comes to defining the boundaries of such contracts. It is of course obvious that no one can control if a reciter is reciting with the intention of worship or not, but nevertheless this shows that the main rule should govern the actions of the believers and could be understood as a moral and not a legal verdict. It should teach the believers an ethical lesson, that reading the Qur'an should be first and foremost with the intention of coming closer to God. Although the doctrinal rule is not applied as a legal rule, it could still have other functions as moral, religious or ethical guidelines.

24 Kavalcıoğlu 2020, 309–324.
25 Kavalcioğlu 2020, 309.

This example shows that there are at least two levels of law, doctrine and practice, which may overlap or diverge depending on the social context. The mukhtaṣar is there to state the decontextualized ancient rule of the school, which remains stable and hasn't changed substantially over the centuries. The law of the teachers is an exception that is understood to apply wherever the exceptional situation is found. This exception could sometimes become the dominant fatwa position over time, as in our case, while at the same time preserving the validity of the original ancient rule. The commentary provides the justification, rationale and sources of the mukhtaṣar rule, but also links this rule to other opinions and minor rules within the tradition, thus providing the big picture of the discourse tradition.

This rule at the doctrinal level must pass through the filter of the social context before it is taken as law to be applied. Identifying the school doctrine with its underlying rationale is thus only one part of the law-making process. The second task is to ensure that the rule is appropriate for a particular time and place, taking into account the consequences of that law and whether those consequences are consistent with the law at the doctrinal level. And after these considerations, the mufti has to decide whether to use the dominant position or to deviate from it in favor of a minority position, taking into account the social benefit. Therefore, the concrete fatwa can deviate from this or confirm it.

The commentary is somewhere between the decontextualized mukhtaṣar rule and a concrete fatwa in an actual case. It discusses the mukhtaṣar rule within the tradition and weighs different arguments, and it also updates the school's position by linking it to current debates. But the last point is only the secondary aim of the commentary, because there are other genres where different fatwās and current debates are primarily discussed, such as the treatises or fatwas. But it is not completely deprived of this, as we could see in the example of the Takmila on Ibn Nujaim's al-Bahr ar-Rāʾiq, where he explained in detail the social considerations of the mukhtaṣar rule and the fatwa-rule. Fatwas and tractates are full of examples that deviate from what was laid down as a rule in the mukhtaṣar, without questioning the validity of the mukhtaṣar rule. Here we can clearly see the functional interplay between the sacred ancient law and the applied law.

We now move on to Jewish legal literature and ask whether there are similar forms of genre diversification and different levels of law comparable to the Islamic legal tradition.

Division of Labor in the Jewish Tradition and the Emergence of Legal Genres

Halakhah is an independent discipline with its own literature that emerged in the Islamicate context from the 8th century onwards. Before this phase, halakhic discussions took place just like dogmatic, philosophical or scientific debates within the framework of the Talmud, so that these topics were not systematically treated as independent genres, but always in the context of the interpretation of Talmudic passages. At the time of the Geonim, a differentiation and systematization took place and individual branches of science emerged. Not only halakhic works but also independent works in theology, poetry, philosophy and biblical exegesis emerged as separate disciplines.[26] The first systematic accounts of Jewish legal literature started in the 8th century and R. Saadya Gaon (882–942) was the first Jewish scholar to write a halakhic monograph on a specific topic. These and other works paved the way for the later major codifications of the Halacha,[27] similar to the legal genres in fiqh.[28]

We see the emergence of influential codes of Jewish law, beginning with Alfasis (d. 1103) Sefer Halakoht, Maimonides (d. 1204) Mishne Tora, continuing with Jacob ben Aschers (d. 1340) Arbaa Turim and finally Joseph Karos (d. 1575) Shulhan Arukh. The latter is the most influential Jewish book widely used as the most authoritative code of Halakha.[29] Since the codices, such as the Shulchan Aruch, contain only black letter rules, usually without reasoning, the need arose to comment on these works, which paved the way for further super-commentaries on the commentaries.

26 Vgl. Libson 2003, 42; Libson 2006, 262.

27 Grözinger 2004, 359; Libson 2003, 210.

28 At this point, a distinction must be made between Ashkenazi and Sephardic Jewry. The development of literary production as described above took place in Sephardic Judaism under Islamic rule. The writing of halakhic codifications and commentaries was the exclusive method of the Sephardim. According to Chaim Saiman, Ashkenazim have a devotional approach to Talmud, which means that Talmud was primarily a spiritual discourse concerned with establishing a relationship with God and only secondarily a system of social rules. Therefore, they didn't feel the need to write codes in which the concretely applied relevant rules of halakhah were systematically collected. They continued the study of the Talmud in the traditional way, producing commentaries and supplements on Talmudic questions and problems and dealing with legal issues within this network. The Sephardic communities however proposed a sharp line between halakhah (the legal content) and aggadah (the non-legal narratives) and collected the practically relevant rules of the Talmud in separate works and systematized them in new ways. But after the 16th century the distinction between ashkenazi and Sephardic methods blurred. Especially after Shulhan Arukh became the most authoritative book for both communities and ashkenazi scholars started to write extensive commentaries or abridgements of Shulhan Arukh and other codes. Saiman 2020, 143–152.

29 Saiman 2020, 163–167.

In addition to these codes and commentaries, responsa and takkanot (regulations) are further layers of legal literature that represent the practical side of the law. Without going into further detail, we can observe a tendency to spread the topics into different genres in order to meet the systematic and practical needs of law. The two main legal genres where the legal discourse is elaborated are according to Elon Menachim the responsa and the legal codes and there is a clear theoretical hierarchy between these different genres.[30]

Like in the Islamic legal literature the legal codes are theoretically more authoritative than the responsa, since they, along with the Tanakh, the Mishnah, the Gemara, the Tosefta, and the Talmud commentaries, are among the primary sources of Jewish law. In this description the legal codes are representing the legal side of the religious doctrine. The responsa, on the other hand, are considered secondary sources of law. And again here is the hierarchy between the sources. In theory, when a halakhah from the codices conflicts with a responsum, the view of the codices should be taken into account. The codes represent the law of the oral Torah, whose first articulation was the Mishna.[31] The commentary connects the rule of the codes with the Talmudic background and provides a theoretical scholarly justification of the law.[32] In practice, however, responsa are usually as important, if not more important, than the codices because of their practical relevance. The responsa and also the tosafot, which are supplements to the Talmud were frequently incorporated into the commentaries and the commentaries were reflected in the tosafot in the ongoing discourse.

As we can see from this brief description of the functional interplay between different genres in the Jewish tradition, there are similar ways in which different genres are used to articulate different levels of law, where a similar distinction between legal doctrine and practice can be seen. The legal codes, which are concise works containing the black letter rule without detailed argumentation, summarizing the legal tradition, are very similar to the mukhtaṣar literature in the Islamic legal context, while the responsa and fatwas have similar functions in both traditions, namely to provide a legal answer to an actual case. Beneath these two main genres is the vast tradition of commentary, in which the whole discursive tradition of legal cultures was used to provide a link between legal doctrine and legal practice.

Now let's move to another proposed classification of the different levels of Jewish law, which seems to resemble the doctrine-practice division but has three layers.

30 Menachem, 1975, 12.
31 Menachem, 1975, 1432–1457.
32 Saiman 2020, 166–67.

The Tripartite Division of Law in Jewish Law

In an article, Hanina ben Menahem divides halakhic statements into three levels: Law, law to be applied, and concrete judicial decisions. *Law* (with a capital L) at the first level is independent of historical context and isn't meant to be directly applied. *Law to be applied* is the articulation of the law in a given historical setting and is meant to be applied but is still a theoretical articulation of the law. A concrete judicial decision is more specific and is only applied to concrete cases, and thus differs from the first two levels of law, which are more general.[33] In other words, law could be described as universal law, law to be applied as contextualized law and judicial decision as law in action. Although these three levels very often overlap, it is crucial to determine which type of law is meant in a given context. According to Menahem, this division is not an external analytical tool, but an internal division that was already found in Talmudic law and continued to be recognized in the halakhic tradition.[34] He gives a number of examples where this distinction between the law and the law to be applied seems to be very obvious:

> R. Asi said to R. Johanan: when our master has said to us, the law is thus-and-so, may we hand down rulings accordingly in actual cases? He said: Do not hand down rulings accordingly unless I declare it law-to-be-applied (halakha lemaase).[35]

It is clear from this passage that, according to R. Johanan, not every law that came from the Master is a law to be applied. The term he uses for this category is halakha le maase. The distinction between law and applied law seems clear to the questioner and the Teacher, since he asks specifically whether these teachings are applied?

Naim Shaiman brings into play another passage from the Talmud in which the first level of Law, i.e. non-applied universal law becomes clear.

> The [case of the] rebellious son never was, nor will it ever come to be. Why then was it legislated?
> To say, study it and receive reward. Tosefta Sanhedrin 11:2
> The case of the rebellious city never was, nor will it ever come to be. Why then was it legislated?
> To say, study it and receive reward. Tosefta Sanhedrin 14:1[36]

33 Ben-Menahem, 2015, 37–38.
34 Ben-Menahem 2015, 38.
35 Ben-Menahem 2015, 39.
36 Saiman 2020, 29.

From these and many other statements, we see that there are many legal rulings in the Mishnah and Talmud that were not intended to be implemented, but to be studied for reward, or to be understood as first-level law, according to the above-mentioned partition from Ben Menahem. Since Halakha is created in the theological state of galut (exile), this means that Halakha must function without the supreme legislative body known as the Sanhedrin, and therefore cannot judge or enforce significant areas of Halakha.[37]

Saiman continues by saying:

> Throughout the Jewish history rabbis continued to study, debate and produce halakhah on topics far removed from practical questions of governance with the same rigor given to issues of halakha that formed the backbone of daily practice.[38]

That means that the applicability was not the first concern of these rulings. But from the 11th century onwards there are statements such as the following, where the distinction between *Law* and *law to be applied* in Talmudic law seems to diminish:

> The Talmud is all *haklakhah le-ma'aseh* [applied law]. . . .It is as if the Talmudic authors told us "this is the law to be applied", for they wrote it in order that it be performed in practice.[39]

In this passage, Joseph B. Meir Mi-Gosh (Spain; 1077–1141) categorizes the entire Talmud as *halakha le ma'aseh*, that is, as *law to be applied*. Menahem mentions several other rabbis from the period around the 11th and 12th centuries, when this view of the Talmud was very widespread. So how do we reconcile these statements with the seemingly obvious fact that there were laws in the Talmud, such as the example of the rebellious son, that never meant to be applied? According to Menahem, these statements are not really contradictions and should be understood in context. He is talking about the second canonization of the Talmud, beginning in the 11th century, in which the entire corpus of the Talmud was seen as law to be applied, contrary to the earlier conception of the Talmud in the Talmudic period.[40] The reason for this was the decline in the authority of the Geonim, the heads of the Babylonian academies, especially after the death of the influential Rav Hai Gaon (d. 1038). The lack of a strong central authority created a vacuum that was to be filled by the elevation of the status of Talmud. It is no longer the Gaon who decides on the

37 Saiman 2020, 31.

38 Saiman 2020, 36.

39 Saiman 2020, 143. Ben Menahem translates this passage as follows: "and our Talmud is law-to-be-applied, since it was committed to writing only after thorough deliberation and careful examination over several generations, and after several drafts, and it is as if they told us that it was law-to-be-applied, since they wrote it to be acted upon." Ben-Menahem 2015, 48–49.

40 Ben-Menahem 2015, 48.

applicability of Talmudic law, but the Talmud itself which is seen as such. Rather than reading these statements as contradictions, they should be read as a new concept that seeks to preserve the authority of the Talmud in the post-Talmudic era, where there is no central scholarly authority that is recognized throughout the Jewish world.[41] The debate between law and its application continued, however, in the halakhic literature that emerged during this period.

Different Genres and Different Levels of Law

While the tripartite division was made within the Talmudic paradigm, later in the post-Talmudic era, after the 10th–11th centuries, different genres emerged to deal with these different levels of law. Therefore, this tripartite division seems to have been transferred from the Talmud to the different genres and has to be taken into account when dealing with the different and sometimes contradictory types of texts. Despite the fact that Talmudic law was then conceptualized as applied law, the distinction between ideal law (or law) and applied law is maintained in the codices and commentaries. Applying this to the various genres, Menahem said generally that, for example, Maimonides' Mishne Torah, which is a codification of Talmudic law, contains both law and law to be applied, while the responsa of Maimonides represent the third level, namely the concrete judicial decision.[42] According to Elon Menachim, these two genres, legal codices and responsa, are also the two main literary genres of Jewish law in which legal doctrine was systematized and contextually transmitted. The difference between the codices and the responsa is that the codices theoretically record and transmit the prevailing doctrine on individual practical legal issues, while the responsa respond to specific cases and inquiries and ensure the application of the theoretical norms of halacha in practice. The codes reflect the law and the applied law in the above tripartite division, while the responsa reflect concrete practice.

Ben Menahem mentions also the commentary of Mishne Tora, which is an inquiry about the law, where the different contextualizations of the law or applied law are discussed. If we consider the commentary of a legal code as a third layer among the legal code and the responsa, then we can match the three levels analytically with the three genres: First level of law = Code, Second level of law = Commentary, and Third level of law = Responsa. This distinction doesn't work always, because the determination of which rule is *law* or *law to be applied* is not always

41 Ben-Menahem 2015, 47–48.
42 Ben-Menahem 2015, 42–46.

clear and sometimes you can find both in a code or in a commentary or even in a responsum. But according to Menahem the tripartite division is undisputable within the Talmud and also in the later halakhic literature and the analytical distinction into three genres is a good way to conceptualize these different levels of law. This is also a good way to differentiate between the doctrine and the practice of law. According to Naim Saiman the codes do not necessarily include law to be applied, but rather the opposite. He quotes statements like the following from the later halakhic code Arbaa Turim from the 14th century:

> The judges are required to distance themselves in all possible ways so as not to accept upon themselves to adjudicate according to the law of the Torah. For the hearts have been considerably diminished, and we have learned in the first chapter of the Jerusalem Talmud, tractate Sanhedrin. In the days of R. Shimon b. Yohai, the adjudication of monetary laws was suspended.[43]

Even the codes such as the Arbaa Turim, which had the explicit aim of collecting only the relevant and imperative laws, contain the idea of an ideal or sacred law, which should not necessarily be put into practice and which, according to Chaim Saiman, was seen as law to be studied rather than applied. For the practice or application of law, one must turn to other genres such as responsa. While commentaries and codes take the Talmudic text as their starting point, responsa are usually stimulated by events in the real world.[44]

The tripartite division of different levels of law into law, law to be applied and applied law (concrete jurisprudence) and their correlation with different genres of legal literature such as codes, commentaries and responsa will be the framework used to present the following examples in Maimonides' work.

The Example of the Lethal Wife (a Twice-Widowed Woman) in Maimonides' Works

To see how the distinction between law and law to be applied worked in halakhic works, Menahem shows many examples from the works of Maimonides, from which I want to show one in this passage. Maimonides wrote very influential work with the title Mishne Tora where he systematized the legal content of the Talmud and which is considered one of the most influential Codes in Jewish history. At the same time, he gave hundreds of responsa on different occasions. According to

43 Saiman 2020, 168.
44 Saiman 2020, 185–187.

the descriptions above one can expect contradictions between these two genres. And in fact the discrepancies between the content of these two works were highly debated in the secondary literature. According to Menahem, the best way to explain the "contradictions" in his works is to consider the different levels of law which were represented in different genres at play.[45] While in the code Maimonides often talked about law or law to be applied in the responsa, he can deviate from that considering the given social context. The first is about the question of whether or not a lethal wife, that is a woman whose first and second husbands die, is allowed to marry a third man. This is a very prominent example because of its superstitious content, and Maimonides was probably one of the most important figures who dealt with this question in an ambivalent way. This question is dealt with in the Talmud, where we find the following baraita:

> "If a woman married one man and he dies, and a second and he dies, she does not marry a third". These are Rabbi's [Judah ha-Nasi] words. R. Simeon b. Gamaliel says, "She does not marry a fourth".[46]

According to Friedman, this is the first time the sages defined an exact number of permissible marriages; she can't marry a third or a fourth man as it is discussed between Rabbi Judah ha-Nasi and Rabbi Simeon b. Gamaliel. The dominant position however is the first position. Maimonides includes this rule to his Mishne Tora—a work of codification—by stating:

> A twice-widowed woman does not marry a third time. If she does marry, she need not be divorced. And even if she were only betrothed, the marriage may be completed.[47]

In his code Maimonides is confirming the Talmudic rule but adding the note, that if she is already married or engaged with a third man, then this marriage would be valid or she could complete the marriage. But in one of his responsum he deviates from this ruling by saying the following:

> and the law-to-be-applied (halakha lemaase) in all the lands of Andalusia has always been that if the husbands of a woman die one after the other she is not prevented from remarrying and especially so if she is young, for one can fear the unfortunate event that she would engage in sexual liaisons.[48]

45 Ben-Menahem 2015, 40–42.
46 Friedman 1990, 35.
47 Friedman 1990, 53.
48 Ben-Menahem 2002, 41.

In this responsum Maimonides clearly acknowledged that there are two types of laws as Menahem described it: Law (Halakha) and law to be applied (Halakha le maaseh). The Talmudic rule, as Maimonides included it in his code, represents the ancient law, thus forbidding the wife to marry a third man, but the law to be applied is the one in his responsum, which allows the marriage. And this has always been the case in all Andalusian lands, so that the Talmudic law should not be taken into account when dealing with this issue in these lands.

Menahem concludes:

> The distinction between Law and law-to-be-applied is, once again, the mechanism that enables him to achieve divergent interests: preservation of the Talmudic ruling by its inclusion in the Law, and implementation of a regimen that is fair to the "lethal" wife.[49]

This is very similar to the distinction between the mukhtaṣar rule and the fatwa rule in the example above about the permissibility of being paid to teach the Qur'an. The rule in the mukhtaṣar is preserved even though it was not the applied position for centuries. And Maimonides' responsum to concrete questions represent the third level of law, namely concrete judicial decisions, which are based on the law to be applied. So, we can see the tripartite division at play here.

The above responsum is only a small part of his longer text. At the beginning of this responsum, he clearly stated that the killer wife was a superstition and called it divination, conjecture and fantasy. On the other hand, he said that the prohibition of marrying a killer wife is not really prohibited but reprehensible, and used the category of *makrūh* adopted from the Islamic legal context to downgrade the prohibition to reprehensibility in order to be able to overcome this rule.[50] Menahem concludes that Maimonides didn't consider the killer-wife rule to be a legitimate rule, but because it is widespread, he nevertheless tries to legitimize the lenient position with legal arguments, one of which we find in another responsum.[51]

In another responsum, Maimonides proposed a legal trick to get around the halakhic prohibition on marrying a third man, the basis of which he had already laid out in his Mishne Torah. In his Code, he repeated the Talmudic prohibition, but then said that if she was betrothed, she could consummate the marriage. In one responsum he suggested exactly this to the questioner. Instead of going directly to the court to marry a so-called "lethal woman", he said, they should first get engaged privately in front of two witnesses and then go to the court and tell him that they are engaged in front of two witnesses. In this case, the court could authorize the

49 Ben-Menahem 2015, 44.
50 Friedman 1990, 56.
51 Ben-Menahem 2002, 41.

marriage on the basis of a betrothal. In this way, you can get around the law without questioning the law of the code. He said:

> Should one betroth her before two witnesses, the betrothal is valid. Afterwards, the groom should write her a marriage contra (ketuba) in the presence of the court, and marry her in the presence of the court. It is fitting to be lenient regarding such matters, and the judge can pretend publicly to know nothing about it, because being too particular about these lightweight matters leads to very serious consequences.[52]

The tendency in the works of Maimonides is very clear: In the rule of Talmud, the law should be taken seriously in theory but in practice one should follow the law to be applied (halakha le maeseh) to prevent harm and hardship as a basis for concrete rulings. This tendency we can also see 350 years later in the most popular Jewish code Shulkha Aruch from Joseph Karo (d. 1575) and its commentary from Moses Iserles (d. 1572).

> A woman who was married to two men and they died may not become married to a third, for she is already assumed to be a woman whose husbands die. But if she married a third husband, she need not get divorced, and even if she was only engaged, he may marry her. And if he is aware of her as a woman whose husbands die and consented to marry her, she receives a ketubah, but if he is unaware of her status, she does not receive a ketubah from her third husband, but will receive a ketubah from her second husband. [Rabbi Moses Isserles adds] There are those who say that [the prohibition] applies specifically if they died natural deaths but if one of them was murdered or died in a plague or fell and died, etc., that doesn't count, and so most people are lenient in this matter, and they should not be prohibited from doing so.[53]

Joseph Karo followed in his code Maimonides' way of repeating the basic prohibition and also the exceptional ruling that it is allowed when the marriage is already done or when they get engaged. And Moses Iserles added the note that in his time most people were lenient in this matter. The tension or interplay between law and law to be applied we can also see here at play. Neither Josef Karo nor Moses Iserles said that this issue is not important anymore, but continue to quote and mention the Talmudic Law and then explain the law to be applied. Here we can see that scholars, on the one hand, maintain a link with the legal tradition by discussing the theoretical ancient law at length, even though it is no longer applied, and, on the other hand, adapt the law to changing circumstances.

52 Ben-Menahem 2002, 40.
53 Goodfriend 2020, 10.

In the responsa literature we see this point more obviously. While codes and commentaries primarily take the Talmud text as their starting point, responsa usually react to real-world questions. There we can see sentences like: This is the halakhah but not for implementation (*le halakhah ve lole-ma'aseh*).[54] That means although responsa were usually written to real life questions, sometimes this is not the case. Sometimes the posek writes his opinion on a subject without having received a specific request. In this case, a question or a fundamental problem is constructed, to which the mufti or posek can give his religious answer. And this challenges the bright-line distinction between codes and commentaries as abstract norms and responsa that address real-world issues. The genre of responsa were also used as a platform to discuss halakhic issues in more detail and in a less formalized way. Therefore, it resembles the function of treatises (rasā'il) in the Islamic legal tradition. That means although the responsa were primarily understood as a genre where the law to be applied is dominant, we can also find theoretical discussions on halakha. I will conclude this section with a quote from Chaim Saimans:

> Thus, whether our point of reference is the Talmud, the Codes, the commentaries, or the responsa, the result is substantially the same. Halakhah is concurrently a system of governing rules and practices, a forum for legal analysis, a platform of religious expression and an object of devotional study.[55]

That means Halakhah is not only a flat discourse of legal rules but a multilayered discourse, which should be taken into consideration when dealing with legal texts. Similar considerations we can conclude for the Islamic legal literature.

Conclusion

We could see that in both traditions law doesn't constitute a flat discourse, but a multi-dimensional one, which can serve as a forum of ongoing theological, metaphysical, ethical or social considerations. While the mukhtaṣar/codes provide the flat black-letter rule, the different commentaries provide the theological, metaphysical or societal implications of the legal rule. For a legal rule becoming an applied law, it has to pass through the filter of reflection on social context. Only then can a legal rule from the books become law. In both traditions we see the idea of a decontextualized universal law and practiced law. That means not every rule

54 Saiman 2020, 188.
55 Saiman 2020, 194.

or kind of literature has the same normative weight and different types of works have different functions within this system.

By showing the functional interplay between the legal genres, I tried to explain how the jurists on the one hand ensure the reconnection to the scholastic tradition, but at the same time adapt the law to the changing circumstances. The maintenance of an ahistorical discourse to discuss contemporary issues is present in both. The tripartite division of law, which is proposed by Ben-Menahem, is a very good analytical tool to explain the different levels of law, which are also present in the Islamic legal literature. The doctrinal position (mukhtaṣar-rule) and the fatwa-position are similar to the terms *law* and *law to be applied* in Menahem's classification. The concrete judicial decision represents the third level, which is present for example in Fatwas/responsa, court documents or treatises. This three-level distinction is also a good way to understand seemingly contradictory statements within the tradition.

Taking into account the different levels of law and different layers of legal literature is important for understanding the historical trajectory of both traditions and offers new options for dealing with contemporary challenges to the traditional legacy. The diversification process in Islamic and Jewish legal literature is continuing today, and new genres are emerging as modes of expression of the respective tradition against the background of current challenges.

Therefore the question of the interplay between form, content and social context can also be fruitfully addressed in modern contexts within the Islamic and Jewish theology. It can also be observed that in the course of modernity, the boundaries of traditional genres are becoming increasingly fluid and new formats of communication are emerging. For example, the classical advisory function of fatwas or responses is increasingly being served by other genres such as essays, statements by governmental and non-governmental organizations, blogs, YouTube or TikTok videos and other formats. This means that entirely new genres are emerging that can be the subject of research. Digitalization in particular removes the public articulation of religious ideas from institutional and formal requirements, which in turn reflects a very complex mix of authority claims. At the same time, the new media offer new possibilities for the articulation of legal concepts, some of which have a completely new scope. The question of the relationship between form and content can be understood as a cross-temporal question that can be used to analyze classical and contemporary discourses of Islamic and Jewish law.

Bibliography

al-ʿAynī, Muḥammad Fiqhī (2018), *Risāla fī adab al-muftī*, ed. by Osman Şahin, Istanbul.

Arslan, Hakki (2016), "Normative Ratgebung in Islam und Judentum: ein Vergleich zwischen der Fatwa- und der Responsen-Literatur", *PaRDeS*: *Journal of the Association of Jewish Studies* 22 (2016) = *Muslim-Jewish Dialogue* 22, 87–108.

Arslan, Hakki (2024), "Diversifizierung der islamischen Rechtsliteratur. Das funktionale Zusammenspiel der verschiedenen Genres im fiqh – ein Klassifikationsversuch," in: Mathias Rohe, Cefli Ademi, eds., *Jahrbuch für Islamische Rechtswissenschaft*, Berlin 2024.

Ben-Menahem, Hanina (2002), "Maimonides on Equity: 'Reconsidering the Guide for the Perplexed' III:34", *Journal of Law and Religion* 17 (1/2), 19. https://doi.org/10.2307/1051394.

Ben-Menahem, Hanina (2015), "The Second Canonization of the Talmud", *Cardozo Law Review* 28,1 (2006), 37–51.

Braun, Johann (2011), *Einführung in die Rechtswissenschaft*. 4. Aufl., Tübingen: Mohr Siebeck.

Ceylan, Hadi (2022), "On the Relationship between Maimonides's Mishneh Tora and Mukhtasar Literature in the Islamic Law İbn Meymūn'un Mişne Tora Adlı Eseri ile İslam Hukuku Muhtasar Edebiyatı Arasındaki İlişki Üzerine", *Ankara Universitesi Ilahiyat Fakultesi Dergisi* 63 (1).

Davıd, Joseph E. (2014), *Jurisprudence and Theology: In Late Ancient and Medieval Jewish Thought*. Vol. 2 (Studies in the History of Law and Justice), Cham et al.: Springer International Publishing. https://doi.org/10.1007/978-3-319-06584-7

Friedman, Mordechai A. (1990), "Tamar, a Symbol of Life: The 'Killer Wife' Superstition in the Bible and Jewish Tradition", *AJS Review* 15 (1): 23–61.

Goodfriend, Elaine Adler (2020), "The 'Killer Wife' (Qatlanit) in Jewish Law: A Survey of Sources", *Women in Judaism: A Multidisciplinary e-Journal* 17 (1). https://doi.org/10.33137/wij.v17i1.34942

Johansen, Baber (1999), *Contingency in a Sacred Law: Legal and Ethical Norms in the Muslim Fiqh*. Leiden: Brill.

Kavlcioglu, Abdullah (2020) "16. Yüzyıl Osmanlısında Kur'ân Okuma Karşılığı Ücret Alma Tartışmaları: Birgivî Zeyrekzâde Örneği", *İlahiyat Tetkikleri Dergisi* 54 (Dezember), 303–28.

Libson, Gideon (2006), "Jewish and Islamic Law: A Comparative Review," *Encyclopaedia Judaica*, 2nd ed., 11, 262–270.

Libson, Gideon (2003), *Jewish and Islamic Law – A comparative Study of Custom During the Geonic Period*, Cambridge: Harvard University Press.

al-Marghinānī, ʿAlī ibn Abī Bakr (2019), *Al-Hidāya sharḥ bidāya al-mubtadī*, ed. by Sāʾid Bakdāsh, 7 vols., Madīna.

Menachem, Elon (1975), *Principles of Jewish Law*, Jerusalem.

Meron, Ya'akov (2002), "Marghīnānī, His Method and His Legacy", *Islamic Law and Society* 9 (3), 410–16.

Oberauer, Norbert (2021), "The Function of Documents in Islamic Court Procedure: A Multi-Dimensional Approach", *Islamic Law and Society* 28 (3), 156–233.

al-Qādirī, Muḥammad b. Ḥusain b. ʿAlī aṭ-Ṭūrī, (1997), *Takmila al-Baḥr ar-rāʾiq sharḥ kanz ad-daqāʾiq*, ed. by Zakariyya ʿUmairāt, 9 vols., Beirut.

Saiman, Chaim N. (2018), *Halakhah: The Rabbinic Idea of Law* (Library of Jewish Ideas Book 13) Princeton: Princeton University Press.

Fahimah Ulfat

Chapter 12
Empirical Impulses for Defining Islamic Comparative Theology

Introduction

In federally organized Germany, there is a plethora of different models of religious education in the state schools. The most widespread model is denominational religious education, which is regulated by the Basic Law. According to the Basic Law, this denominational religious education is an ordinary subject taught in accordance with the principles of the religious communities. This means that there is not only Protestant and Catholic religious education, but also Islamic, Jewish, Orthodox, Alevi and others.

From a scientifically oriented Islamic religious education perspective, which is aligned with the findings of modern pedagogy, children and adolescents are seen as "productive processors of reality" which draws on Klaus Hurrelmann's theory of the productive processing of reality.[1] This means that they also have an active role in processing and shaping social reality. They are co-constructors of reality. Not only do adults have the ability to reflect on religious issues, but also children think about religious topics and develop their own— albeit still childishly formulated—theories. According to Mirjam Zimmermann and Friedrich Schweitzer, these theories can be described and understood both as reflection on religion and as theology.[2]

Furthermore, it is crucial for religious education to provide lessons which are meaningful for the lives of children and adolescents. This can only succeed if the content is developed in such a way that it is linked to the student's world of experience and life and constitutively takes into account their own ways of understanding and interpreting. This requires empirical research on religious socialization as well as in religious attitudes and beliefs. The focus on children and adolescents—their specific developmental needs, their need for orientation, and their ways of engaging with and making sense of the world—must never be lost.

The view of children and adolescents is characterized by a constructivist perspective: learning never happens in such a way that certain insights are simply transferred from adults to children—learning always takes place only in the form

1 Hurrelmann/Quenzel 2016, 94.

2 Zimmermann 2012, Schweitzer 2011.

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of the interpretations developed by the children themselves, as their own constructions of world and reality.[3] This is also and especially the case in the religious field. Religious education that does not take this into account fails the children.

For Germany and many other countries in Central Europe, a change can be observed in which the traditional Christian imprint of the majority of the population is increasingly giving way to religious and worldview diversity. Against the background of migration and globalization, the challenges and opportunities of interreligious learning have already been discussed for about 25 years.
Although the urgency of interreligious learning has gradually become apparent in politics and academia, there is still too little scientific clarification of "what conclusions are to be drawn from this and how such learning can be successfully organized".[4]

There are conceptual considerations of a theoretical nature in the discussion of religious education. In the Christian field, various models of theology of religion have been developed to relate the truth claims of one's own religion to the truth claims of other religions: exclusivism, skepticism, relativism, inclusivism and pluralism.[5] Another approach, which is not only theoretical but actively seeks dialogue with other religions, is comparative theology.

However, there are still few studies that empirically examine religious attitudes towards other religions and their adherents.[6] Such empirical research is of crucial importance, especially for the conceptual considerations of interreligious learning. The aim is to clarify the initial conditions for interreligious learning processes and to provide impulses for theological considerations.

Based on the preliminary results of a study the author conducted with youths, some findings are outlined about how school students who see themselves as Muslim view their 'Christian' peers. From the findings some questions for Islamic comparative theology are derived.

Methodological Notes

My work does not intend to reconstruct what young people who see themselves as Muslim say about externally predefined 'Christians', but it tries to bring to light

3 Mendl 2012.

4 Schweitzer/Bräuer/Boschki 2017, 44.

5 Langenhorst, D. G. (2016). Interreligiöses Lernen? Religionstheologische Modelle und ihre didaktische Konsequenzen. *KRGB-Rundbrief*, (1), 5–12.

6 Unser 2018.

how these young people conceptualize and construct the term 'Christian' and which connections to their self-constructions become visible. The research presented here draws on the relevance of the young people and makes this the starting point for considerations regarding interreligious teaching and learning processes.

So far, two group discussions have been conducted with tenth-grade students from a gymnasium in a medium-sized German town. The participants were four girls and three boys. One girl's family belonged to the Ahmadiyya Muslim Jamaat, while all the other students came from Sunni families.

In both group discussions, the opening stimulus asked for experiences with 'Christians'. The term 'Christian' was used as an empty term that the interviewed young people were asked to fill with meaning during the discussion. Whenever terms such as 'Christians' or 'Christian' appear in the interview passages, they are interpreted as a construction by the interviewees.

Preliminary Results

The empirical analysis of dense passages from both group interviews so far shows that the interviewees find themselves in a field of tension, which is determined on the one hand by the diverse cultural landscapes of the German majority society in which they were born and grew up, except for one interviewee, and on the other hand by the equally diverse cultural landscapes of their families and communities. The young people are faced with the biographical task of relating these two factors to each other and thus constructing a third, a kind of synthesis with their own way of life.

This framework determines their speech and their issues, and it is within this framework that their statements about 'Christians' must be interpreted. The quotations which appear in the following are intended to vividly illustrate the interpretations. Admittedly, the interpretations are based on considerably more data, which were reconstructed through various interpretative steps.

Religion and faith are of interest to the interviewees, on the one hand because of the religiously diverse affiliations of their fellow pupils, and on the other hand because of those peers who describe themselves as atheists. In particular, the focus is on belief or non-belief in God.

The interviewees strongly associate the term 'Christian' with their mostly non-Muslim schoolmates. It is noticeable that the impulse 'Christians' triggers a discussion among the interviewed youths about an impression that is described as follows:

Bilal: it feels like they are not as religious as other religions anymore[7]

Bilal, like the other group members, has the impression that the habitualized daily religious practice of the majority of his friends whom he calls 'Christians' is much weaker than that of himself. However, the 'Christians' are also perceived to have less knowledge and less willingness to identify with religion.

Ranja: So for me, somehow, I usually see that Christians don't have that much knowledge about their religion.[8]

As far as religious knowledge is concerned, a negative counter horizon to one's own knowledge is created.

Ranja: Of course not all of them, and not all Christians are so uninformed about it, but in the general picture I think you can see that more Muslim than Christian youths identify with their religion and are also engaged with it.[9]

Despite this self-attributed knowledge advantage, the interviewees hold back in conversations with the 'Christians' about "deeper" religious topics.

Aylin: When we sit together we also talk to the Christians, if only about the biggest things like why do you believe in God but we don't go any further, so we are not yet ready to discuss the whole thing with them properly and that's why we usually hold back a bit on the bigger issues.[10]

The lower identification with religion mentioned by the interviewees is justified by the fact that religion "does not concern" the constructed 'Christians' in their everyday life or that they have no interest in it. At the same time, however, the argument was brought up that the parents of the 'Christians' allow their children greater freedom of choice when it comes to religion:

Hanna: and despite the fact that their parents are Christian it is also interesting that they decide to stay away from a religion and then decide for atheism.

Ranja: The parents give them so much freedom, telling them: live your life and get to know the religion yourself and then decide for yourself.[11]

In doing so, the interviewees construct an interesting contrast between 'being religious' and 'being free':

7 Interview Kolibri, line 137–138. The quotations are slightly modified.
8 Interview Pfau, line 397–398.
9 Interview Pfau, line , 410–413.
10 Interview Pfau, line , 438–446.
11 Interview Pfau, line , 343–347.

> *Bilal: the ['Christians'] don't want to be so religious they don't have the will to live religiously, so to speak, they want to be free.*[12]

"Being free" on the one hand and "being religious" on the other hand are constructed by the interviewees as opposites. The pedagogical freedom that parents grant 'Christian' youths is seen as the reason why 'Christian' youths are able to separate the religious views of their family and culture from their individual views, both in their thinking and in their everyday practice. For the 'Christian' youths, in the view of the interviewees, there is no conflict between the 'Christianity' of their parents or their 'Christian' environment and their individual decisions to "keep away" from what the Muslim youths consider to be 'Christian' religion.

Another tension is revealed in the interviewees' statements about the interpretations of their own religion and culture by the majority society and the resulting pressure to justify themselves, which puts the young people in an apologetic position, something of which they are aware:

> *Ranja: yes maybe it can also be that Muslims are more concerned with their religion, that nowadays Islam is everywhere in the media and then one automatically has this need to justify oneself.*[13]

In the view of the interviewees, it is typical for the 'Christians' that they do not make the negative aspects of their own religion an issue. In the example cited, and in other quotations, this is experienced as asymmetrical towards the 'Muslims'.

Despite having many instances of experiencing difference, the interviewees perceive themselves and others as "*normal humans*", i.e. basically very similar[14].

> "*The only thing that is perhaps somehow different is that with the mosques and the churches one sometimes wishes that there was adhan*[15] *out loud*"[16].

Some of them would like "*to be able to show their religion in public without getting strange stares*"[17]. However, the young people would also understand the alienation of 'Christians' if they were forced to hear the call for prayer every day[18]:

> "*I would also understand if it annoyed Christians*".

12 Interview Kolibri, line 205–207.
13 Interview Pfau, line 549–554
14 Interview Pfau, line, 1203.
15 *Adhan* is the Islamic call to prayer.
16 Interview Pfau, line 1203–1206.
17 Aylin, line, 1208–1210.
18 Aylin, line,1227–1229.

Here, as in many other places, the young people consider what it would mean for 'Christians' if they were in the same situation as the interviewees themselves. In both group interviews, they repeatedly adopt the perspectives of the 'Christians'. Thus, it becomes clear in both interviews that the young people always want to build bridges between the worlds in which they live.

Both group discussions show that their religion has a significant value for the interviewees. It is primarily the elements of Muslim orthopraxy that distinguish them as 'Muslims' from the 'Christians':

> *Bilal: We were in the middle of gambling and then I said yes, I have to go to Friday prayers and then someone asked me what do you do there?*[19]

However, the interviewees do not see their own religious practice as the problem in these statements, but rather their plausibility, as one of them expresses:

> *Shabana: But I do understand why outsiders perceive this perhaps also as oppression or such-like, these things, for example, you have to pray and go to the mosque. For me it was just like that from childhood onwards. I have always seen this from my parents and my grandparents and it has also somehow become routine and so it is no longer as awkward as some say, praying five times a day, if you say it like that.*[20]

However, they do not see their own religion in a completely positive light either. The interviewees also think critically about aspects of their own religion:

> *So I am a Muslim but there are also things where for example I question things. There are also rituals where I ask myself why and so and I don't know I once said it would make more sense if one updated the Koran because the more time goes by, the harder it gets—many things are just so vaguely described.*[21]

Despite the 'lesser' religiosity that the interviewees perceive in the 'Christians' they construct, these 'Christians' show an openness to the youth and to the elements of their everyday religious practice.

> *Bilal: What I notice is that in Germany, especially the young generation of Christians, some of them take it more casually and also have fun with religion and, for example, terms like mashaallah inshaallah and so on have almost become normal terms even for Christians and yes, that's what I also noticed that Christians talk a bit like us with the terms and yes, they are more relaxed.*[22]

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19 Interview Kolibri, line 200–203
20 Interview Kolibri, line 414–425.
21 Interview Kolibri, line 492–498.
22 Interview Kolibri, line 188–198.

Summary of the Results

Based on the contrasting analysis of two group interviews conducted, the question of how young people who see themselves as Muslim socially construct 'Christians' relative to the construction of their respective selves was explored.

First of all, what constitutes 'Christians' is strongly linked to the practice of one's own peer group, which forms an attractive, but not in every respect unproblematic, counter-horizon to the lives of those interviewed. The interviewed youths interpret their observations in such a way that religion in the lives of their non-Muslim peers has a much lower everyday significance and the relationship of the young 'Christians' to religious phenomena is generally much "more relaxed" than the interviewees perceive in themselves.

A key difference between the constructed 'Christians' and the young people who see themselves as Muslim is made on the issue of 'being free' vs. 'being religious'. The 'Christians' are constructed as those who have the 'freedom' to choose between the religious beliefs of their families and their individual beliefs. Religious practices, which are very important in the everyday life of the interviewees, have neither relevance nor consequence for the constructed 'Christians'. The young people interviewed counter this with an added value of their own religiosity, which they each describe differently. They admit that they may seem "unfree" at first glance but nevertheless do not want to do without this added value of their religion.

Beyond the narrow circle of their peers, what constitutes 'Christian' is also defined by various practices of the majority society, which also forms an ambivalent counter-horizon to that of the interviewees. In this context, the young people report experiences of foreignness, but also of respect and belonging.

As soon as the use of the term 'Christian' is extended beyond the narrow circle of their peers and families, an equation of 'Christian' and 'occidental' increasingly shimmers through. However, some interview partners also use the word 'German', both to describe others and to describe themselves.

With regard to comparative theology, preliminary results show that the young people who see themselves as Muslim think comparatively, so to speak, when they construct 'Christians', i.e. when they can include "the religious otherness" of the constructed 'Christians' in their own theological thinking. Only on the basis of their own "religious inner perspective" are they able to construct the 'Christians' at all. In their construction of 'Christians', the youths interviewed are careful not to make gross generalizations. They try to describe their experiences with 'Christians' in a differentiated way. They try to balance what they see as contradictory aspects, knowing that they cannot resolve them or can do so only with difficulty. The interviewees themselves do not want to be essentialized, ethicized or culturalized and avoid this when constructing 'Christians'. Both interviewed groups demonstrate a

high tolerance of ambiguity and a positive approach to diversity. They often adopt the perspective of the constructed 'Christians' but also perceive the ability to adopt perspectives in their 'Christian' peers, at least in part.

The interviewees are able to perceive the otherness of others and try to understand it. Their expressions show both a differentiation from the way the constructed 'Christians' deal with their religious tradition and an appreciation of them. In some cases, it is also clear that the interviewees are trying to understand their own religious tradition in a new way by comparing religious traditions. In addition, they partly relativize their own religious tradition by trying to explain it rationally, even if in an apologetic way. But a critical position towards their own tradition also becomes apparent. In a paradigmatic way, the construction of the other takes place in the construction of the own. It becomes clear that the young people become more aware of the ambivalent meaning and effectiveness of their own tradition when they deal with the non-Muslim other. It should be noted that these findings refer to the two group interviews conducted with tenth-grade students with a comparatively high educational background. Group interviews conducted in other social contexts might yield different results.

Questions for Defining Islamic Comparative Theology

Based on the interviews and the results described, some questions will be formulated, which should provide impulses for defining Islamic comparative theology from a religious education perspective. Admittedly, these two group interviews are not sufficient to be able to draw generally applicable conclusions. They do, however, draw attention to some problems that an Islamic comparative theology must face:

– The following ambivalence lies in the construction of 'Christians' on the basis of the young people's own ideas about Islam: On the one hand, one's own is always the zero point or calibration point from which the other is understood. On the other hand, it is not only a position taken in religious education that the other religion can only be understood from within itself if one aims to do justice to it. Where does an Islamic comparative theology position itself in this paradoxical field of tension?

The young people interviewed experience differences related to the migration and minority situation, as well as language, ethnicity, nationality and gender. This is usually not the case with young people from the majority society. However, they cannot be left out of the interreligious learning context.

– What role do such experiences play in comparative theology when it undertakes to "first expose oneself to the otherness of others and seek to understand it, in order to then arrive at judgments on this basis—and not a priori, before the interreligious encounter"[23]? And vice versa: what does a comparative theology look like that is formulated from the perspective of a migration and minority situation in relation to the predominant religion of the majority society?

Klaus von Stosch writes: "All representatives of comparative theology agree that comparative theology is about theology and thus about normative questions about ultimate reality." . . . "Comparative theology, like all theology, thus searches for God".[24]

– It became clear among the young people that a central question in the mental debate with the constructed 'Christians' and 'atheists' is the question of belief or non-belief in God. But equally important are questions such as religious freedom, individual self-determination, pressure to justify oneself to the family and the environment, prejudices, doubts, etc. How does an Islamic comparative theology deal with these questions? The question of God does not exist in a vacuum. It is in the midst of the lives of individuals and in how they deal with the constraints and freedoms of their religions and their social environment.

Some of the interviewees begin to question their own beliefs in the construction of 'Christians' and their religious traditions.

– An open encounter cannot limit in advance the learning processes that take place in it. If it does, it is not an open encounter. How does an Islamic comparative theology deal with learning from the religious other and how willing is it to face the inevitable uncertainty that a serious opening necessarily entails?

The openness of the interviewees owes much to a method and a theoretical approach that takes the statements of both young people and non-theologically educated adults seriously as valid theological statements.

– Comparative theology, like all theology, stands in the context and within the demands of its own tradition. Is an Islamic comparative theology willing and able to take the theological competence of people like these youths seriously and be challenged by it?

23 von Stosch 2012, 149.

24 von Stosch 2012, 148.

Bibliography

Hurrelmann, Klaus / Quenzel, Gudrun (2016), *Lebensphase Jugend: Eine Einführung in die sozialwissenschaftliche Jugendforschung*, 13. eds., Weinheim Basel: Beltz Juventa.

Langenhorst, D. G. (2016). Interreligiöses Lernen? Religionstheologische Modelle und ihre didaktische Konsequenzen. KRGB-Rundbrief, (1), 5–12.

Mendl, Hans (2012), "Konstruktivistische Religionspädagogik", in: Bernhard Grümme, Hartmut Lenhard, Manfred L. Pirner, eds. *Religionsunterricht neu denken: Innovative Ansätze und Perspektiven der Religionsdidaktik,* Stuttgart: Kohlhammer, 105–18.

Schweitzer, Friedrich (2011), *Kindertheologie und Elementarisierung: Wie religiöses Lernen mit Kindern gelingen kann*. Gütersloh: Gütersloher Verlagshaus.

Schweitzer, Friedrich / Bräuer, Magda / Boschki, Reinhold, eds., (2017), *Interreligiöses Lernen durch Perspektivenübernahme: Eine empirische Untersuchung religionsdidaktischer Ansätze*. Münster: Waxmann.

Stosch, Klaus von (2012), *Komparative Theologie als Wegweiser in der Welt der Religionen*, Paderborn: Ferdinand Schöningh.

Unser, Alexander (2018), "Interreligiöses Lernen", in: Mirjam Schambeck, Ulrich Riegel, ed., *Was im Religionsunterricht so läuft: Wege und Ergebnisse religionspädagogischer Unterrichtsforschung*, Freiburg i. Br.: Herder, 270–85.

Zimmermann, Mirjam (2012), *Kindertheologie als theologische Kompetenz von Kindern*. 2. ed. Neukirchen-Vluyn: Neukirchener Theologie.

Jan Woppowa

Chapter 13
From Another Point of View. Response to Some Empirical Impulses for Comparative Theology

Fahima Ulfat's contribution to the field of interreligious learning from an Islamic point of view provides an excellent empirical foundation for deriving specific insights into an Islamic comparative theology. In this brief response I will reflect on certain aspects she addresses concerning adolescent conceptions of group identities between Christian and Muslim students (1). Subsequently, I will compare these findings with our own research insights obtained in a research project within the realm of Religious Education (RE). Furthermore, I will highlight some critical considerations within the field of interreligious learning, particularly those related to the challenges posed by religious heterogeneity in classrooms (2). Finally, I will conclude my response with a set of questions regarding comparative theology, viewed through the lens of RE theory (3).

Observations

In her contribution, Ulfat combines two central aspects: the sociological category of religious minorities and the didactic principle of interreligious learning. This dual perspective does not receive the due recognition in contemporary debates on interreligious education. Consequently, Ulfat's emphasis on this aspect deserves special attention and stands as a hallmark of her contemplations.

Her observations and analyses of group interviews with Muslim youth students reveal that their social constructions are shaped from the perspective of being a self-experienced minority. Ulfat describes the dual construction: on the one hand, there is a construction of Christianity by Muslim students, which, on the other hand, occurs in relation to the construction of their own self. Drawing on relevant identity theories,[1] one can assert that identity, respectively religious identity, is a process of social construction that relies on the alignment between one's subjective 'inside' and the social 'outside'. The young individuals interviewed

1 Cf. e.g. Keupp 2013.

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by Ulfat employ such constructions of differentiation primarily along the lines of religious practices. In this context, religious practice or everyday religion becomes the central distinguishing feature between the categorization of 'being religious' and 'being free' or 'being Muslim' and 'being Christian', or even 'occidental' applied to the surrounding majority society.

However, I have a different interpretation of this process compared to Ulfat. I find it challenging to agree with the notion that the Muslim youth are inherently engaging in comparative thinking by incorporating the religious distinctiveness of Christians into their own thinking. This is because in my view, they are still constructing the notion of Christian otherness, even if there is caution about generalizing their constructions. I must emphasize that, without a solid empirical foundation to support this brief insight provided by Ulfat, I cannot arrive at a reliable judgment. Nevertheless, I would like to propose an alternative other interpretation of these observations, at least as a plausible perspective to consider.

The fundamental question at hand is whether essentializing attributions inevitably occur in the constructions of young people as they transfer the manner of religious practice or non-practice onto what they perceive as a homogeneous group. Can one genuinely label this comparative thinking that unconditionally perceives and recognizes the authentic otherness of the other? Furthermore, it would be misleading to assert that Christians inherently place less importance on religious practices in general. According to Ulfat, Muslim students simultaneously place a higher value on their own religious practice in contrast to non-practice. Because Ulfat also describes that the young people themselves show a high degree of tolerance for ambiguity and deal openly with diversity, it is possible, however, that such generalizing attributions occur unconsciously.

The construction processes described by Ulfat can ultimately become problematic when they lead to generalizing attributions that create 'the Other' primarily for the purpose of defining one's own identity. In the field of sociological and educational science, this phenomenon is referred to as 'Othering', which is described as a power-shaped practice of objectification in a hegemonic relationship. Objectification or Othering then describes a relational operation that produces 'others' as subjects under conditions of one's own positional superiority.[2] Possibly, similar concealed processes may also be discernible in Ulfat's observations.

2 Cf. Mecheril/Thomas-Olalde 2011, 49.

Comparison with Own Research Results

This aligns with certain insights we gathered within the context of an education research project.[3] Following a school year of cooperative teaching involving Muslim and Christian students at a high school in Dortmund – referred to as *Religionskooperativer Religionsunterricht* – we conducted group interviews with the students. It became apparent that, prior to our intervention, the young people did not perceive an individual religious affiliation as a conscious marker of difference at all. Instead, our intervention, respectively the cooperative RE, first contributed to the fact that group identities became more conscious. Subsequently, one must ask whether the marking of 'own' and 'other' artificially fosters such group identities and attributions within the awareness of young people.

As an example, a student shared with us: *„Mir ist eigentlich egal, welche Religion mein Mitschüler hat. Hauptsache, er ist ein cooler Typ."*[4] The following use of language by a female student possibly indicates hidden Othering processes: *„Also, ich gehe jetzt nicht anders mit denen um."*[5] An Austrian research team makes a similar observation in a study of Christian-Islamic team teaching in Austrian schools. They note: *„Entgegen aller Vorannahmen und auch gegen die Intention des Projekts . . . sprachen die SchülerInnen im vorliegenden Gruppengespräch fast durchgängig von der ‚eigenen' und der ‚anderen' Religion."*[6] The question that persist without a clear answer thus far is whether such interventions and settings of interreligious learning not only overemphasize religious differences but also effectively generate them. I am not inclined to presume this attitude in the statements made by the interviewees, but there lingers a potential interpretation that these descriptions of one's own identity are shaped through the construction of another counterpart. The otherness of the other, however, would then remain a mere construction for one's own identity.

Moreover, situations involving religious minority can intensify this problem. This is because group homogeneities are shaped by external attributions, although they do not reflect the reality and thus concealing intra-religious plurality. Paradoxically, the original intention of appreciating differences ultimately results in their creation simultaneously. Last but not least, an exclusive focus on the difference category of religious affiliation carries the risk of overemphasizing cultural differences while neglecting the differentiations between individual religiosity and religion traditions or institutional religiosity. From this point of view, the construction

3 Cf. Woppowa/Caruso 2021.
4 Woppowa/Caruso 2021, 63.
5 Ibid.
6 Weirer et al. 2019, 139.

of one's own identity does not only hinge on contrasting it group identity, but it is also intertwined with numerous individual religious identity constructions.

New Impulses for Comparative Theology

Finally, Ulfat provides some impulses for an Islamic comparative theology, grounded in hermeneutic perspectives related to minority and majority dynamics. I believe that this approach is both, necessary and sufficient. It is necessary to foster the development of a methodological approach for comparative theology, which has so far been strongly influenced by a Christian majority perspective, as Ulfat has made very clear.

It is also sufficient because it can introduce a new dimension to comparative theology. Thus, Ulfat explicitly inquiries about the significance of experiences of difference in migration and minority situations for comparative theology. She also raises questions about the nature of a comparative theology formulated from the perspective of a migration and minority situation. This question cannot be emphasized enough, because in a comparative-theological encounter between one and another the social context of difference and hegemonial structures of dominance plays a pivotal role. Religious and theological questions can be dealt with in dialogue, both between individuals and groups. However, critical reflection on existing structures of dominance by majority perspectives must not be missing. Finally, the discourse on interreligious learning can also benefit significantly from such considerations, because it often tends to overly individualize and lose sight of social and political contexts and conflicts.[7]

Bibliography

Keupp, Heiner (2013), *Identitätskonstruktionen. Das Patchwork der Identitäten in der Spätmoderne*, Hamburg: Rowohlts Enzyklopädie.

Mecheril, Paul / Thomas-Olalde, Oscar (2011), „Die Religion der Anderen", in: Birgit Allenbach/ Urmila Goel/ Merle Hummrich/ Cordula Weissköppel, eds., *Jugend, Migration und Religion. Interdisziplinäre Perspektiven*, Baden-Baden: Nomos, 35–66.

Weirer, Wolfgang / Wenig, Eva / Yağdı, Şenol (2019), „„. . . und dass man nicht einfach das von zu Hause nachredet'. Interreligiöses Lernen im christlich-islamischen Teamteaching", in: *Österreichisches Religionspädagogisches Forum 2*, 129–151.

7 Cf. Willems 2020, 158.

Willems, Joachim (2020), “Judentum und Islam, interreligiöses Lernen und Othering im christlichen Religionsunterricht”, in: Stefan Altmeyer/ Bernhard Grümme/ Helga Kohler-Spiegel/ Elisabeth Naurath/ Bernd Schröder/ Friedrich Schweitzer, eds., *Judentum und Islam unterrichten* (Jahrbuch der Religionspädagogik 36), Göttingen: Vandenhoeck und Ruprecht, 149–161.

Woppowa, Jan / Caruso, Carina (2021), “Gemeinsam lernen? Erkenntnisse und kritische Anfragen aus einem Unterrichtsversuch zum religionskooperativen Religionsunterricht”, in: Mehmet Hilmi Tuna / Maria Juen, eds., *Praxis für die Zukunft. Erfahrungen, Beispiele und Modelle kooperativen Religionsunterrichts* (Studien zur interreligiösen Religionspädagogik 5), Stuttgart: Kohlhammer, 53–69.

Naciye Kamcili-Yildiz

Chapter 14
Diversity of Religions in Democratic Societies. Theological and Pedagogical Perspectives for Interreligion-Sensitive Education

Introduction: Muslims in German Multi-Religious Society and the Situation of Islamic Religious Education

In the last 60 years, the German society has changed fundamentally in religious terms. It has changed from a confessionally Christian country to a multicultural and religiously plural society. Islam is one of the largest religious minorities here, with an estimated 5–6 million members. Against this background, from a religious education perspective, the question is what contribution interreligious learning makes to preparing young people for social coexistence. The question is then, if schools take their mission of religious education seriously, what attitudes—such as openness to the questions of others, interest in the question of truth or hospitality—are conveyed in the school context or in religious education? I will deal with these in the course of my talk.

The social multi-religious context in Germany, with different religions and denominations, requires an examination of these in confessional religious education. The question of interreligious education is a new field for the young Islamic religious education taught at German universities, especially since in the countries of origin of Muslims in Germany, dealing with other religions is not necessarily part of the curricula. But the position of Islamic religious education itself—in a secular environment within society—is a fundamentally new situation: Muslims live as a religious minority in a largely secular environment where Christianity is the majority religion, but the number of religiously unaffiliated people is steadily increasing.

As with every religious community in our multi-religious society, Muslims also face the task of reflecting on their relationship to other religions. So far, there are no concepts that are developed on the basis of Islamic theology that pursue the main goal of interreligious education in Islamic religious education. In our society, school is the institution that brings together people with the most diverse beliefs. They

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spend a large part of their day and life together. Seen from this perspective, the question would be: How can Muslim pupils be supported in developing a respectful and appreciative fundamental attitude towards the religiously different? How can interreligious learning arrangements be designed so that Muslim students can contribute their own point of view, but also understand the point of view of a member of another religion?

In my contribution, I would like to take the social situation as the starting point for my reflections: Muslims live in Germany as a religious minority. Muslim pupils, who are supposed to encounter *the religious other* in organized interreligious learning processes, mainly come from families with a migration background. This can go back to the 1970s, where their grandparents immigrated to Germany as guest workers, in the 1990s or in the last 10 years as war refugees. Since the first PISA study,[1] there has been a very broad discourse on migration-related issues and challenges in the social and educational sciences. Even though in recent years intersectional perspectives have found increasing access in Protestant and Catholic religious education, this discourse takes little account of Muslims as a religious minority and the consequences for the design of interreligious teaching and learning settings in religious education. Both in interreligious learning in Islamic religious education and in cooperation projects, it is necessary to clarify beyond the curriculum (which specifies competencies for this content area), how Islam and Islamic religious education teachers position themselves theologically in relation to other religions and to what extent these positions allow a differentiation-sensitive attitude that promotes understanding. The discussions on the topic of religion in our society are characterized on the one hand by the increasing loss of members of the two large churches and their loss of social significance for an institutionally anchored Christian religiosity.[2] This also includes the strong individualization[3] of religious approaches within the Christian denominations. On the other hand, Islam is becoming more and more visible as an established religious community, which can be seen, for example, in the introduction of Islamic religious education or Islamic theology at German universities in some federal states.[4] Also against

1 The PISA studies have been conducted on a triennial basis since 2000 in most OECD member states and an increasing number of partner countries. Their aim is to measure the everyday and vocational knowledge and skills of fifteen-year-olds. Cf. https://www.oecd.org/berlin/themen/pisa-studie/ (accessed Nov. 11, 2022).

2 Cf. Pickel 2022.

3 Bruno Landthaler draws attention to the fact that "[. . .] Judaism does not focus on the isolated individual, but rather reflects on the social-community context in which the individual stands as the precondition of individual action [. . .]". Landthaler 2019, 43.

4 Cf. Dreier/Wagner 2020.

the backdrop of these social changes, I would like to focus my perspective on two aspects: What perception of Islam and Muslims can be observed in Germany—both by Muslims themselves and by the majority of society? Following this, I would like to discuss the extent to which these attitudes need to be addressed in religious education discourse.

Need for Improvement Regarding (Inter)Religious Education I: Educational Content

Now to my first question: Is interreligious content addressed in Islamic religious education?

The final report on the scientific monitoring of Islamic religious education in North Rhine-Westphalia indicates that Christian content is addressed in Islamic religious education. It includes the following statements:

> "In Islamic religious education, I have. . .
> – learned about the festivals of other religions.
> – learned about the places of worship of other religions.
> – learned about other religions.
> – learned that Moses and Jesus are also prophets of Allah.
> – learned that Jews and Christians also believe in God."[5]

The students surveyed gave it a medium to very high level of approval. The statements formulated in the survey initially reveal an orientation towards tradition, which refers to rituals (e.g. festivals), places (e.g. places of worship) or beliefs (e.g. belief in God, Jesus and Moses as prophets). The contents mentioned certainly allow many parallels to be established with Muslim festivals and similarities with Islamic theological content on the idea of Moses and Jesus as messengers of God and formulate corresponding comparisons with the Muslim faith. However, what is missing from the study are statements concerning the extent to which different Christian perspectives were differentiated in religious education and put in relation to one's own positions. It is also not possible to see whether Islamic religious education was oriented towards the present and whether the significance of the theological content for today's Christians was discussed. Interreligious content varies enormously, depending on which didactical method is used: Is it learning *about religion*, where knowledge about religions is passed on in a religious studies style, or is it

5 Uslucan/Yalcin 2018, 143.

rather learning *from religion,* where reference is made to religious experiences and an orientation towards dialogue is recognizable?

Need for Improvement Regarding (Inter)Religious Education II: The Islamic Religion Education Teachers' Experiences Concerning their Subject and the School Situation

Now to the second question: How do Islamic religious education teachers perceive the discussions about Islam and their subject? The extent to which discourses about Muslims and Islam also influence interreligious exchange in the school context in general, i.e., with regard to school life and the school community as a whole, has not yet been empirically investigated. However, recent studies on Islamic religious education indicate that Islamic religious education teachers often face great challenges: In the final report on Islamic religious education in North Rhine-Westphalia, only around 27% of the teachers surveyed stated that their colleagues at school were open to Islamic religious education.[6] Furthermore, Islamic religious education teachers in North Rhine-Westphalia report in a recently published quantitative study that there are sometimes hostility and complaints from the teaching staff at their schools when Islamic religious education is introduced. The colleagues also try to prevent the extension of the lessons to other grades. According to statements by Islamic teachers, some school administrators argue that the staff do not agree with the introduction of Islamic religious education but are also hostile due to their fear of the school having a negative reputation among non-Muslim parents. One teacher describes the rejection of Islamic religious education or of the teacher as a person by the school management or the staff as "[. . .] racist arguments with colleagues", in which he and other affected colleagues not only received no support from the school management, but were even asked by them to understand their colleagues' reservations and were advised to be transferred. He describes the confrontation with these prejudices as very stressful, exhausting and feels isolated.[7] On the other hand, Muslim religious education teachers are faced with a dilemma when the school management demands that they act as "arbitrators" in cases of conflict

6 Cf. Uslucan/Yalcin 2018, 194.
7 Cf. Sauer 2022, 35.

with pupils or parents and stand behind the school management in demanding that the children do not fast in school.[8]

At this point, it should first be noted that in schools—seen as a microcosm of society—many Muslim religious teachers are still far from being seen as equal members of the school community and being recognized accordingly.[9]

Survey on Pupil's Attitudes Towards Foreign Religions and their Members

What is the perspective of Muslim pupils? For most children growing up in Germany, it is normal for their circle of friends to include members of different religions, but also secularly oriented people.[10] According to studies, interreligious and intercultural aspects are mixed, because pupils do not consider religious and cultural backgrounds in a differentiated way.[11] Religion and faith are also not among the topics that children and young people discuss with their friends in everyday life, even if the friends belong to a different faith community. In her qualitative study with pupils in Islamic education in Bavaria, Selcen Güzel found that the pupils interviewed were basically very open to religious, cultural, and ideological diversity. However, they also state that their parents do not always approve of their open attitude.[12] 80% of the pupils (24 in total) state that they have not yet had a school project at their schools that dealt with getting to know different religions, world views and cultures. Without making sweeping generalizations, this shows the tendency that religion is excluded from the school context—on two levels: on the one hand, on the pedagogical-teaching level, but also on the interpersonal level. Muslim pupils also report personal experiences of discrimination such as bullying, insulting their religion or their origin, which they describe as an emotional burden. They perceive the negative portrayals of Islam and Muslims in their environment as stressful. In the school context in particular, Islamic religious education seems to be a 'safe space' where such experiences can be addressed in a soothing and protected setting.[13]

How do children and young people with a Christian social background view their Muslim classmates? To what extent can exclusionary attitudes towards Muslims also

8 Cf. Sauer 2022, 36.
9 Cf. Badawia *et al.* 2023.
10 Exemplary Güzel 2022, 353, Calmbach *et al.* 2016.
11 Cf. Güzel 2022, 278.
12 Cf. Güzel 2022, 364.
13 Cf. Güzel 2022, 366.

be ascertained among them? So far, little research has been done on the relationship between (Christian) religiosity and Islamophobia or Muslimophobia in the young generation. In Germany, young people are considered to be less prejudiced than older people.[14] However, the fact that Islamophobia and Muslimophobia also play a significant role at a young age is shown by the study by Janzen et al., who in a non-representative study of 500 young people living in the Ruhr area at general and vocational schools in North Rhine-Westphalia state:

> Non Muslim pupils. . .
> – do not necessarily deal with the topic of Islam at school but encounter it mainly in the mass media and in social networks and on the internet. They do not talk much about Islam with their friends and family.
> – state that Muslims are mainly encountered at school (95%), 89% in social networks, 78% among friends, 71% in leisure time and 63% in the neighborhood.
> – state that Muslims are their best friends (40%).
> – have more knowledge about Islam as a religion or the doctrine of the faith than about the reality of Muslim life. The results show better results about the everyday life of Muslims when there are contacts with Muslim people in their circle of friends or in leisure activities, from which it can be concluded that knowledge about Islam is part of general knowledge in the migration society, whereas knowledge about the reality of life is acquired at least in part through encounters and conversations.
> – make fewer sweeping judgements about Islam, provided they are friends with Muslims and have more insight into the lives of Muslims.
> – with a strong Christian faith are more negative towards Islam, especially in the dimensions of "attribution of identity threat" and "attribution of Islamism".[15]

In summary, it can be stated at this point that knowledge about Islam is produced or reproduced in media, political, educational and religious education discourses that contain stigmatizing images, discriminatory stereotypes and prejudices about "the Muslims" and "the Islam".[16] This clearly shows the great challenges facing comparative theologically oriented religious education, which may hinder it.[17]

14 Cf. Hafez/Schmidt 2015, 19.

15 Janzen *et al.*, 2019.

16 Cf. Knauth/Möller 2022, 320.

17 Surveys among Christians show that a particularly positive perception of Christianity is linked to a particularly negative perception of Islam. It is higher among Christians and Christians are more strongly marked than non-denominational Christians. According to the author, the results suggest "that Christians do indeed have a certain identification with their religious community, which leads to a positive evaluation via difference marking in comparison with other groupings". Friedrichs 2014, 174.

On the Potential and Deficiencies of Interreligious Education According to the Catholic and Protestant Models

Now taking a new perspective: What goals are achieved with interreligious learning using Protestant and Catholic models in relation to interreligious learning? So far, there are few empirical studies dealing with the effectiveness of interreligious learning arrangements. Alexander Unser (2018a) looks at eight studies[18] on Protestant and Catholic religious education according to the five goals of interreligious learning. Joachim Willems (2011) summarizes the goals belonging to interreligious competence as a consensus within the literature on interreligious learning. These include

1. clarification of one's own position,
2. the acquisition of basic knowledge of religious studies,
3. the acquisition of hermeneutic skills,
4. the ability to metacommunicate when dealing with others and
5. the change of attitudes as an example of active strong tolerance and empathy.[19]

The analysis of Unser shows that the available findings give reason to assume that interreligious learning in Protestant and Catholic Religious Education succeeds in imparting knowledge about non-Christian religions to pupils and in enabling them to understand foreign religious concepts and statements of faith. The ability to adopt perspectives and change attitudes could not be answered unambiguously on the basis of the findings.

In summary, it can be cautiously said, on the basis of the few empirical studies, that in interreligious learning settings in Protestant or Catholic religious education, but also in Islamic religious education, there is at least an increase in knowledge about other religions. Thorsten Knauth and Rainer Möller rightly criticize the fact that at the beginning of an interreligious encounter between Muslims and Christians or with Islamic content, the Christian pupils are not confronted with some 'foreign religion'.[20] The 'foreign' suggests that one knows little about the others and

18 Sterkens 2001, Ziebertz *et al.* 2010, Merkt *et al.* 2014, Schweitzer *et al.* 2017, Asbrand 2020, Schihalejev 2009, Unser 2018b.

19 Cf. Willems 2011, 113–115.

20 Cf. Knauth/Möller 2022, 320.

covers up the fact that there is already a great deal of socially racist structured knowledge about the 'others', in this case about Islam and Muslims.[21] In the case of Muslim students, it would be necessary to clarify what effects it has for interreligious learning settings to bring their experiences of exclusion, discrimination and attributions as 'the others' into society. The axis of difference in Germany is not only between Christians and Muslims. The Christians are the 'natives', while the Muslims form the group of 'immigrants'. The axis of difference is therefore not only between religions, but between ethnically, socially, and culturally differently positioned interlocutors.[22] Therefore, the question is also to what extent Muslims and Christians also differentiate between experiences with members of the majority society, who can be both secular and members of a religious community. And how can pupils be enabled to reflect on their own attitudes and, building on this, to develop a position towards *the religious other* that is capable of dialogue? Interreligious education in a plural society must have the goal of promoting the judgement and difference competences of the pupils in such a way that they are empowered at all levels of social interaction with members of other religions or world views. "Both similarities and differences must be recognized, named and understood in their own religious meaning. Practicing a culture of dispute that recognizes *the other* is central here."[23] In view of the political and social challenges, all religious communities bear a joint responsibility for publicly effective interreligious education, especially at a time when religious education in schools is increasingly being called into question.

If one takes seriously the results of the studies that people who have contact with Muslims show fewer Muslimophobic and Islamophobic tendencies, then future religious education can think more about approaches in which Muslims can bring in their perspective as subjects and interlocutors. This is an important aspect that leads to the question:

What possibilities does comparative theology open up?

21 Cf. Janzen/Ahrens 2022.

22 Muslim students report directly or indirectly experiences of exclusion because of their religion or origin. They are given the feeling in their environment that they do not belong in some way because they have an Islamic faith or a different origin. Cf. Güzel 2022, 358.

23 Tautz 2022, 4.

Comparative Theology as an Interreligious Approach to Solving the Challenges of Multi-Religious School Life / to Improving Religious Education

Comparative theology is interested in individual cases of theology of religion and their relevance for interreligious dialogue. In doing so, it claims to "develop an interreligious hermeneutics that allows, on the one hand, to maintain one's own claims to validity. On the other hand, it is also about giving space to the perspective of others and taking their own interpretation seriously. The essential goals of comparative theology can be summarised as 'new understanding of one's own, appreciation of the foreign and search for truth'"[24].

Let us look at the school situation: If there are Islamic religious education classes at a school, there is usually at least one Protestant or Catholic religious education class. From a school organizational point of view, it is therefore necessary that the two religious education classes cooperate with each other and strive for encounters with the other religion in phases within their confession-oriented religious education classes. Comparative theology regards the participants or the religions as equals. In this sense, this framework opens up the possibility that Islam or Muslims as a minority are not, as is so often the case, approached unilaterally by the majority, but that both religions encounter each other on an equal footing in didactically designed learning arrangements. In this way, the setting shifts the dominance and power imbalance of Christianity towards cooperation in partnership, so that both religions share responsibility for publicly effective interreligious education.

The aspect of *appreciating the stranger* challenges those involved in comparative theological situations to expose themselves to the *otherness* of the other, to want to understand it and to accept it in its otherness. However, this also requires time if another foreign religion is not only to be grasped from the outsider's perspective, but its members are also invited to present the internal perspective. This internal perspective of *the other* can appear alien to the pupils or as a contradiction to their own position if it is also used in relation to their own religion. In such encounters, emotions and reactions are to be expected from the students, which make it clear: It cannot only be about cognitive learning, that means the acquisition of knowledge. Rather, the existentially and affectively significant role of religious convictions and one's own religiosity must be considered pedagogically.

24 Von Stosch 2012, 154.

In the sense of comparative theology, a micro-logical approach can be taken in order to design religious or interreligious learning processes using exemplary content. The focus is not *on* Islam or Christianity, but on individual theological approaches, traditions or rituals that show a perspective on the respective religion. From a religious didactic point of view, such a setting would initially be a *learning about religion* in which pupils can acquire concrete knowledge about exemplary traditions of others or their everyday patterns of action. Turning to the individual case makes it possible to dig deep into the pupils' points of view and experiences of the world in which they live in the sense of *learning from religion*. An empathetic attitude requires at least that students let the foreign tradition approach them, show openness or empathy to some extent.

In didactically designed sequences, comparative theological approaches open up the possibility of discovering the plurality of identities, of perceiving the members of the other religion not as a homogeneous group but in their heterogeneous facets. In the sense of the theory of social identity, there would be the possibility, at least theoretically, of similarities being recognized as a unifying element in attitudes and beliefs. "Similarity can be understood as a dynamic concept that emphasises connections and unifying elements. As a counter-design to difference, similarity takes into account commonalities, overlaps and parallels and has the potential to soften rigid boundaries, dichotomies and hierarchies."[25] However, similarity should not be misunderstood as a 'harmonization concept'. Rather, it can shake the supposedly stable, 'natural' dichotomous orders in the consideration of *the Other*. According to social identity theory, rigid group boundaries can be softened if similarities and commonalities between individuals of the ingroup and the outgroup are made visible. It can shake group boundaries when students can understand their life-enhancing potentials in a conversation about two religious traditions. These life-enhancing potentials can only be accepted if they appear logical, understandable to the person. Such an approach would then also pose the question of truth, which does not have to and cannot be answered systemically, but is discussed precisely on a micro-logical level in the sense of comparative theology.

Bibliography

Asbrand, Barbara (2020), *Zusammen leben und lernen im Religionsunterricht. Eine empirische Studie zur grundschulpädagogischen Konzeption eines interreligiösen Religionsunterrichts im Klassenverband der Grundschule*, Frankfurt a. M.: IKO-Verl. für Interkulturelle Kommunikation.

25 Dieckmann 2022, 49.

Badawia, Tarek / Topalović, Said / Tuhčić, Aida (2023), *Von einer Phantom-Lehrkraft zum Mister-Islam. Explorative Studie zur Professionalität von Islamlehrkräften an staatlichen Schulen*, Weinheim: Beltz Juventa.

Calmbach, Marc / Borgstedt, Silke / Borchard, Inga / Thomas, Peter Martin / Flaig, Berthold Bodo (2016), *Wie ticken Jugendliche 2016? Lebenswelten von Jugendlichen im Alter von 14 bis 17 Jahren in Deutschland*, Wiesbaden: Springer.

Diekmann, Isabell (2022), *Muslim*innen- und Islamfeindlichkeit. Zur differenzierten Betrachtung von Vorurteilen gegenüber Menschen und Religion* (Islam in der Gesellschaft), Wiesbaden: Springer.

Dreier, Lena / Wagner, Constantin (2020), *AIWG Expertise: Wer studiert Islamische Theologie? Ein Überblick über das Fach und seine Studierenden* (AIWG Expertisen), Frankfurt a. M.: Akademie für Islam in Wissenschaft und Gesellschaft (AIWG) der Goethe Universität Frankfurt am Main.

Friedrichs, Nils (2014), "Das Verhältnis von Christen zu Muslimen und Atheisten: Zur Bedeutung von sozialer Kategorisierung und Identifikation im interreligiösen Vergleich", in: Christel Gärtner / Matthias König / Gert Pickel / Kornelia Sammet / Heidemarie Winkel, eds., *Grenzen der Toleranz: Wahrnehmung und Akzeptanz religiöser Vielfalt in Europa* (Veröffentlichungen der Sektion Religionssoziologie der Deutschen Gesellschaft für Soziologie), Wiesbaden: Springer, 155–178.

Güzel, Selcen (2022), *Potenziale des Islam-Unterrichts. Eine empirische Untersuchung zur Selbsteinschätzung muslimischer Kinder und Jugendlicher* (Pädagogik und Ethik 13), Baden-Baden: Ergon.

Hafez, Kai / Schmidt, Sabrina (2015), *Die Wahrnehmung des Islams in Deutschland* (Religionsmonitor – verstehen was verbindet), Gütersloh: Bertelsmann Stiftung.

Janzen / Olga et. al. (2019), *Muslime Ja, Islam Nein? Wissen schützt vor Islamfeindlichkeit.* https://www.stiftung-mercator.de/de/publikationen/muslime-ja-islam-nein/ (accessed Sept. 23, 2023).

Janzen, Olga / Ahrens, Petra-Angela (2022), Islam- und Muslim:innenfeindlichkeit unter jungen Menschen in Deutschland: Eine Frage der religiösen Selbstverortung?, in: *Zeitschrift für Religion, Gesellschaft und Politik / Journal for Religion, Society and Politics*, 6/2, 463–490.

Knauth, Thorsten / Möller, Rainer (2022), "Das Diskussionspapier Dialog und Transformation und politisch-gesellschaftlicher Kontext", in: Gotthard Fermor / Thorsten Knauth / Reiner Möller / Andreas Obermann, eds., *Dialog und Transformation. Pluralistische Religionspädagogik im Diskurs* (Glaube – Wertebildung – Interreligiosität 21), Münster: Waxmann, 312–331.

Landthaler, Bruno (2019), "Jüdischer Religionsunterricht und säkulare Gesellschaft", in: Elisa Klapheck / Bruno Landthaler / Rosa Rappoport, eds., *Deutschland braucht jüdischen Religionsunterricht* (Machloket / Streitschriften 4), Leipzig: Hentrich & Hentrich, 13–45.

Merkt, Heinrich / Schweitzer, Friedrich / Biesinger, Albert, eds., (2014), *Interreligiöse Kompetenz in der Pflege. Pädagogische Ansätze, theoretische Perspektiven und empirische Befunde* (Glaube – Wertebildung – Interreligiosität 7), Münster: Waxmann.

Pickel, Gert (2022), "Religiöse Vielfalt in Deutschland – Eine soziologische Bestandsaufnahme", in: Arnd Uhle / Judith Wolf, eds., *Ablösung der Staatsleistungen – Gefahr oder Chance für das Verhältnis von Staat und Kirche?* (Essener Gespräche zum Thema Staat und Kirche 57), Münster: Aschendorff, 7–27.

Sauer, Martina (2022), *Erfahrungen und Bedarfe der für den islamischen Religionsunterricht ausgebildeten Lehrkräfte in NRW. Eine Studie des ZfTI im Rahmen des Exzellenzclusters Religion und Politik der Universität Münster*, Essen: Stiftung Zentrum für Türkeistudien und Integrationsforschung, Universität Duisburg-Essen.

Schihalejev, Olga (2009), "Prospects for and obstacles to dialogue in religious education in Estonia", in: Ina ter Avest / Dan-Paul Jozsa / Thorsten Knauth / Javier Rosón / Geir Skeie, eds., *Dialogue and*

Conflict on Religion. Studies of Classroom Interaction in European Countries, Münster: Waxmann, 62–85.

Schweitzer, Friedrich / Bräuer, Magda / Boschki, Reinhard, eds., (2017), *Interreligiöses Lernen durch Perspektivenübernahme. Eine empirische Untersuchung religionsdidaktischer Ansätze* (Glaube – Wertebildung – Interreligiosität 10), Münster: Waxmann.

Sterkens, Carl (2001), *Interreligious Learning. The Problem of Interreligious Dialogue in Primary Education*, Leiden: Brill.

Tautz, Monika (2022), "Komparativ-theologische Religionspädagogik als Beitrag für einen zukunftsfähigen Religionsunterricht", Notizblock 71/22, 3–8.

Unser, Alexander (2018a), "Interreligiöses Lernen", in: Mirjam Schambeck / Ulrich Riegel, eds., *Was im Religionsunterricht so läuft. Wege und Ergebnisse religionspädagogischer Unterrichtsforschung*, Freiburg im Breisgau: Herder, 270–285.

Unser, Alexander (2018b), "Is religious experience necessary for interreligious learning? An empirical critique of a didactical assumption", in: Ulrich Riegel / Eva-Maria Leven / Daniel Fleming, eds., *Religious Experience and Experiencing Religion in Religious Education* (Research on Religious and Spiritual Education 11), Münster: Waxmann, 99–117.

Uslucan, Haci-Halil / Yalcin, Cem Serkan (2018), *Abschlussbericht zur wissenschaftlichen Begleitung der Einführung des islamischen Religionsunterrichts (IRU) im Land Nordrhein-Westfalen*. Im Auftrag des Ministeriums für Schule und Bildung des Landes Nordrhein-Westfalen, Essen: Stiftung Zentrum für Türkeistudien und Integrationsforschung, Universität Duisburg-Essen.

Von Stosch, Klaus (2012), *Komparative Theologie als Wegweiser in der Welt der Religionen* (Beiträge zur Komparativen Theologie 6), Paderborn: Schöningh.

Willems, Joachim (2011), *Interreligiöse Kompetenz: Theoretische Grundlagen – Konzeptualisierungen – Unterrichtsmethoden*, Wiesbaden: Springer VS.

Ziebertz, Hans-Georg / Remmlinger, Barbara / Herbert, Markus (2010), "Konzeption des Curriculum Gender und Religion", in: Hans-Georg Ziebertz, eds., *Gender in Islam und Christentum. Theoretische und empirische Studien*, Berlin: LIT, 137–167.

Monika Tautz

Chapter 15
Religious Diversity in Post-religious and Post-secular Societies. Theological and Pedagogical Perspectives for an Interreligious-Sensitive Education – Replica Monika Tautz

In her remarks Naciye Kamcili-Yildiz explains many aspects worth considering. She identifies the sore spots in social and school life that make it clear where things go wrong when people of the Muslim faith, people of the Christian faith and people of a secular worldview live together. She also points to positive approaches when it is normal for children with experience of migration to have people of different religions, but also secularly oriented people, among their circle of friends.

In the following, only a few aspects of particular interest for a discussion between Islamic and Christian Religious Education[1] will be singled out for this response. The focus here will be on the opportunities of Comparative Theology in religious education. Taking such a perspective is also important for the Christian discourse on a comparative theological orientation of Religious Education in the German-speaking world.[2] This is because it is still at the beginning and can learn *from* Islamic Religious Education, but also through intensive exchange *with* it.

Interreligious-Sensitive Education in Schools: How do Experience of Migration and a Dwindling Importance of Religion in Society Affect Interreligious Learning Processes?

The number of children and young people with a migration background has increased significantly in German schools over the past 30 years. This is accompa-

1 Religious Education is a scientific discipline of theology. To distinguish it from religious education, it is capitalized in the following

2 Cf. the example in Tautz 2022.

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nied by a cultural and religious diversity that schools have to face. Therefore, since this time, there has been a discussion in pedagogics in general and in Religious Education in particular about the opportunities and limits of intercultural and interreligious learning. For Religious Education, the main questions are first how interreligious learning can be integrated within the framework of religious education at schools in Germany, second to what extent it can fulfil the demands referring to learning *about* and learning *from* religion in times of a dwindling religious socialization in large parts of society. Kamcili-Yildiz takes up this discussion in her chapter. From the perspective of Islamic Religious Education and in the sense of an Islamic-based religious education at school, she explains which opportunities and which challenges arise. She starts from the thesis that denominational religious education for children and young people of Muslim faith is a basic prerequisite for interreligious learning.[3] She substantiates this referring to both scientific reference disciplines of Religious Education: the field of humanities on the one hand, which, in addition to educational science and pedagogy, also includes (religious) sociology and psychology, and on the other hand the field of Islamic theology, which includes all theological disciplines. In this way, she takes up findings from sociology in general as well as from the sociology of religion in particular – here also with empirical research results from Islamic Religious Education in Germany – and demonstrates their relevance for the planning and implementation of religious learning processes. Kamcili-Yildiz considers the theological dimension of Religious Education as embedded in Islamic theology, not least because didactic questions cannot be adequately clarified without corresponding reference science.

A central question of the conference "Defining Islamic Comparative Theology"[4], on which this volume is based, is whether and to what extent Comparative Theology can offer ideas and impulses for the participation of Muslims in (German) society. Therefore, Kamcili-Yildiz emphasizes the attitudes that are necessary and to be advanced in the context of Comparative Theology, such as appreciation of the

3 The question of whether denominational religious education is still appropriate in times of dwindling religious socialization and an increasingly heterogeneous society is critically reflected in the academic discourse of Christian Religious Education (Fermor/Knauth *et al.* 2022). There is a strong current that strives for religious education with pupils of the whole class, as is common in Sweden or Great Britain, for example. However, the reference discipline would then have to be religious studies, which looks at religions from the outside, and no longer Islamic, Jewish or Christian theology.

4 The aim of the conference is as follows: exploring the possibilities and challenges arising out of the Christian origins of comparative theology as well as the growing number of Muslim voices within this field, particularly in the German context wherein the establishment of Institutes of Islamic Theology has been part of a broader political and academic project to configure Muslim participation in society.

stranger, hospitality or the question of truth.[5] She is concerned with the question of attitudes towards Muslims and Islam, firstly from the perspective of the Muslims themselves: How do they perceive themselves as individual citizens in Germany and what is the significance of Islam in this context? And secondly, from the perspective of the majority: How does the majority perceive Muslims and Islam? It should be noted that more and more people in Germany see themselves as religiously or spiritually interested but no longer belong to one of the Christian churches or another religious community. This observation is supported by two theses of sociology: on the one hand, the thesis of an advancing secularization in Western societies, and on the other hand, the thesis of the return of religion (the religious), which was raised some time later.[6] Both theses describe phenomena in society that can still be observed today, although they seem to contradict each other. For we live in a society that can be called secular and religious as well with good reason. The majority of society in Germany can be called *secular* because people no longer profess a specific religion; at the same time it can be called *religious* because many people say they are religious or spiritual. Therefore, one also speaks of a society that is both *post-religious* and *post-secular.*[7] For Islamic and Christian religious education not only at school, this means paying attention to the different contexts in which religion plays a direct and indirect role within society. As Naciye Kamcili-Yildiz points out, this includes not only the beliefs of Islam and the practice of faith, but also cultural characteristics and questions of inculturation into a particular society. In this context, another social phenomenon is relevant: the advancing individualization. Different forms of individualization are also taken up by Muslim citizens and thus also affect the way religion is perceived.

Religion, Faith and Secular Life Worldviews: How do Social, Cultural and Political Contexts Affect Interreligious Encounters?

Dealing with these questions is important because the intention of Comparative Theology is to understand the other religious or ideological conviction of a person as well as this person themself and to reinterpret one's own conviction from this

5 On the basic attitudes of Comparative Theology, cf. Stosch 2012, 155–168.
6 For a critical reflection on the thesis cf. Gabriel 2022.
7 Cf. Höhn 2007, 25.

other perspective and not to disregard the question of truth in the process.[8] Therefore it is not possible to transfer the intention of Comparative Theology in a simple way to the multicultural and multi-religious everyday life of people. Moreover, the ability to change perspectives proves to be complex. It works domain-specifically, depending on the content or social context in different ways. It is not purely cognitive, but is also shaped by empathy and corresponding individual life experiences.[9] A meta-study conducted in 2020 by internationally collaborating scientists from the fields of cognitive and neuroscience as well as clinical psychology[10] proves that, depending on the situation, the human brain does not only draw on the main network in the brain typical for these processes of thinking when feeling empathy and changing perspectives, but also uses additional networks. Accordingly, social, cultural and also political contexts have a promoting or inhibiting effect on encounters. This applies to interreligious dialogue in the sense of Comparative Theology and also to interreligious encounter, exchange and reflection in religious education and at school in general. Kamcili-Yildiz has given several examples of this. In the following, I would like to go into two examples in more detail.

Religion and Faith as a Topic in the Everyday Life of Children and Young People

According to Selcen Güzel's research, religion and faith are not topics that children and young people discuss with their friends in everyday life. They also do not differentiate between religious and cultural differences.[11] This observation by Güzel applies to all children and young people. This reticence can be explained with the results from research on the sociology of religion. The advancing individualization – coupled with attitudes critical or even skeptical of religion – leads to the fact that the legitimization and meaningfulness of religion for people today is primarily based on their own religious experiences. Then again it is not the content and form of lived religion (that is, a concrete religious tradition, such as Catholic Christianity in the Rhineland) that are the basis for thinking about religion and its meaning for one's own life, for the life of the faith community and for living together with all other people. Instead, very individual, personal experiences are used as authentic and thus real and solely truthful justification. This becomes clear in religious education at school, for example, when young people avoid a discussion of different

8 On the goals of Comparative Theology, cf. Stosch, 2012, 148–155.

9 On the change of perspective in interreligious educational processes, cf. Tautz 2023.

10 Schurz/Radua et al. 2021.

11 Cf. Güzel 2022, 264f., 278.

beliefs with the thesis that everyone can believe whatever they want and think is right and that there is no point arguing about it. An important task of academic reflection on religious education processes is therefore to clarify didactically how the question of truth can become meaningful for children and young people in terms of content and existential significance.

Promoting an Inhibiting Effect of Social, Cultural and Political Contexts

Social, cultural and also political contexts have a promoting or inhibiting effect on interreligious encounters. Kamcili-Yildiz illustrates this with the experiences of Muslim teachers in Germany. They are not recognized as colleagues with equal rights. Muslim teachers experience not being recognized on different levels: among colleagues as subject teachers, in exchanges with the school administration, in conversations with non-Muslim parents, and time and again in encounters with pupils. Such structural forms of inequality, even violence, must be perceived and described.[12] This is the task of empirical social research, for example. It offers a valid basis for the necessary discussion of how such imbalances and often not reflected attitudes can be broken up.[13] The task of Religious Education is to find answers to the question of how an attitude of hospitality can be linked and promoted in schools and school communities with a willingness to reflect on God and the world. However, analyzing structural forms of imbalance is also a task of theology. One's own tradition must be questioned as to how structural violence has been dealt with in the history of religion and in the theological reflection of this history. This cannot be done without a self-critical impetus, since structural violence is strengthened precisely by not taking the perspective of minorities and the oppressed.

In plural and extremely heterogeneous societies, religious education has the task of both introducing people to their own faith tradition[14] and at the same time making children, young people and adults capable of speaking, so that a construc-

12 Cf. Kamcili-Yildiz 2021, 90. Kamcili-Yildiz highlights that in the field of interreligious learning, the asymmetries in school for Muslim students and also for Muslim teachers are still too little considered in religious education.

13 Cf. on Bourdieu's work on the habitus of people and its individually and socially conditioned imprints, Bourdieu/Wacquant 2013.

14 In Christian Religious Education, the task of introducing people to the faith and practicing it is primarily assigned to catechesis or parish pastoral care. Religious education in schools differs from the catechetical or pastoral offers in the parishes in that the teaching in school has its focus on the reflection of faith and the practice of faith in the context of the plural society.

Learning does not take place at school, but in the church community.

tive encounter and communal interaction in everyday life with people of other world views and religious convictions becomes possible. This requires something like relaxed certainties[15] that one's own (religious) convictions are valued in the life of the individual as well as the faith community, that they are coherent and therefore communicable, that they open up and can open up paths to a prosperous coexistence of all people. Such an attitude of relaxed certainties facilitates the encounter of people of different religions and world views. However, it only grows in the direct discussion about the contents of the beliefs of others, which is combined with a sincere interest in the person you meet and who is part of the common society. Sensitive attitudes in dealing with alterity and difference must be developed within the framework of education and further training of teachers of religion.[16] Sufficient time and suitable learning spaces must be available so that such an attitude can grow. It is important that all those involved in schools can practice and try out such a sensitive attitude. As the experiences of Islamic religious education teachers show, it is not enough for religious education teachers alone to ask themselves what learning processes can promote such an attitude in the learning and living environment of schools. It concerns all people who live and work in the school environment.

The sociologist of religion and the church, Gert Pickel, reminds the Christian Religious Education what Kamcili-Yildiz describes as the task of Islamic Religious Education: A discussion of interreligious issues necessarily requires consideration of the social implications of religious plurality.[17] Specifically for Christian Religious Education, he demands that anti-Semitism, anti-Muslim resentment, Islamophobia and anti-Muslim racism must also be taken into account.[18] Such attitudes lead to people being excluded from the community. Resentment against the other, in this case people of the Muslim faith, often arises from a diffuse feeling of threat, which is often not based on personal experience but on media mediation. It is characterized by concern for one's own identity. It is interesting that people who have little or no contact with Muslims are particularly likely to develop fear and rejection.[19] The diffuse fear creates the idea of a hermetically closed Islam, of *the* Islam[20], to which

15 Jürgen Werbick understands relaxed certainties as an attitude that is supportive in dealing with uncertainties and the loss of certainties. Cf. Werbick 2010.

16 Cf. Kamcili-Yildiz 2021, 221.

17 Pickel 2020, 67.

18 Pickel 2020, 67.

19 Pickel 2020, 64.

20 Cf. Ulfat 2020, 126: In line with the sociological observation of religion, Fahima Ulfat also recognizes that a sweeping portrayal of Islam and the interpretation of Islam as a "problem factor" in Christian textbooks leads to Muslim immigrants in their cultural and national diversity being reduced too much to the topic of religion.

no access can be found and which is therefore dangerous or at least does not correspond to the logic of an enlightened[21] society. With such prejudices, the diversity of Muslim faith communities cannot be perceived at all.[22]

Interreligious-Sensitive Education and Comparative Theology: How can a Comparative-Theologically Oriented Religious Education Advance Interreligious-Sensitive Education in Schools?

Certainly, understanding the foreign issue as well as the foreign person can only succeed to a limited extent.[23] Examples that are as concrete as possible can offer a space for encounter and discussion. Such examples show in individual cases where similarities and differences exist, how cultural conditions color one and the other religious conviction, which practical religious and theoretical theological reasons are given in each case. Comparative Theology speaks of a *micrological approach*.

Kamcili-Yildiz and the author of this chapter agree that Comparative Theology can provide a suitable theological basis for the interreligious educational processes with people outside the academic-theological sphere. The prerequisite is that the respective Islamic or Christian theology is able to locate the opportunities and limits of Comparative Theology in its own tradition, thus offers a theological basis for questions of instruction, appropriation and reflection on one's own religion and questions of encounter with people of other religions.

It is important to didactize the contents of the lessons appropriately depending on the place of learning and the group of people. The necessary attitudes such as appreciation of the stranger, hospitality and openness to the question of truth cannot be taken for granted, but must be built up and grow in the process of the interreligious encounter itself.[24] The search for certainties that give meaning and

21 In the process, the attribute enlightened is used to create an ideological counter-world, without, however, even noticing the critical reflections on the European Enlightenment, as they are considered in the concept of the Dialectic of Enlightenment. Cf. Horkheimer/Adorno 2003.

22 Ulfat, 2020, 126.

23 Cf. Tautz 2023, 9 (with references to further literature).

24 This also applies to the education of teachers of religious education – at all levels: in higher education didactics, within the framework of the preparatory service (traineeship) and, last but not least, in further training in everyday professional life.

support to life unites us, but the ways to get there are different.[25] Life-enhancing potentials of religion can only be accepted if they appear logical and understandable to people. Such an approach, then, also includes the question of truth, which does not have to be answered systematically in school lessons. That is the task of theology. In terms of Comparative Theology, however, questions about truth must be experienced and discussed on a micrological level as a question that socially and personally-existentially presses for answers. This aspect of Comparative Theology makes it particularly interesting for religious education processes in schools. It is necessary to select theologically, liturgically and (religiously) ethically comparable materials on a micrological level that offer opportunities for empathy – Klaus von Stosch speaks of "liebevolle Aufmerksamkeit"[26] (loving attention) – and promote religious judgement, but also participation competence.[27] In order for this to succeed in the classroom, both prospective teachers of religion in university and experienced teachers in further training must be enabled to select teaching materials accordingly. For within the framework of the micrological comparative-theological debate, an intra-religious position, that means a very concrete confessional perspective, must be addressed.[28] This requires a sound theological knowledge of the contents of the corresponding topic and of different argumentations on this topic in the tradition. In addition to this theological competence for one's own religion, a basic knowledge of the foreign religion on the topic must also be available so that what is comparable on a micrological level can be selected according to the respective self-understanding. This can only succeed if fears and prejudices towards the foreign religion are dealt with and overcome at least to the extent that an honest encounter becomes possible.

Children and young people are encouraged to position themselves thanks to the micrological approach. This competence must be promoted in religious education processes in general today, for example also for the concept of children's and youth theology.[29] It is not enough for children and young people to formulate their opinion on the concrete example and discuss it with each other. Thinking and argumentation must be stimulated with the help of experiences,[30] arguments and inter-

25 In this sense, Navid Kermani calls amazement the origin of Islam and all religions, because amazement is a sign of a question of meaning leading to transcendence and God. Cf. Kermani, 2022, 12.

26 Stosch 2012, 161.

27 Cf. Tautz 2022, 7f.

28 Cf. Kamcili-Yildiz/Tautz 2022, 230–233.

29 Cf. the reflections of Oliver Reis on children's and youth theology and the question of positioning, Reis 2020.

30 Experience is an important concept not only in pedagogy but also in theology. The Catholic systematic theologian Edward Schillebeeckx, for example, speaks of apostolic experiences. These are

pretations from the respective religion, also with recourse to theological insights. In this way, the religion-didactic principle of experience-orientation is not only based on the individual and heterogeneous experiences of the learners but also integrates contrasting experiences of the religious tradition in their critical potential.

Maryam/Mary: A Figure of Identification for Interreligious-Sensitive Education?

Finally, some didactic impulses for religious education will show how a micrological approach can appeal to children both cognitively and emotionally. In religious education at primary school, Maryam/Mary,[31] the mother of Isā/Jesus, is the focus.[32] She is highly respected by many Muslims and Christians and venerated in popular devotion. Therefore, she can also be called a "Brückenfigur"[33] (bridge-figur) for the Muslim-Christian encounter because she brings two sides together. Qur'anic and biblical narratives of Maryam/Mary invite us to take her perspective and thus to perceive or initiate our own experiences of God.[34] The children learn about Maryam's/Mary's faith in God, about her election by God, but also about the doubts and worries that are connected to the election for the young woman – and about God's care for his chosen one. In addition, she is closely connected to the life of Isā/Jesus. In both religions Maryam/Mary stands for the true humanity of her Son. In addition to the similarities, the children can also recognize differences.[35] At least in rudimentary form, it can be explained in primary school why Muslims venerate Maryam as

revelatory experiences that are passed on through witnesses of the faith, for example the apostles. Cf. Schillebeeckx 1981.

31 An interreligious-sensitive education should pay attention to theologically based differences in the various forms of religions. So that children in primary school do not simply equate Mary in the Bible with Maryam in the Qur'an and that they can at least sense that different theological statements are associated with her, it can make sense for Muslim children to speak of Maryam and Christian children of Mary.

32 Cf. Stüttem/Tautz 2022 (with detailed explanations and material for teaching).

33 Tatari/Stosch 2021, 9. For older students, the emancipatory force of Maryam/Mary can be chosen for a micrological approach. Cf. Tatari/Stosch, 2021, 109–135, 259–282, 362–364.

34 Interreligious-sensitive education in the footsteps of Comparative Theology pays particular attention to the existential dimension of faith. For only in this way, children and young people can learn to position themselves towards their own and others' religious convictions.

35 Differences are already evident in the children's exchanges with each other. For their knowledge of Maryam/Mary and their experiences of piety clearly differ from each other. In the Christian denominations (Protestant, Catholic, Orthodox), Mary plays a very different role in theology and piety.

the mother of the Prophet Isā and Christians venerate Mary as the mother of the Redeemer and the Son of God. For the children, religious knowledge of the qur'anic and biblical narrative of the announcement of the birth of their son as well as of his birth itself is a necessary basis for an interreligious-sensitive encounter. In the sense of Comparative Theology, it should not remain cognitive learning. The faith experiences of the children are equally important. They should be stimulated by the exchange with the other's perspective and the associated faith experiences from the tradition of the religions. Here is just one example from Turkey: the pilgrimage site in Ephesus – Meryem Ana Evi/House of Mother Mary – offers an example of the veneration of Maryam/Mary in both religions.

Bibliography

Bourdieu, Pierre / Wacquant, Loïc (2013), *Reflexive Anthropologie*, Frankfurt a. Main: Suhrkamp.

Dimbath, Oliver (2022), "Individualisierung", in: Staatslexikon online, URL: https://www.staatslexikon-online.de/Lexikon/Individualisierung (accessed Sep. 19, 2023).

Gabriel, Karl (2022), *Die vielen Gesichter der Religion. Religionssoziologische Analysen jenseits der Säkularisierung*, Frankfurt a. Main: Campus Verlag.

Grümme, Bernhard (2017), *Heterogenität in der Religionspädagogik. Grundlagen und konkrete Bausteine*, Freiburg i. Breisgau: Herder.

Güzel, Selchen (2022), *Potenziale des Islam-Unterrichts. Eine empirische Untersuchung zur Selbsteinschätzung muslimischer Kinder und Jugendlicher*, Baden-Baden: Ergon.

Höhn, Hans-Joachim (2007), *Postsäkular. Gesellschaft im Umbruch – Religion im Wandel*, Paderborn: Ferdinand Schöningh.

Horkheimer, Max / Adorno Theodor W. (2003), *Dialektik der Aufklärung. Philosophische Fragmente*, Frankfurt a. Main: Suhrkamp.

Kamcili-Yildiz, Naciye (2021), *Zwischen Glaubensvermittlung und Reflexivität. Eine quantitative Studie zu professionellen Kompetenzen von islamischen ReligionslehrerInnen*, Münster: Waxmann.

Kamcili-Yildiz, Naciye / Tautz, Monika (2022), "Komparative Theologie und eine die Pluralität ernst nehmende Religionspädagogik", in: Gotthard Fermor / Thorsten Knauth / Rainer Möller / Andreas Obermann, eds., *Dialog und Transformation. Pluralistische Religionspädagogik im Diskurs*, Münster: Waxmann, 224–241.

Kermani, Navid (2022), *Jeder soll von da, wo er ist, einen Schritt näher kommen. Fragen nach Gott*, München: Carl Hanser.

Pickel, Gert (2020), "Gesellschaftliche Bedingungen: soziale Verhältnisse von Juden und Muslimen", in: Stefan Altmeyer, et. al., eds., *Judentum und Islam unterrichten* (Jahrbuch der Religionspädagogik 36), Göttingen: Vandenhoeck & Ruprecht, 53–68.

Reis, Oliver (2022), "Weltanschauliche, religiöse oder theologische Positionalität", in: Mirjam Zimmermann, et al., eds., *"Hauptsache, du hast eine Meinung und einen eigenen Glauben". Positionalität (nicht nur) in der Kinder- und Jugendtheologie* (Jahrbuch für Kinder- und Jugendtheologie 5), Stuttgart: Calwer Verlag, 48–59.

Schillebeeckx, Edward (1980), “Offenbarung, Glaube und Erfahrung”, in: *Katechetische Blätter* 105 (2/1980), 84–95.

Schurz, Matthias / Radua, Joaqui / Tholen, Matthias G. / Maliske, Lara / Margulies, Daniel S. / Mars, Rogier B. / Sallet, Jerome / Kanske, Philipp (2021), “Toward a Hierarchical Model of Social Cognition: A Neuroimaging. Meta-Analysis and Integrative Review of Empathy and Theory of Mind”, *Psychological Bulletin* 147 (3/2021), 293–327.

Stosch, Klaus von (2012), *Komparative Theologie als Wegweiser in der Welt der Religionen*, Paderborn: Ferdinand Schoeningh.

Stüttem, Maria Magdalena / Tautz, Monika (2022), “Maria – Brückenfigur für die Begegnung von Menschen christlichen und islamischen Glaubens. Die Erzählung von der Verkündigung Mariens im Lukasevangelium und im Koran für die Klassen ¾”, in: *Notizblock. Materialdienst für Religionslehrerinnen und Religionslehrer in der Diözese Rottenburg-Stuttgart* 71, 15–26.

Tatari, Muna / Stosch, Klaus von (2021), *Prophetin – Jungfrau – Mutter. Maria im Koran*, Freiburg i. Breisgau: Herder.

Tautz, Monika (2022), “Komparativ-theologische Religionspädagogik als Beitrag für einen zukunftsfähigen Religionsunterricht”, in: *Notizblock. Materialdienst für Religionslehrerinnen und Religionslehrer in der Diözese Rottenburg-Stuttgart* 71 (2022), 3–8.

Tautz, Monika (2023), “Perspektivenwechsel”, in: *Das wissenschaftlich-religionspädagogische Lexikon im Internet* www.wirelex.de, (https://doi.org/10.23768/wirelex.Perspektivenwechsel.100074, PDF vom 19.09.2023).

Ulfat, Fahima (2020), “Musliminnen und Muslime im evangelischen und katholischen Religionsunterricht”, in: Stefan Altmeyer, et al., eds., *Judentum und Islam unterrichten* (Jahrbuch der Religionspädagogik 36), Göttingen: Vandenhoeck & Ruprecht, 114–128.

Werbick, Jürgen (2010), “Die Angst vor dem Verlust der Gewissheiten – und wie Religionen mit ihr umgehen können. Eine Problemskizze”, in: Jürgen Werbick / Muhammad Sven Kalisch / Klaus von Stosch, eds., *Verwundete Gewissheit. Strategien zum Umgang mit Verunsicherung in Islam und Christentum,* Paderborn: Ferdinand Schoeningh, 143–165.

Dina El Omari

Chapter 16
Islamic Comparative Theology and Gender: What Role Can the Feminist and Gender-Equitable Interpretation of Texts Play in Comparative Theology?

Islamic women's and gender research are still in their early phases within Islamic theology in Germany. On the one hand, this is because Islamic theology in Germany is itself still in its early stages, which means that its focus is very much on classical disciplines, such as the study of the Koran and Hadith, Islamic law and jurisprudence, systematic Islamic theology, and Islamic philosophy. On the other, it is because women's and gender research have so far been viewed as a marginal phenomenon that the Muslim consciousness deems necessary but not as vital as the classical disciplines. Nonetheless, there are many research papers, activist publications, and projects on Islamic women and gender studies. A gender-equitable interpretation of the Koran is the top priority, but this is followed by work on problematizing androcentric perspectives on Islamic law, Islamic religious practice and religious education, the prophetic traditions and classical exegesis, as well as the understanding of gender roles established there. All this work is concerned with pointing out, questioning, and breaking down patriarchal perspectives. In addition, there are many forms of solution-oriented approaches. Gender is therefore understood fundamentally as a cross-sectional category, although no systematization has yet been carried out of all the work mentioned, especially within the Islamic Theology in Germany.

What does it mean to establish gender studies as a cross-sectional discipline within Islamic theology in Germany? This needs to be examined from different perspectives, i.e. textual, systematic-theological, historical, and practical. To establish gender studies as a cross-sectional discipline requires that every discipline of Islamic theology addresses the issue of women and gender, with the aim of creating awareness of the issue and of establishing gender research that counteracts patriarchal ideas and structures within Islam. Since the individual disciplines focus on different issues and employ different methods, women's and gender studies have to be defined separately in each of these disciplines, before then being bundled together into a whole and independent discipline. In doing so, however, it does not see itself as a theology that is purely limited to an Islamic perspective but is in principle open to other theologies and non-theological disciplines and therefore

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considers an interreligious, a comparative, and an interdisciplinary approach to be indispensable.

Drawing especially on the comparative perspective in this chapter, I will point to a few reasons why this perspective is essential regarding gender issues. First of all, many traditions, religions, and cultures shaped the genesis of Islam, the Koran, as well as later traditions and norms. Thus, if we now want to understand gender roles in these contexts, we need to adopt a comparative perspective. This results in many overlaps in terms of content and methodology, which also affect questions relating to the category of gender. Two perspectives are particularly important here: the textual perspective and the perspective of Islamic law. With the latter, it is primarily a matter of exploring how far Islamic norms are related to Christian and Jewish norms. With the former, which will also be my focus in the following, there are methodological overlaps with regard to the Koran in relation to the different hermeneutics used in the feminist and gender-equitable exegesis of the Bible and Koran. However, these overlaps become clear at the content level by comparing the Koran with intertexts from late antiquity, this revealing mainly overlaps between the Koran, the Bible, and Apocryphal texts. This can apply to female figures in the Koran, but also to certain ideas, motifs, images, and norms. To clarify this, I would now like to use the concrete example of the first couple in the story of the creation of humanity (Q: 20.115–127).

The First Human Couple in the Koran, Using the Example of Sura 20:115–127: An Example of a Comparative View of Sacred Texts with a Special Focus on Gender

When it comes to the issue of gender/gender equality, there are a number of passages in the Koran that are suitable for comparative analysis. My focus here, though, will be on one of the passages of the creation story taken up in fragments in five different places in the Koran;[1] the first human couple is very much in the foreground in three passages, and thus the issue of gender roles is relevant.[2] Chronologically, the earliest of these three passages is sura Q: 20.115–127, which can be assigned to the narrative genre. I will analyze this sura in the following.

1 Q: 15:26–43, Q: 20.115–122, Q: 38.71–83, Q: 7.11–25, Q: 2.30–39.
2 Q: 20.117–123, Q: 7.19–25, Q: 2.35–39.

But first a few methodological remarks. For my analysis, I use a historical-literary approach, which comprises four pillars:

1. Reconstruction of the historical context, i.e. situating the Koran in its late-antique context,[3] in order to view it in the light of theological history, and to understand it from the respective socio-political and social structures. As for theological history, it is of course not possible to list all late-antique texts, even if such texts will play a central role in my interpretation. Likewise, I will consult those texts from the Islamic tradition that can help establish relationships to historical events or to the culture and society of the time, although caution is required here as to their historicity.
2. Tools of Arabic studies, i.e. philological studies of the text, especially with regard to its chronology, its structure, and its genre.
3. Tools of literary studies: the Koran is to be seen not only as a historically evolved structure, but also, as Abu Zaid emphasizes, in its original oral form as communication between the Prophet and his community. It thus reflects the cultural, historical, and linguistic situation at the time, and can therefore, according to Neuwirth, also be understood as a testimony of community formation.[4] This testimony is expressed in a highly poetic way, and my intention is to use the tools of literary studies to analyze the language. In doing so, I will regard the suras as closed compositions, and analyze the verses or verse groups covering one and the same theme not selectively, but in their entirety. As for the verses that I deal with here, my focus is on different genres, with the Koran being particularly notable for its change from homiletic, i.e. didactic, to narrative speech. For, unlike the Bible, the Koran often switches from didactic statements to stories, these often resulting in a "correction" of mythical ideas and narratives known from the Bible. This allows the narratives to be given a specific moral-ethical message in line with the Koranic message.[5]

3 The Arabic scholar Angelika Neuwirth has redefined the term "late antiquity": referring to the first 1,000 years after the new era, it describes not so much an epoch as a space of thought or a culture. In this space of thought, certain basic questions were discussed across language and religious boundaries, e.g. the question of life after death and freedom of will. The aim was to bring the religious turn that had occurred with the belief in a personalized God into harmony with the cultural heritage. To this end, the "ancient" texts, such as the Old Testament and texts from Greek philosophy, were re-read. See Neuwirth *et al.* 2016, 1–39. For a historical examination of late antiquity, see also: Al-Azmeh 2014, Bowersock 2019, Brown 2008 and 2013, Donner 2012. Payne 2016, Punckney Stetkevych 1993, Reynolds 2012, Stroumsa 2011.

4 See Neuwirth 2010, 394ff. and Neuwirth 2014, 44.

5 This phenomenon is also evident in rabbinic literature, which interprets Biblical narratives anew. See Fishbane, 2005.

4. The inclusion of selected classical commentaries on the Koran in order to clarify the history of the text's influence, as well as to illuminate the stream of tradition.[6]

Following the analysis, I will then in the second section of the chapter draw on Muna Tatari and Klaus von Stosch's book *Prophetin – Jungfrau – Mutter. Maria im Koran*[7] to explore what the analysis yields from the perspective of comparative theology.

Analysis of sura 20.115–127

Here is the relevant passage:[8]

> 115 And indeed, We once made a covenant with Adam, but he forgot, and so We did not find determination in him. 116 And remember when We said to the angels, "Prostrate before Adam", so they all did—but not Iblis, who refused arrogantly. 117 *So We cautioned, "O Adam! This is surely an enemy to you and to your wife.*[9] *So do not let him drive you both out of Paradise, for you O Adam would then suffer hardship. 118 Here it is guaranteed that you will never go hungry or unclothed, 119 nor will you ever suffer from thirst or the sun's heat". 120 But Satan whispered to him, saying, "O Adam! Shall I show you the Tree of Immortality and a kingdom that does not fade away?" 121 So they both ate from the tree and then their nakedness was exposed to them, prompting them to cover themselves with leaves from Paradise. So Adam disobeyed his Lord, and so lost his way. 122 Then his Lord chose him for His grace, accepted his repentance, and guided him rightly. 123 Allah said, "Descend, both of you, from here together with Satan as enemies to each other. Then when guidance comes to you from Me, whoever follows My guidance will neither go astray in this life nor suffer in the next.* 124 But whoever turns away from My Reminder will certainly have a miserable life, then We will raise them up blind on the Day of Judgment". 125 They will cry, "My Lord! Why have you raised me up blind, although I used to see?" 126 Allah will respond, "It is so, just as Our revelations came to you and you neglected them, so Today you are neglected". 127 This is how We reward whoever transgresses and does not believe in the revelations of their Lord. And the punishment of the Hereafter is far more severe and more lasting.

Comments on this passage in classical exegesis often refer to the life situation of the Prophet. For example, the exegete Tabari states: "And they [some of the Prophet's contemporaries] violate my[10] commands and they refuse to obey me by yielding to the commands of their enemy Iblis, and by doing the opposite of what I command them, just as their father Adam did at that time".[11] Razi also refers to the Prophet's

6 See Tatari/Stosch 2021, 138.
7 Tatari/Stosch 2021, 138.
8 Q: 20.115–127.
9 Q: 20.117
10 The perspective of God is given here.
11 At-Tabarī, *Jāmiʿ* (2001), 16, 181.

historical setting and to the Prophet himself, since the latter had been hasty in the recitation, for which he is rebuked in verse 114: "Do not rush to recite a revelation of the Koran O Prophet before it is properly conveyed to you, and pray, 'My Lord! Increase me in knowledge'". Which grieved the Prophet, for he thought he had done something wrong. Thus, according to Razi, God reminded him of the story of Adam in order to comfort him, since Adam had committed a far greater offence by breaking his promise to God, and yet God had forgiven him.[12] Both Tabari and Razi thus relate the story of Adam's misconduct to a concrete human lapse, with the focus being not on the woman's lapse, but on Adam's, which in turn stands typologically for the weaknesses of human beings in general. Thus, Tabari and Razi make no reference at this point to concrete roles and thus to the aspect of gender but concentrate on the lapse itself. They only refer to concrete roles at a later point, when they come to interpret the following verses.

However, the passage quoted seems rather unexpected within the composition of sura 20.[13] Its embedding there can be explained, though, by the preceding verse 113, which contains the keyword of the exhortation: "And so We have sent it down as an Arabic Koran and varied the warnings in it, so perhaps they will shun evil or it may cause them *to be mindful*".[14] The passage now ties in with Adam's forgetting mentioned in verse 115, Adam being referred to by name for the first time in this sura, although he is not introduced to the listener or reader. Nor is the listener or reader informed of the exact obligation to which the Koran is alluding here. This sudden appearance of Adam in connection to an undefined transgression implies that the subsequent narration presupposes prior knowledge on the part of the first addressees. Verse 115 is thus a stylistic transition to the narrative that follows, and is a bridge between verses 113/114 and 116,[15] since it takes up the keyword "forgetting" in contrast to "remembering", and leads over to the following narrative, anticipating its outcome. The location of the narrative at this point in the sura thus fulfils the function of depicting the human being's forgetting or going astray, as well as the consequences of doing so, thereby reinforcing the exhortation of the previous verses. As already mentioned in verse 115, it thus ties in with the previous

12 See ar-Rāzī, *Mafāṭīḥ* (1981), 22, 123.

13 See Neuwirth 2017, 352.

14 Q: 20.113.

15 113. And so We have sent it down as an Arabic Koran and varied the warnings in it, so perhaps they will shun evil or it may cause them to be mindful. 114 Do not rush to recite a revelation of the Koran O Prophet before it is properly conveyed to you, and pray, "My Lord! Increase me in knowledge." 115 And indeed, We once made a covenant with Adam, but he forgot, and so We did not find determination in him. 116 And remember when We said to the angels, "Prostrate before Adam", so they all did—but not Iblis, who refused arrogantly.

knowledge of the listener or reader in two ways: intratextually and intertextually. At the intratextual level, a connection can be drawn to the chronologically earlier sura 15 verses 26–42, which explains the creation of the first human being and the enmity between the first human being and Iblis, the archdevil:

> Indeed, We created man from sounding clay moulded from black mud. As for the jinn, We created them earlier from smokeless fire. Remember, O Prophet when your Lord said to the angels, "I am going to create a human being from sounding clay moulded from black mud. So when I have fashioned him and had a spirit of My Own creation breathed into him, fall down in prostration to him". So the angels prostrated all together—but not Iblis, who refused to prostrate with the others. Allah asked, "O Iblis! What is the matter with you that you did not join others in prostration?" He replied, "It is not for me to prostrate to a human You created from sounding clay moulded from black mud". Allah commanded, "Then get out of Paradise, for you are truly cursed. And surely upon you is condemnation until the Day of Judgment". Satan appealed, "My Lord! Then delay my end until the Day of their resurrection". Allah said, "You will be delayed until the appointed Day". Satan responded, "My Lord! For allowing me to stray I will surely tempt them on earth and mislead them all together, except Your chosen servants among them". Allah said, "This is the Way, binding on Me: you will certainly have no authority over My servants, except the deviant who follow you".

Verse 115 of sura 20 presupposes the creation of the species "human", as well as the dispute between God and Iblis, so this argument is here only "shortened to the 'prologue in heaven', whose outcome—God's sending of Iblis to test, but also to seduce, humankind"[16]—thus serving here as a point of contact for the actual focus of the narrative: namely, the seduction by the devil and the straying from divine truth. In doing so, the narrative fulfils the function of conveying a moral message, refrains from a detailed description, and ties in instead with the audience's foreknowledge. The emphasis on the moral message shows the re-functionalization of elements of this foreknowledge, for here the listener is informed by means of a prominent example that Adam, who stands at the beginning of human creation together with his partner being (arab. *zawj*[17]), has already decided against the right path. But verse 122 also emphasizes God's omnipresent and always guaranteed acceptance of repentance.

To implement this moral message, the verse and the subsequent narrative thus presuppose, as already mentioned, familiarity with Adam as well as the circumstances surrounding his transgression. This leads us to the intertextual level, for it is in this prior knowledge that the narrative from Genesis 2:15–17 and 3:1–7 seems to be anchored, although it is refunctionalized within the Koranic context in such a way that it breaks with existing misogynistic notions. The Biblical narrative states:

16 Neuwirth 2017, 353.

17 Since the term here, like Adam, is a proper name, it is capitalized in the following.

> 2:15 So the Lord God took the man [*ha'adam*] and put him in the garden of Eden to till it and keep it. 2:16 Then the Lord God commanded the man: Of all the trees of the garden you may eat, 2:17 but of the tree of the knowledge of good and evil you must not eat; for as soon as you eat of it you will die. 3:1 The serpent was smarter than all the beasts of the field which the Lord God had made. She said to the woman [*'ishah*]: Did God really say: You must not eat from any tree of the garden? 3:2 The woman [*'ishah*] answered the serpent, "Of the fruit of the trees of the garden we may eat; 3:3 only of the fruit of the tree which is in the midst of the garden God has said, 'Of this you must not eat, and you must not touch it, or you will die'". 3:4 Then the serpent said to the woman [*'ishah*]: No, you will not die. 3:5 Rather, God knows that as soon as you eat it, your eyes will open and you will become like God, knowing good and evil. 3:6 Then the woman [*'ishah*] saw that it would be delicious to eat of the tree, that the tree was a feast for the eyes and tempted to become wise. She took of its fruit and ate; she also gave to her husband [*'ish*] who was with her, and he also ate. 3:7 Then both their eyes opened and they realized that they were naked. They joined fig leaves together and made themselves an apron.[18]

Despite some parallels, we can identify fundamental and relevant changes in the Koranic passage. Particularly striking here is the differentiation in verse 117 between the first creation of the human and Adam, which the Koran makes very clear. But this is missing in the Biblical narrative in Genesis 2, since there the first human creation and Adam are used synonymously. According to Genesis 2:7: "then YHWH, that is, God, formed man (*ha'adam*) from dust of the ground (*ha'adamah*) and breathed into his nostrils the breath of life; so man (*ha'adam*) became a living soul". The Koran, on the other hand, always speaks of the creation of the human (arab. *bashr* or *insān*), while Adam appears as an identified and active person who forms a pair together with his partner being (arab. *zawj*) (Q: 20.117–119). This differentiation between the first human being and Adam and his partner being (arab. *zawj*) as the first human couple can be interpreted to mean that both emerge from this first gender-neutral human creation. In this light, we could interpret the origin of Adam and the partner being (arab. *zawj*), which is not directly addressed in the narratives, as emerging from the division of the first human being and as an equal creation, i.e. they only receive an identity through the emergence from the undifferentiated creation of the human. This in turn leads us to the first creation account in the Bible, which is reflected in various places in the Koran and also appears to be interesting here. Genesis 1:27–28 says:

> 27 God created man [Hebrew: *ha'adam*] in his image, in the image of God he created him. Male and female [Hebrew: *sachar uneqevah*] he created them. 28 God blessed them, and God said to them, "Be fruitful and multiply, fill the earth and subdue it, and rule over the fish of the sea, over the birds of the air, and over all the animals that creep on the earth".[19]

18 https://www.uibk.ac.at/theol/leseraum/bibel/gen2.html and https://www.uibk.ac.at/theol/leseraum/bibel/gen3.html (accessed Oct. 30, 2023).

19 Bible, https://www.bibleserver.com/text/EU/1.Mose1 (accessed Oct. 30, 2023).

This passage can of course be interpreted in different ways, but Phyllis Bird's explanations seem particularly helpful for our purposes, since she highlights and analyzes two essential themes in the passage: God creates the human in his own image as a representative on earth and places the human above the rest of creation.[20] Here, according to Bird, the human (Adam) is understood as a collective in the sense of human creation, without gender differentiation, i.e. at the beginning of creation there is first of all undifferentiated humanity, encompassing all genders. The gender differentiation only takes place with the second part of the 27th verse and the 28th verse, where the two genders and their function are named: the preservation of creation. For, although all creation comes from God, the reproduction of the human and also of all other living beings is necessary for creation to last. The original pair serves as a multiplier to fill the still empty earth.[21] Hence also the call: "Be fruitful, and multiply". In the distinction of the human being to be responsible for the maintenance or reproduction of creation lies the blessing of God ("God blessed them"). Therefore, a gender differentiation in verse 27 and the accompanying emphasis on the couple "as the minimal representation of each species"[22] provides the basis for the statement of the 28th verse. A hierarchy of the sexes cannot be discerned in Genesis 1 in this way; rather, the couple and their common mission come to the fore. This is also confirmed in some commentaries on the two verses in the Midrash literature, which speak of an androgynous first being, from which two beings, male and female, then emerge through division. Thus it says in Bereshit Rabbah 8:1:

> R. Jeremiah b. Leazar said: "When the Holy One, who is blessed, created the first human—androgynous (*androginos*) he created him, for it is said: "Male and female he created them". R. Samuel b. Nahman said: "When the Lord created Adam, He created him with two faces, then He divided him and gave him two backs".[23]

Adam is understood here in the sense of his actual meaning, as a human being. In other words, at the beginning of creation there was first of all the undifferentiated creation of the human, from which the couple then emerges.

Let us return to the Koranic passage. The differentiation between the first human creation, who is not yet to be understood as an acting individual, and the acting individuals identified in the Koranic passage is also confirmed by the fact that in suras 15 and 38, which focus on the dispute between Iblis and God and which do not mention the partner being (arab. *zawj*), it is the still undifferentiated creation

20 See BIRD 1981, 146.
21 See BIRD 1981, 146.
22 BIRD 1981, 146f.
23 Bereshit Rabbah 8:1

of the human (arab. *bashr* or *insān*) before which the prostration of the angels and the refusal of Iblis take place. This creation is purely passively present in the two creation narratives of suras 15 and 38.[24] In contrast, in the three Koranic passages in which Adam is always mentioned together with his partner (arab. *zawj*), it is the identified person Adam before whom the prostration takes place. This means that the human creation only becomes Adam from a figure not yet named when the opposite partner being (arab. *zawj*) is also present, because only in the narratives in which *zawj* is also mentioned can we speak of two active individuals: in all narratives, Adam is always mentioned in connection with *zawj*, even if *zawj* initially appears rather tentatively and then more prominently in the course of the Koranic revelation, i.e. the human only becomes an active being when the pair Adam and *zawj*, who together symbolize the origin of humanity, has emerged therefrom.

But back again to the differentiation missing in Genesis 2, since the distinction made in the Koran between the first human being and Adam as well as Adam's partner being (arab. *zawj*) resolves the possible Biblical conflict (depending on the internal Christian interpretation) between Genesis 1, which allows the interpretation of a hierarchy-free creation, and Genesis 2, which allows the interpretation of a hierarchical creation of Eve from Adam's rib or side, and thus no common origin of the couple.[25] For, the Koranic differentiation allows us to deduce a hierarchy-less creation of both sexes from a common origin. However, with regard to the passage cited, it must be noted that this meaning is only implicitly expressed here, since the Koran already presupposes the existence of both actors in this passage, and does not make their creation a direct theme here; the focus is rather on the transgression of Adam and the moral teaching contained in this story. In this way, the Koran breaks with the idea of the creation of woman from Adam's rib, which was familiar in the context of late antiquity, and defuses the story in this respect. This interpretation of an equal creation of both sexes and the non-thematization of the idea of a hierarchical creation is additionally supported by the fact that on the one hand the Koran does not take up the function of the woman as Adam's helper mentioned in Genesis 2, while on the other breaking the narrative sequence of Genesis 2 in that

24 Q: 15.28–29 and Q: 38.71–72.

25 Genesis 2:21–23: 2:20 Man [*ha'adam*] gave names to all cattle, to the birds of the air and to all the beasts of the field. But a help that corresponded to man [*ha'adam*] he did not find. 2:21 Then the Lord God caused a deep sleep to fall on the man [*ha'adam]* so that he fell asleep, and he took one of his ribs and closed up its place with flesh. 2:22 The Lord God built a woman [*'ishah*] from the rib he had taken from the man [*ha'adam*] and brought her to the man [*ha'adam*]. 2:23 And the man [*ha'adam*] said, This at last is bone of my bone, and flesh of my flesh: woman [*'ischah*] shall she be called, because from man [*'ish*] is she taken. Source: https://www.uibk.ac.at/theol/leseraum/bibel/gen2.html (accessed Oct. 30, 2023).

both actors are already present before entering Paradise, whereas in Genesis 2:20ff. the woman is only created after Adam feels lonely in Paradise.

The question now arises with regard to the Koranic formulation as to the gender of this first pair, which cannot be derived from the grammatical gender, since both terms are masculine and have to begin with a neutral meaning: Adam means "earthling", and *zawg* means "partner/partner being". Nevertheless, the two beings are distinguished by the fact that they are given an identity as active persons. But this identity is not gendered until the appearance of shame described in verse 121, for the first human couple only becomes aware of gender at the moment when they eat the forbidden fruit. Only at this moment do Adam and the partner being (arab. *zawj*) become gendered beings. Their gender affiliation can now be described in the light of Genesis 3:1ff. as a female identity with regard to the partner (arab. *zawj*), and as a male identity with regard to Adam. What is striking here is that the Koran uses the masculine term zawj and not the feminine term *zawja*, whereas the excerpt from Genesis 3 quoted above quite clearly establishes a female reference, since it speaks of "'ischah". A possible explanation can be found in pre-Islamic poetry, since a poem by the pre-Islamic Iraqi poet ʿAdī b. Zayd (d. ca. 600)[26] deals with the Biblical creation story. Its 11th verse reads: "Then He gave him a garden as an inheritance, that he might cultivate it, together with his wife (arab. *zawj*) formed from his rib".[27] Here, *zawj* is therefore identified as an active person with Adam's female counterpart. The use of the masculine form in Iraq also coincides with the explanation found in Edward William Lane's dictionary.[28]

It should be noted at this point that the Koran uses the term *zawj* in two different ways, and thus plays with the listener's expectations. On the one hand, it is used as a gender-neutral term in its proper sense, i.e. "partner, partner being", which is invoked in connection with another gender-neutral term, i.e. being (arab. *nafs*), and is used in relation to the creation of human beings.[29] On the other, it is used as a female counterpart to the male Adam, both of whom, however, can be understood from the distinction made in the Koran as arising from the common origin of the human being. Of course, it is certainly possible to read the text independently of this historical background, which would mean that two gender-neutral terms are juxtaposed here, i.e. two beings whose gender is neither clear nor appears historically relevant. However, this would be to lose the effect that the Koran creates by re-functionalizing late-antique intertexts. It would mean in concrete terms ignoring the break that the Koran makes according to this interpretation: namely, the break

26 See Toral-Niehoff 2008, 235–256.
27 Translated by Toral-Niehoff 2008, 242.
28 Lane 1984, 1, 1267.
29 See, for example, Q: 4.1.

with misogynous late-antique ideas. At the same time, we would not be aware of the internal distinction that the Koran makes between the two participants and the first creation of the human being, this distinction being essential for the coherence of how the Koran understands the creation of both sexes from a common origin, the human being. While it is certainly true that Adam and his partner being (arab. *zawj*) are identified as gendered persons, the Koran does not place their gender at the center of the event. According to verse 121, they only become aware of their gender when they have tasted from the tree.

Nonetheless, their gender can play a role when it comes to re-functionalizing the late-antique narrative, as well as to disrupting the listener's expectations, since it is Adam that the narrative clearly focuses on at the key points. Thus, it is he who, according to verse 115, "forgot" his obligation to God, and he who, according to verse 116, heard Satan's enticing words and strayed from the path. Hence, it is he whom God forgives in verse 122, since he is, after all, addressed as the person who initiated the wrongdoing; in contrast, *zawj* is not reproached, although she has to join him in leaving Paradise. But this is not to be seen as a punishment, since Adam has already been forgiven; rather, the earth is their actual intended destination: "At that time, when your Lord said to the angels, 'Behold, I will appoint a successor on earth!'"[30] The Koran thus breaks with the listener's expectations with regard not only to the creation of Adam's partner from a rib, but also to the actual focus of the story: the straying from the right path, represented symbolically by eating from the tree, is blamed on Adam's partner in Genesis 3:6. The Koran therefore also omits here these two key factors for the misogynous image of women in late antiquity. Indeed, it actually reverses the image, since, in focusing on Adam, it gives the story an unexpected turn: the Koran does not deal with the punishment of Adam's partner, since she is not to blame; rather, it focuses on Adam, who repents and finds God's forgiveness. Thus, the Koran ignores some of the central elements that comprise a misogynous image of women, and emphasizes new and unexpected elements.

It is worth taking another look at classical exegesis at this point, since, whereas the Koran breaks with some late-antique ideas, exegetical literature certainly contains traces of Biblical narratives that can support a perspective that disadvantages women. For example, the exegete Tabari first comments on verse 115 in connection with 117: "Then we said, 'Adam, behold, this one is an enemy of you and your partner. Lest he drive you out of the Garden of Paradise and then you be in misery!' (Q: 20.117) Satan whispered to him and he obeyed him. Thus he went against my [God's] command, whereupon my punishment befell him".[31] Tabari then goes on

30 Q: 2.30.

31 At-Tabarī, *Jāmiʿ* (2001), 16, 181f.

to discuss the act of forgetting, which he relates to the pact with God or the divine command.[32] He sees the reason for forgetting, as mentioned in the verse, in the lack of will or determination on Adam's part: "Had he had a firm will, he would not have obeyed . . . his enemy who envied him and refused [in advance] to bow down before him with the other [angels]".[33] Tabari goes on to give further explanations that attribute Adam's actions to his lack of patience, as well as locating the place of the lack of resolve in his heart, for only faith with the heart in the promise made ensures a patient attitude.[34] Following these remarks, Tabari returns once again to the Iblis episode and Iblis' refusal to prostrate himself, which he links to the interpretation of verse 116. Despite his focus on Adam, he now marginally includes in this interpretation also the wife, who is not addressed in verse 116 directly, but who is also meant. But first he explains: "'and then you be in misery!' means that his life will be one of hardship. This is the misery that his Lord will put him through".[35] After further descriptions of his hardships in earthly life, Tabari then explains why, although both are addressed in relation to the expulsion from Paradise ("He shall not drive you two out of the Garden"), only Adam is addressed in relation to the misery: "The beginning of the divine speech is addressed to Adam, peace and blessings be upon him. This notice about the punishment, due to his disobedience regarding what we have forbidden him concerning the eating of the fruit, is sufficient without mentioning the woman [directly], for it is clear that her judgment is encompassed by this judgment [thus subsuming her under the address to Adam]".[36] Tabari thus explains the omission of Adam's wife not by drawing on a hierarchical conception of roles, but at a semantic level.

The four other exegetes also share the opinion that Hawwa is implied in this verse,[37] with Zamakhshari also pointing out that the wife, who is identified with Hawwa, is implied because Adam is the representative of humanity.[38] Also interesting in terms of gender are the additions made by Qurtubi and Razi, since both make it clear in their interpretation of this passage that, although both have sinned, the punishment for eating from the tree ultimately only impinges on Adam, whose existence is made more difficult in this life. Qurtubi describes this difficulty as being the task of the provider that the man has due to Adam's transgression, and explic-

32 See At-Tabarī, *Jāmiʿ* (2001), 182.
33 At-Tabarī, *Jāmiʿ* (2001), 182.
34 See At-Tabarī, *Jāmiʿ* (2001), 16, 183ff.
35 At-Tabarī, *Jāmiʿ* (2001), 186.
36 At-Tabarī, *Jāmiʿ* (2001), 186.
37 See Az-Zamakhsharī, *Kashshāf*, (1998), 4, 113, see also Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 125, Al-Qurtubi, *Jāmiʿ* (2006), 14, 149., Ibn Kathīr, *Tafsīr* (1998), 5, 282.
38 See Az-Zamakhsharī, *Kashshāf*, (1998), 4, 113.

itly so with regard to his wife: "We learn from this that the expenses for the wife are incumbent on the husband . . . now when Hawwa's expenses were imposed on Adam, this was imposed in the same way with regard to her daughters on Adam's sons, and it is the right of the wives. And we learn from this that the expense due to wives from their husbands concerns four aspects: food, drink, clothing, and the home".[39] To which Razi writes: "What might be meant here is the tedious toil of satisfying the craving for food, this concerns only the husband but not the wife. Hence it has also been handed down that Adam was sent down a red bull with which he ploughed the field, wiping the sweat from his brow".[40]

These interpretations show very clearly the classical understanding of roles in a patriarchal society, which assumes that the man is solely responsible for providing for his family. However, this sole responsibility is framed not in terms of the man's superiority over the woman, but rather in terms of a burden that he has to carry as a result of his punishment, which is an idea that can already be found in Genesis 3:17–19: "To Adam he said, Because thou hast hearkened unto thy wife, and hast eaten of the tree which I commanded thee not to eat of, the ground is cursed because of thee. / In toil shalt thou eat of it / All the days of thy life. (17) He will make thorns and thistles grow for thee, and thou shalt eat the plants of the field. (18) In the sweat of thy face shalt thou eat thy bread, until thou return unto the ground: from it thou art taken. / For dust you are, to dust you must return (19)".[41] This is interesting for the understanding of gender, since the exegetes interpret it not as favoring men, but rather as something that is implicitly negative. At the same time, they do not take up Hawwa's punishment within their commentary on the passage, but stress Adam's punishment alone.

The interpretations that then follow also focus on Adam, although they make clear with regard to the seduction that, though Adam is the person addressed, the wife is also implied. Tabari writes, for example:

> The devil said to him, "Shall I show you the tree that is able to confer immortality when one eats from it and that confers a dominion that never ends?" And he [Adam] was tested . . . and it is [also] said that he [the devil] said: Adam shall I show you the tree that makes you king like God if you eat from it? . . . and both of you will never die . . . Adam and Hawwa ate of the tree whose food had been forbidden to them, and they obeyed the command of Iblis and defied the order of their Lord . . . so that there was revealed to them the nakedness of both of them which had been hidden from both of their eyes.[42]

39 Al-Qurtubī, *Jāmiʿ* (2006), 14, 149.

40 Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 125.

41 https://www.uibk.ac.at/theol/leseraum/bibel/gen3.html (accessed on 11 May 2018).

42 At-Tabari, *Jāmiʿ* (2001), 16, 188f.

They therefore clothed themselves.[43] The other exegetes also take up this aspect of the offence committed jointly,[44] but Tabari does so in a fundamentally different way. He takes up the motif of the seductress, thus giving his previous value-free interpretation regarding Hawwa's role in the events a clearly misogynous overtone typical of the late-antique context: "Iblis already knew that the two possessed a shameful area, since he had read this in the books of the angels. Adam did not know this and their only clothing was their nails. Adam refused to eat from the tree at first. But then Hawwa came and she ate [from the tree], then she said [to Adam], 'Oh Adam, eat. I ate of it and nothing happened to me'. So when he ate of it, the nakedness of them both was revealed".[45] They then covered their nakedness with the leaves of Paradise,[46] which, according to Tabari, some traditions called fig leaves.[47] Despite this emphasis on Hawwa's role as temptress, Tabari then focuses again on Adam and his violation of God's command: "He [Adam] disobeyed the command of his Lord and he transgressed what he should not have transgressed by eating from the tree from which God had forbidden him to eat".[48] Both Tabari and Razi relate the assumption of repentance to Adam alone,[49] while the other exegetes do not elaborate on this aspect. But this does not necessarily mean that the exegetes excluded Hawwa from this assumption; rather, it may be due to the fact that on the one hand the Koran addresses Adam alone in verse 122, and on the other Hawwa was understood implicitly. However, not mentioning her at this point could also indirectly fuel the guilt of her role as seductress. Razi gives the aspect of repentance a distinctly emotional hue by pointing out that he sheds many tears over Adam's guilt, this far surpassing the weeping of the prophets Dawud and Nuh.[50] He also cites a supplication of Adam in this context: "When he [Adam] wept a lot, God interceded and instructed him to say: 'There is no God but you, praised and thanked be you. I have done a bad thing and wronged myself. So forgive me, for you are the All-forgiving'".[51] It is only after the aspect of repentance that Tabari again refers directly to Hawwa, for in verse 123 the Koran again addresses both Adam and Hawwa with the injunction to go down to earth, thereby warning the first human couple again of Iblis' enmity. The other four exegetes also refer to the joint

43 See At-Tabari, *Jāmiʿ* (2001), 16, 188f.

44 See Az-Zamakhsharī, *Kashshāf*, (1998), 4, 116f, see Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 126f., Al-Qurtubi, *Jāmiʿ* (2006), 14, 148 and Ibn Kathīr, *Tafsīr* (1998), 5, 282.

45 At-Tabarī, *Jāmiʿ* (2001), 16,189.

46 See At-Tabarī, *Jāmiʿ* (2001), 16,189.

47 See At-Tabarī, *Jāmiʿ* (2001), 190.

48 At-Tabarī, *Jāmiʿ* (2001), 190.

49 See At-Tabarī, *Jāmiʿ* (2001), 190, and Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 129.

50 See Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 129.

51 Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 129.

banishment of the human couple, with Qurtubi also pointing out that, while God's call in verse 123 could be directed at Adam and Iblis, Hawwa is also meant.[52] This could well be interpreted here as meaning that Adam, as the one who is blamed for the transgression, is therefore the focus of this transgression. This impression is also confirmed if we take into account the above explanation given by Razi, who interprets the narrative as an example of human transgression, also referring to the forefather Adam.

What the analysis yields from the perspective of comparative theology

The analysis of the narrative has already shown that it is extremely fruitful to compare the Koran with intertexts from late antiquity. Particularly with regard to the issue of the understanding of gender roles, the comparative view has yielded some insights for working out the meanings of the narrative. But I wish to raise the explicit question here of what the findings discussed so far can yield for a comparative theology. I will take up the approach outlined by Tatari and von Stosch, who in turn drew on how the American theologian Catherine Cornille structured types of learning in comparative theology:[53]

> She distinguishes six different ways of learning theologically through comparative efforts, which she calls intensification, recovery, reinterpretation, appropriation, rectification, and reaffirmation. Along these six categories, we want to exemplify what we have learned from the religious other in the present discussion. In doing so, we do not attempt a comprehensive survey of the learning gains achieved, but merely recall particularly striking points.[54]

Following these six categories, I will now examine my findings in more detail (but in much less detail than in Tatari and von Stosch's case, since they deal with a much larger body of text material than I do).

52 See At-Tabarī, *Jāmiʿ* (2001), 16, 190ff., as well as Az-Zamakhsharī, *Kashshāf*, (1998), 4, 116f., Ar-Rāzī, *Mafāṭīḥ* (1981), 22, 129, Al-Qurtubī, *Jāmiʿ* (2006), 4, 156 and Ibn Kathīr, *Tafsīr* (1998), 5, 283.
53 See Tatari / Stosch 2021, 359.
54 Tatari / Stosch 2021, 359.

Intensification

For Cornille, the first category—intensification—points to the fact that an encounter and comparison with other religious ideas reinforces the meaning and truth of one's own:

> The recognition of similarities between text and teachings of different religions does not in itself point to analogical patterns of religious thought and experience, and generate theories about the nature of religion or religious phenomena, as has been the case in the comparative study of religion. But when approached with a generous religious disposition, the recognition of similarities in other religious traditions and/or the intensity of expression and experience may lead to an amplification of the meaning and truth of one's own religious ideas and experiences.[55]

Going far beyond the passage quoted above,[56] my exploration of the question of the creation of the human being and the first human couple in the Koran reveals two things. First, that the Koran emphasizes a just order of creation, one that places all human beings on an equal footing and that does not represent the idea of a hierarchical creation of man and woman. Second, that its story of creation breaks with misogynistic ideas of late antiquity that labelled women as seductresses or authors of original sin, while reducing their creation to their being formed from the rib of man. Examining relevant intertexts has strengthened this insight, since it is evident overall, but also within the account given above, that the Koran distances itself from Biblical narratives that might contain elements detrimental to women (Genesis 2:15–17 and 3:1–7), while taking up motifs that highlight the idea of equal creation (Genesis 1:27–28, Bereshit Rabba). The comparative perspective has thus enriched the intratextual findings of the analysis.

Recovery

Cornille describes the second category—recovery—as follows:

> Engagement with the teachings or practices of another religion often leads to the recovery or rediscovery of figures, teachings or practices of one's own tradition that were neglected, forgotten, marginalized or even declared heretical.[57]

This ties in with the ideas of the first category and returns us to the classical interpretations mentioned above. By incorporating Biblical ideas or motifs that can

55 Cornille 1961, 117.
56 See: Human couple in the Koran.
57 Cornille 1961, 124.

underpin the notion of equal creation or of an equal human couple, the Koran, as already stated, highlights again the common late-antique motif of hierarchical creation, a temptress, and a female cause of the Fall. It became clear again and again, however, that the classical exegeses cited above repeatedly place the narrative elements omitted by the Koran onto the text like a template, thereby not only reconfirming old familiar misogynous ideas, but also ignoring the new emphasis of the Koran. However, a look at the alternative intertexts makes it possible to establish a new idea from the Koran with regard to the first human couple, but also beyond that with regard to the verses that speak of the creation of this first couple: that of an equal creation through the idea of the creation of an androgynous first being, from which the couple then emerges through division.

Reinterpretation

Cornille describes the third category—reinterpretation—thus:

> One of the more challenging types of learning pursued in comparative theology involves the reinterpretation of one tradition through the categories or philosophical framework of another. This may be seen to be part of the process of translation and inculturation where concepts derived from one religion are used to render another religion intelligible in a new cultural and religious context. However, while the categories of the other tradition have often been reinterpreted to fit one's own tradition, comparative theology seeks to learn from the other religion by preserving as much as possible the original meaning of symbols and categories and by reinterpreting one's own religion in terms of the other.[58]

This idea of reinterpretation can also be applied to the above analysis and its findings. It is interesting to note that this is not necessarily the first thought in relation to the Koranic story of creation. As shown above, classical exegesis reproduces precisely those interpretations and motifs that connote ideas disadvantageous to women. On the other hand, feminist exegetes in particular often start by arguing that the Koran clearly distinguishes itself from the Biblical story of creation and rejects those stories that are detrimental to women. The latter also became clear in the above analysis, but beyond that it has been shown that other late-antique intertexts can be useful for interpreting the Koran anew, and thus also for arguing against the classical interpretations, which are misogynous in nature. A careful look at the intertexts at this point thus has a clear added value for the interpretation of a human couple that does not go back to a hierarchical creation, but to a common origin as well as its division into two creatures with equal rights.

58 Cornille 1961, 129.

Appropriation

The category of appropriation seems to be a great challenge especially in the context of religions, but for Cornille it is another form of learning in comparative theology:

> One of the most challenging forms of learning in comparative theology involves the appropriation by one tradition of new elements derived from another religious tradition. As John Conn points out, "in the course of dialogue with another tradition, partners will encounter ideas in the other tradition that seem plausible, compelling, and even true and yet unavailable within the home tradition". This may involve symbols, texts, ritual elements, philosophical ideas, and types of experience that are undeveloped or underdeveloped, or untapped within one's own religious framework. Insofar as comparative theology is oriented to theological development and growth, the recognition of distinctive elements of truth and validity in other religions may lead to an attempt to integrate these into one's own religious tradition.[59]

This aspect of appropriation is a challenge precisely when the other religious tradition does not directly coincide with one's own religious ideas and conceptions, i.e. where it initially feels troubling or foreign, and can only be made one's own in a subsequent step. The previous categories have shown that a harmony can be achieved with certain motifs/ideas from the late-antique or Biblical context for a gender-equitable reading, and that appropriation can thus be made possible without any problems at these points. A tension would arise if one first received the classical interpretations of the Koran, as is still often done in lived religious practice, and then came into contact with the other intertexts and ideas that can be read as putting forward the equal creation of human beings. Such an experience has emerged within a joint course on "Koran and Bible in comparison using the example of 'women's texts'" with my Catholic colleague Marie-Theres Wacker. This cooperation involved Muslim and Christian students learning together. In a first step, they each dealt with the tradition of the other religion, then discussed their findings interdenominationally in small groups, before being asked to present the findings again for discussion in the plenary. We moderated the event in the form of a dialogue, so that we had the opportunity to react directly to each other on the one hand, and to talk directly with both sets of students on the other. One theme was that of creation and the relevant texts on this issue from the Bible and the Koran. When encountering the Biblical texts, and also comparing these texts with the Koran and with the misogynous interpretations given by the classical exegesis of the Koran that they knew (i.e. the creation of Eve from Adam's rib; Adam the man as the first human being; Eve as the cause of sin), the Muslim students showed a change of perspective that is in line with the analysis presented above: namely,

59 Cornille 1961, 134.

from the idea of the hierarchical creation of Eve to the idea that she is an equal partner of Adam. This was also supported by familiarity with the relevant intertexts (Genesis 1:27–28, Bereshit Rabba), which the students acquired as a result of their change in perspective. An expropriation also took place here, however, since the students deemed the Biblical motifs that would tend to support a misogynous interpretation (Genesis 2:15–17 and 3:1–7) as being out of step with the Koranic text passages on the story of creation, and rejected them accordingly.

Rectification

Cornille's fifth category is that of rectification:

> One of the types of learning that may be operative in comparative theology involves the restoration of proper understanding of the other, and thus a new understanding of one's own tradition in relation to the other. At first glance, this may not be regarded as a form of theological development and growth. However, insofar as one's self-understanding is often linked to one's understanding of the other in polarizing or oppositional terms, the rectification of traditional forms of misunderstanding of the other will often significantly change one's self-understanding. The encounter with different and competing religious systems often leads to a conscious or unconscious belittling and misrepresentation of the religious other in order to inflate the importance and truth of one's own tradition.[60]

While at first glance this category may not seem to play a role in relation to the above analysis, it does become relevant when we look at some of the remarks that have been made in feminist exegesis on the relationship between Biblical texts and the Koran, since this work has repeatedly criticized the absorption of Biblical motifs and ideas in the interpretation of the Koran. For example, Riffat Hassan rejects the creation of Eve from Adam's rib on the grounds that this idea is a Biblical influence that distorts the statements made in the Koran and must therefore be rejected as inauthentic.[61] Hassan also rejects the idea of Eve's guilt in the Fall and the concept of original sin, since the Koran at no time speaks of Eve's sole guilt for the sinful action, and since Adam and Eve were forgiven before they were sent down to earth. There can therefore be no question of a divine punishment, which makes obsolete the doctrine of original sin and with it all interpretations linked to this doctrine, including those of a misogynous nature.[62] While agreeing with Hassan's line of reasoning here, I should also point out that she ignores the fact that there are other

60 Cornille 1961, 121.
61 See Hassan *et al.* 1991, 72ff.
62 See Hidayatullah 2014, 91.

Biblical motifs and interpretations in the Jewish and Christian tradition that, as we have seen, can very well support a gender-equitable reading of the text and that could enrich the interpretation of the Koran. In doing so, Hassan closes herself off from the possibility of a comparative perspective and its usefulness for a gender-equitable interpretation of the Koran with regard to the story of creation.

Reaffirmation

Cornille's final category—reaffirmation—re-emphasizes some of the ideas already formulated. Cornille describes it as follows:

> A type of learning that may be somewhat unexpected or atypical involves a new appreciation or reaffirmation of the truth and value of certain teachings in light of particular alternatives in the other tradition.[63]

This experience can absolutely be shared where the gender-equitable interpretation of the creation of the human couple, as well as the non-misogynous version of the story of Paradise, are reaffirmed. Taking account of the relevant intertexts (Genesis 1:27–28, Bereshit Rabba) helps not only to reinterpret the Koran, but also to reaffirm its gender-equitable underpinnings. For, the boundaries between the two categories (*reinterpretation* and *reaffirmation*) are fluid.

Conclusion

Both the partly comparative analysis outlined above and the subsequent presentation of what comparative theology can offer have shown very clearly the benefits of adopting such a perspective when it comes to interpreting the Koran in relation to gender roles. While it is of course the case that the issue of gender plays a role not only at the textual level but should be recognized as a cross-sectional category in all Islamic theological disciplines and treated comparatively, the benefits in relation to texts are particularly great. This is true in a number of ways, such as the depiction of female figures in the Koran and the Bible, and the embedding of motifs and images in the Koran from the late-antique context, as well as of entire Biblical narratives. In addition, the Koran itself of course bears traces not only from the Christian and Jewish context, but also from other religious and cultural contexts,

63 Cornille 1961, 137.

such as the ancient Arab religion and culture. These are also relevant when analyzing the issue of gender in relation to the Koran in a comparative way.

Bibliography

Al-Azmeh, Aziz (2014), *The Emergence of Islam in Late Antiquity*, Cambridge: Cambridge University Press.

Ar-Rāzī, Abū ʿAbdallāh M. b. ʿUmar b. al-Ḥusayn Faḫraddīn (1981), *Mafāṭīḥ al-Ghayb*, ed. n. n., 30 vols., Beirut: Dār al-Fikr.

At-Ṭabarī, Abū Jaʿfar b. Jarīr (2001), *Jāmiʿ al-bayān fī tafsīr al-Qurʿān*, ed. by ʿAbdallāh b. ʿAbdalḥassan at-Turkī, 26 vols., Kairo.

Az-Zamakhsharī, Abūl-Qāsim b. ʿUmar (1998), *Al-Kashshāf*, ed. by Aḥmad Abd al- Mawjūd, 6 vols., Riad: Maktaba al-Abikān.

Bibleserver (2016), *Genesis 1 (Einheitsübersetzung)*, Bibleserver.com. https://www.bibleserver.com/text/EU/1.Mose1

Bird, Phyllis A (1981), *"Male and Female he created them": Gen 1:27b in the Context of the Priestly Account of Creation*, *The Harward Theological Review*, 2, 129–159.

Bowersock, Glen (2019), *Die Wiege des Islam. Mohammed, der Koran und die antiken Kulturen,* Munich: C.H. Beck.

Brown, Peter (2008), *The Body & Society: Men, Women, & Sexual Renunciation in Early Christianity*, New York: Columbia University Press.

Brown, Peter (2013), *The World of Late Antiquity*, London: Harcourt Brace Jovanovich.

Cornille, Catherine (1961), *Atonement and Comparative Theology. The Cross in Dialogue with Other Religions*, New York: Fordham University Press.

Donner, Fred (2012), *Muhammad and the Believers. At the Origins of Islam.* Harvard: Harvard University Press.

Fishbane, Michael (2005), *Biblical Myth and Rabbinic Mythmaking*, Oxford: Oxford University Press.

Hassan, Riffat / GROB, Leonard / GORDON, Haim, eds. (1991), *Women´s and Men´s Liberation. Testimonies of Spirit*, New York: Greenwood Press.

Hidayatullah, Aysha A. (2014), *Feminist Edges of the Qurʾan*, Oxford: Oxford University Press.

Ibn Kathīr, Imādaddīn Ismāʿīl b. ʿUmar (1998), *Tafsīr al-Qurʿān al-Aẓīm*, ed. by M. Ḥusayn Shamsaddīn, 9 vols., Beirut: Dār-al-kutub al-ʿilmiyya.

Lane, Edward William (1984), *Arabic-English Lexicon*, Cambridge: Islamic Texts Society Publisher, 1.

Neuwirth, Angelika (2010), *Der Koran als Text der Spätantike*, Berlin: Verlag der Weltreligionen.

Neuwirth, Angelika (2014), *Koranforschung – Eine politische Philologie? Bibel, Koran und Islamentstehung im Spiegel spätantiker Textpolitik und moderne Philologie*. Berlin: De Gruyter.

Neuwirth, Angelika (2017), *Der Koran: Band 2/1: Frühmittelmekkanische Suren. Das neue Gottesvolk:'Biblisierung' des altarabischen Weltbildes*, Berlin: Verlag der Weltreligionen.

Neuwirth, Angelika / SCHMIDT, Nora / SCHMID, Nora K., eds. (2016), *Denkraum Spätantike: Reflexionen von Antiken im Umfeld des Koran*, Wiesbaden: Harrassowitz

Payne, Richard (2016), *A State of Mixture: Christians, Zoroastrians, and Iranian Political Culture in Late Antiquity*. Oakland: University of California Press.

Punckney Stetkevych, Suzanne (1993), *The Mute Immortals Speak. Pre-Islamic Poetry and the Poetics of Ritual*, Ithaka: Cornell University Press.

Qurṭubī, Abū ʿAbdallāh (2006), *Jāmiʿ al-aḥkām al-Qurʿān*, ed. by ʿAbdallāh b. ʿAbdalḥassan at-Turkī, 24 vols., Beirut: Muʾassasa ar-risāla.

Reynolds, Gabriel Said (2012), *The Emergence of Islam. Classical Traditions in Contemporary Perspective*, Minneapolis: Fortress Press.

Stroumsa, Guy G. (2011), *Das Ende des Opferkults. Die Religiösen Mutationen der Spätantike,* Berlin: Verlag der Weltreligionen.

University of Innsbruck (2008), *Genesis 2 (Einheitsübersetzung)*, Leseraum: Bibel, Innsbruck: University of Innsbruck. https://www.uibk.ac.at/theol/leseraum/bibel/gen2.html

University of Innsbruck (2008), *Genesis 3 (Einheitsübersetzung)*, Leseraum: Bibel, Innsbruck: University of Innsbruck. https://www.uibk.ac.at/theol/leseraum/bibel/gen3.html

Saida Mirsadri

Chapter 17
"And a Female is not the Same as a Male" (Q 3:36): *Islamic Feminism and the Challenge of Female Agency in the Qurʾān*

Introduction

Islamic feminism is a relatively new phenomenon and movement that has emerged in recent decades, notably since the 1970s. It is led by Muslim women who advocate for a change in the patriarchal interpretations within Islamic tradition, particularly concerning family and women's rights. The education of women, their integration into the job market, and their willingness to actively participate in political, social, and academic levels have prompted women to question the centuries-old traditional gender norms in their patriarchal societies.

The discourse of feminism in Islam is directly influenced and amplified by the discourse of gender equality on the global scale. Gender equality as a value to be sought and established is "a modern ideal, which has only recently, with the expansion of human rights and feminist discourses, become inherent to generally accepted conceptions of justice".[1] These developments have also impacted the Islamic tradition, in which formerly such a discourse was not central: "In Islam, as in other religious traditions, the idea of equality between men and women was neither relevant to notions of justice nor part of the juristic landscape. To use an idiom from Islamic juristic tradition, gender equality is among the 'newly created issues' (*masāʾil mustaḥdatha*), that is, one of those issues for which there is no previous ruling. It is an issue that Muslim jurists have not had to address until the twentieth century".[2]

This encounter with modern systems of values has, thus, presented challenges to Islamic intellectual traditions, inspiring both reform thinkers and Muslim femi-

1 Mir-Hosseini *et al.* 2013, 1.

2 Mir-Hosseini *et al.* 2013, 1.

Note: I extend my heartfelt gratitude to my esteemed colleague and friend, Mohammad Ali Tabatabaʾi (Mehr Dad), whose invaluable comments and suggestions have been instrumental in shaping this contribution.

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nists to reassess their tradition in light of contemporary questions and issues, especially regarding gender and women's rights.

This trend runs parallel to, yet contrasts with, what is commonly referred to as "secular feminism" in the Muslim world. This movement aligns itself with Western secular tendencies and at times views the Islamic tradition as the major obstacle to women's rights and their equal status in society. It runs, thus, counter to the convictions and objectives of Muslim feminists who seek to navigate *within* their Islamic framework to address these issues.

The efforts of Muslim feminists primarily focused on re-examining and re-interpreting Islamic tradition through a female lens. Consequently, the feminine reading of Islamic sources, with a focus on the Qurʾān, has emerged as a recent phenomenon within the Islamic tradition. However, thus far, only a select few women have ventured into this realm, as described in Aysha Hidayatullah's analytical categorization into two distinct generations. The first generation includes scholars such as Riffat Hassan, Azizah al-Hibri, and Amina Wadud, who made significant contributions in the field. The second generation comprises scholars like Asma Barlas, Sa'diyya Shaikh, and Kecia Ali, who have continued and expanded upon the work initiated by their predecessors.[3]

Since its inception, Muslim feminism has aimed to develop an egalitarian reading of Islamic tradition by reforming Islamic jurisprudence and questioning the patriarchal presumptions in Qurʾānic exegesis, philosophy, and theology. Many Muslim feminist exegetes (with the exception of some in the second generation like Kecia Ali and Aysha Hidayatullah) saw the problem not in the Qurʾān or in Islam, but in the *masculine* reading and interpretation of the Qurʾān and the prophetic tradition. They located the source of gender hierarchy primarily in Tafsīr (i.e., Qurʾānic exegesis), as Hidayatullah puts it. This approach, which attributes gender hierarchy to masculine interpretations of an otherwise egalitarian prophetic tradition and sacred Scripture, has remained prevalent for several decades.

Some modernist thinkers, when addressing the same issue, have instead argued that the source of gender hierarchy lies neither in the Qurʾān nor in its interpretive tradition, but in philosophical frameworks that were incorporated into Islamic thought. One prominent example is the Shiite contemporary modernist Mohsen Kadivar, who identifies Aristotelian philosophical presumptions embraced by Muslim thinkers as a fundamental cause of the problem. "In traditional Islamic thought women's rights have been defined on the basis of a 'deserts-based' notion

3 Hidayatullah 2014. I am aware that some of the scholars grouped under the category of "Islamic feminism" do not self-identify with this label, and that generational classifications may risk oversimplification. I employ Hidayatullah's framework here primarily as a heuristic device for mapping certain trends within Anglophone feminist exegetical scholarship.

of justice (*al-ʿadāla al-istiḥqāqiyya*), by which individuals are entitled to justice according to their status, abilities and potential. This notion of justice leads to proportional equality, which recognises rights for individuals in proportion to their 'deserts'".[4] According to this philosophical assumption, since women are perceived to have inherently fewer capacities, they are deemed to "deserve" fewer rights. This concept is encapsulated in the notion of "deserts-based equality," where individuals are granted rights proportionate to their perceived abilities and merits. He regards this notion of justice in our modern time as highly problematic and asks if we could reread the Qurʾān and the traditions "in the light of an egalitarian notion of justice that is premised on fundamental equality between men and women".[5]

As a Muslim woman in academia, I echo the concerns of Muslim feminists (as well as some modernists) regarding the androcentric nature much of the Islamic intellectual heritage and the misogynistic interpretations of Islamic sources, which continue to have legal, social, and political implications for women to this day. I also share with them the conviction that the gender patterns in many Muslim societies, rather than reflecting a divine imperative, may function as male social constructs aimed at keeping women in a position of inferiority. Together with them I recognize the fact that Muslim women "have been kept for a long time away from public life and from the production of official Islamic knowledge", and I emphatically encourage them "to become more vocal in challenging patriarchal values and oppressive social structures that are common features of most Muslim countries".[6] Therefore, I too join forces with them in "engaging in a process of re-interpreting and re-reading the Islamic sources in order to address the question of gender (in)equality in Muslim society".[7] However, I firmly believe that in order to address gender inequality in Islam, we must confront the problem directly. What I intend to convey will be elucidated in the subsequent pages, through the critical engagement of this chapter.

Revisiting Gender and Women's Rights in Islam through a Comparative Approach?!

The contribution of El Omari under the title of "Islamic Comparative Theology and Gender: What Role Can the Feminist and Gender-Equitable Interpretation of Texts Play in Comparative Theology?" gains all the more importance when read within

4 Kadivar 2013, 213.
5 Kadivar 2013, 213.
6 Jawad 2003, 107–108.
7 Jawad 2003, 108.

this context. It proves to be a significant work not only due to its contribution to the new field of Islamic gender and feminist studies, but also because of its comparative nature. In other words, the importance of the work is twofold:

First in the field of feminist studies, since, as El Omari herself mentions, "Islamic women's and gender research are still in their early phases within Islamic theology in Germany", due to the fact that Islamic theology itself is in its nascent stages. She further notes that "women's and gender research have so far been viewed as a marginal phenomenon that the Muslim consciousness deems necessary but not as vital as the classical disciplines". She rightly emphasizes that the "gender-equitable interpretation of the Qurʾān is the top priority", which should be done by "problematizing androcentric perspectives on Islamic law, Islamic religious practice and religious education, the prophetic traditions and classical exegesis, as well as the understanding of gender roles established there". However, despite the importance of gender as a cross-sectional category, as El Omari duly mentions, "no systematization has yet been carried out of all the work mentioned".

The second importance of her work lies in its contribution to the field of comparative theology, which is also a relatively new discipline. By primarily employing a comparative perspective and methods, El Omari seeks to understand gender roles in the Qurʾānic verses concerning the creation of human beings. In doing so, she identifies overlaps between the Qurʾān, the Bible, and apocryphal texts, which are then analyzed within the context of late antiquity, with its certain ideas, motifs, images, and norms.

The major assumption of El Omari is that the Qurʾān in general and in the creation of human(s) in particular, seeks to re-functionalize late-antique intertexts/narratives through the method of "disruption", i.e. recounting widespread stories with intended narrative shifts with the aim of "disrupting the listener's expectations", as a literary device to effectively deliver its message. Applied to the particular case of this study, it means, according to El Omari, that the Qurʾān is defunctionalizing the creation story of the first two humans with the intended goal of breaking "with misogynous late-antique ideas".

While I am in full agreement with El Omari that the Qurʾān often applies the method of "disruption" to deliver its message, I part ways with her in her subsequent steps, where she seeks to demonstrate how the Qurʾān, when read intertextually, may be understood as making modifications favorable to women within the existing structures and ideas of late antiquity.

El Omari starts developing her theory by arguing that, in the Qurʾān, it is Adam (and not Eve) who has erred and was punished. It was he "who, according to verse 115, 'forgot' his obligation to God, and he who, according to verse 116, heard Satan's enticing words and strayed from the path. Hence, it is he whom God forgives in verse 122, since he is, after all, addressed as the person who initiated the wrongdo-

ing". In contrast to that, his wife, Ḥawwā, "is not reproached, although she has to join him in leaving Paradise".

Such a turn in the narrative is then interpreted by El Omari as a critique of "the misogynous image of women" dominant in late-antique texts and contexts:

> The Qurʾān thus breaks with the listener's expectations with regard not only to the creation of Adam's partner from a rib, but also to the actual focus of the story: the straying from the right path, represented symbolically by eating from the tree, is blamed on Adam's partner in Genesis 3:6. The Qurʾān therefore also omits here these two key factors for the misogynous image of women in late antiquity. Indeed, it actually reverses the image, since, in focusing on Adam, it gives the story an unexpected turn: the Qurʾān does not deal with the punishment of Adam's partner, since she is not to blame; rather, it focuses on Adam, who repents and finds God's forgiveness. Thus, the Qurʾān ignores some of the central elements that comprise a misogynous image of women, and emphasizes new and unexpected elements.

El Omari then turns to the tradition of the Qurʾānic exegesis and argues that "whereas the Qurʾān breaks with some late-antique ideas, exegetical literature certainly contains traces of biblical narratives that can support a perspective that disadvantages women". However, she still observes a noteworthy phenomenon in some of the Qurʾānic commentaries:

> Also interesting in terms of gender are the additions made by Qurṭubī and Rāzī, since both make it clear in their interpretation of this passage that, although both have sinned, the punishment for eating from the tree ultimately only impinges on Adam, whose existence is made more difficult in this life. Qurṭubī describes this difficulty as being the task of the provider that the man has due to Adam's transgression, and explicitly so with regard to his wife. . . To which Razi writes: "What might be meant here is the tedious toil of satisfying the craving for food, this concerns only the husband but not the wife. Hence it has also been handed down that Adam was sent down a red bull with which he ploughed the field, wiping the sweat from his brow.

El Omari further analyses:

> These interpretations show very clearly the classical understanding of roles in a patriarchal society, which assumes that the man is solely responsible for providing for his family. However, this sole responsibility is framed not in terms of the man's superiority over the woman, but rather in terms of a burden that he has to carry as a result of his punishment, which is an idea that can already be found in Genesis 3:17–19.

She interprets this as favorable to women and "implicitly negative" in tone in regard to men, saying: "This is interesting for the understanding of gender, since the exegetes interpret it not as favouring men, but rather as something that is implicitly negative. At the same time, they do not take up Ḥawwā's punishment within their commentary on the passage, but stress Adam's punishment alone."

In what follows I demonstrate why I disagree with El Omari's major assumption and much of her interpretation, arguing that she interprets the Qurʾānic verses on the creation of the first two humans in a way that, in my view, detaches the text from its broader textual and historical contexts, and thereby reads into the text certain modern presuppositions. Additionally, I contend that in attributing punishment to Adam, the exegetes are not "implicitly" implying something negative and unfavorable to men. Instead, they are, much like the Qurʾān itself, assigning *agency* to the male character in the story while completely depriving the female character of it.

El Omari is not alone in such an interpretation of the Qurʾān. She belongs to a tradition of Muslim feminists who have been engaging in gender-equitable argumentation in interpreting the Qurʾān. My critique, thus, extends not only to El Omari's text but also to almost all Muslim feminist thinkers within this tradition, starting with Amina Wadud and her seminal work *The Qurʾān and Woman; Rereading the Sacred Text from a Woman's Perspective (1999)*.[8] This book marks the first pro-faith attempt by a Muslim woman to provide a female-inclusive reading of the Qurʾān and has had a significant impact on the field of Muslim feminist studies.

Like El Omari, early Wadud too seeks to demonstrate the position of women from the Qurʾānic perspective, by considering what she regards as "aspects of gender equality in the Qurʾānic *Weltanschauung*".[9] Just like El Omari, she too criticizes the earlier exegetes for their biased views, which hinder their ability to accurately capture the overall intent of the Qurʾānic text. They, according to her, "ignore the basic social principles of justice, equality and common humanity"[10] which are the very essence of the Qurʾānic message. In short, she sees the problem not in the Qurʾānic conception of women, but rather the misogynistic perspectives of the exegetes. According to this view, the problem lies in the subjective choices made by Qurʾānic interpreters, rather than in the intent and content of the text itself, i.e. that the Qurʾānic *Weltanschauung* is not inherently hierarchical or patriarchal. In the Qurʾān, so goes Wadud's argumentation, there is first "no arbitrary, pre-ordained and eternal system of hierarchy"; and second, that it "does not strictly delineate the roles of women and the roles of men to such an extent as to propose only a single

8 The book was originally published under the title "Qurʾān and Woman" in 1992 with Penerbit Fajar Bakti Sdn. Bhd. in Kuala Lumpur. The book was subsequently republished with the title "Qurʾān and Woman: Rereading the Sacred Text from a Woman's Perspective" by Oxford University Press in New York in 1999.

9 Wadud 1999, 94.

10 Wadud 1999, 96.

possibility for each gender (that is, women must fulfil this role, and *only* this, while men must fulfil that role and only men *can* fulfil it)".[11]

The problem, thus, according to Wadud (and also El Omari), lies in the traditional interpretations and exegeses which are exclusively written by male authors, and as such exclude women's experiences and perspectives. She refutes a reading of the Qurʾān that reflects "the prevailing view that there are essential distinctions between men and women on issues related to the creation, ability and function in society, the ability to attain guidance" and salvation.[12] She stresses that, according to the Qurʾān, "although there are distinctions between men and women, these are not of an essential nature".[13] From this Wadud argues against the values that are given to these distinctions. These values, she argues, "portray women as weak, inferior and unfit for performing certain tasks, while men are portrayed as strong, superior, inherent leaders and caretakers who have the ability to perform the tasks that women cannot. This, she laments, has resulted in confining women to functions related to her biology only".[14]

Wadud goes even as far as propounding that if the Qurʾānic view of women would be fully and rightly understood, "Islam would become a motivating force for women's empowerment".[15]

Within this very tradition, and in direct connection to the creation narrative of the first two humans, Riffat Hassan's reinterpretation of this story is all the more important to highlight. In the mid-1980s, she spearheads a reinterpretation of the Qurʾānic creation narrative, aiming to tackle gender inequality within Muslim societies from a theological standpoint. Hassan contends that assumptions of male superiority in Islam stem from three theological misconceptions regarding the Adam and Eve story: Eve's creation from Adam's rib, her sole responsibility for humanity's fall, and the notion of woman's creation for man's benefit. Through her meticulous examination of Qurʾānic verses, Hassan concludes that the Qurʾān does not depict a hierarchical fall; both Adam and Eve share culpability for their transgression and receive divine forgiveness. Furthermore, she emphasizes that both genders are created simultaneously from the same substance, establishing them as equal partners in the act of creation.[16]

El Omari's approach to and understanding of the Qurʾān in respect to women and gender could be located within this tradition. In what follows I demonstrate

11 Wadud 1999, 63.
12 Jawad 2003, 116.
13 Jawad 2003, 116. Wadud 1999, 7.
14 Jawad 2003, 116. Wadud 1999, 7.
15 Jawad 2003, 115. Wadud 1999, xxi.
16 Hassan 1991.

how and why I strongly challenge this view, by arguing from *the Qurʾān itself.* Putting the verses of the creation of the first two humans within the context of the *Qurʾān itself*, i.e. with an eye on the Qurʾānic conception of women in general as well as the Qurʾānic cosmology, anthropology and prophetology—which, to my conviction, are extremely *andro*centric—I argue, one can well observe that the interpretations of the Qurʾānic (male) exegetes are closer to the spirit of the Qurʾān than those of El Omari, Hassan, early Wadud[17]—and all the other Muslim feminists who follow this line.

Understood in this way, I would suggest that feminist readings that approach the Qurʾān as fully egalitarian, without addressing broader questions of Qurʾānic cosmology, anthropology, and prophetology, risk projecting contemporary egalitarian commitments onto the text. No feminist reading that interprets the Qurʾān as a "feminist manifesto" can remain methodologically persuasive without engaging the question of female agency within the Qurʾānic text.

The Difficulty of a Feminist Reading of an Androcentric Text; The Challenge of Female Agency

Agency lies at the heart of feminist studies and concerns because it shifts the focus from viewing women as passive victims of oppression to recognizing them as active agents capable of making choices, shaping their lives, and driving social change. By centering agency, feminist studies highlight women's autonomy, resilience, and capacity to challenge patriarchal norms and structures. It empowers women to reclaim control over their narratives, advocate for their rights, and participate in movements for gender equality and liberation. Ultimately, understanding and promoting agency is essential for advancing feminist goals of dismantling systems of oppression and creating a more just and equitable society.[18]

Given the importance of *agency* in feminist studies and movements, it is therefore essential for any feminist interpretation of the Qurʾān to account for what may be perceived as a relative absence of explicit female agency in certain key nar-

17 I make a distinction between the early and later Wadud. The later Wadud retreats from some of her earlier positions and takes a critical approach toward some of her previous views.
18 For more information cf.: Mcnay.

ratives of the text.[19] With this in mind, one should consider reading the creation account of the first two humans.

To comprehend why the Qurʾān remains silent about the role of Ḥawwā/Eve/the first woman, particularly as an explicit second-order creation and a seducer, one should explore the Qurʾānic verses regarding women. The goal is to first understand the *Qurʾānic conception of woman*: her status in the creation (i.e. in the Qurʾānic cosmology), her role in the divine cosmic plan for humanity (illustrated in the stories of the prophets), as well as her assumed social role, and associated civil rights. If we take all the Qurʾānic verses on women into account, as well as the Qurʾānic androcentric cosmology and anthropology, the patriarchal interpretations of the exegetes may appear more textually grounded than the woman-friendly and gender-equitable reading of El Omari—and others following this line.

According to the Qurʾānic *Weltanschauung*, one could argue that not only men are presented as holding authority over *women* in creation and thus in certain rights, but also that the cosmos is described in hierarchical terms, with masculine language and symbolism occupying a dominant position. The Qurʾānic testimony to the latter is As-Ṣāffāt 149–154:

> So inquire of them, [O Muhammad], "*Does your Lord have daughters while they have sons*? Or did We create the angels as females while they were witnesses?" Unquestionably, it is out of their [invented] falsehood that they say, "Allah has begotten," and indeed, they are liars. *Has He chosen daughters over sons*?[20] What is [wrong] with you? How do you make judgement? (Q 37:149–154)

In these verses, the Qurʾān not only refutes the attribution of femaleness to angels, but also rhetorically questions if God would ever choose daughters over sons (Q 37:153), inquiring by implication that while the pagans prefer sons to daughters (Q 37:149), why would they think God would prefer daughters over sons. In another verse, the Qurʾān regards this as "an unjust division": "Is the male for you and for Him the female? That, then, is an unjust division." (Q 53:21–22). From these verses it becomes clear that within this rhetorical framework, the heavens "above"[21] cannot be portrayed as the dwelling place for any feminine beings—whether angels or

19 One of the recent contributions to the field of Islamic feminism is *Women and Gender in the Qur'an* by Celene Ibrahim, where she argues that the Qurʾān, far from being androcentric, attributes political, moral, and other forms of agency to women. For more information, see: Ibrahim 2020.

On the androcentrism of Qurʾānic language, cf.: Seker 2022, 181–195.

20 Italics added for emphasis.

21 For further insights into Qurʾānic cosmology, including the celestial arrangement with the heavens positioned above and serving as the abode for angels and God, refer to: Tabataba'ī/Mirsadri 2016.

deities. This is not an isolated occurrence—but rather a recurring motif in several passages of the Qurʾān.[22]

When this cosmological understanding is considered within the context of the legal verses, which, according to the Qurʾānic perspective, outline a clear hierarchical system of rights and privileges, the presumption of an ontological hierarchical worldview becomes even more pronounced. A clear testament to this fact in the Qurʾān is verse 34 of *surah* an-Nisāʾ (which translates to "women"):

> Men are in charge of women by [right of] what Allah has given one over the other and what they spend [for maintenance] from their wealth. So righteous women are devoutly obedient, guarding in [the husband's] absence what Allah would have them guard. But those [wives] from whom you fear arrogance—[first] advise them; [then if they persist], forsake them in bed; and [finally], strike them. But if they obey you [once more], seek no means against them. Indeed, Allah is ever Exalted and Grand (Q 4:34).

Depending on how one would interpret and translate "*qawāmmūn*" (superior, in charge, caretaker etc.) and "*faḍala*" (given priority/superiority/preference etc.), there is a host of various translations and interpretations possible. However, none can easily reconcile the apparent preference/superiority described in the verse with contemporary egalitarian commitments, particularly given the disciplinary measures mentioned therein.[23] This is arguably one of the most frequently discussed and debated Qurʾānic verses in contemporary gender discourse. One cannot interpret

22 Cf.: "Or has He daughters while you have sons?" (Q 52:39); "Then, has your Lord chosen you for [having] sons and taken from among the angels daughters? Indeed, you say a grave saying." (Q 17:40); "And they attribute to Allah daughters—exalted is He—and for them is what they desire. And when one of them is informed of [the birth of] a female, his face becomes dark, and he suppresses grief. He hides himself from the people because of the ill of which he has been informed. Should he keep it in humiliation or bury it in the ground? Unquestionably, evil is what they decide. . . And they attribute to Allah that which they dislike, and their tongues assert the lie that they will have the best [from Him]. Assuredly, they will have the Fire, and they will be [therein] neglected" (Q 16:57–62); "Or has He taken, out of what He has created, daughters and chosen you for [having] sons? And when one of them is given good tidings of that which he attributes to the Most Merciful in comparison [i.e. the birth of a baby girl], his face becomes dark, and he suppresses grief. And they have made the angels, who are servants of the Most Merciful, females. Did they witness their creation? Their testimony will be recorded, and they will be questioned." (Q 43:16–19)

All the translations are from the "Saheeh International".

23 There are other contested aspects of this verse, particularly its potential to be interpreted as endorsing or justifying disciplinary actions against women. For further discussion: Seker 2020, 45–56.

Saqib Hussain, in a recent study, proposes a new interpretation of this verse. He argues "that men are financially responsible (*qawwāmūn*) for women rather than in charge of them, that there is no requirement in the verse for women to be obedient to their husbands, and that the concept of '*nushūz*' refers to spousal infidelity rather than to a disobedient wife." He further maintains that "the complete conditions and procedure for the final stage in the punishment of the *nāshiz* wife in

the creation of the *first humans* and the Qurʾānic understanding of the *first woman* without having an eye on this verse. Muslim feminists, including early Wadud, Barlas and al-Hibiri, as well as some progressive and reform thinkers, have been trying to interpret this verse in ways that would turn it to be "less problematic". I find their attempts, however, unsatisfactory and their arguments unconvincing.[24]

This verse, among others, is one of the reasons that led Wadud to revise some of her earlier positions. She is one of the feminist thinkers who extensively engaged with the Q 4:34. Since her seminal work *Qurʾān and Woman* (1992), Wadud sought to reinterpret this verse in a manner consistent with gender equality. However, she later acknowledged the challenges in reconciling the verse's apparent endorsement of violence with her ethical convictions. In her 2006 work, *Inside the Gender Jihad*, she revised her interpretation, stating that we must have the moral audacity to "promote the idea of saying 'no' to the text".[25]

However, until her recent works, along with other prominent Muslim feminists, she continued to insist that the Qurʾānic cosmology and the human creation story were gender-neutral.[26] What such feminist readings may underestimate is that it is precisely this Qurʾānic hierarchical cosmology and *Weltanschauung* that, when read holistically, has legal and social ramifications for women. The Qurʾān assigns men the role of the "care-taker" and to women the role of the "care-receiver" (Q 4:34). It elevates men above women first ontologically, then socially and consequently in terms of legal rights, such as in a witness testimony (Q 2:282), in inheritance (Q 4:11), divorce and other matters.

This cosmological hierarchy is not just reflected in social roles and legal matters. As is expected, it is also echoed in sexual relations. According to Kecia Ali, while many Qurʾānic verses on topics like marriage, divorce, and polygamy merely reflect patriarchal social norms, certain verses concerning sexual relations between men and women are more complex. She notes that in several of these verses, *women are talked about* while *men are addressed directly*, presuming male control, without any accompanying measures intended *to limit men's actions* or *expand women's agency*. This observation suggests a more nuanced understanding

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Q 4:34, that she be 'struck,' should be taken from Q 24, where it is made clear that such matters are to be dealt with judicially rather than privately" (Hussain 2021, 92–93).

Zishan Ghaffar reads this verse in light of the broader context and interprets the implied superiority of men over women not as ontological but as functional, particularly in terms of inheritance rights. Ghaffar 2022, 76–89.

24 Cf.: Barlas 2002, 184–189; Wadud 1999, 69–79. Al-Hibri 2000–2001, 59–65. To read a critique of this view, cf.: Hidayatullah 2014, 135–136; 154–159.

25 Wadud 2006, 192.

26 Cf.: Wadud 2021. On Barlas's similar position, cf.: Barlas 2015.

of gender dynamics within the Qurʾānic discourse on sexual relations. "In a number of verses concerned with sex, women are *spoken about* and men are *spoken to* in a way that presumes male control and is unconnected with ameliorative measures intended to restrict men's scope of action or enlarge that assigned to women."[27]

Ali specifically references verses 2:187 and 2:222–223 from the Qurʾān. In verse 2:187, part of which has been highlighted by exegetes for its renowned depiction of husbands and wives as each other's mutual garments, it permits sexual intimacy between spouses on fasting nights, likening them to garments that provide mutual comfort and protection. Verse 2:222–223 instructs believers to refrain from sexual relations with women during menstruation, but once they have purified themselves, they are commanded to approach them as directed by God.[28] This passage also compares wives to fields, emphasizing the mutual responsibility within marital relationships. In full agreement with her, Hidayatullah elaborates Ali's position as follows:

> However, Ali finds the historical argument ineffective in the cases of 2:187 and 2:222–223. For her, both passages undeniably "presuppose male agency and female passivity with regard to the initiation of sex." In particular, Ali points out that, in its reference to women as the "tilth" of men, verse 2:223 "objectifies women in the most literal sense, discussing them as matter to be acted-upon" rather than "agents in their own right." Ali concedes that these passages do remind men that ultimately their "access to women's bodies is controlled by divine regulation," since God judges them based on all their actions. However, neither this reminder nor the historical contextualization method can fully explain away the androcentrism of these verses.[29]

Hidayatullah concludes:

> These verses presume in the first place that men, not women, are in control of sexual relations since they have almost unlimited sexual access to their wives and are the only active participants in determining the parameters of sexual conduct with them. According to Ali, in the case of such verses, "the Qurʾānic privileging of male sexual agency suggests that in some crucial sense the Qurʾān is a thoroughly androcentric" text.[30]

However, as Hidayatullah following Ali mentions, while androcentrism may not inherently imply misogyny, it is undeniable that the Qurʾān, through these verses, grants men sexual control over women:

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27 Ali 2006, 128. Italics added.

28 Once again, it is noteworthy that in these verses (Q 2:222–242), which ostensibly outline religious rules for *women*, the commands are addressed to *men*. This observation highlights the consistent addressing of men as recipients of divine commandments, even when these directives regulate women's conduct.

29 Hidayatullah 2014, 134.

30 Hidayatullah 2014, 135

As it becomes evident, in none of the key matters—i.e. social roles, legal issues, sexual relations etc.—does the Qur'ān explicitly challenge the patriarchal structures of its milieu. Why should it do so, then, when it comes to the creation story? And I am convinced that *it does not*.[31]

Therefore, in what follows I demonstrate in detail why I disagree with El Omari (early Amina Wadud, Riffat Hassan and others within this interpretive trajectory), in her woman/gender-friendly reading of the Qur'ān. To do so, I will be arguing solely *from the Qur'ān itself*. This will be done not only within the framework of the *Qur'ānic cosmology and anthropology*, but also based on *the Qur'ānic creation account itself*, which could only be understood within the context of the *Qur'ānic prophetology*.

In interpreting the Qur'ānic creation account of the first two humans, El Omari does not sufficiently situate this narrative within the broader Qur'ānic *Welanschauung* and does not engage all relevant verses pertaining to the creation account.

Important to the Qur'ānic conception of woman and in a very direct connection with the creation story are the following verses, with a relatively similar content, which were not mentioned in El Omari's study. One is the very first verse of *surah* an-Nisā':

> O mankind, fear your Lord, who created you from one soul and created from it its mate and dispersed from both of them many men and women (Q 4:1).

With almost similar wording and content Q 7:189:

> It is He who created you from one soul and created from it its mate that he might dwell in security with her.

And also Q 39:6:

> He created you from one soul. Then He made from it its mate, and He produced for you from the grazing livestock eight mates. He creates you in the wombs of your mothers, creation after creation, within three darknesses.

Depending on how one would translate these verses, there are various possibilities of interpretation, including an implication of the secondary-order nature of the creation of woman. One can argue that the verse is ambiguous. God created the first human couple and from that one created the other. Both are created from the same being/soul; however, one of them has the primary creation and the other the secondary. Due to the ambiguity of the verses, one might on first reading be tempted

31 Hidayatullah 2014, 134.

to interpret this Qurʾānic silence in explicitly naming the gender of the first created human "positively", or to follow El Omari, as a critique of the misogynistic context of late antiquity. However, such an interpretation proves to be flawed again, when one reads these verses within the broader context of the Qurʾānic creation story of the first two humans.

Before analyzing these verses, it is important to ask why El Omari did not consider them in her analysis—with the exception of a very cursory mention of verse 4:1—despite their direct relevance to the creation of the first humans. I argue that they can well be used as a very strong counterargument to El Omari's assumption regarding the distinction the Qurʾān makes between the first human and Adam as well as his partner—which according to El Omari, "allows us to deduce a hierarchy-less creation of both sexes from a common origin". Her argumentation goes on as follows:

> In this way, the Qurʾān breaks with the idea of the creation of woman from Adam's rib, which was familiar in the context of late antiquity, and defuses the story in this respect. This interpretation of an equal creation of both sexes and the non-thematization of the idea of a hierarchical creation is additionally supported by the fact that on the one hand the Qurʾān does not take up the function of the woman as Adam's helper mentioned in Genesis 2, while on the other breaking the narrative sequence of Genesis 2 in that both actors are already present before entering Paradise, whereas in Genesis 2:20ff. the woman is only created after Adam feels lonely in Paradise.

El Omari mentions the verses on the creation of the "nameless first human" (Q 15:26–42)— based on which she leads all her gender-equitable argumentation—but does not include the three above-mentioned verses of the creation of the nameless *first two* humans, in which the secondary creation of one from the other is illustrated—and can thus be used as a very strong counterargument to her assumption.

Taking all the verses on the creation of the *first two humans* into account, I argue that the narrative structure strongly suggests that the first created human is the man/Adam. In order to make this point clear, let's read once again the major scene of the creation of the first two humans, depicted mainly in two chapters. God announces to the angels that He is going to set a viceroy on the Earth:

> And [mention, O Muhammad], when your Lord said to the angels, "Indeed, I will make upon the earth a successive authority". They said, "Will You place upon it one who causes corruption therein and sheds blood, while we declare Your praise and sanctify You?" Allah said, "Indeed, I know that which you do not know" (Q 2: 30).

So far there is no gender attributed to this "successive authority" (*khalīfa*). However, as the narrative develops the male character of the story is presented, substantiating the fact that the unnamed, ungendered "first created human" of the previ-

ously mentioned verses was indeed the man/Adam. The crux of my argument is as follows: In the major creation accounts, depicted in Q 2:30–37 and Q 7:19–28, it is the man/Adam who is central and the major role-player—from the moment of creation to the moment of punishment;

1. He is the one of the two who is mentioned by name (i.e. Adam). The woman of the creation story has no name in the Qur'ān; the Qur'ānic Eve is nameless and act-less, therefore, without an identity.

2. It is Adam to whom God teaches the names:
"And He taught Adam the names—all of them. Then He showed them to the angels and said, 'Inform Me of the names of these, if you are truthful'" (Q 2:31).

3. It is to him that the angels prostate:
"And [mention] when We said to the angels, 'Prostrate before Adam'; so they prostrated, except for Iblees [i.e. Satan]. He refused and was arrogant and became of the disbelievers" (Q 2:34).

4. It is Adam whom God addresses and finds worthy of speech, even when He is giving commands to *both* Adam and Eve—Ḥawwā, the woman of the narrative, is not only not mentioned by her name in the Qur'ān, she is also not even once addressed by God. She is mentioned by her attribution to the man/Adam, as *his* wife:
"And We said, 'O Adam, dwell, you and your wife, in Paradise and eat therefrom in [ease and] abundance from wherever you will. But do not approach this tree, lest you be among the wrongdoers'" (Q 2:35).
And "O Adam, dwell, you and your wife, in Paradise and eat from wherever you will but do not approach this tree, lest you be among the wrongdoers" (Q 7:19).

5. However, when it comes to committing sin and going through punishment, it is *both* of them who transgress and it is *both* of them who are punished:
"But Satan caused them to slip out of it and removed them from that [condition] in which they had been. And We said, 'Go down, [all of you], as enemies to one another, and you will have upon the earth a place of settlement and provision for a time'" (Q 2:36).
But Satan whispered to them to make apparent to them that which was concealed from them of their private parts. He said, "Your Lord did not forbid you this tree except that you become angels or become of the immortal" (Q 7:20).
"So, he made them fall, through deception. And when they tasted of the tree, their private parts became apparent to them, and they began to fasten together over themselves from the leaves of Paradise. And their Lord called to them, 'Did I not forbid you from that tree and tell you that Satan is to you a clear enemy?' They said,

‘Our Lord, we have wronged ourselves, and if You do not forgive us and have mercy upon us, we will surely be among the losers’. [Allah] said, ‘Descend, being to one another enemies. And for you on the earth is a place of settlement and enjoyment for a time’. He said, ‘Therein you will live, and therein you will die, and from it you will be brought forth’” (Q 7:22–25).

6. After the act of transgression, it is again Adam who comes to the fore, and he alone is the one who is taught how to repent, and he alone is the one who does so, and is accordingly forgiven:
“Then Adam received from his Lord [some] words, and He accepted his repentance. Indeed, it is He who is the Accepting of repentance, the Merciful” (Q 2:37).
And not only is he accepted in his act of repentance but is also “chosen” (perhaps from among the two of them) by God to be guided to the right path.
“Then his Lord chose him and turned to him in forgiveness and guided [him]” (Q 20:122).
This verse could imply a deprivation of *moral agency* for women, especially when read together with the subsequent verse:
“[Allah] said, ‘Descend from Paradise—all, [your descendants] being enemies to one another. And if there should come to you guidance from Me—then whoever follows My guidance will neither go astray [in the world] nor suffer [in the Hereafter]’”. (Q 20:123).
Upon reading these two verses together, one is prompted to question whether men possess even a higher *moral agency* and *moral superiority* to women, given that, according to the Qurʾānic story of creation, it is Adam/the man alone who is “chosen” for guidance.

7. Directly after the act of transgression and descent to the earth, in the following verses in chapter seven, it is then again Adam who as the *father of whole humanity*, and humanity as *children of Adam* (and not of Eve), are addressed in one breath:
“O children of Adam, We have bestowed upon you clothing to conceal your private parts and as adornment. But the clothing of righteousness—that is best. That is from the signs of Allah that perhaps they will remember” (Q 7:26).
“O children of Adam, let not Satan tempt you as he removed your parents from Paradise, stripping them of their clothing to show them their private parts. Indeed, he sees you, he and his tribe, from where you do not see them. Indeed, We have made the devils allies to those who do not believe” (Q 7: 27).

8. And the verse goes on by implying that it is the “fathers/men” (and not the mothers/women) who would be following the lead of Adam in committing sin:

"And when they commit an immorality, they say, 'We found our fathers doing it, and Allah has ordered us to do it'. Say, 'Indeed, Allah does not order immorality. Do you say about Allah that which you do not know?'" (Q 7: 28)

Since the whole story revolves around Adam/the male character of the narrative, it appears likely that he is portrayed as the primary created figure. It also comes as no surprise that it is he who should, thus, be tested, it is he who should be led astray, it is he who should be blamed for his sin, and it is, at the end, he who should be punished. And (not)surprisingly enough, just in the two negative acts of transgression and punishment, Eve is also mentioned—of course as "the accomplice" in wrong-doing. This should not be interpreted as exonerating Eve from wrongdoing, as El Omari suggests. Rather, the narrative structure could be read as centering male agency while rendering the female figure comparatively marginal. Throughout the story, Adam is depicted as the principal actor—the subject of angelic prostration, teacher of the names, dialogue partner with God—while the woman enters the narrative primarily at the point of shared transgression. Moreover, the relative absence of Eve as a named and individually addressed character in the Qur'ānic creation story, when read within the broader Qur'ānic cosmology and anthropology, may be interpreted as indicating limited narrative agency assigned to the female figure. Seen in this light, the Qur'ānic account appears thoroughly androcentric in narrative focus, though not necessarily misogynistic in explicit theological intent.

Adam is the first human created, Adam instructs the angels, Adam is the addressee of the divine message, Adam is the dialogue partner of God, Adam is acting as an (moral) *agent* (even if in an act of transgression) and is reproached as an *agent* and punished accordingly. Adam is the sole character of the story with a name and therefore identity. Adam is regarded as the *father of whole humanity* and *humanity as his children*. It is Adam who is created as the first human, is chosen, named, trained by God, teaches angels the names, is the *subject* of prostration by them, the *subject* of divine trial, the *subject* of temptation by Satan, the *subject* of an act of transgression, and accordingly the *subject* of punishment, repentance and a guidance, as to finally be set as an example to the whole humanity, to the "children of Adam"! Eve plays merely the supporting/secondary role of the accomplice just in the act of transgression—and not even repentance and guidance! The sole *agent* of the story, the sole role-player is Adam. Seen as such, how can one interpret such a story as woman-friendly and critical of the misogynistic mode of late-antique society and literature?! The biblical Eve is at least an *agent* (the *subject* of an act), even if as the "bad(wo)man" of the story, i.e. the seducer.

Seen as such, both texts (the Bible and the Qurʾān) may be described as androcentric, each reflecting the patriarchal structures and symbolic systems of their respective historical contexts. For a woman to be named by her own name, without the need of being attributed to a man, to be able to take an active role of an *agent* (even if as the agent of a *mis*deed, i.e. seduction) and to be able to be a prophetess are themes and roles that are accepted for women by the Bible. While it seems not to be the case for the Qurʾān. Through an inter-textual study, such facts come to the light—and not the misogynistic nature of the one and gender-equitable nature of the other, as El Omari suggests. Therefore, her critique of the classical exegesis requires further qualification, particularly where she argues that the Qurʾān decisively breaks with late-antique gender assumptions. Both the Qurʾān and the Bible present gendered hierarchies shaped by their socio-historical contexts, cultural norms, and theological frameworks.

The Creation Account at the Service of the Qurʾānic Prophetology

The question can be raised, then, as to the intent of the Qurʾān in narrating the creation story in its unique way, if not to critique the misogynistic mode of late antiquity. In addressing this question, I echo El Omari's insight that the Qurʾān seeks to fulfil its didactic purposes through its narratives. The story of the creation of the first two humans serves this specific didactic purpose; it contributes to the development of the Qurʾānic *androcentric* prophetology. It is for *this* reason that, in recounting the story of the first two humans, "the Qurʾān does not place their gender at the centre of the event"—as is the case in the Bible—and not because the Qurʾān seeks to criticize the biblical "misogynous image of women". Understood as such, I argue that the following conclusion of El Omari requires reconsideration:

> The Qurʾān therefore also omits here these two key factors for the misogynous image of women in late antiquity. Indeed, it actually reverses the image, since, in focusing on Adam, it gives the story an unexpected turn: the Qurʾān does not deal with the punishment of Adam's partner, since she is not to blame; rather, it focuses on Adam, who repents and finds God's forgiveness. Thus, the Qurʾān ignores some of the central elements that comprise a misogynous image of women, and emphasizes new and unexpected elements.

As already mentioned, the fact that Eve/the woman is not regarded as the major role-player in the story—i.e. as the one who is tried by God and reproached and punished—should not be interpreted positively. One should read that within the

broad context of the Qurʾānic conception of woman and, all the more, the Qurʾānic androcentric anthropology and prophetology. In the Qurʾān *prophethood* is presented exclusively as a male vocation. *Women* appear primarily in supporting roles within these narratives. Thus, it is not surprising that in the creation story of (hu)man, Adam functions as the primary role-player; it is he who is tried, and it is he who is punished. Eve/the woman remains confined to a secondary narrative position, appearing explicitly mainly in the context of transgression and shared punishment. This motif recurs in other Qurʾānic prophetic narratives, in which male prophets occupy the central position and female figures appear in relation to them. One may therefore interpret the limited narrative role of Eve/Ḥawwā as indicative of constrained agency assigned to the female character—she is not individually addressed, named, or singled out for trial or reward, but remains narratively implicit.

The Qurʾānic prophetic narratives center on male prophets who undergo trials to demonstrate their faith; within this narrative framework, female figures appear in secondary roles. Not even Mary could be considered as a major role-player, since she is not regarded as a prophet(ess) by the Qurʾān. However important her character might seem to be in the Qurʾān (maybe due to the number of verses dedicated to her and her being the sole woman whose name is mentioned in the Qurʾān) she remains merely the "bearer" of the "Word of God", not a "prophet(ess)". Even when the Qurʾān describes her as "chosen," it specifies that she is chosen above women, not above humanity as a whole (Q 3:42):

> And remember when the angels said, "O Mary! Surely Allah has selected you, purified you, and chosen you *over all women* of the world" (Q 3:42).

One can say that the importance of Mary does not lie in her character and person but in her being *the bearer of the masculine word of God*, as the supporting actor that sets the stage for the appearance of the leading actor (the male hero and agent). Other Qurʾānic female figures frequently cited in feminist scholarship as evidence of women's significance are, with the exception of Mary, unnamed and identified relationally (e.g., Moses' sister, Moses' mother, Pharoh's wife, Abraham's wife, Noah's wife, Job's wife, Lot's wife, Lot's daughters, Zachariah's wife, Joseph's mother, Solomon's mother, the Queen of Shebā, etc.). They are typically defined in relation to male figures, which shapes their narrative function. To argue, that figures such as Mary or Moses' mother are implicitly prophetesses because they receive revelation remains debated, since the Qurʾān does not explicitly confer prophetic status upon them. The reception of revelation alone does not automatically entail prophethood; the Qurʾān also uses the term *waḥy* in other contexts (e.g., Q 16:68).

The Qurʾānic prophetology can thus be described as structurally androcentric. A recurring principle is that prophets undergo divine trials, demonstrating obedience and faith; their responses determine reward or consequence. These narratives serve as paradigmatic models for humanity. Similarly, in the creation narrative, Adam is foregrounded as the primary subject of trial, repentance, and guidance. The absence of Eve/Ḥawwāʾs name and the narrative focus on Adam reinforce this structural emphasis.

Thus, in order to interpret the verses on the creation of (hu)man, one should read them within the wider context of the Qurʾānic conception of woman and man, as well as its cosmology, anthropology and prophetology—which may be described androcentric. The Qurʾān itself should also be read within its broader historical context, namely the patriarchal structures of late-antique Arabia, in which women were largely defined relationally within male-centered social frameworks.

Interpretations that do not sufficiently engage these textual and historical contexts risk projecting contemporary concerns onto a premodern text. This methodological concern becomes particularly relevant when employing a historical-literary approach, as El Omari proposes.

Therefore, if we read the Qurʾānic creation account within the broader context of its cosmology, anthropology and prophetology, one may argue that traditional exegetes' interpretations align more closely with certain structural features of the Qurʾānic discourse than do some modern egalitarian readings. In this sense, the Qurʾān may be understood as reflecting hierarchical assumptions regarding gender comparable to those found in other late-antique texts.

As such, I suggested that in order to understand why the Qurʾān does not *explicitly* use the biblical misogynistic themes of the creation story of the first two humans, we need to look at the *Qurʾānic conception of woman* as well as the *Qurʾānic cosmology, anthropology and prophetology* (i.e. *Qurʾānic metaphysics*) — the so-called intra-textual method, which is not fully applied by El Omari. And these two *within their historical context*. Only by reading these verses *within their textual and historical contexts* can we adequately interpret the presence and absence of particular motifs. Interpretations that neglect these dimensions risk anachronistic projection.

Concluding Remarks: Towards a Gender-Equitable Reading of Islam, through a Comparative Approach

El Omari's contribution is important since it brings to our attention the important fact that "the discipline of Islamic theology should address the question of women and gender, with the aim of creating awareness of the topic and establishing women and gender research that counteracts patriarchal ideas and structures within Islam", and that this important task needs to be examined from different perspectives, i.e. textual, systematic-theological, historical, and practical. She also duly argues that a comparative perspective on gender issues is essential for various reasons. First because the genesis of Islam, the Qurʾān, and later traditions and norms are shaped by many other traditions, religions, and cultures, and thus to understand gender roles today, one needs to have a comparative perspective. And second, because through an intertextual comparison, one can observe many overlaps between the Qurʾān, the Bible, and apocryphal texts. This can apply, according to her, to female figures in the Qurʾān, but also to certain ideas, motifs, images, and norms. While I am in agreement with El Omari regarding the importance of comparative and intertextual approaches, I part ways with her in her subsequent steps, in which she seeks to demonstrates how the Qurʾān, read intertextually, may be understood as introducing modifications favorable to women within the structures and ideas of late antiquity. In this contribution I have demonstrated the points on which I agree and those on which I diverge from her position.

El Omari's approach, as was shown, illustrates many parallels with early Wadud's approach, and other Muslim feminists of this tradition (mostly in the first generation). I explained why I find this line of interpretation problematic and expressed my conviction that the Qurʾān itself reflects a hierarchical and androcentric metaphysical framework, as depicted in its cosmology, anthropology, and prophetology. Based on that premise, I proposed that feminist interpreters who aim to develop egalitarian readings of the Qurʾān must address the question of the relative absence of explicit female agency within key narratives of the text.

I share with Muslim feminists the concern and interest in challenging and questioning the androcentric and patriarchal make-up of the Islamic tradition. Also, at the heart of my academic endeavor lies the attempt to come up with an egalitarian reading of Islam. However, I have issues with selective readings of the Qurʾān, *for our own purposes*. We cannot resolve patriarchal interpretations of Islam solely by attributing them to male thinkers, including Qurʾānic exegetes, jurists, philosophers, and theologians. Presenting the Qurʾān itself as inherently egalitarian risks oversimplifying the complexity of the text. By selectively focusing on certain verses

while neglecting broader structural elements (cosmology, anthropology, prophetology), we risk instrumentalizing the text in ways that do not fully engage its internal tensions.

What some Muslim feminist readings may underestimate is that the structural make-up of the Qurʾānic worldview is hierarchical and androcentric, placing male figures at the center of its cosmological and prophetic narratives. Together with Aysha Hidayatullah and Kecia Ali, I argue that interpretations that systematically avoid challenging verses while emphasizing egalitarian ones risk inconsistency with the holistic reading they themselves advocate.[32]

In this critical survey I have argued that the issue lies not only at the level of legal or functional inequality, but also at the level of ontology and anthropology, where hierarchical structures appear embedded in the Qurʾānic worldview. It is not merely functional inequality that leads to ontological inequality; rather, the structural hierarchy of the Qurʾānic worldview may itself underlie functional distinctions.

Hidayatullah elaborates the former position as follows:

> At this point some may argue—as a last resort to preserve the claim of the Qurʾān's sexual equality—that what we have discovered is only a possible *functional* inequality between the sexes in the Qurʾān rather than an ontological inequality (an inequality of being), and that the latter is far more important than the former. It is certainly true that feminist work on the Qurʾān has produced some powerful arguments for the moral ontological equality of the sexes.[33]

She then states her critique and position, saying:

> However, one stubborn challenge to the notion of the ontological equality of the sexes remains: the possibility that in some cases the functional inequality of men and women in the Qurʾān perhaps cannot exist *except as an effect of ontological inequality* . . . If, according to our contemporary standards of justice, the Qurʾān may sometimes outline functional inequalities related to being, then we must concede that ontological inequalities might also come with them. This relationship of functional inequality to ontological inequality poses a formidable challenge to arguments for the ontological equality of men and women.[34]

Through this critical reassessment, I presented a full endorsement of Hidayatullah's position, i.e. that the *functional inequalities* in the Qurʾān are indicative of the very *ontological inequality* inherent to the Qurʾānic hierarchical *Weltanschauung*, reflected in its androcentric anthropology and prophetology.

32 Hidayatullah 2014, 135.
33 Hidayatullah 2014, 170.
34 Hidayatullah 2014, 171.

Androcentric hierarchies inherent to *classical theism* are strongly criticized by Christian *neo-classical theism* as well as eco-feminism, among others.[35] Following this line, I argue that if we too want to seriously address new questions and issues, including gender equality and women's rights, it is these androcentric hierarchies that we first need to criticize. It is in this endeavor that a comparative approach can be instrumental, helping us enrich our understanding of our own tradition, which in turn can lead to a change of perspective. In regard to the main topic surveyed here, for example, Christian eco-theologians of the last five decades, including Sallie McFague (d. 2019) and Catherine Keller, "have been pointed in their critiques of the metaphysical hierarchies lying at the foundations of Christian thought".[36] According to them, the idea of a transcendent God, lying beyond the created world, motivates this understanding: "Traditional cosmological mappings place God at the top of a metaphysical ladder that descends to the human male as God's primary 'image,' then down to the human female, animals, plants, and, finally, inanimate matter".[37] These Christian eco-feminist insights can help us properly address the same problem in our tradition. Their methods and questions as well as solutions to the challenge can inspire us in our critical approach to our tradition. Comparative theology can provide valuable means and tools in this context. These thinkers have demonstrated an ability to remain loyal to their own tradition and holy scripture while also being highly critical of it. They seek to delve deeply into the roots of the problem, particularly the hierarchical and androcentric mindsets underlying their religious tradition and sacred scripture.

It is high time that Muslim feminists realize that in order to seriously question and challenge the hierarchical and androcentric make-up of the Islamic tradition, we should be first ready to courageously face the issue head-on. We should recognize first that the *Qur'ān itself* encourages an androcentric and hierarchical ontology, which is then reflected in the Islamic intellectual as well as legal tradition. Only after this recognition can we address and face the problem seriously, and can, then accordingly, seek to resolve it. Anything less than this approach, which involves selectively cherry-picking and interpreting certain verses to fit our feminist objectives, would only scratch the surface of the problem. Ultimately, it would amount to sidestepping rather than resolving the issue, leading us to settle for a superficial, pseudo-solution. In full alignment with Hidayatullah, I present this critical assessment as an attempt to demonstrate to whatever dead ends such a selective feminist reading of the Qur'ān may lead, "with the ultimate aim of

35 Cf.: Keller 2003, Keller 2015, Mcfague 1987, Mcfague 2021.
36 Higgins 2001, 252.
37 Higgins 2001, 252.

opening new avenues in their place. Rather than fearing changes that lead to the undoing of fundamental tenets, we might find in the discovery of certain limitations an exciting impetus to transform."[38]

On this journey, a comparative approach can be immensely beneficial. We can leverage the methods and tools used by Christian feminists and eco-feminists to identify, confront, and address these challenges effectively. The Qurʾān possesses sufficient potential in this regard. Nonetheless, we must not overlook the fact that the text remains a product of its historical and cultural context, borrowing the language and worldview of its time, turning its ontology, thus, inherently androcentric. Therefore, to uncover and cultivate a feminist interpretation of the Qurʾān, as well as to discern any potential or possibility for a critique of patriarchal societal structures, we must delve into the nuances and subtleties of the text—i.e. we have to try to "read between the lines". A structurally hierarchical ontology does not preclude localized narrative gestures that unsettle certain patriarchal assumptions. Such narrative tensions may provide resources for developing more egalitarian readings of the Qurʾān. This is what, for example, Zahra Moballegh is seeking to do in her studies in recent years. In her lecture "Veiled Women Unveiling God: Understanding the Qurʾān through its Women Characters" (2018), for example, Moballegh presents an instance where she identifies an implicit and subtle Qurʾānic critique of patriarchal structures. This she finds in the story of Mary's mother,[39] who in Christian sources is called Anne or Hannah. The Qurʾānic narrative tells the story of a pregnant mother,

> sitting in a private place, praying and asking God that her child be a son. She tells God that she will dedicate her child to God. Unbelievably, the tone of the words, and drawling manner of phrases in this fragment transmit her sense of solicitude and suffering. It seems that she has escaped here from people's offensive words. In the next act, after she gives birth to the child, she finds out that her child is a girl. She complains [to] God. . . And suddenly the narrator, who has been absent from the story, as the third-person narrator, enters the narrative and vigorously states that male does not match for female. Then Anne, still speaking with God, names her daughter Maryam and prays for her and her offspring [that they] be secured from Satan. This time God accepts this request.

38 Hidayatullah 2014, 149.

39 Moballegh is referring to Q 3:36: "But when she delivered her, she said, 'My Lord, I have delivered a female'. And Allah was most knowing of what she delivered, 'And the male is not like the female. And I have named her Mary, and I seek refuge for her in You and [for] her descendants from Satan, the expelled [from the mercy of Allah]'". The sentence "'And the male is not like the female" is attributed in some translations and/or interpretations to Mary's mother. Moballegh, however, ascribes that to the narrator of the story.

Moballegh further analyses the implicit message of this narrative, by arguing that the *divine act* —however not the direct and explicit *divine speech*—is a clear indication of the Qurʾānic critique of the patriarchal structures of the society, i.e. the fact that despite the wish and prayer of Mary's mother to have a son—due to perhaps the patriarchal expectations of the society— God gives her a daughter. Moballegh regards these elements in the story—from the gloomy setting to the indignant statement she attributes to the narrator, i.e. "And the male is not like the female"—as clear indications to the critical approach of the Qurʾānic narrator towards the patriarchal structures of the society, in which the Qurʾān is revealed: "Every audience of this narrative. . . can figure out how the narrator has applied different strategies to condemn androcentrism and how it has declared its position towards sexism".[40]

One can also find elements of critique in the later story of Mary. In the Qurʾān, Mary's person and biography emerge as a powerful critique of patriarchal society and its structures. She challenges social norms and taboos by entering and residing at the temple, and by serving in an otherwise exclusively masculine setting.

In this respect, Muna Tatari and Klaus von Stosch made a strong argument in their recent book *Prophetin, Jungfrau, Mutter: Maria im Islam und Christentum.* They argue that since the Qurʾān attributes significant spiritual and religious qualities to Mary, which are characteristic of a prophet, she is presented as a prophetess in the Qurʾān, even if not directly and explicitly.[41]

Therefore, it seems the Qurʾān has enough potential to help us develop critical readings of patriarchy, and as such can be instrumental for Muslim feminists in criticizing the patriarchal make-up of the Islamic tradition. One might wonder why I criticized El Omari's feminist interpretation of the Qurʾān while endorsing Moballegh's. The disparity between El Omari's and Moballegh's approaches lies in their methodologies rather than their feminist perspectives. El Omari interprets the Qurʾānic narratives of the creation of the first humans primarily as a critique of the misogynistic tendencies present in late-antique texts, including the Bible. In my analysis, I have shown that attributing gender concerns to the Qurʾān involves projecting onto it a perspective that it does not inherently hold. Furthermore, I argued that the primary objective of these narratives is to serve the Qurʾānic prophetology, rather than to address gender issues. Moballegh employs a different methodology in her approach. In her analysis of the narrative of the birth of Maryam, she does not impose a modern concept of gender equality onto the Qurʾān. Instead, she suggests that the narrator's intended objective, in depicting Mary's mother as the

40 Moballegh 2018.
41 Tatari/Von Stosch 2021.

primary character, and the divine act of granting her a female child, despite her wish for a male, could be read as a critique of patriarchal social structures.

My intention was simply to underscore the importance of understanding the Qurʾān within its historical context and the limitations of imposing contemporary feminist perspectives onto the text. To presume that the Qurʾān shares our contemporary understanding of women is as implausible as asserting it adheres to modern cosmology and anthropology. The Qurʾān, being a product of its historical and cultural milieu, is inevitably influenced by its context. As Amina Wadud has similarly acknowledged, reinterpretation alone may not always resolve morally troubling aspects of the Qurʾānic text, such as its regulation—rather than abolition—of slavery or the disciplinary framework of Q 4:34. Drawing on Islamic intellectual history, she argues that it is neither un-Islamic nor heretical to "say no" to certain literal applications while remaining committed to the Qurʾān's broader ethical trajectory. For her, fidelity to revelation may at times require a historically conscious resistance to specific enactments of the text.[42]

Hence, I would argue, the Qurʾān holds significant potential to facilitate the development of patriarchy-critical readings, serving as a valuable tool for Muslim feminists to critique the patriarchal elements within the Islamic tradition. However, it is crucial not to overlook the fact that the Qurʾān, as a cultural and historical product, reflects the *Weltanschauung* of its age and time—which, like all classical, premodern worldviews, is highly hierarchical and androcentric in nature. This should not necessarily be understood as counter to the divine nature of the text, since no worldview has superiority over the other. They are just the systematic ways of envisioning the world, based on the science, value systems etc. of their respective times. Today, new ethical commitments invite the development of new interpretive frameworks. This may entail critically re-evaluating aspects of the Qurʾānic *Weltanschauung* in light of contemporary values. Imposing contemporary standards uncritically onto a premodern text is methodologically problematic. As Hidayatullah rightly puts it:

> When scholars of feminist *tafsir* have come across portions of the Qurʾānic text that have not easily yielded meanings in line with contemporary notions of gender equality, we often forget that our notions of equality are guided by historical values of our own that we bring to the text; we have perhaps become blind to the historicity of our feminist viewpoints in encountering those instances when the Qurʾān does not easily conform to our understandings of gender egalitarianism. . . I offer this observation in the service of the larger argument: one significant reason why the Qurʾān may not yield meanings that fully accord with our understanding of

42 Wadud 2006, 192.

> justice is that we are demanding a standard of sexual equality from the Qur'ān that is specific to us and perhaps not reflected in the Qur'ān.[43]

In short, Islamic feminism must take seriously the hierarchical dimensions of the Qur'ānic worldview if it aims to challenge patriarchy effectively. Any approach that overlooks these structural features risks reproducing selective reading strategies similar to those it critiques. The first step in addressing a complex issue is acknowledging its depth. Only then can constructive and transformative engagement begin. Only after this acknowledgment can the subsequent step be taken, namely to embark on finding a solution to rectify it. This contribution is offered as a call for such critical engagement. I implore Muslim feminist thinkers to demonstrate intellectual courage, in the name (and for the sake) of both the Qur'ān, and women.[44]

43 Hidayatullah 2014, 151–152.

44 I am fully aware that this critical approach is a very risky enterprise. It is why I would like to end it with Aysha Hidayatullah's candid words of concern in the preface of her book *Feminist Edges of the Qur'ān* with which I am in full agreement:

> I am all too aware of the tremendous risks associated with airing my critiques of feminist Qur'ānic interpretation: creating the impression of undermining the work that has lent hope to so many Muslim women, and betraying the thinkers to whom I am deeply indebted for my intellectual framing; undercutting the courageous work of activists all over the world who have fought for real-life gender reform on the basis of feminist interpretations of the Qur'ān, using them to create urgent and vital improvement in the everyday realities of Muslim women; and supplying bigoted opponents of Islam with more fodder to fuel anti-Islam propaganda based on the ideological premise that Islam is irreconcilably misogynistic—making available to them criticisms they may twist into weapons to further their racist assault on Muslims, buttressed by the imperialist campaigns of American and European state actors capitalizing on widespread fears of Islam. During the course of revising my manuscript, I feared that there were more reasons not to publish my critical insights than reasons in favor of proceeding.
>
> In the end, only one reason to publish my criticisms outweighed all the reasons not to: the conviction that only complete intellectual honesty can ensure the long-term survival of feminist Qur'ānic interpretation—even if it is called something entirely different one day; even if it transforms into something unrecognizable to us. If, as I have found, feminist Qur'ānic interpretation has the tools of its own destruction already built into it, I am convinced that the way to keep moving forward is to trace the trajectory of its own undoing to its logical end, to understand its undoing in order to forge another path, and to examine the nature of its weaknesses in order to rebuild it in stronger ways. (ix–x).

Bibliography

Al-Hibri, Azizah Yahia (2000–2001), "Muslim Women's Rights in the Global Village: Challenges and Opportunities", *Journal of Law and Religion*, Vol. 15, No. ½, 37–66.

Ali, Kecia (2006), *Sexual Ethics and Islam: Feminist Reflections on Qurʾān, Hadith, and Jurisprudence*. New York: Oxford University Press.

Barlas, Asma (2002), *Believing Women in Islam: Unreading Patriarchal Interpretations of the Qurʾān*, Austin: University of Texas Press.

Barlas, Asma (2015), "Islam," in: *The Oxford Handbook of Theology, Sexuality, and Gender*, edited by Adrian Thatcher, Oxford: Oxford University Press, 2015, 432–449.

Ghaffar, Zishan (2022), "Kanon im Kanon? Herausforderungen einer koranischen Theologie", in: Klaus von Stosch, Christiane Tietz, eds., *Normativität Heiliger Schriften in Judentum, Christentum und Islam*, Tübingen, Mohr Siebeck, 67–91.

Hassan, Riffat (1991), "The Issue of Woman-Man Equality in the Islamic Tradition", in: Leonard Grob, Riffat Hassan, and Haim Gordon, eds., *Women's and Men's Liberation: Testimonies of Spirit*, New York: Greenwood Press, 65–82.

Hidayatullah, Aysha (2014), *Feminist Edges of the Qurʾān*, New York: Oxford University Press.

Higgins, Luke (2007), "Toward a Deleuze-Guattarian micropneumatology of spirit-dust", in: Laurel Kearns and Catherine Keller, eds., *Ecospirit: Religion, Philosophy, and the Earth*, New York: Fordham University Press.

Hussain, Saqib (2021), "The Bitter Lot of the Rebellious Wife: Hierarchy, Obedience, and Punishment in Q. 4:34", *Journal of Qur'anic Studies*, 23(2), pp. 66–111.

Ibrahim, Celene (2020), *Women and Gender in the Qur'an*, New York: Oxford University Press.

Jawad, Haifaa (2003), "Muslim Feminism: A Case Study of Amina Wadud's Qurʾān and Woman", *Islamic Studies*, Vol. 42, No. 1, 107–125.

Kadivar, Mohsen (2013), "Revisiting women's rights in Islam: 'Egalitarian justice' in lieu of 'deserts-based justice'", in: Ziba Mir-Hosseini, Lena Larsen, Christian Moe, and Kari Vogt, ed., *Gender and Equality in Muslim Family Law: Justice and Ethics in the Islamic Legal Tradition*, London and New York: I.B. Tauris, 213–234.

Keller, Catherine (2003), *Face of the Deep: A Theology of Becoming*, London: Routledge.

Keller, Catherine (2015), *Cloud of the Impossible: Negative Theology and Planetary Entanglement*, New York: Columbia University Press.

Mcfague, Sallie (1987), *Models of God: Theology for an Ecological, Nuclear Age*, Philadelphia: Fortress Press.

Mcfague, Sallie (2021), *A New Climate for Christology: Kenosis, Climate Change, and Befriending Nature*, Minneapolis: Fortress Press.

Mcnay, Lois (2000), *Gender and Agency: Reconfiguring the Subject in Feminist and Social Theory*, Cambridge: Polity Press.

Mir-Hosseini, Ziba, Lena Larsen, Christian Moe, and Kari Vogt, ed., (2013), *Gender and Equality in Muslim Family Law Justice and Ethics in the Islamic Legal Tradition,* London, New York: I.B. Tauris.

Moballegh, Zahra (2018), "Veiled Women Unveiling God: Understanding the Qurʾān Through Its Women Characters". https://wsrp.hds.harvard.edu/news/2018/12/05/video-veiled-women-unveiling-god (accessed March 13, 2024).

Saheeh International Translation. https://quranenc.com/en/browse/english_saheeh

Seker, Nimet (2020), *Koran und Gender: Exegetische und hermeneutische Studien zum Geschlechterverhältnis im Koran*, Hamburg: Editio Gryphus.

Tabatabaʾi, Mohammad Ali (Mehr Dad), Saida Mirsadri (2016), "The Qurʾānic Cosmology, as an Identity in Itself," *Arabica*, T. 63, Fasc. 3/4, 201–234.

Tatari, Muna, Klaus von Stosch (2021), *Prophetin, Jungfrau, Mutter: Maria im Islam und Christentum*, Freiburg i. Br.: Herder.

Wadud, Amina (1999), *Qur'an and Woman: Rereading the Sacred Text from a Woman's Perspective.* New York: Oxford University Press.

Wadud, Amina (2006), *Inside the Gender Jihad, Women's Reform in Islam,* Oxford: Oneworld Publications.

Wadud, Amina (2021), "Reflections on Islamic Feminist Exegesis of the Qur'an," *Religions*, 12 (7), 497.

Jerusha Tanner Rhodes

Chapter 18
Gender in Context, Content, and Method: Transforming Islamic Comparative Theology

Introduction

In the last decade, scholars have defined the contours of Islamic comparative theology in diverse ways and in relation to various institutions and interreligious relationships. In this chapter, I aim to add to this definitional process by exploring how gender is, should be, and could be present in Islamic comparative theology. I will do so by examining three interrelated areas: context, content, and method.

Context refers to the general importance of contextually aware theologies, and, more specifically, to the contexts in which Islamic comparative theologies are authored, received, and to which they respond. Content refers to the topics and foci of comparative theological investigation. Method refers to the approaches and methods that we use as constructive comparative theologians and the underlining assumptions of those methods.

In focusing on these three areas (context, content, and method) in relation to gender, I do not seek to provide definitive or singular answers. Rather, my goal is to prompt productive conversation about the objectives and possibilities of Islamic comparative theologies that conscientiously engage gender, not as an optional category of analysis, but as a central and ever-present concern.

Gendered Context

Context is the 'who,' 'where,' and 'why' questions of comparative theology. The Context-related concerns are both general—related to all comparative theologies—and specific—related to contemporary Islamic comparative theologies.

Generally, context should be an explicit and acknowledged concern for all comparative theologies, Muslim and from other traditions and perspectives. Context shapes every comparative theologian in terms of languages, cultures, norms, attention, and motivations. Context—more accurately contexts—shapes the questions we bring to comparative theology, what we pay attention to, and the tools we use. Notably, attentiveness to the context and identity of the comparative theologian is a methodological intervention of diverse feminist theorists and theologians. There is

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no such thing as a neutral or decontextualized standpoint. As such, the male theological voice cannot be assumed to be a universal norm that automatically includes all of humanity. I will return to this later in relation to gendered methodology.

Context also shapes the accumulated traditions that we engage as comparative theologians. If, for example, we are engaged in comparative theology based upon exegetical texts, we must grapple with how those texts are products of contexts and interactions among contexts. Comparative theologies, like all theologies, are never decontextualized. Context is also a general concern because of the "communal resonance" goal in comparative theology methodology. Communal resonance means that theologies are not solely unique interpretations but are in conversation with traditions and meaningful to religious communities.[1] Comparative theology is not simply an individual project, but, rather, a legible contribution to a communal discourse.

Gender is relevant in all of these general, context-related concerns. Who is the comparative theologian? Who has access to the formation, education, and sources necessary for comparative theology? Are some people excluded, included, or elevated based on gender and gendered norms? Whose questions and concerns matter? What voices and perspectives are preserved in accumulated traditions? Does, for example, the privileging of written texts over ritual practices in comparative theology reflect a gendered bias?[2] How do we define "communal resonance"?[3] How is this category gendered, especially since authority and leadership are historically gendered? These are general questions for all comparative theologians.

For contemporary Islamic comparative theologians more specifically, gender is a context-related concern because we author comparative theologies in and for contexts in which gender is often politicized. This politicization assumes many forms, ranging from immigration policies to public discourse to legal statues to gendered symbols related to bodies and sexuality. Comparative theology is not immune to the politicization of gender, and while politicization manifests in innumerable ways, there are a few significant forms.[4] The first is superficial characterizations of Muslims by non-Muslims. This, for example, occurs when Muslim women and men are grouped by broad stereotypes, such as passive and violent; when intra-Muslim sexual and gender diversity is ignored; or when Muslims are presented as foils for other traditions/theologians' perspectives on sex, gender, and sexuality. The second form is hegemonic, 'universal' feminisms.[5] These formulations of feminism—both religious and not—claim universal experience, universal relevance, and universal

1 Lamptey (Rhodes) 2018, 30–35. See also, Clooney, 2010, 13.
2 See Voss Roberts 2010b, 114–115; Voss Roberts (2010a) 4–5; Lamptey (Rhodes) 2018, 33.
3 Lamptey (Rhodes) 2018, 35.
4 Lamptey (Rhodes) 2018, 3–6.
5 Lamptey (Rhodes) 2018, 2–4, 25.

objectives. While they attend to the manifestations of gender in context, content, and method, they impose universal norms, limit diversity, and sometimes assert 'false consciousness.' The third form of politization is intra-Muslim demonization of gender theory and feminisms as "un-Islamic" and "foreign".[6] This is a contemporary trend whereby some Muslims attempt to discredit gendered analysis and concerns by claiming that these are foreign transplantations into Muslim communities. Here, it is significant that dismissal of gender concerns is coupled with a reification of boundaries among religious traditions, reification based upon specific, often exclusivist theologies of religions. This is a vivid example of how gender is woven into the whole field and discourse of comparative theology.

Why do these forms of politicized gender matter? This is the tensive and complex context in which contemporary Islamic comparative theologies are defined, articulated, and received. How do we engage in comparative theology—which requires interaction with other traditions and communities—if those traditions circulate superficial characterizations of Islam and Muslims? Can these characterizations be 'avoided'? Should they be? What if our work—writings, conferences, and dialogues—inadvertently confirms these characterizations? Can one goal of Islamic comparative theology be to push back on these characterizations? If we engage gender and gendered theories in our work, how do we—do we?—grapple with hegemonic feminisms? Does our work reify religious boundaries, and thereby reify notions of Islamic and un-Islamic? When deeply engaging tradition and sources and attending to communal resonance, do we acknowledge how appeals to singular tradition, community, and 'real Islam' can create and delegitimize internal outsiders? Does this matter? In my view, it does deeply, and thus it should be a central concern for the Islamic comparative theologian.

Gendered Content

Gender is also relevant in relation to the content of Islamic comparative theology. Content is the 'what' of comparative theology, that is, the topics and focus areas of comparative theological exploration. Gender itself is the subject of some Islamic comparative theologies, including those that focus on depictions of women in general within traditions and texts, or those that explore shared women, such as Maryam/Mary or Hajar/Hagar in Islamic and Christian traditions.[7] There are many possible gender-related topics that could be identified. Rather than identify and list

6 Lamptey (Rhodes) 2018, 5–6.

7 Lamptey (Rhodes) 2018, 33. See, for example, Clooney 2005.

potential topics, it seems most relevant to highlight the fact that, even as a content topic, gender remains underdeveloped, under-examined, and treated as secondary to the 'main' work of Islamic comparative theologies.

Recognizing this reality, what are some general guides for developing and emphasizing gender as a content concern? I will offer four suggestions, some of which may seem simplistic but are nevertheless necessary to counteract the underdevelopment and marginalization of gender-related topics. First, include it and include it more. Since gender is not often centered, there are many unexplored topics and areas. Any inclusions will push the conversation forward within Islamic comparative theological conversations.

Second, comparative theologians should recognize that gender is not just 'women' and 'women-related topics'. Gendered content and topics include depictions of masculinity, sexuality, queerness, imagery, and language. They also include exploration of relationship—prescriptive, practical, descriptive, and more—among people who are gendered. Significantly, theological comparisons are better made when we have a more complex understanding of gender as a category and lens of analysis. In my work, for example, I do not compare Maryam and the Christian Mary, a comparison that does engage gender, but also rests on a surface identification of assumed likeness. Rather, I use the gendered category of "purity" to probe comparative intersections between Islamic discourse on Prophet Muhmmad's sinlessness and illiteracy (being 'untainted' by previous revelation) and the Christian Mary's virginity (being 'untainted' by sex).[8]

Additionally, gender-related content in Islamic comparative theology is not just the responsibility or specialization of women. It should not be left to female theologians alone. My experience is that this relegation is part of the broader trend of treating such work as a particular form of the 'real' Islamic comparative theology. If gender is a category of existence that we use and embody and that is invoked in Muslim communities in life giving and harmful ways, there can be no Islamic comparative theology that avoids this content area, while simultaneously attending to real people and communities.

Lastly, context, context, context. In part, this is a reiteration of my observations in the previous section about the context of the theologian and the accumulated context. In relation to content, subject matter choices are always conditioned by the contemporary context. They will also be conditioned by historical contexts and the gendered realities that those contexts deliver to us today. For example, when we engage in comparative theology in relation to Aisha or the 'Aisha model', do we, following the work of Ash Geissinger, grapple with the con-

8 Lamptey (Rhodes) 2018, 121–155.

textual reality that many depictions of Aisha and the interpretation of her significance and behavior are largely preserved and authored by men and in patriarchal contexts?[9] Aisha is gendered in muti-faceted ways. So are the institutions of knowledge and tradition surrounding her figure. Both realities are ripe for Islamic comparative theological investigation.

Staying with the traditions around Aisha for a moment, it is also worth noting that many ahadith related to her are focused on drawing distinctions among groups of people and making social distinctions.[10] There is something to unpack here about the ways female figures are used to police boundaries, inclusive of boundaries among religious communities. Gender is tangled together with religious diversity and difference.

This tangling of gender and religious diversity is even clearer in another example: what we today would call "interfaith marriage," specifically marriage of Muslims to people from other religious communities. Legal and ethical perspectives on this reality are often differentiated by sex, with Muslim men being assumed to have this privilege while Muslim women do not. Contemporary explanations for this difference invoke patriarchal norms and complementarian understandings of gender roles, in which Muslim women can be/will be controlled by men. These prescriptions, however, are also about views of the religious other: in this case male religious others who are domineering, female religious others who will follow Muslim men, and Muslim men who are tolerant and accepting of difference.[11] Gender and religious otherness are often not too far from each other.

These four suggestions can help to increase gendered content exploration in Islamic comparative theologies. Notably, increased gendered content exploration will assist in further developing Islamic comparative theology as an approach.

Gendered Method

The third gender-related area is method. Method is the 'how' of comparative theology, meaning the approaches and tools we use as constructive, comparative theologians and the underlying assumptions of these approaches and tools. In my view, methodology is one of the most exciting areas in which gender and Islamic comparative theology come together. It is a convergence that can aid us in articulating relevant and resonant theologies that draw meaningfully upon tradition,

9 Geissinger 2015, 211, 247. See also, Lamptey (Rhodes) 2018, 111–112.
10 Geissinger 2015, 211, 247.
11 Lamptey (Rhodes) 2015.

while responding to diverse contemporary needs and concerns. In short, gendered methodology will lead to transformative Islamic comparative theologies.

I have written extensively about this gendered methodology—specifically the ways gender theory and diverse feminist theologies extend, challenge, and enhance dominant comparative theology methods—in my book *Divine Words, Female Voices: Muslima Explorations in Comparative Theology*.[12] Herein, I will highlight four features of this comparative theological methodology.

To begin, this method necessitates attentiveness to power dynamics among and within traditions. Gender theories and diverse feminist theologies challenge the possibility of neutrality, and, as such, see any avoidance of discussing power as an act of obscuration. In the context of interreligious engagement, including comparative theology, there is no equal footing or level playing ground. Our choice is not to pretend there is and precede with our theologizing. We must acknowledge power differentials, and then incorporate this knowledge into our methodologies. This, for example, means that a singular method of comparative theology will not be applicable to all acts of comparative theology and to all traditions that we engage. Method will shift or be modified depending on traditions of theological engagement (Islam to Christianity, Buddhism to Indigenous Ghanaian traditions, Hinduism to Islam, et cetera). What does this mean for Christian dominance in the contemporary discourse of comparative theology, especially if Christianity is the dominant contextual and disciplinary tradition? If it defines the terms of the field and practice? What methods are appropriate for a non-dominant tradition engaging a dominant one? What methods are appropriate for engaging another non-dominant tradition?[13]

Attentiveness to power dynamics requires flexibility and agility in method. Flexibility and agility will also require more interreligious knowledge and learning (not necessarily academic knowledge). If we are no longer focusing only on exegesis, then we must be knowledgeable in other areas. The demand for deeper knowledge, however, is a methodological safeguard that fosters responsibility and mutual accountability, thus pushing back on superficial characterizations and comparisons that stunt deep comparative theology.[14] The demand for deeper knowledge also creates more room for Islamic comparative theology to define its own terms and methods, and for others to substantially engage those definitions.

Second, this gender-attentive method centers "outsiders within" Islamic traditions. "Outsiders within" is a term borrowed from the work of comparative theologian Michelle Voss Roberts.[15] It refers to those members of a community or tradi-

12 Lamptey (Rhodes) 2018.

13 Lamptey (Rhodes) 2018, 31.

14 Lamptey (Rhodes) 2018, 29–30.

15 Voss Roberts 2010b, 114–115; Voss Roberts 2010a, 4–5; Lamptey (Rhodes) 2018, 33.

tion that are often decentered or relegated in traditional authority structures and sources. By explicitly centering these voices, perspective, and sources, the method of comparative theology not only expands content possibilities, but it puts into place a methodological corrective to all three of the specific gendered context concerns that I identified earlier in this chapter.

Third, this method moves beyond written texts as the primary subject matter of comparative theology. The first two features (attentiveness to power and outsiders within) often necessitate this move. The methodological shift here is also intentional and enriching. It allows for a broader and more dynamic view of diverse Islamic traditions and Muslim communities. Moreover, it is not simply a shift from normative to on the ground. It is using Islamic traditions and norms—such as the heavy emphasis on ritual practice and social ethics, on doings—to reshape methods and foci. It is also challenging the dominance of other communities in defining one-size-fits-all methods of comparative theology. Written texts do remain important, but this methodology requires us to analyze their gendered assumptions, contexts, and authorship.

Finally, this methodology transforms Islamic comparative theology into a way to move toward greater humanization and egalitarianism within and beyond Muslim communities. In early comparative theological method, following Clooney and others, the main goals of comparative theology are stated as 'learning with and from', gaining 'fresh theological insights' and 'communal resonance'. A gender-aware lens on method does not do away with any of these goals, but, in line with broader feminist theological commitments, the 'why' of comparative theology is tied to concrete lived realities and a quest for greater flourishing—not just male, not just human—in the world.

Conclusion

In this chapter, I have explored how gender is a context, content, and methodological concern in Islamic comparative theologies. My goal has been to stimulate awareness of diverse manifestations of gender, and to prompt conversations about the transformative possibilities of Islamic comparative theology when gender analysis is incorporated into all three areas.

Bibliography

Clooney, Francis X. (2005), *Divine Mother, Blessed Mother: Hindu Goddesses and the Virgin Mary*. New York: Oxford University Press.

Clooney, Francis X. (2010), *Comparative Theology: Deep Learning Across Religious Borders*, Malden, MA: Wiley Blackwell.

Geissinger, Aisha (2015), *Gender and Muslim Constructions of Exegetical Authority: A Rereading of the Classical Genre of Qur'an Commentary*, Leiden: Brill.

Lamptey (Rhodes), Jerusha (2015), "Interfaith Marriage: A Concern?" *McGinley Lecture Series*, New York: Fordham University.

Lamptey (Rhodes), Jerusha Tanner (2018), *Divine Words, Female Voices: Muslima Explorations in Comparative Feminist Theology*, New York: Oxford University.

Voss Roberts, Michelle (2010a), *Dualities: A Theology of Difference*, Louisville: Westminster John Knox.

Voss Roberts, Michelle (2010b), "Gendering comparative theology", in: Franis X. Clooney, ed., *The New Comparative Theology: Interreligious Insights from the Next Generation*, London: T & T Clark, 109–128.

About the Authors

Ahmad Atif Ahmad is Professor of Religious Studies at the University of California, Santa Barbara, where he works at the intersection of law, religion, and legal epistemology. His research focuses especially on medieval Islamic law and on modern legal debates, often with an eye to comparative questions about authority and normativity.

Hakkı Arslan is a Muslim theologian and scholar of Islamic studies with a focus on Islamic legal literature and its historical diversification. He has held research positions in Germany, including work connected to the Dubnow Institute in Leipzig, and contributes to contemporary debates on law, tradition, and interpretation.

Dina El Omari is a professor at the Centre for Islamic Theology at the University of Münster and has also been affiliated with the Cluster of Excellence "Religion and Politics." Her work connects Islamic theology with questions of religious education, pluralism, and gender-sensitive or feminist discourses in Islam.

Z**ishan Ghaffar** is Professor of Qur'anic Exegesis at the University of Paderborn and Director of the Centre for Comparative Theology and Cultural Studies (ZeKK). His research bridges Qur'anic studies with comparative theology and interreligious engagement.

Naciye Kamcili-Yildiz is Professor for Islamic Religious Education and its didactics at the Paderborn Institute of Islamic Theology (University of Paderborn). Her research focuses on the professionalization of Islamic religion teachers and on interreligious learning in plural settings.

Aaron Langenfeld is a Roman Catholic theologian at the Theological Faculty of Paderborn, where he holds the Chair of Fundamental Theology and the Comparative Study of Religions. His research engages anthropological questions, fundamental theology, and interreligious comparative perspectives.

Vahid Mahdavi Mehr earned his PhD in Comparative Theology from the University of Paderborn and is a research associate at the University of Bonn. His research focuses on developing an Abrahamic theology based on a non-supersessionist reading of the Qur'an.

Saida Mirsadri is a Senior Lecturer at the University of Geneva, specializing in comparative theology and philosophy of religion. Her research focuses on critiques of theodicy, modern Islamic thought --particularly Iqbal studies --and constructive approaches, including process theology and ecofeminism.

Marianne Moyaert is Professor of Comparative Theology and the Study of Interreligious Relations at KU Leuven and leads research on interreligious hermeneutics and the theology of religions. Her work is especially known for methodological reflection on how traditions can learn "with" and "from" one another in concrete encounters.

Abdul Rahman Mustafa is Associate Professor at the Shaikh Ahmad Hassan School of Law, Lahore University of Management Sciences. His research spans Islamic thought, law, political theology, and comparative approaches that bring classical Islamic scholarship into dialogue with critical theory and global debates on ethics and law.

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Idris Nassery is Professor of Islamic Law at the University of Paderborn and Director of the Paderborn Institute of Islamic Theology. Trained in law, he engages contemporary debates on classical Islamic jurisprudence within European academic contexts.

Jerusha Tanner Rhodes is Associate Professor of Islam and Interreligious Engagement and Director of Islam-Focused Degree Programs at Union Theological Seminary in New York City. Her work is widely read on religious pluralism, Islamic feminism, and Muslima constructive theology in conversation with other traditions.

Mohamed El-Sayed El-Sayyad is an Egyptian Islamic jurist and academic researcher specializing in uṣūl al-fiqh, legitimacy, and the higher aims of Sharia. His work advances a renewed jurisprudence of method that seeks to move contemporary Islamic reasoning from imitation toward creative interpretation.

Monika Tautz is a German theologian specialising in Catholic religious education. She worked for many years at the Institute for Catholic Theology (University of Cologne). Her research focuses on interreligious learning and religious education teacher training.

Ufuk Topkara is Professor at Humboldt-Universität zu Berlin in the field of Comparative Theology from an Islamic perspective. His research brings Islamic theology into conversation with contemporary philosophy and with Jewish and Christian theologies, including intra-Muslim comparative questions.

Pim Valkenberg is Professor Emeritus (The Catholic University of America) and a leading figure in Christian–Muslim dialogue and comparative theology of the Abrahamic traditions. His work combines systematic theology, theology of religions, and long-standing engagement with interreligious encounter as an academic and ecclesial practice.

Klaus von Stosch is a German Catholic systematic theologian and Professor at the University of Bonn. After many years at the University of Paderborn, he played a key role in shaping institutional structures of comparative theology, including the Centre for Comparative Theology and Cultural Studies (ZeKK). His work is closely associated with contemporary comparative theology, particularly Christian–Muslim engagement.

Jan Woppowa is Professor of Religious Education at the University of Osnabrück in the field of Catholic theology. His work engages religious education in plural societies and connects didactic questions with broader interreligious and comparative perspectives.

Fahimah Ulfat is Professor of Islamic Religious Education and Didactics at the University of Münster. Her research focuses on empirical studies on youth and religion, Jewish–Muslim relations, interreligious learning, discrimination-critical education, and the professionalization of teachers of Islamic Religious Education.

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